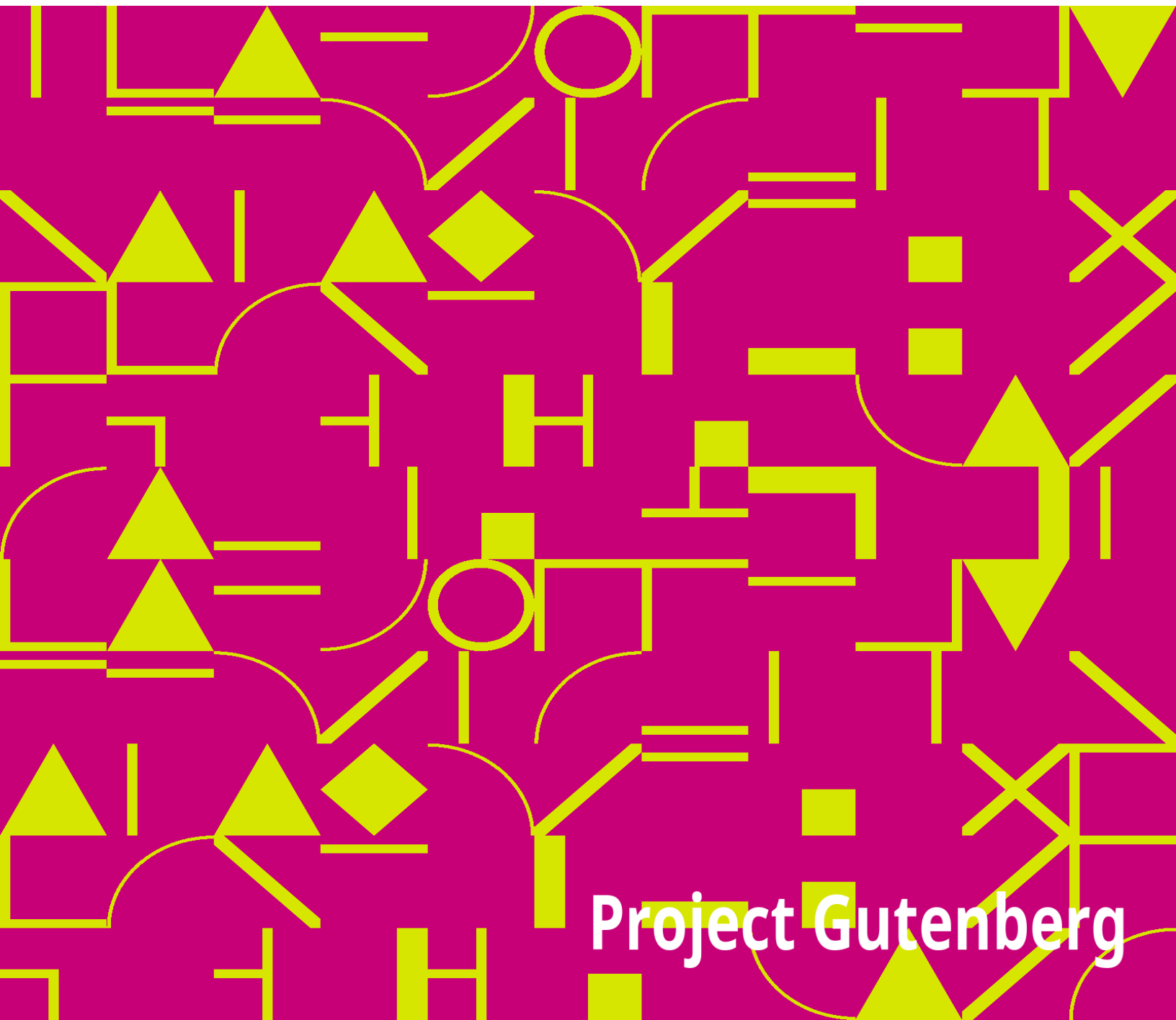


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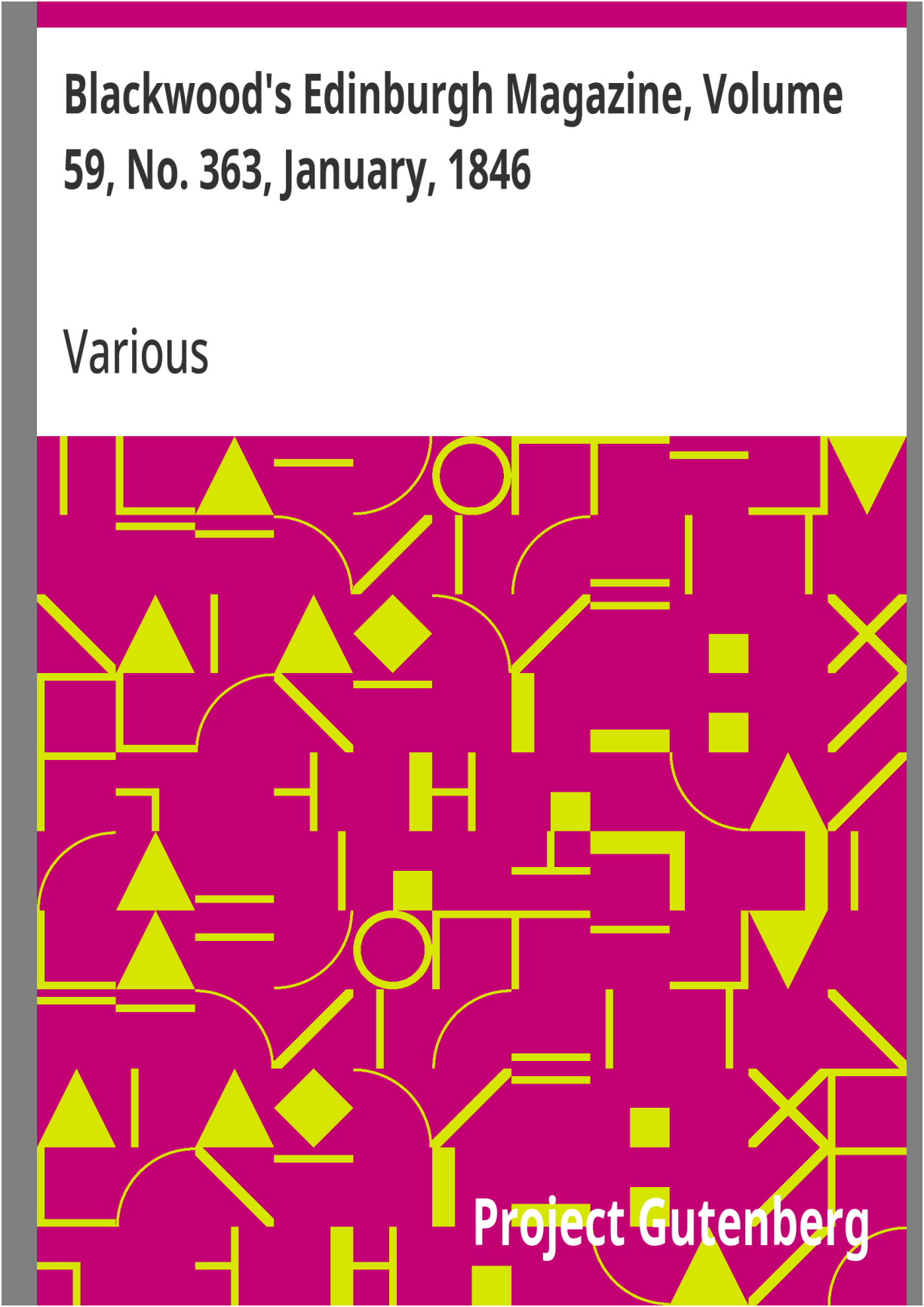
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59, No. 363, January, 1846**

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SIR WILLIAM FOLLETT.

The disappearance from the legal hemisphere of so bright a star as the late Sir William Follett, cast a gloom, not yet dissipated, over the legal profession, and all classes of society capable of appreciating great intellectual eminence. He died in his forty-seventh year; filling the great office of her Majesty's Attorney-general; the head and pride of the British Bar; a bright ornament of the senate; in the prime of manhood, and the plenitude of his extraordinary intellectual vigour; in the full noontide of success, just as he had reached the dazzling pinnacle of professional and official distinction. The tones of his low mellow voice were echoing sadly in the ears, his dignified and graceful figure and gesture were present to the eyes, of the bench and bar—when, at the commencement of last Michaelmas term, they re-assembled, with recruited energies, in the ancient inns of court, for the purpose of resuming their laborious and responsible professional exertions in Westminster Hall. It was impossible not to think, at such a time, of Sir William Follett, without being conscious of having sustained a grievous, if not an irreparable, loss. Where was he whose name was so lately a tower of strength to suitors; whose consummate logical skill—whose wonderful resources—taxed to the uttermost those of judicial intellect, and baffled and overthrew the strongest who could be opposed to him in forensic warfare? Where, alas, was Sir William Follett? His eloquent lips were stilled in death, his remains were mouldering in the tomb—yes, almost within the very walls of that sacred structure, hallowed with the recollections and associations of centuries, in which his surviving brethren were assembled for worship on Sunday the 2d day of November 1845—the commencement of the present legal year—at that period of it when *his* was erewhile ever the most conspicuous and shining figure, *his* exertions were the most interesting, the most important, *his* success was at once the most easy, decisive, and dazzling. Yes, there were assembled his brethren, who, with saddened faces and beating hearts, had attended his solemn obsequies in that very temple where was "committed his body to the ground, earth to earth, ashes to ashes, dust to dust," where all, including the greatest and noblest in the land, acknowledged, humbly and mournfully, at the mouth of

his grave, that man walketh in a vain shadow, and disquieteth himself in vain; he heapeth up riches, and cannot tell who shall gather them! Surely these are solemnizing and instructive reflections; and many a heart will acknowledge them to be such, amidst all the din, and glare, and bustle of worldly affairs, in the awful presence of Him *who turneth man to destruction, and sayeth, Come again, ye children of men!*

Sir William Follett has now lain in his grave for six months. During this interval, the excitement which his death created amongst those who had been in constant intercourse with him for years, has subsided; leaving them better able to take a calm and candid view of his character, acquirements, and position, and form a sober estimate of the nature and extent of his reputation while living, and the probability of its permanently surviving him.

When summoned from the scene of his splendid and successful exertions, he was unquestionably the brightest ornament of the British bar. Immediately afterwards the press teemed with tributes to his memory: some of them characterised by great acuteness and discrimination, several by exaggerated eulogy, and one or two by a harsh disingenuousness amounting to misrepresentation and malevolence. Nothing excited more astonishment among those who had thoroughly known Sir William Follett, than the appearance of these attacks upon his memory, and the bad taste and feeling which alone could have prompted the perpetration of them, at a moment when the hearts of his surviving relatives and friends were quivering with the first agonies of their severe bereavement; when they had just lost one who had been the pride of their family, the pillar of their hopes,—and who was universally supposed to have left behind him not a single enemy—who had been distinguished for his courteous, mild, and inoffensive character, and its unblemished purity in all the relations of private life. Certain of the strictures here alluded to, were petty, coarse, and uncandid; and with this observation they are dismissed from further notice. Sir William Follett had undoubtedly his shortcomings, in common with every one of his fellow men; and, as a small set-off against his many excellences of temper and character, one or two must be glanced at by any one essaying to present to the public, however imperfectly, a just account of this very eminent person. The failing in question formed the chief subject of vituperation—*vituperation of the dead!*—by the ungracious parties to whom brief

reference has just been made; and consists, in short, in the excessive eagerness to accumulate money, by which it was alleged that the late Sir William Follett was characterised. This charge is certainly not without foundation; but while this frank admission is made, an important consideration ought to accompany it in guiding the judgment of every person of just and generous feeling; and will relieve the memory of the departed from much of the discredit sought to be attached to it.

The life of Sir William Follett appears to have been, from the first, of frail tenure. Could he have foreseen the terrible tax upon his scanty physical resources which would be exacted by the profession which he was about to adopt, he would probably have abandoned his intentions, justly conscious though he might have been of his superior mental fitness for the Bar, and would have betaken himself to some more tranquil walk of life, which he might have been at this moment brightly adorning. He devoted himself, however, to the law, with intense and undivided energy; and, at a very early period of his professional career, was compelled to retire for a time from practice, by one of the most serious mischances which can befall humanity—it is believed, the bursting of a bloodvessel in the lungs. Was not this a very fearful occurrence—was it not almost conclusive evidence of the unwise choice which he had made of a profession requiring special strength in that organ—was it not justly calculated to alarm him for his future safety? And yet, what was he to have done? To have abandoned a profession for which alone he had qualified himself by years of profound and exclusive thought and labour? What Office would, under such circumstances, have insured the life of young Mr Follett, who, with such a fatal flaw in his constitution, was nevertheless following a profession which would hourly attack his most vulnerable part? Poor Follett! who can tell the apprehensions and agonies concerning his safety, to which he was doomed, from the moment of his first solemn summons to the grave, on the occasion alluded to? What had happened, he too well knew, might happen again at any moment, and hurry him out of life, leaving, in that case, comparatively destitute those whom he tenderly loved—for whom he was bound to provide—his widow and children. And for the widow and children of such a man as he knew that he had become, he felt that he ought to make a suitable provision: that those who, after he was gone, were to bear his distinguished name, might be enabled to occupy the position in which he had placed them

with dignity and comfort. Was such an illegitimate source of anxiety to one so circumstanced, and capable of Sir William Follett's superior aspirations? Was it not abundantly justified by his splendid qualifications and expectations? Why, then, should he not toil severely—exert himself even desperately—to provide against the direful contingency to which his life was subject? Alas! how many ambitious, honourable, high-minded, and fond husbands and fathers are echoing such questions with a sigh of agony! Poor Follett! 'twas for such reasons that he lived with an honourable economy, eschewing that extravagance and ostentation which too often, to men in his dazzling position, prove irresistible; it was for such reasons that he *rose up early, and went to bed late, and ate the bread of carefulness*. Had he been alone in the world—had he had none to provide for but himself, and yet had manifested the same feverish eagerness to acquire and accumulate money—had he loved money for money's sake, and accumulated it from the love of accumulation, the case would have been totally different. He might then have been justly despised, and characterized as being *of the earth, earthy*—incapable of high and generous sentiments and aspirations—sordid, grovelling, and utterly despicable. Sir William Follett had, during twenty years of intense and self-denying toil, succeeded in acquiring an ample fortune, which he disposed of, at his death, justly and generously; and how many hours of exhaustion, both of mind and body, must have been cheered, from time to time, by reflecting upon the satisfactory provision which he was making—which he was daily augmenting—for those who were to survive him! Who can tell how much of the bitterness of death was assuaged by such considerations! When his fading eyes bent their aching glances upon those who wept around his death-bed, the retrospect of a life of labour and privation spent in providing for their comfort, must indeed have been sweet and consolatory! Surely this is but fair towards the distinguished dead. It is but just towards the memory of the departed, to believe his conduct to have been principally influenced by such considerations. All men have many faults—most men have grave faults. Is parsimony intrinsically more culpable than prodigality? Have not most of mankind a tendency towards one or the other? for how few are ennobled by the ability to steer evenly between the two! And even granting that Sir William Follett had a *tendency* towards the former failing, it was surely exhibited under circumstances which warrant us in saying, that "even his failings leaned to virtue's side."

Connected with and immediately dependent upon this imputation upon the late Sir William Follett, is another which cannot be overlooked. He is charged with having made a profit of his prodigious popularity and reputation, by discredibly and unconscientiously receiving fees from clients for services which he well knew at the time that he could not possibly render to them; in short, with taking briefs in cases to which he had no reasonable hope of being able to attend. This is a very grave accusation, and requires a deliberate and honest examination. It is a long-established rule of English law, that barristers have no legal means of recovering their fees, even in cases of most arduous and successful exertion, except in the very few instances where a barrister may consider it consistent with the dignity of his position to enter beforehand into an express agreement with his client for the payment of his fees^[A]. A barrister's fee is regarded, in the eye of the law, as *quiddam honorarium*; and is usually—and ought to be invariably—paid beforehand, on the brief being delivered. A fee thus paid, a rule at the bar forbids being returned, except under very special circumstances; and the rule in question is a very reasonable one. As counsel have no legal title to remuneration, however laborious their exertions, what would be their position if they were expected or required to return their fees at the instance of unreasonable and disappointed clients? Where ought the line to be drawn? Who is to be the judge in such a case? A client may have derived little or no benefit from his counsel's exertions, which may yet have been very great; an accident, an oversight may have intervened, and prevented his completing those exertions by attending at the trial either at all, or during the whole of the trial; he may have become unable to provide an efficient substitute; through the sudden pressure of other engagements, he may be unable to bestow upon the case the deliberate and thorough consideration which it requires—an unexpected and formidable difficulty may prove too great for his means of overcoming it, as might have been the case with men of superior skill and experience;—in these and many other instances which might be put, an angry and defeated client would rarely be without some pretext for requiring the return of his fees, and counsel would be subject to a pressure perfectly intolerable, most unreasonable, most unfair to themselves, leading to results seriously prejudicial to the interests of their clients; and a practice would be introduced entailing great evils and inconveniences, affecting the credit and honour of both branches of the legal profession. The rule in question rests upon the above, among many

other valid reasons, and is generally acted upon. No one, however, can have any practical knowledge of the bar, without being aware of very many instances of counsel disregarding that rule, and evincing a noble disinterestedness in the matter of fees, either returning or declining to accept them, at a severe sacrifice of time and labour, after great anxiety and exertion have been bestowed, and successfully bestowed. The rule in question is rigidly adhered to, subject to these exceptions by eminent counsel, on another ground; viz. for the protection of junior counsel, who would be subject to incessant importunities if confronted by the examples of their seniors. Take, now, the case of a counsel who has eclipsed most, if not every one, of his competitors, in reputation, for the skill and success of his advocacy—who is acute, ready, dexterous, sagacious, eloquent, and of accurate and profound legal knowledge: that is the man whose name instantly occurs to any one involved, or likely to be involved, in litigation—such an one must be instantly secured—at *all events, taken from the enemy*—at any cost. The pressure upon such a counsel's time and energies then becomes really enormous, and all but insupportable. As it is of the last importance either to secure his splendid services, or deprive the enemy of them, such a counsel—and such, it need hardly be said, was Sir William Follett—is continually made the subject of mere speculation by clients who are content to take the *chance* of obtaining his attendance, with the *certainty* of securing his absence as an opponent. When, however, the hour of battle has arrived, and, with a compact array visible upon the opposite side, the great captain is *not* where it had been hoped—or thought possible that he might have been—when, moreover, no adequate provision has been made against such a serious contingency—when the battle has been fought and lost, and great interests are seriously compromised, or for ever sacrificed—*then* the client is apt, in the first smarting agony of defeat, to forget the *chance* which he had been content to run, and to persuade himself that he had from the first calculated as a matter of *certainty* on the great man's attendance—and intense is that client's chagrin, and loud are his complaints. Can it be supposed that this eminent counsel is not sufficiently aware of the true state of the case? It is but fair to give him credit for being under the impression, that all which is expected from him, in many cases, is his best exertions to attend the trial or hearing—to provide an effective substitute, if unable to attend—and give due attention to the case at consultation. For counsel to act otherwise, deliberately to receive a brief and fee, in a case

which he *knows* that he cannot possibly attend, without in the first instance fairly intimating as much to the client—to do so, in cases of importance, and habitually—is surely most foully dishonourable, dishonest, and cruel; and conduct which there is no pretence for imputing to the members of the bar. It cannot, however, be denied, that very serious misunderstandings occasionally arise on such occasions; but there are many ways of accounting for them, without having recourse to a supposition involving such serious imputations upon the honour of counsel—arising out of *bonâ fide* accident and mistake—the unavoidable hurry and sudden emergencies of business—misunderstandings between a counsel and his clerks;^[B] between either or both, and the client—and the perplexity and confusion almost necessarily attending the movements of very eminent counsel. On such occasions every thing is usually done which can be dictated by liberality and honour, and fees are returned without hesitation. If, however, the case can be looked at from another point of view—if the eager client be fairly apprised by the clerk, that Sir —— or Mr —— "may not be able to attend"—or, "there is a *chance* of his attending"—or "he is very likely to be elsewhere"—and, aware of the multifarious and conflicting calls upon the time of Sir —— or Mr ——, will be content to take his "chance," and deliver his brief, and pay his fee; in such a case the client will have had all which he had a right to expect,—viz. the chance, not the certainty; there will be no pretence for alleging careless misunderstanding or deception.

If ever there were a member of the English bar who may be said to have been overwhelmed by the distracting importunities of clients to secure his services, at all hazards and at any cost, it was the late Sir William Follett; and how he contrived to satisfy the calls upon him, to the extent which he did, is truly wonderful. How can one head, and one tongue, do so much, so admirably? is a question which has a thousand times occurred to those of his brethren at the bar, who knew most of his movements, and were least likely to form an exaggerated estimate of his exertions. The litigant public seemed to feel that every moment of this accomplished and distinguished advocate's waking hours was their own, and they were restricting his sleeping hours within the very narrowest limits. Every one would have had Sir William every where, in every thing, at once! Whenever, during the last fifteen years of his life, there was a cause of magnitude and difficulty, there was Sir William Follett. What vast interests have been by turns perilled and

protected, according as Sir William Follett acted upon the offensive or defensive! Misty and intricate claims to dormant peerages, before committees of privileges, in the House of Lords; appeals to the High Court of Parliament, from all the superior courts, both of law and equity, in the United Kingdom, involving questions of the greatest possible nicety and complexity—and that, too, in the law of Scotland, both mercantile and conveyancing, so dissimilar to that prevailing in other parts of the kingdom; appeals before the Privy Council, from the judicial decisions of courts in every quarter of the globe where British possessions exist, and administering varying systems of law, all different from that of England; the most important cases in the courts of equity, in courts of error, and the common law courts in *banc*; all the great cases depending before parliamentary committees, till he entered the House of Commons; every special jury cause of consequence in London and Middlesex, and in any of the other counties in England, whither he went upon special retainers; compensation cases, involving property to a very large amount;—in all these cases, the first point was—to secure Sir William Follett; and, for that purpose, run a desperate race with an opponent. Every morning that Sir William Follett rose from his bed, he had to contemplate a long series of important and pressing engagements filling up almost every minute of his time—not knowing where or before what tribunal he might be at any given moment of the day—and often wholly ignorant of what might be the nature of the case he would have to conduct, against the most able and astute opponents who could be pitted against him, and before the greatest judicial intellects of the kingdom: aware of the boundless confidence in his powers reposed by his clients, the great interests entrusted to him, and the heavy pecuniary sacrifices by which his exertions had been secured. Relying with a just confidence on his extraordinary rapidity in mastering all kinds of cases almost as soon as they could be brought under his notice, and also on the desire universally manifested by both the bench and the bar to consult the convenience and facilitate the business arrangements of one, himself so courteous and obliging to all, and whom they knew to be entrusted at a heavy expense to his clients, with the greatest interests involved in litigation; relying upon these considerations, and also upon those others which have been already alluded to, Sir William Follett undoubtedly permitted briefs to be delivered to him, *all* of which he must have suspected himself to be incapable of personally attending to. It must be owned that on

many such occasions he may not—distracted with the multiplicity of his exhausting labours—have given that full consideration to those matters which it was his bounden duty to have given to them; and his conduct in this respect has been justly censured by both branches of the high and honourable profession to whom the public entrusts such mighty interests. Still he turned away business from his chambers which would have made the fortunes of two or three even eminent barristers, and has been known to act with spirit and liberality in cases where his imprudence on the score alluded to had been attended with inconvenience and loss to his clients. Nor was he *always* so fortunate, as latterly, with respect to his clerks; who had, equally with himself, a direct pecuniary interest^[C] on every brief which he accepted, and consequently a strong motive for listening with a too favourable ear to the importunities of clients. The necessary consequence of all this was occasionally the bitter upbraiding of Sir William Follett's desperately disappointed and defeated clients. Still, however, he did make most extraordinary efforts to satisfy all the claims upon his time and energies, and at length sacrificed himself in doing so; to a very great extent foregoing domestic and social enjoyments—sparing himself neither by night nor by day, neither in mind nor body. Crowded with consultations as was almost every hour of the day not actually spent in open business in court—from the earliest period in the morning till the latest at night—it was really amazing that he contrived to obtain that perfect mastery of his ponderous and intricate briefs, which secured him his repeated and splendid triumphs in court. Till within even the last eighteen months, or two years, if you had gone down one morning at half-past nine to Westminster, you might have heard him opening with masterly ease, clearness, and skill, a patent case, or some other important matter, before a special jury; and immediately after resuming his seat, you would see him go perhaps into an adjoining court of Nisi Prius, in which also he was engaged as leading counsel, and where he would quickly ascertain the exact position of the case—and effectively cross-examine or re-examine a witness, or object to or support the admissibility of evidence;—then if you followed his footsteps, you would find him in the Lord Chancellor's Court, engaged in some equity case of great magnitude and difficulty. Some time afterwards he might be seen hastening to the Privy Council—and by about two or three o'clock at the bar of the House of Lords, in the midst of an admirable reply in some great appeal or peerage case. When the House broke up, Sir William Follett

would doff the full-bottomed wig in which alone Queen's counsel are allowed to appear before the House of Lords, and, resuming his short wig, reappear in either—or by turns in both—the Courts of Nisi Prius, where he had left trials pending, having directed himself to be sent for if there should arise any necessity for it. Then he would in a very few moments calmly possess himself of the exact state of the cause, and resume his personal conduct of it, as effectively as if he had never quitted the Court. If he could be spared for a quarter of an hour, he would glide out, followed by one or two counsel and attorneys, to hold one, or perhaps two consultations, in cases fixed for the next day. On the court's rising—perhaps about six or seven o'clock, he would go home to swallow a hasty dinner; then hold one, two, or even three consultations at his own house; read over—as none but he could read—some briefs; and about eleven or twelve o'clock make his appearance in the House of Commons, and perhaps take a leading part in some very critical debate—listened to with uninterrupted silence, and with the admiration of both friends and foes. The above, with the exception of taking part in the debate of the House of Commons, was an average day's work of the late Sir William Follett! And was it not the life of a galley-slave chained to the oar? He had, however, chosen it, and would not quit his seat but at the icy touch of death. Such appears to be a fair and temperate account of the real state of the case, with reference to Sir William Follett's great anxiety to acquire money, and his over-eagerness in accepting briefs. Great allowances ought undoubtedly to be made for him, on the grounds above suggested; and, with reference to the former case, another consideration occurs, which ought to have been already more distinctly adverted to. Sir William Follett had a right to regard his elevation to the peerage as a matter almost of course. Had he lived possibly only a few months longer, he would, in all probability, have become a peer of the realm; and he ought to be given credit for an honourable ambition to avoid the imputation of having inflicted a pauper peerage upon the country. Frail he knew his health to be; and doubtlessly contemplated the necessity of providing suitably for the family whom he was to leave behind him, and which he had ennobled. But what was involved in providing, under such circumstances, "*suitably*" for a noble family? What ample means would have to be secured by one who had inherited no fortune himself, but was, on the contrary, the sole architect of his fortunes? What prodigious efforts are necessary for a lawyer to realise, by his own individual exertions, an

amount which would produce an income of five, four, or even three thousand a-year? And let any one of common sense, and ordinary knowledge of the world, ask himself—whether the highest of those amounts is more than barely sufficient, without undue economy, to provide for a dowager peeress and a young family! That such considerations were not lost sight of by Sir William Follett, but, on the contrary, were stimulants to his intense, unremitting, and exhausting labours, it is easy to understand; and they sprang out of a high, and honourable, and a legitimate ambition. But whatever weight may be attached to these considerations—and generosity and forbearance towards the dead will attach great weight to them—they are no answer to much of the charge brought against the late Sir William Follett, and which ought not to be glossed over and explained away—that, in his excessive eagerness to accomplish his object, he was hurried into an occasional forgetfulness of that nice and high sense of moral principle which ought to regulate every one's conduct—especially those in eminent positions—for the sake of illustrious example, and, in a man's own case, with reference to the awful realities of HEREAFTER: for a man should strive so to pass through things temporal, as not to lose sight of things eternal.

Let us now, however, endeavour to point out some of the excellences of Sir William Follett's character; and perhaps the most prominent of them was his admirable temper. Continually in collision with others, on behalf of important interests entrusted to him, and exposed to a thousand trials and provocations—that temper, nevertheless, scarce ever failed him. Serene and unruffled on the most exciting occasions, his manners were perfectly fascinating to all those who came in contact with him. A rude or unkind expression may be said never to have fallen from his lips towards an opponent—or, indeed, any one; towards juniors and inferiors he was always good-natured and considerate; and towards the judicial bench he exhibited uniformly a demeanour of dignified courtesy and deference. He was very tenacious of his own opinions—confident in the propriety of his view of a case—*apparently so, always*, for he could assume a confidence though he had it not—and would persevere in his efforts to overcome the adverse humour of judges and juries, to an extent never exceeded; yet withal so blandly, so unassumingly, so mildly, that he never irritated or provoked any one. His temper and self-possession were unequalled, and approached, as

nearly as possible, to perfection. Amidst all the distracting multiplicity of his engagements—the sudden and harassing emergencies arising incessantly out of his prodigious practice—he preserved an urbane tranquillity which gave him on all occasions the full possession of his extraordinary faculties, enabled him to concentrate them instantly upon whatever was submitted to his attention, however suddenly—and to conquer without irritating or mortifying even the most eager and sensitive opponent. He never suffered himself to be in a *hurry*, or *fidgeted*; however sudden and serious the emergency which frightened others from their propriety, he retained and exhibited complete composure; surveying his position with lightning rapidity, and taking his measures with consummate caution—with prompt and bold decision. His guiding energies kept frequently half a dozen important causes all going on at once in their proper course. He would glide in at a critical moment—paying, in his agitated client's view, "an angel's visit"—and with smiling ease seize advantages seen by none but himself, repair disasters appearing to others irreparable, and with a single blow demolish the entire fabric which in his absence had been laboriously and skilfully raised by his opponent. No impetuosity or irritability, on the part of others, could provoke him to retaliate, or sufficed to disturb that marvellous equanimity of his, which enabled him the rather good-naturedly to convert impetuosity and loss of temper in others, into an instrument of victory for himself. When others, not similarly blessed, would, in like manner, essay to rush to the rescue, their hurried and confused movements served only to place them more completely prostrate before him. The instant after the issue had been—perhaps suddenly—decided in Sir William's favour—through some unexpected masterstroke of his—he would turn with an arch smile to his opponent, and whisper—"How did you come to let me do it?" If his advance were met sulkily, he would add, with unaffected good humour, "Come, don't be angry; I dare say you will serve me in the same way to-morrow!" Towards adverse and frequently interrupting judges—towards petulant counsel—towards impudent, equivocating, dishonest witnesses, Sir William Follett exhibited unwavering calmness and self-possession; and withal a dignity of demeanour by which he was remarkably distinguished, and which lent importance to even the most trivial cases which could be intrusted to his advocacy. Perhaps no man ever defeated a greater number of important cases, by unexpected objections of the very extremest technical character, than Sir William

Follett; but he would do it with an air and manner so courteous and imposing, as to lead the uninitiated into the belief that there were doubtless good reasons by which such a course having been reluctantly adopted, was morally justified. This topic naturally leads to some observations upon the consummate skill, the wonderful rapidity of perception, precision of movement, and unfaltering vigilance, which characterized Sir William Follett's conduct of business. Doubtless his own consciousness of possessing powers and resources far beyond those of the majority of counsel opposed to him, as evidenced in his extraordinary successes, contributed, in no small degree, to his maintenance of that composed self-reliance, and forbearance towards others, by which he was so peculiarly distinguished, and which was aided by a naturally tranquil temperament. What advantage could escape one so uniformly and surprisingly calm, vigilant, and guarded as Sir William Follett? It might have been supposed that a man so overwhelmed with all but incompatible professional engagements, could not give to each case that full and undivided attention which were requisite to secure success, especially against the ablest members of the bar, who were constantly opposed to him. It was, however, very far otherwise. No one ever ventured to calculate upon Sir William Follett's overlooking a slip or failing to seize an advantage. *Totus teres atque rotundus* must indeed have been the case which was to withstand his onslaughts. So accurate and extensive was his legal knowledge, so acute his discrimination, so dexterous were all his movements, so lynx-eyed was his vigilant attention to what was going on, that the most learned and able of his opponents were never at their ease till after victory had been definitively announced from the bench—from a Court of Error—or even the House of Lords. They were necessarily on the *qui vive* to the very latest moment. Some short time before he was compelled to relinquish practice, a certain counsel was engaged with him as junior in a case before the Privy Council, which it was deemed of great moment that Sir William Follett should be able to attend to.

"I don't exactly know how I stand in the Queen's Bench to-morrow morning," said he, at the consultation late over-night—"but I fear that that long troublesome case of the —— Railway will be brought on by ---- at the sitting of the court. I'm afraid I can't get him to put it off—but I'll try; and if

he won't, I may yet be able to *settle* the case before he has got far into it—for it will be very strange if all their proceedings are right."

On this slender chance rested the likelihood of Sir William's attendance at the Privy Council. The next morning at ten o'clock, beheld all the counsel on both sides ready for action.

"You're not going to bring on the —— case this morning, are you?" whispered Sir William Follett, as soon as he had taken his seat, to his opponent who was arranging his papers.

"I am indeed, and no mistake whatever about it."

"Can't we bring it on to-morrow, or some day next week? It would greatly oblige me—I really have scarcely read my papers, and, besides, want to be elsewhere."

"I'll see what my clients say,"—and then he consulted them, and resumed—"No—my people are peremptory."

"Very well. Then keep your eyes wide open. I must bring you down as soon as possible, for I want to be elsewhere."

"Ah—I must take my chance about that"—then, turning round to an experienced and learned junior, he whispered—"You hear what Follett says?—Are we really all right?"

"Oh, pho! never mind him—we are as right as possible."

A few moments afterwards, up rose ——, and soon got into his case, and very soon, also, to the end of it. The case had not been heard more than half an hour, Sir William Follett at once attentively listening to his opponent, and hastily glancing over his own papers, when he rose very quietly, and said—"If my learned friend will pardon me, I think, my Lord, I can save the court a very long and useless enquiry—for there is clearly a fatal objection *in limine* to these proceedings."

"Let us hear what it is," said the court.

Sir William had completely checkmated his opponent! A statutory requisition had not been complied with; and in less than ten minutes' time

the enemy were all prostrate—their expensive and elaborate proceedings all defeated—and that, too, permanently, unless on acceding to the terms which Sir William Follett dictated to them, and which, it need hardly be observed, were somewhat advantageous to his own client!

"Really this is too bad, Follett," might have been heard whispered by his opponent, as the next case was called in.

"Not at all—why didn't you let it stand over as I asked you?"

"Oh—you would have done just the same then as you have now."

"I don't know that," replied Sir William Follett with a significant smile. "But why won't your people be more careful?" And then turning to his junior, said—"Now for the Privy Council!" And all this with such provoking, easy, smiling *nonchalance*!

Heaven forbid that any thing here said should favour the attempt to defeat justice by technical objections; but there is, at the same time, much vulgar error on that subject, grounded on reasons which would tend to subvert all rules of law and legal procedure whatever. In the case above mentioned, the legislature had thought fit to impose on applicants for redress under the statute in question, a duty, which through haste or negligence had been overlooked, and which Sir William Follett's clients had a perfect right to take advantage of, as soon as his acuteness had detected it. To return, however. No member of the bar, let his experience and skill have been what they might, was ever opposed to Sir William Follett without feeling, as has been already intimated, the necessity of the greatest possible vigilance and research to encounter his boundless resources; his dangerous subtlety and acuteness in detecting flaws, and raising objections; his matchless art in concealing defects in his own case; and building up, with easy grace, a superstructure equally unsubstantial and imposing, and defeating all attempts to assail or overthrow it. Even very strong heads would be often at fault, conscious that they were the victim of some subtle fallacy, which yet they could not *then and there* detect and expose; and by their hazy and inconsistent efforts to do so, only supplied additional materials for the use of their astute and skilful enemy, to whom nothing ever seemed to come amiss; who converted every thing into ingredients of success; whom scarce any surprise or mischance could defeat or overthrow. A very short time

before he withdrew from practice, he was engaged at Liverpool, whither he had gone upon a special retainer, in a very intricate and important ejectment case.

Unexpectedly he discovered, when about half-way through the case, that his client (the plaintiff) had omitted to serve a notice upon the defendant's attorney to produce a certain critical document, at the contents of which it was necessary to get, in order to make out the plaintiff's case. The objection was promptly taken by his opponent—and to the dismay of Sir William's clients. Not so with him, however.

"You have not given a notice to produce them, eh?" he calmly whispered to his client, and was answered with a disturbed air in the negative; and all the court saw that Sir William was in the very jaws of a non-suit.

"You ought to have done so, but it does not much signify," said he, very quietly—"what's the name of the defendant's attorney?" and, on being told it, that gentleman, doubtless chuckling with delight in his anticipated triumph, was somewhat astounded by being suddenly called as a witness by Sir William Follett; who coolly asked him to produce the document in question—and on his refusal, with one or two artful questions, which completely concealed his real object, elicited the fact that he had no such document, had searched every where for it, both in his own office, and among his clients' papers, and elsewhere, but in vain.

"Now, then, my lord," said Sir William Follett, "I am entitled to give secondary evidence of its contents!"

The Judge assented.

Sir William extracted from his own witness all that was necessary—and out of the nettle danger plucking the flower *safely*, won the verdict. Every one, however, who has had opportunities of observing, can give many instances of Sir William Follett's extraordinary tact and readiness in encountering unexpected difficulty, and defeating an opponent by interposing successive unthought-of obstacles. In the most desperate emergencies, when the full tide of success was arrested by some totally unlooked-for impediment, Sir William Follett's vast practical knowledge, quickness of perception, unerring sagacity, and immovable self-possession, enabled him, without

any apparent effort or uneasiness, to remove that impediment almost as soon as it was discovered, and conduct his case to a triumphant issue. He was, indeed, the very perfection of a practical lawyer. Whatever he did, he did as well as even his most exacting client could have wished—he won the battle, won it with little apparent effort, and won it with grace and dignity of demeanour. A gentleman felt proud of being represented by such an advocate—who never descended into any thing approaching even the confines of vulgarity, coarseness, or personality—who lent even to the flimsiest case a semblance of substance and strength—whose consummate and watchful adroitness placed weak places quite out of the sight and reach of the shrewdest opponent, and never perilled a good case by a single act of incaution, negligence, rashness, or supererogation. When necessary, he would prove a case barely up to the point which would suffice to secure a decision in his favour, and then leave it—equally before the court, and a jury—the result afterwards showing with what consummate judgment he had acted in running the risk—the latent difficulties to have been afterwards encountered which he had avoided, the collateral interests which he had shielded from danger. He possessed that sort of intuitive sagacity which enabled him to see *safety* at the first instant of its existence—to be confident of having the judgment of the court, or the verdict of the jury, when others deeply interested and concerned in the cause imagined that they were making no way whatever. "Now, I've knocked him," his opponent, "down"—he would say at such a moment to his junior—"don't let him get up again! I must go off to the House of Lords—and will come back if you want me! But mind, if he attempt to do so or so—to put in such and such a paper, on no account allow it; send for me, and fight till I come." He possessed, to an extraordinary degree, the power of rapidly transferring his undivided and undisturbed attention to every thing, great and small, which could be brought before it. A single glance of his eye penetrated the most obscure and perplexing parts of a case—a touch of his master-hand disentangled apparently inextricable complexities. He could apply, with beautiful promptitude and precision, some maxim or principle which had not occurred to those who had devoted long and anxious attention to the case, and which at once dissolved the difficulty. Whether acting on the offensive or defensive, he was equally characterised by the great qualities essential to successful advocacy; but perhaps, when acting on the offensive, he displayed more formidable powers. He tripped up the heels of the most

wary and experienced antagonists, just when they imagined themselves in the very act of throwing him. It was almost useless to quote a "*case*" against him. Though the party doing so deemed it precisely in point in his favour, and on that ground was stopped by the court from proceeding further, Sir William Follett would ask for the case; and rising up, after a momentary glance at it, show that it was perfectly distinguishable from that before the court, and, in a few minutes' time, would be interrupted by the court, with—"We think, Mr —, that you had better resume your argument!" If, on such occasions, Sir William's opponent were not a ready and dextrous legal logician, his client would wish that he had secured Sir William Follett. His power of drawing distinctions and detecting analogies—and that, too, on the spur of the moment—was almost unequalled. It was in vain for an opponent to *feel* that the suggested distinction was without a difference—he could not *prove* it to be so—he could not demonstrate the fallacy which had been imposed on even a strong court by that exquisite astuteness which, however sinister, was carried off by a charming air of frankness and confidence in the validity of the distinction. On such an occasion, directly the cause was over he would turn round and say, laughingly, to his discomfited opponent, "You haven't your wits about you this morning—why didn't you quote such and such case?" or "say so and so?" Such things were never said in an unpleasant manner—never truculently—never triumphantly—but simply with a good-humoured, cheerful air of *badinage*, which, so far from irritating you, took off the edge of vexation, and set you almost laughing at yourself for having suffered yourself to be so completely circumvented.

While thus paying a just tribute to the skill and wonderful resources of this eminent advocate, another of his great merits, which shall be noticed, will afford an opportunity for doing justice to the junior bar, with reference to the invaluable, and—to the public—often totally unperceived, assistance which they afford to their leaders. Sir William Follett was pre-eminently characterised by the rapidity with which he availed himself of the suggestions and labours of others. A whisper—a line or two—would suffice to suggest to him a truly admirable and conclusive argument, which he instantly elaborated as if he had prepared it deliberately beforehand in his chamber; and he would put the point with infinitely greater cogency than could have been exhibited by him who suggested it, and defend it from the

assaults of his opponents and the bench with truly admirable readiness and ingenuity. He exhibited great judgment and discrimination, however, on these occasions. A false or doubtful point he quietly rejected *in limine*, and would afterwards point out to him who had suggested it, the impolicy of adopting it. Sir William Follett, as is the case with all eminent leaders, was under very great obligations, in his successful displays, to the learning and skill of his juniors, and of the gentlemen who practise under the bar as special pleaders. It is to them that is intrusted the responsible and critical duty of preparing and advising upon pleadings, and shaping them in the way in which they ought to be presented in court. Their "opinions" and "arguments" are often of the greatest possible value—often very masterly; and no one more highly estimated, or was more frequently and largely indebted to them, than Sir William Follett; but who could do such complete justice to them and so suddenly—as he? A hasty glance over, in court, such an analysis of pleadings, or affidavits, or legal documents of any kind, as has been spoken of—in a cause to which he had been, up to that moment, entirely a stranger—would suffice to put him in full possession of the true bearings of the most complicated case; and his own great learning, surpassing power of arrangement, and masterly argumentation, would do the rest. If he were taken quite unawares in such a case, and could not possibly procure its postponement, an instant's whisper with a junior—a moment's glance at his papers—would make him apparently master of the case; and, by some unexpected adroit manœuvre, he would often contrive to throw the labouring oar upon his opponent—and then, *from him*, would acquire that knowledge of the facts of the case which Sir William Follett rarely failed to turn to his own advantage, so as to secure him success. Great as were his natural endowments, how could incessant exercise, during twenty years' hourly conflict with the ablest of his brethren and of the bench, fail of developing his splendid energies to the uttermost, even up to a point of which we may conceive as little short of perfection? The strength of his reasoning faculties was equalled, if not exceeded, by that of his memory, which was equally susceptible, tenacious, and ready; qualities these, which, as Dugald Stewart has observed, are rarely united in the same person,^[D] and which, in the case of an advocate, give him immense advantages; while he possessed that accurate practical knowledge which enabled him to detect the minutest errors in the conduct of a cause, his comprehensive grasp of mind enabled him to take in the whole of the

greatest cause, with all its dependencies; and while he fixed his own eye, with unwavering steadfastness, on the object which he had in view, he could lead his opponent and keep him far away from *his*; and address himself to every passing humour of the judicial mind, supporting favourable, and repelling adverse intimations, with reasons so plausible as to appear absolutely conclusive. Whoever might forget facts, or lose the drift of the argument, Sir William Follett never did; and when he had *the last word*, he was almost always irresistible. He required, for the purposes of justice, to be followed by a watchful and strong-headed judge, who could detect the cunning fallacy, or series of fallacies, which had led the jury quite astray from the real points—the true merits of the case; and even such a person was often unable to remove the impression which had been produced by the subtle and persuasive advocate whose voice had preceded his. That voice was one indeed lovely to listen to. It was not loud, but low and mellow, insinuating its faintest tones into the ear, and filling it with gentle harmony. His utterance was very distinct—a capital requisite in a speaker—and he had the art of varying his tones, so as to sustain the attention of both judges and juries for almost any length of time. His person and attitudes, also, were most prepossessing. Their chief characteristics were a calmness and dignity which never disappeared in even the most exciting moments of contest, and of irritability, and provoking interruption. Woe, indeed, to one who ventured to *interrupt* him! However plausible, cogent, or even just, might be the suggestion thrown in by his adversary, Sir William Follett contrived to make it tell terribly against him, either harmonising it with his own case, or showing it to be utterly inconsistent with that of the interrupting party.—Sir William Follett, who was above the middle size, always stood straight upright, as every one ought to do while addressing either judge or juries. He seldom used his left hand in speaking, but the play of his right hand was very graceful, easy, and natural. His countenance was by no means handsome, yet of very striking expression—decisively indicative of great intellectual power, particularly about the forehead, which was very strongly developed. His eyes were grey, rather small, and deep-set; but they had a power of riveting the attention of any one whom he was addressing, particularly in public. You felt him to be a man whom you could neither neglect nor trifle with; who was addressing your intellect in weighty words, fathoming your intentions, and detecting your inclinations and prepossessions, and leading you in some given

direction with gentle but irresistible force. He would often startle you with the boldness of his propositions, but never till he had contrived, somehow or other, to predispose you in favour of that view of the case which he was presenting. He had a most seductive smile; truth, candour, and gentleness seemed to beam from it upon you; and you were convinced that he felt perfect confidence in the goodness of his cause. He evinced a sort of intuitive sagacity, in adapting himself to the character and mode of thinking of those whom he addressed. If he were standing before four judges, all of different but decided characters—and all continually interrupting him with questions and suggestions, a close experienced observer could detect, in full play, in this wily advocate, the quality which has just been mentioned. He was never irritable, or disrespectful to the bench, however trying their interruptions; but calm determination was always accompanied with courteous deference for judicial authority. It is believed that no one ever heard a sharp expression fall on Sir William Follett from the bench. Foreigners coming to our courts, have frequently expressed admiration at his tone and bearing, as calm, graceful, and dignified, even though what he said could not be understood by them. His language was chaste, simple, and vigorous, but never ornate. He always came direct to the point; and the severest critics could find no fault in his diction. If he had read extensively, his speeches never bore witness of that fact; for he was, perhaps, never heard to use a quotation, either in verse or prose—except, of course, in the latter instance, books of legal authority, treatises, and reports of cases. Of fancy, of imagination, he appeared quite destitute. If originally possessed of any, it must for many years have been overpowered and extinguished, by the incessant and exclusive exercise of his memory and reasoning powers, for the purposes of business. Yet was he capable, on great and interesting occasions, when addressing either the full court or a jury, of riveting the attention and exciting the emotions of his hearers. Trickery, however compact and strong its meshes, he tore to pieces contemptuously, and with scarce an effort; nothing could escape his penetrating eye; it detected those faint vanishing traces of fraud, which were invisible to all other eyes. If there be genius in advocacy, Sir William Follett was undoubtedly a man of genius; and genius may perhaps be taken to signify great natural powers, accidentally directed—or, a disposition of nature, by which any one is qualified for some peculiar employment. What intellectual qualifications and resources are not requisite to constitute a first-rate advocate? If the

Duke of Wellington has a genius for military affairs, so had Sir William Follett for advocacy—and genius of a very high order, as will be testified by all those before whom, or on whose behalf, he exhibited it—alike by clients or judges—as by opponents. If he were a very subtle sophist himself, he was himself one on whom no sophistry could impose. It fled before the penetrating glance of his aquiline eye. Faculties such as his must have secured him eminence in any pursuit or walk in life to which he might have devoted himself; particularly to the military profession, to which it is believed he always had a strong inclination. Who can doubt that if his lot had been placed from the first in political life, he would quickly have become pre-eminent in the senate, and as a statesman? Who that knew him, but would pronounce him to have been pre-eminently fit for political life, to govern men of intellect, to deal with great affairs and mighty interests—to detect and discomfit the adversaries of peace and order, to vindicate the laws, and uphold the best interests of society? All this he might have been; *sed dīs aliter visum*—he devoted himself, heart and soul, throughout life, to the labours of the bar, and the acquisition by them of a rapid and large fortune, and official distinction. In all these aims he must have succeeded to his heart's content; for he was for many years the most distinguished and popular of advocates; he became the Queen's Attorney-general, and died in the prime of life, leaving behind him a fortune of some two hundred thousand pounds. That great class of persons who constituted his clients, will always remember his brilliant and successful exertions with gratitude. His brethren who were opposed to him, heartily acknowledge the pre-eminence of his abilities and professional acquirements; and they, as well as the junior bar, who for years watched his brilliant exertions, must acknowledge that the one in struggling with him, and the other in witnessing those struggles, have witnessed an instructive exhibition of forensic excellence—a model of advocacy. To prepare for a contest with Sir William Follett, and to contend with him, called forth all a man's energies, and formed a severe and salutary discipline for the strongest. "Their antagonist was their helper: they that wrestled with him, strengthened their nerves, and sharpened their skill: that conflict with difficulty obliged them to an intimate acquaintance with their object, and compelled them to consider it in all its relations, and would not suffer them to be superficial."

[E] In him they saw daily in exercise, many of the greatest qualities of advocacy—and beheld it triumphing over every imaginable kind and degree

of obstacle and difficulty. He showed them how to maintain the bearing of gentlemen, in the moments of hottest exasperation and provocation which can arise in forensic warfare. He taught them how to look on success undazzled—to bear it with modesty of demeanour, and subordination of spirit. He exhibited to them the inestimable value of early acquiring accurate and extensive local knowledge—of being thoroughly imbued with the *principles* of jurisprudence, and habituating the mind to close and correct reasoning. The traces of his surpassing excellence in these matters, are now to be found nowhere but in the volumes of Law Reports, where the essence of his innumerable masterly arguments will be found collected and preserved by gentlemen of patient attention and learning competent for the task, and on whose modest but valuable labours will hereafter depend all that posterity will know of Sir William Follett. These are the legitimate records of his intellectual triumph; as are the prosperous circumstances in which he has left his family, *to them* a solid and noble testimonial of his affectionate devotion to their interests. Their fortune was the purchase of his life's blood. The acquisition of that fortune absorbed the whole of his time, and of his energies; it deprived him of thousands of opportunities for relaxation and enjoyment, and also—it must be added—for the exercise of virtues which probably he possessed, but gave himself little or no time for calling into action—of those virtues which elevate and adorn the individual, while they benefit our fellow-creatures and society—for performing the duties which God Almighty has imposed upon his creatures, proportionately to their endowments and opportunities, himself telling us, that *to whom much is given, of him shall much be required*. To the young, eager, and ambitious lawyer, the contemplation of Sir William Follett's career is fraught with instruction. It will teach him the necessity of *moderation*, in the pursuit of the distinctions and emoluments of his profession. By grasping at too much often every thing is lost. Was not Sir William Follett's life one uninterrupted scene of splendid slavery, the pressure of which at length broke him down in the meridian of his days? Had he been able to resist the very strong temptations by which he was assailed—temptations, too, appealing powerfully to his love of family and offspring—a long life's evening of tranquillity, of unspeakable enjoyment, might have rewarded a day of great, yet not excessive, labour. He might also have devoted his powerful talents to the public benefit, in such a way as to secure the lasting gratitude and admiration of posterity, by remedying some great existing

defect in his country's jurisprudence, by making some solid contribution to the safeguards of the constitution. But did he ever do so? All his great experience, talents, and learning, might never have existed, for any trace of them remaining in the records of his country's constitution. What page in the statute-book attests his handiwork? And what did he ever do to advance the interests of the profession to which he belonged? These are questions asked with sorrowful sincerity and reluctance, and with every disposition to make the amplest allowances for those failings of Sir William Follett, which undoubtedly detracted somewhat from his excellence and eminence. He was a man of modest, mild, inoffensive character, who spoke ill of, and did harm to, no one; but, at the same time, was not distinguished by that active and energetic benevolence, liberality, and generosity, which secure for the memory of their exhibitant, ardent, enduring gratitude and reverence. His excellence was of a negative, rather than a positive kind. He did harm to no one, when he might have done so with impunity, and was possibly sometimes tempted to do so; but then he did not do good, at all events, to the extent which might have been expected from him. He was, however, by no means of a mean or selfish nature; but in his excessive, and to a certain extent pardonable, eagerness to make what he deemed a suitable provision for himself and his family, gave himself the appearance of being comparatively indifferent to the interests or welfare of others. It is, however, only fair to his memory to acknowledge, that legal eminence is too often liable to the same imputations—that professional pursuits have certainly a strong tendency to warp amiable and generous natures—to keep the eye of ambition, amidst the intense fires of rivalry and opposition, fixed exclusively upon one object—the interest and advancement of the individual. Nothing can effectually control or counteract this tendency, but a lively and constant sense of religious principle; which enlarges the heart till it can *love our neighbour as ourself*, which brightens the present with the hopes of the future, which purifies our corrupt nature, and elevates its grovelling earthward tendencies by the contemplation of an eternal state of being dependent upon our conduct in this transient state of trial. Who can tell the extent to which these and similar considerations are present to the minds of the dying great ones of the earth, who, suddenly plucked from amidst the dazzling scenes of successful ambition, are laid prostrate upon the bed of death—their *pale faces turned to the wall*, with HEREAFTER alone in view, and under an aspect equally *new* and awful? Let us, therefore, be

wise, and be wise in time, nor haughtily disregard the earnest voice of warning, however humble and obscure may be the quarter whence it comes.

Sir William Follett belonged to a respectable family in Devonshire, and was born on the 2d December 1798. In 1814 he went to Trinity College, Cambridge, and took the degree of B.A. in 1818, without any attempt to obtain *honours*; quitting college in this latter year, and entering the Inner Temple, he prosecuted the study of the law in the chambers of eminent practitioners, where he continued for three years—and then practised for about three years as a special pleader. He was called to the bar in 1824, and went the western circuit, but for one or two years was much disheartened by his want of success. He expressed, on one occasion, his readiness to accept of the place of police magistrate, if it were offered! His progress was, soon afterwards, signal, and all but unprecedentedly rapid. He was appointed Solicitor-general in 1834, while yet behind the bar, and in 1835 was returned for Exeter, for which place he sat till his death. He quitted office with Sir Robert Peel in 1835, but returned with him to it in 1841, and became Attorney-general in 1844, on the promotion of Sir Frederick Pollock to the chief seat in the Court of Exchequer. For several years before Sir William Follett's decease, his constitution, never of the strongest, was broken by his incessant and severe labours; and in 1844, having been obliged to give up practice altogether, he went to Italy at the close of the session—having attended at the bar of the House of Lords, to lead for the Crown in the O'Connell case. He was, however, quite unfit for the task. His spine was then so seriously affected, that he was obliged to sit upon a raised chair while addressing the House, the Chancellor and the other Lords, out of great consideration for the distinguished and enfeebled speaker, moving down to the lower end of the House, close to the bar, in order to occasion him as little exertion and fatigue as possible. He did not speak long, and the effort greatly exhausted him; and it was not without difficulty, owing to something like partial paralysis of the lower extremities, that he could walk from the House. He returned from the Continent in March 1845, a little better than when he had gone, and endeavoured to resume the discharge of such of his less onerous, professional, and official duties as admitted of their being attended to at his own house. He continued to listen to patent cases, attended by counsel, till within a short period of his being finally disabled; but every one saw with pain the total exhaustion under which he

was suffering. Finding himself rapidly declining, in May 1845, he wrote a letter to the Prime Minister, proffering the resignation of his office of Attorney-general.

He soon afterwards retired, for the advantage of some little change of air, to the house of a relative in the Regent's Park, where he enjoyed the soothing attentions of his family, and reverently received the consolations of religion. The public manifested great anxiety to have the state of his health, and the morning and evening newspapers contained regular announcements on the subject, as in the case of persons of the highest distinction. Her Majesty, Prince Albert, also, with numbers of the nobility, sent daily to enquire concerning him. For the last day, or possibly two days of his life, he became unconscious, and slightly delirious—and expired, without apparent pain, on Saturday afternoon, the 28th June 1845. For a long series of years, the death of no member of the legal profession had excited a tithe of the public concern which followed that of Sir William Follett, the Attorney-general. The bar felt that its brightest light had been almost suddenly extinguished. Its most gifted members, and those of the judicial bench, heartily acknowledged the transcendence of his professional qualifications, and the unassuming peacefulness with which he had passed through life. Had he lived to occupy the highest judicial seat—the woolsack—few doubted that, when relieved from the crushing pressure of private practice, he would have displayed qualities befitting so splendid a station, and earned a name worthy of ranking with those of his great predecessors.

His funeral took place on Friday, the 4th of July, at the Temple church. He was a bencher of the Inner Temple, and his remains repose in the vault at the south-eastern extremity of the church. For nearly two hours before the funeral took place, the church—a chaste and splendid structure—had been filled with members of the bar, and a few others, all in mourning, and awaiting, in solemn silence, the commencement of the mournful ceremony. At length the pealing of the organ announced the arrival of the affecting moment when the body of Sir William Follett—himself having been not very long before a worshipper in the church—was being borne within its walls, preceded by the surpliced choir, chanting the service, in tones which still echo in the ears of those who heard them. All rose silently, with moistened eyes, and beating hearts, as they beheld, slowly borne through the aisle, the coffin which contained the prematurely dead—him whose

figure, erect and graceful in forensic robes, and dignified in gesture, had so recently stood among them, their cheerful and gifted associate in the anxious business of life—from whose lips, now closed for ever, had but lately issued that rich, harmonious voice, whose tones had scarce, even then, died away! They were bearing him to his long home, with all the solemn pomp and circumstance which testify the reverence paid to departed eminence: and when the coffin was placed beside the altar, at the mouth of the vault, no language can adequately describe the affecting and imposing scene which presented itself. The pall had been borne by the Prime Minister, (Sir Robert Peel,) the Lord Chancellor, one of the Secretaries of State, (Sir James Graham,) and the Vice-Chancellor of England; and amongst those who followed, were Lord Brougham, Lord Langdale, the Chief-Justice of the Common Pleas, and many of the judges, (almost all the courts, both of law and equity, having suspended their sittings on account of the funeral;) while in the body of the church were to be seen nearly all the distinguished members of the bar, who had been, up to a very recent period, opposed to, or associated with, him whose dust was now on the point of being committed to its kindred dust. Nearest to the body sat the three great ministers of the Crown, who had come to pay their tribute of respect to the remains of their gifted and confidential adviser; and their solemn countenances told the deep impression which the scene was making upon them, so illustrative of the fleeting shadowiness of earthly greatness! and their reflections must have been akin to those which—as may have occurred to them—their own obsequies might, at some future period, excite in the spectators—reflections such as those with which a great one, departed,^[F] closed his grandest labours.

"Oh, eloquent, just, and mighty death! whom none could advise, thou hast persuaded; what none hath dared, thou hast done: and whom all the world hath flattered, thou only hast cast out of the world and despised. Thou hast drawn together all the far-stretched greatness, all the pride, cruelty, and ambition of man, and covered it all over with these two narrow words—HIC JACET!"

FOOTNOTES:

[A] This has been recently the subject of a decision of the Court of Queen's Bench, in the case of *Egan v. The Guardians of the Kensington Union*, 3 Queen's Bench Reports, p. 935, note (a). The same rule applies to physicians. *Veitch v. Russell*, *ib.* 928.

[B] Leading counsel, indeed all counsel much engaged in business, necessarily place their time almost altogether at the disposal of their clerks, whose duty it is to keep an exact record of their employer's engagements, and see that no incompatible ones are made for him. Counsel find quite enough to do, in adequately attending to the matters actually put before them by their clerks, without being harassed by adjusting the very troublesome arrangements and appointments, for time and place, where their duties are to be performed or, at all events, doing more than keeping a general superintendence over their arrangements thus made. To all this must be added those innumerable contingencies in the arrangements of the courts, and the course of business, which no one can possibly foresee; and which often derange a whole series of arrangements, however cautiously and prudently made, and render counsel unable, after having carefully mastered their cases, to attend at the trial or argument.

[C] The clerk of a barrister has a fee on every fee of his employer, in a long-settled proportion of 2s. 6d. on all fees under five guineas; from, and inclusive of five guineas, up to ten guineas, 5s.; from ten guineas, 10s., and so on for higher fees.

[D] *Phil. c. vi. sec. 7.*

[E] Adapted from Edmund Burke.

[F] Sir Walter Raleigh—*History of the World*, last paragraph.

LET NEVER CRUELTY DISHONOUR BEAUTY.

The words chosen as the subject of the following verses, form the first line of an antiquated song, of which the remainder seems not to have been preserved.—See Mr Dauneys's "*Ancient Scottish Melodies*," p. 227.

"Let never Cruelty dishonour Beauty"—
Be no such war between thy face and mind.
Heaven with each blessing sends an answering duty:
It made thee fair, and meant thee to be kind.

Resemble not the panther's treacherous seeming,
That looks so lovely to beguile its prey;
Seek not to match the basilisk's false gleaming,
That charms the fancy only to betray.

See the great Sun! God's best and brightest creature—
Alike on good and ill his gifts he showers:
Look at the Earth, whose large and liberal nature
To all who court her offers fruits or flowers.

Then, lady, lay aside that haughty scorning—
A robe unmeet to deck a mortal frame;
Mild be thy light, and innocent as morning,
And shine on high and humble still the same.

Bid thy good-will, in bright abundance flowing,
To all around its kindly stream impart;
Thy love the while on One alone bestowing,
The fittest found, the husband of thy heart!

THE LAST HOURS OF A REIGN.

A TALE IN TWO PARTS.—PART II.

CHAPTER III.

"A deep and mighty shadow
Across my heart is thrown,
Like a cloud on a summer meadow,
Where the thunder wind hath blown!"

BARRY CORNWALL.

At this period of French history, and even up to a period much later, the bridges which crossed the Seine, and connected the two separate parts of the city of Paris, were built over with houses, and formed narrow streets across the stream. These houses, constructed almost entirely of wood, the beams of which were disposed in various directions, so as to form a sort of pattern, and ornamented with carved window-sills and main-beams, were jammed together like figs in a cask, and presented one gable to the confined gangway, the other to the water, which, in many cases, their upper story overhung with a seemingly hazardous spring outward. Towards the river, also, many were adorned with wooden balconies, sheltered by the far-advancing angles of the roofs; whilst beneath, upon the water, the piles of the bridge were encumbered by many water-mills, to the incessant noise of which, habit probably reconciled the inhabitants of the houses above.

In an upper room in one of the houses which, after this fashion, lined the *Pont au Change*, sat, on the evening of the day on which Philip de la Mole had escaped from the Louvre, three persons, the listlessness of whose attitudes showed that they were all more or less pre-occupied by painful reflections.

The principal personage of this group—a woman between fifty and sixty years of age—lay back on a large wooden chair, her eyes fixed on vacancy.

Her dress was of simple dark stuff, very full upon the sleeves and below the waist, and relieved by a small white standing collar; a dark coif, of the fashion of the period, covered the grizzled hair, which was drawn back from the forehead and temples, leaving fully exposed a face, the rude features and heavy eyebrows of which gave it a stern character. But in spite of this severity of aspect, there naturally lurked an expression of goodness about the mouth and eyes, which spoke of a kindliness of disposition and tenderness of heart, combined with firmness and almost obstinacy of character. Those eyes, however, were now vacant and haggard in expression; and that mouth was contracted as if by some painful thought.

By her side, upon a low stool, was seated a fair girl, whose attire was as plain as that of the more aged woman; but that lovely form needed no aids of the toilet to enhance its beauty. The fair brown hair brushed off from the white brow, in the graceless mode of the day, hid nothing of a face which had all the purity of some beautiful Madonna; although the cheek was pale, and the lines of the physiognomy were already more sharpened than is usual at years so young. Her head, however, was now bent down over a large book which lay upon her knees, and from which she appeared to have been reading aloud to the elder woman; and, as she sat, a tear dropped into its pages, which she hastily brushed away with her fair hand.

The third person, who completed the group, was a young man scarcely beyond the years of boyhood. His good-looking round face was bronzed and ruddy with fresh colour, and his dark eyes and full mouth were expressive of natural gaiety and vivacity. But he, too, sat leaning his elbows upon his knees, and gazing intently, and with a look of anxiety, upon the fair girl before him; until, as he saw the tear fall from her eye, he turned impatiently upon his stool, and proceeded to polish, with an animation which was not that of industry, the barrel of a gun which lay between his knees.

The room which formed the groundwork to the picture composed of these three personages, was dark and gloomy, as was generally the interior of the houses of the time; a large wardrobe of black carved wood filled a great space of one of the walls; presses and chests of the same dark and heavy workmanship occupied considerable portions of the rest of the room. The low casement window, left open to admit the air of a bright May evening,

looked out upon the course of the rapid Seine, and gave a cheering relief to the dark scene. The hazy rays from the setting sun streamed into the room; and from below rose up the sound of the rushing waters, and the wheels of the mills, mixed with occasional cries of men upon the river, and the more distant murmur of the city. The scene was one of calmness; and yet the calmness of those within that room was not the calmness of repose and peace.

It was the youth who first spoke.

"Jocelyne," he said in a low tone, approaching his stool nearer to that of the fair girl, and then continuing to polish his gun-barrel without looking her in the face—"if you knew how it grieves me to see you thus! You sit and droop like a bird upon the wintry branch, when I would fain see you lift your head and chirp, as in days gone by, now that summer begins to gladden around us."

The maiden thus addressed looked at him with a languid smile, and then faintly shook her head.

"How would you have me gay, Alayn," she said softly, "when our grandmother continues thus?"

Alayn made a gesture of doubt, as if he would have said, that solicitude for her grandmother was not the only cause of Jocelyne's sadness; but he made no observation to that effect, and, nodding his head towards the older woman, asked in a low tone—

"How is Dame Perrotte to-day? She did not answer my greeting on my entrance; and during your reading from that forbidden book of Scripture, she has uttered not a word."

"You may speak aloud," replied Jocelyne. "When she is in this state, she does not hear us. She is fully absorbed in her sad thoughts. I have seldom seen her more troubled than she has been for some few days past. One would suppose that the return of sunny summer days recalls more fearfully to her mind that epoch of carnage and destruction at the fête of St Bartholomew, when the heavens above were so joyous and bright, whilst below the earth was reeking with blood, and your poor father perished,

Alayn, for his religion's sake. I have ever remarked, when the sun shines the cheeriest, her spirit is the darkest."

"Will she not speak to me?" enquired Alayn.

"No," replied his cousin. "When in these deepest moods of melancholy, she will not speak but upon the subject of those fatal days, or if her attention be aroused by the mention of her slaughtered kindred; and Heaven forbid that an unguarded word from me should excite so terrible a crisis as would ensue!"

"And she remains always thus now?" asked the youth.

"Not always," answered Jocelyne. "There are times when she is as of old, and speaks to me with calmness. But at these better hours she makes no mention of the past."

"She never talks, then, of returning to the palace?" continued Alayn, with an evident air of satisfaction upon his round ruddy face.

"Never," replied the girl, with an involuntary sigh.

"And yet her foster-son, the king, has often sent for her."

"Hush!" interrupted Jocelyne. "Let not that name strike upon her ear. Although she hears us not, the very word might, perchance, call up within her recollections I would were banished from her mind for ever. The name of her nursling, whom she once loved as were she his own mother, and he had not worn a crown, is now a sound of horror to her. Often has she cursed him in the bitterness of her heart," she continued in a low tone of mystery, as if fearful lest the very walls should hear her confidence, "as the slayer of the righteous. She never can forgive him the treacherous order given for that murderous deed of slaughter and destruction."

"But he protected her from all harm in that general massacre of our party in religion, from which so few of us escaped," said Alayn.

"She would rather have died, I verily believe," pursued the fair girl shuddering, "than have lived to see her own son fall, so cruelly murdered by the son of her fostering care."

"And she never will return to him again?" enquired the young man with another gleam of satisfaction.

Jocelyne shook her head.

"So much the better. So much the better," pursued Alayn stoutly. "For then I can see you when I will, fair cousin Jocelyne, and come and sit by your side as I do now, to continue my work with the permission of my master the armourer, who, whatever he may say, is as good a Calvinist at heart as ourselves, I am sure. And you will return no more with my grandmother among those villanous popinjays about the court, who are ever for telling you soft tales of love, and swearing that your eyes are the brightest in creation—as, to be sure, they are; and that never such an angel walked the earth—as, to be sure, there never did; but who mean it not well with you, cousin Jocelyne, and would but have their will to desert you and leave you to sorrow, and who, with all their gilded finery, are not worth one inch of the coarse stuff of a stout-hearted honest artisan who loves you, and would see you happy; although I say it, who should not say it."

Jocelyne drew up her head proudly as if about to speak; but, as her melancholy pale hazel eyes met those of her cousin, sparkling with animation and good-humour, she only turned herself away, whilst a bright flush of colour overspread that cheek but a moment before so pale.

"Why, look ye, cousin Jocelyne," continued the youth once more, after a moment's pause; "it will out, in spite of me, all that I have got to say. I cannot see your pale cheek and tearful eye, and hear the sigh that ever and anon breaks so painfully from your bosom, but that, all simple as I be, I can tell it is not only for our poor grandmother you sorrow. Mayhap I have heard what I have heard, and seen what I have seen besides; but never mind that. Believe me, you sorrow for those who love you not truly as there are others who love you—you pain your heart until you will break it, for those who play you false."

"Alayn, I can hear no more of this! You know not what you say!" cried the fair girl hastily; and, laying down upon the table her book, she arose and walked away from him to lean out of the window.

"Nay, pardon me, cousin Jocelyne," exclaimed the youth in a pained tone, also rising and advancing towards the window. "I do but speak as I should and must speak, being your well-wisher—I mean you well, God knows. And the time will come when you too will know *how* well!"

Jocelyne turned her eyes, which were moist with tears, to her cousin; and, stretching out her hand to him, she said, with all that romantic fervour of the ingenuous girl which almost wears the semblance of inspiration—

"Alayn, I know you love me, and that you mean it well with me. You are a kind and sincere brother to me. But, oh! you cannot read the deep deep feelings of the heart, or judge how little words have the power, like the charms we read of, to heal its wounds and wrench asunder the chains that bind it for ever and ever! The ivy, when torn from the stem to which it clings, may wither and die, but it cannot be attached to another trunk, however skilful the hand of the gardener who would attach it."

The youth took her hand, and, as she again turned to the window to hide her increasing emotion, shook his head sadly and doubtfully; then, returning to his stool, he took the gun-barrel between his knees with a movement of impatience, and continued his occupation of polishing it, although his eyes were constantly fixed askance upon the graceful form of the girl as she leant upon the window sill.

Presently the old woman moved uneasily in her chair, and, placing her hands firmly upon its arms, as if about to rise from her seat, she exclaimed aloud—

"Vengeance is mine, saith the Lord, and I will avenge the blood of the righteous!"

Both Jocelyne and Alayn turned; but, before the fair girl could hurry to her grandmother's side, she had sunk down again into her chair, murmuring—

"No, no! enough of blood! enough of vengeance! God pardon him, and turn the hearts of those who counseled him to this deed."

"Give me my Bible, Jocelyne my girl," said again the old woman after a pause. "It seems I have not read it for many a long hour. God forgive me! But my poor head wanders strangely. Ah! is it you Alayn? Good-day to

you," she continued, as if she had then first become aware of the presence of her grandson.

Jocelyne hastily gave her grandmother the volume which she had laid down upon the table; and whispering in her cousin's ear, as she passed, "She has spoken, she will be better now," sat down once more by her side.

A silence again pervaded that still room, when suddenly a noise of steps resounded upon a wooden stair. They approached the door, upon which a hurried knocking was now heard. Before Jocelyne, who, at the sound of these steps, had clasped her hands before her, with an expression of surprise and almost of alarm, had fully risen from her seat, the door was flung open, and a man enveloped in a cloak, and with a jewelled hat sunk low upon his brow, entered hastily.

He closed the door, and then gazed with a rapid glance around him.

Jocelyne had sprung up with a suppressed cry.

"Ah! I am not mistaken," said the man advancing, and removing his hat. "Jocelyne! Dame Perrotte! I am a fugitive, and I seek a shelter at your hands. I could not trust myself to those who call themselves my friends; others who might have protected me, I know not where to find, but I bethought myself of you—of you, Jocelyne—and"——

"Philip! Monseigneur," stammered the astonished girl. "You—here—and a fugitive!"

"Do you not know me?" said the fugitive to Dame Perrotte, who had risen from her chair, and stood staring at him as if with a return of troubled intellect.

"Not know you?" exclaimed the old woman rising. "I know you well, Philip de la Mole! And is it you, the Catholic, who seek a shelter beneath the roof of the proscribed and outlawed Huguenot?"

"But it is in the cause of your religion that I have conspired, my good woman, and that I am now compelled to fly," replied La Mole; "it was for one, who, as chief of your party, would have espoused your quarrel, and re-established your influence in the land."

"Ay, for your master, the shallow Duke of Alençon," responded Perrotte coldly. "False, hollow ambition all! And ye call that the cause of religion—Mockery! Yes, I know you well, Philip de la Mole, who in the hour of bloodshed," she continued, growing more and more excited, "could approve the hellish deed, and who now can babble of sacrifice and self-offering in the cause of our religion."

"You belie me, woman," said La Mole proudly.

"Yes, I know you, Philip de la Mole," pursued the old woman with knitted brows and flashing eyes; "you, who, to amuse your hours of idleness, could talk of love to a poor trusting girl, heedless how you destroyed her peace of mind, had you but your pastime and your jest of it."

"Grandmother!" cried Jocelyne in the bitterest distress.

"It was he, then!" exclaimed Alayn, advancing upon the fugitive nobleman, with the gun-barrel raised in his arm.

"If you love me, forbear!" screamed his cousin, flinging herself before him.

"I had hoped to have found shelter among honest hearts, whom misfortune should have taught pity," said the fugitive proudly, and unmoved; "and I have erred—unjust hate, prejudice, inhospitality, are the only virtues practised beneath this roof. I will again brave the danger, and seek elsewhere that kindly feeling I find not here. Jocelyne, my sweet pretty Jocelyne, farewell!"

With these words La Mole moved towards the door. The old woman regarded him motionless, and with the same cloud of irritation on her brow. Alayn seemed equally inclined to prosecute his first hostile intention; but Jocelyne sprang after the retreating nobleman and caught him by the arm.

"Grandmother," she said, drawing herself up to her full height, and leaning fondly against La Mole—"if any one have erred, it is I, and I alone. It was I chose him *forth* as the noblest, the brightest, the best among those who glittered about the court, in which we humbly lived. I had given him my heart ere he had deigned to cast a look upon me. If I have loved him—if I love him still—it is because I alone have sought it should be so."

"Jocelyne! be still, sweet girl," said La Mole, affected, and moving towards the door.

"And were he our bitterest enemy," continued the excited girl, still clinging to his arm, "he is now a proscribed fugitive—no matter why—God sends him to us—and it is ours to save, not to condemn him."

"But it is said, that the enemy of the righteous shall perish from the earth," said her grandmother sternly; "it is not I condemn or kill him. If it be the will of God that his cause of error cease, let him go forth and die."

"If he die, mother," exclaimed Jocelyne with energy, "I shall die too. I have given him my heart, my life, my soul—punish me as you will—trample me at your feet. But I love him, mother; and, if you drive him forth to be hunted by his enemies to the death, your child will not survive it."

Alayn had turned away in bitterness of heart, and the old Huguenot woman, although giving way more and more to that excitement, which, at times, fully troubled her reason, only wrung her hands, as if moved by the address of the agitated girl.

"Stay! stay, Monseigneur," continued Jocelyne, as La Mole again pressed her hand and turned to depart. "She relents—she has a kind heart; and she would not, surely, deliver up the guest who begs shelter at her threshold, into the hands of those who seek to capture and to kill him."

"Let me go forth, Jocelyne! farewell!" repeated La Mole.

"Mother!" again commenced the unhappy girl, throwing herself down to clasp the knees of her grandmother, who, overcome by the violence of her feelings, had sunk back again into her chair. "Mother! would your husband, or your son, have driven even their deadliest enemy from their door?"

"Speak not of my son, girl; or you will drive me mad!" cried Perrotte, clasping her hands before her face.

Jocelyne sprang up with a look of despair, and returned to detain once more La Mole.

As they thus stood, and before the old woman had again stirred, or Alayn interfered, a rumour from the street formed by the bridge, caught the ear of

the excited girl.

"What is that?" she exclaimed, starting in alarm.

"The agents of the Queen-mother sent in my pursuit, probably," replied La Mole coolly, and disengaging himself from the convulsive embrace of Jocelyne. "How they have tracked me, I know not. So be it, then. I had hoped for the sake of others to avoid their hands; but I am prepared to meet my fate."

"No, no," screamed Jocelyne. "It cannot be! Mother—mother, would you see him made a prisoner in your own house—murdered, perhaps, before your very face!"

Alayn moved towards the door; and the girl sprang to intercept him.

"Would you be so base? Would you have me hate you?" cried the poor girl in despair, to her cousin.

Many steps were now heard ascending the lower stair. The old woman, who trembled in every limb, stirred not from her chair; but, removing one hand from her face, she stretched it out towards a corner of the room.

"Ah! I understand you, mother," exclaimed Jocelyne. "That secret closet where our books of religion are deposited, where our old priest, during the massacre, was hid!"

"Whilst my son perished—a victim—a martyr!" groaned the old woman, fearfully agitated.

"Come, come, Monseigneur," pursued the excited girl; and, in spite of the unwillingness of La Mole to profit by a hospitality thus bestowed, she dragged him to one corner of the room, and pushing back the spring of one of those secret recesses then so commonly constructed in all houses, as well of the bourgeois as the nobles, on account of the troubles and dangers of the times, she compelled him by her entreaties to enter a dark nook—then hastily closing the aperture, she exclaimed, "God shield him!" and sank down into the stool by her grandmother's side.

"Alayn!" she said, in a low hurried tone, as the heavy steps still mounted the stairs, "you will be silent, will you not? You will not betray him, and see the

poor girl, whom you profess to love, die at your feet!"

The youth shook his head with a gesture of resignation, although the frown upon his brow showed how painful were the feelings that he suppressed.

"Mother!" whispered Jocelyne once more to the old woman. "Calm your agitation—oh! let not a word, a gesture, betray our secret! Stay! I will read to you!" And she seized the Bible, then a dangerous book to produce thus openly before Catholic agents of the court, and took it on her lap.

Perrotte answered not a word, but continued to rock herself with much agitation from side to side in her chair.

The noise of the arquebuses of soldiery was now, in truth, heard on the landing-place. A heavy blow was given on the panels of the door; and, without waiting for permission to enter, a man in the military accoutrements of the period, whose head was crowned with a high hat, adorned with a short red feather, advanced into the room with an air which betrayed at once a strange mixture of effrontery and hypocrisy.

"Landry!" exclaimed together both Jocelyne and Alayn.

"Captain Landry, at your service," said the man; "or, if you will, at the service of her majesty the Queen-mother. Good-day, my gentle cousins both. Good-day to you, my good aunt Perrotte. How goes it with her now? Her head was somewhat ailing as I heard, since she had left the court." And he touched his forehead significantly with his finger.

"She is well!" answered Jocelyne hastily, trembling in spite of her efforts to be calm.

"But this is no visit of ceremony, my good friends," continued Captain Landry, with some haughtiness of manner. "I come upon state affairs. A criminal of rank, who has conspired against the life and person of the king, has escaped; and we are sent in his pursuit. We have contrived to track him of a surety to this neighbourhood; and, as I bethought me that this same delinquent was a friend of my fair cousin Jocelyne, who, although she has received my offers of affection with disdain, could look upon another with more favour, I doubted not that I should find news of him in her company. Know you of none such here, sweet cousin?"

"I know not of whom you speak," said Jocelyne, her colour varying from the flush of emotion to the deadly paleness of fear.

"And you, Alayn, boy, since our fair cousin's memory is so short, can doubtless tell me. Has no one entered here within the last half hour?"

"No one!" answered Alayn sturdily; but he then turned and moved to the window to hide his confusion.

The Queen's agent shrugged his shoulders.

"And my good aunt has had no visitors?" he resumed, advancing towards the old woman.

Perrotte lifted her head, and regarded the captain fixedly, and with a look of scorn, but said not a word.

"Search!" said the officer, turning to the soldiers, who had waited without.

The men entered; and in a few instants the scanty and small rooms attached to the principal apartment were examined. The captain was informed that no one could be found. For a moment he looked disappointed, and paused to reflect.

"Their trouble is evident," he murmured to himself. "He may still be here. The reward for his capture is too great to be given up lightly; and, besides, I hate the fellow for the love she bears him—I will leave no stone unturned."

"Dame Perrotte!" he said returning to the old woman, and speaking to her in a low tone of voice—"A criminal of state has escaped from the king's justice. In spite of the protestations of your grandchildren, I cannot doubt that he is concealed hereabouts; and you must know where. You will not fail, I am sure, to indicate the place of his retreat, when you know that, as the friend of those who have proved the bitterest enemies of your religion, he must also be your deadly enemy."

"And is it Landry, the recreant, the apostate, the only seceder of our family from the just cause, who speaks thus?" said the old woman lifting her head with a haggard expression.

"The necessary policy of the times," whispered the captain, sitting down on the stool by her side, and approaching himself confidentially nearer, "has compelled me, like many others, to be that in seeming which we are not in heart. Has not our chief, Henry of Navarre, yielded also to the pressure of the circumstances in which he lives? Judge me not so harshly, good aunt. But this criminal—he is one of those who have hunted and destroyed, who have cried—'Down with them; down with the Huguenots—pursue and kill;' and you would withdraw him from the punishment he merits?"

"He! he! Was it, so?" muttered Perrotte, with eyes staring at the vacancy before her.

"Do you not fear to pass for the accomplice of his crimes?" continued Captain Landry in her ear. "Know you not that he has attained the life of your nursling by deeds of sorcery, and that Charles IX., our king, now lies upon his death-bed."

"Who speaks of Charles?" exclaimed the old woman with increasing wildness and excitement. "Charles and death! Yes, they go hand in hand!"

"Landry! You shall not torture our poor mother thus," cried Jocelyne springing towards them, in order to interrupt a conversation which she had been witnessing in agony, although she could not hear it, and the effect of which upon her grandmother's unsettled mind became every moment more visible.

"Fair cousin, with your leave!" replied the captain. "I am bound to do the duties of my office. I shall be grieved to use constraint." And, waving his hand to her to withdraw, he made a sign to the soldiers to approach both Jocelyne and Alayn, and prevent their interference.

Jocelyne wrung her hands.

"Do you not fear the reproaches of your murdered son?" continued Captain Landry, turning to Perrotte, with an expression of perfidious hypocrisy in his eyes, and again pouring his words lowly, but distinctly, into her ear. "Do you not fear that he should rise from his tomb, and, showing the bloody wounds of that fatal night, cry for vengeance on his murderers, and curse the weakness of that mother who would screen and shelter them? Do you

not fear that Heaven should condemn you as a friend to the destroyers of the righteous? Think on your slaughtered kindred, woman!"

"Mercy! mercy! my son!" cried the old woman, springing up with her hands outstretched, as if to repel a spectre. "Oh! hide that streaming blood! Look not so angry on me! Blood shall have blood, thou say'st; so be it. Vengeance is the Lord's! and He shall avenge his people!"

"Where is he?" enquired Landry, also rising, and watching her every movement.

"There! there!" exclaimed the excited woman, pointing to the corner of the room.

In spite of the attempt of Jocelyne, who was now restrained by the soldiers, to interrupt him, Captain Landry walked to the corner indicated, and after a few attempts succeeded in discovering the secret of the concealed recess.

"Count Philip de la Mole, you are my prisoner, under warrant of his majesty the King, and by order of the Queen-mother," he said, as the young nobleman appeared to view.

Jocelyne uttered a cry of despair.

"Conduct me where you are bidden, sir," said La Mole, offering his sword. "My sweet Jocelyne, farewell!—your kindly interest in my fate I shall never forget. But we shall meet again. Fear nothing for me; I will prove my innocence."

The unhappy girl fell at the feet of the captured nobleman, and wetted his outstretched hand with her tears, as she pressed it to her lips.

"My strict orders," said Captain Landry, "were to arrest all those who should be convicted of harbouring the criminal. Forget not, then, cousin Jocelyne, that I spare you so hard a lot. But my duty compels me to adopt other measures. Come, sir!"

When Philip de la Mole had been conducted from the room by the agents of the Queen-mother, Jocelyne turned to her grandmother, without rising from the ground, and exclaimed in the bitterest despair—

"Mother—mother—you have killed me!"

"Who spoke of Charles? Who said he lay upon his death-bed?" cried Perrotte, walking up and down with the uncertain step of the deranged of mind, and unheeding her unhappy grandchild; "Charles dying! and I shall see him no more—shall he die without a warning word from her who loved and cherished him so long—die without repentance? What was that voice that tortured my very soul? Who said he was about to die, and that I should see him no more?"

Jocelyne sprung up from the ground, as if a sudden thought had crossed her mind.

"Yes, mother, yes," she cried, "the king is dying. Come to him. See him once more. He will hear your words upon his death-bed, and extend his pardon to the innocent—for Philip de la Mole is innocent, my mother. He will save him who is unjustly condemned; and you will save his repentant soul. Come, mother, come—come," she continued, as if speaking to a child, "the king is waiting for you!"

"Charlot—my nursling—dying!" murmured the old woman—"Yes—let us go."

"Alayn will accompany us," said Jocelyne, turning to the youth, who stood at the window unhappy and confused.

Without waiting for any addition to their dress, the eager girl seized her grandmother's hand, and led her to the door.

When it was opened, two soldiers appeared upon the threshold, stationed to prevent all egress of the inhabitants; and one of them, placing his arquebuse across the door-stall, cried, in a rude voice—

"On ne passe pas."

The two women drew back in alarm.

CHAPTER IV.

"Sweet Isabel, take my part;

Lend me your knees, and all my life to come
I'll lend you all my life to do you service."

SHAKSPEARE.

"Your suit's unprofitable; stand up, I say."

IDEM.

Again the scene changes to the palace of the Louvre, where so many dark intrigues surrounded the rich chamber of the dying king; where, instead of the sympathy of friends, and the tears of relations, jarring ambition, and rivalry, and hatred, between brethren and kindred, between mother and children, escorted him on his passage to the tomb, and darkened the *last hours of his reign*. Such might have been supposed by a moralist to be the punishment, inflicted, even upon this earth, on him, who, if he did not instigate, ordained and prosecuted the horrible massacre of St Bartholomew.

The state of the miserable Charles grew hourly worse, and he rapidly approached his last moments. None knew better than his heartless mother, as she had herself admitted, that he *must die*; but yet, with so much artifice and intrigue did she envelope in mystery his lost condition, that, even in the Palace of the Louvre, his own nearest relations were ignorant how near approached the hour, which, by leaving the crown as heirloom to a successor far away in a distant country, opened a field to the ambitious designs of so many struggling parties in the state.

Unconscious, as many others, of the rapid advance of that fatal event, sat in her chamber Margaret of Valois, Queen of Navarre, the sister of the dying king. Her beautiful head was reclined languidly against the tapestry of the wall, the dark colours of which formed an admirable background to that brilliant and bejewelled portrait. A lute, of the fashion of the day, lay upon her lap; music, dresses, scraps of poetry in her own handwriting, caskets with jewellery, manuscripts, and illuminated volumes, were littered in various parts of the room. A handsome spaniel slumbered at her feet; whilst two of her ladies sat on chests at a respectful distance, occupied in embroidery. A look of soft pensiveness pervaded the delicate and highly expressive features of the young Queen; but her thoughts were not bent, at

that moment, either on her suffering brother, or on those ambitious views for her husband, which, spite of her little affection for him, she entertained, partly out of a sort of friendship for the man she esteemed, although her hand had been so unwillingly bestowed upon him; partly out of that innate ambition and love of intrigue, which formed, more or less one ingredient in the character of all the children of the crafty Catherine de Medicis. No! they rambled unrestrained upon the souvenir of an object of woman's preference and princess's caprice, who for some time past had no more crossed her path. It was on that account her brow was clouded, and that a trait of sadness shaded her smiling mouth.

As she still lay thus languidly, one of the ladies was called by an officer from the room, and shortly returned to announce that there was a young girl without, who besought, with earnest supplication, to see her Majesty.

Although astonished at this request, Margaret, eager for any subject of passing occupation that might enliven, even for a moment, an hour's ennui, desired that she might be admitted; and shortly after a simply dressed girl, whose sunken head could not conceal her exquisite beauty, was ushered in. Her step as ill-assured and trembling; her face was deadly pale.

"What would you, maiden, with the Queen of Navarre?" said Margaret kindly. "How came you here?"

The girl raised her head, but still struggled with her emotion before she could speak.

"Ah! I remember me," pursued the princess with a smile. "You are the pretty Jocelyne, the fair grand-daughter of my brother Charles's favourite old nurse, Dame Perrotte; you are she of whom all our gallants spake with so much praise, to the great detriment and neglect of all our ladies of the court. Nay, blush not—or rather blush—blush, it becomes your pale face well, my dainty one. But I thought that you had left the court with Dame Perrotte, the sturdy Huguenot, ever since. Oh yes! I recall it all now," she continued, checking herself with a sort of shudder. "But what brings you hither? Speak. Have you any favour to ask that the Queen of Navarre can grant?"

"I would speak with you, madam, and alone, upon a matter of urgency and importance," stammered Jocelyne.

The thought, that as the fair girl before her belonged to a Huguenot family, she might have been used by the Calvinist party as a secret agent to convey her some intelligence connected with the various plots ripe at that period to place Henry of Navarre in a post of influence about the crown, if not upon the throne, crossed the mind of Margaret, and she gave instant orders that her ladies should retire. To her surprise, as soon as they were left alone, the lovely girl threw herself sobbing at her feet.

"Save him! save him!" cried Jocelyne, with outstretched arms. "You have influence—you can approach the king—you can save him if you will. And you will save him—will you not?"

"Of whom do you speak, my pretty maiden?" said the princess in surprise.

"Of Monseigneur the Count Philip de la Mole!" sobbed Jocelyne.

"Philip de la Mole!" exclaimed Margaret aghast. "What ails him, girl? You bid me save him—Why? What mean you?"

"Oh! madam, know you not," pursued the sobbing girl, "that he has been arrested for treason—for a conspiracy against the life of the king? that he is at this moment a prisoner, and that his life is threatened?"

"La Mole! arrested! accused of attempting the life of Charles!" cried the Queen of Navarre in the highest agitation. "And I knew naught of this? Is it true? How did you learn the story? Do you come from him? Speak, girl, speak, I say!"

"He was arrested, madam, in our very house," stammered Jocelyne, wringing her hands. "He had sought a refuge there—and he there lay concealed. But, alas! my poor grandmother, her wits are at times unsettled. Oh! she knew not what she did. Believe me she did not know. A treacherous villain worked upon her wavering mind—she betrayed him. They took him from the room a prisoner. I would have led my grandmother to seek his pardon at the feet of the king, who loved her so well that he would refuse her nothing; but soldiers guarded our doors; they would not let us pass. Then I bethought myself of the window. Our house is on the bridge, and

looks upon the river. Below was a mill and the miller's boat. He is a good man, and kind of heart. I knew that he would row me to the shore. Alayn, my cousin, would have prevented me; but I would not hear him. What was the rushing stream, or the whirling mill-wheel to me? I saw not danger when I thought I could save the noble Count."

"Brave girl! brave girl!" interrupted Margaret, in palpitating excitement.

"There were beams and posts that descended to the water's edge," pursued Jocelyne, her eyes sparkling and her cheek now flushed with the animation of her tale. "Alayn aided me, although unwillingly, with cord and linen. I reached the mill—the boat. The miller rowed me to the shore. I knew I could not approach the king; but I bethought me of you, madam—for they say—they say, you love him well." At these words Jocelyne hesitated, with a mixture of feelings, in which bashful timidity struggled with her jealousy of the great lady before whom she knelt.

"Pursue, girl, pursue," said Margaret, an instantaneous blush again colouring that cheek, from which alarm had driven all colour.

"Yes; and I knew that you would save him," continued the excited girl, stretching out her hands in anguish. "He is your own brother—he—the king, the dispenser of life and death; and he will listen to you. And you will save the Count, will you not?"

"Yes—yes, girl! I will do all I can!" said the princess walking up and down in agitation. "Rise, rise—your tale is confused. I know not what all this may mean; but the truth is there. He is a prisoner! Oh, La Mole! La Mole! Whether has your imprudence driven you? And were it for me that he has done thus. Yes—yes I will to my brother Charles—I will learn all—supplicate—save him!"

With these words, half murmured to herself, half addressed to Jocelyne, the Queen of Navarre paced her room. Then making another sign to the unhappy girl to rise and remain, she took a whistle lying on a table, and whistled to call those without.

The hangings of the door were parted. But instead of one of her attendant ladies, it was the calm imposing form of Catherine de Medicis that entered the apartment.

Margaret started back as if she had seen a spectre.

"My mother!" burst involuntarily from her lips in a tone of alarm; for she divined, by rapid instinct, that such a visit could bode naught but evil.

The Queen-mother cast a searching glance over the two agitated females, and smiled as if, with that quickness of intelligence which characterised her cunning mind, she had discovered at once the meaning of the scene before her. With an imperious wave of the hand she signified her desire that the damsel should leave the room, since she would speak with her daughter. In spite of her agitation and distress, Margaret of Valois, with that implicit obedience to her mother's will which, in common with all the children of Catherine de Medicis, (except the unhappy Charles in the latter years of his hardly wrought and dearly paid emancipation from her authority,) she never ventured to refuse. She bid Jocelyne leave them; and the fair girl retired with trembling steps and sinking heart. The apparition of the Queen-mother had appalled her.

Catherine motioned to her daughter to be seated on a low stool, and taking herself a high-backed chair, smiled with her usual bland and treacherous smile.

"You seem agitated, Margaret, *ma mie*," commenced the Queen-mother, after a due pause. "I have come to condole and sympathise with you in your distress. Much as I may have blamed your misplaced and unbecoming attachment to an obscure courtier, almost an adventurer in this palace, I cannot but feel that you must suffer from the discovery of the utter baseness of this man. Look not thus surprised. I see you have already learned his arrest—your whole manner betrays it."

"You speak of ——," stammered Margaret, trembling.

"I speak of Philip de la Mole," said the Queen coldly.

"It is true, then?" pursued her daughter. "He is arrested on a charge of treason. Oh, no! It cannot be! He is innocent!"

"He is guilty!" said Catherine coldly. "I have evidence the most incontrovertible, that he has conspired against the life of the king, your brother, by the foulest acts of sorcery. A wax figure, fashioned as a king,

pierced to the heart by his very hand, has been laid before me. Your brother's illness, his mortal pains, his malady so incomprehensible, all declare that the hellish deed has but too much succeeded up to this hour."

Margaret shook her head with a smile of contempt and doubt.

"But for what purpose was designed this murderous act?" pursued the Queen-mother. "In despite of the rights of Henry of Anjou, to place his master, your brother, the Duke of Alençon, upon the throne upon the death of Charles. We have every proof that so it was."

"For Alençon!" stammered the princess.

"It was for him," continued Catherine, unheeding this interruption, but with an increasing smile of satisfaction, "that these treasonable plots were designed, and partly executed. The ambitious favourite thought, by his master's hand, to rule the destinies of France. But the traitor will now reap the fruits of his black treachery."

"For Alençon!" repeated Margaret in a tone of regret.

"Doubt not that I sympathise in all your sorrow at this discovery, my child," resumed the Queen-mother. "Bitterly indeed must you feel how the base traitor has betrayed and forgotten the woman who loved him so fondly, so imprudently."

"For Alençon!" again muttered Margaret with sunken head.

"Be this the punishment of your folly, and its reparation," pursued Catherine, after a pause. "Long ago should you have ceased to cherish an attachment for one so unworthy. But you have too soft a heart, Margaret, my girl; you are too kind. I wonder and admire the sacrifice of your own feelings, and the woman's weakness with which you could hear and compassionate the supplications of his mistress."

"Madam!" said the princess lifting her head in surprise.

"But even now I saw her at your feet," continued her mother, with a slight sneer, "begging you to intercede to obtain his pardon."

"His mistress! speak you of La Mole, madam?" exclaimed Margaret.

"What! you knew not, child, what all the court can tell you," replied Catherine, "that of this chit-faced grandchild of that old Huguenot, whom Charles so favoured, Philip de la Mole had made his light o' love? Ay, so it was. It was the talk and scandal of the palace. Where was he discovered on his arrest? In the girl's chamber, as I hear. And now she dares to come and tear her hair, and whine out for mercy for her paramour, at your feet—at yours! Effrontery could go no further!"

"Philip! could he be so base?" murmured Margaret to herself. "But yes—her tears—her agony! Oh! it is true! And he must love her well, that she should thus, at the hazard of her life"——

The Queen-mother smiled with satisfaction, as she saw that mistrust had entered Margaret's mind; but to make her purpose sure, she remained long, to comfort and console her daughter, as she said, with words of false sympathy, and hypocritical advice.

When at last she saw Margaret thus convinced of La Mole's utter unworthiness, and knew that injured pride and offended dignity had usurped in her heart the place, where, so shortly before, love alone had throned, Catherine de Medicis rose and retired.

Margaret did not weep. She was one lightly moved by the more violent as the tenderer feelings of a woman's heart, and she was proud. She sat still, unmoved, with her hands clenched before her, when a slight movement in the apartment startled her. Upon raising her head she saw Jocelyne before her.

"You here, my mistress?" she exclaimed in anger.

"They would have bid me begone," said Jocelyne timidly; "but I concealed myself; and when her majesty the Queen-mother had gone forth, I returned unperceived."

"And you again dare to affront my presence?" said Margaret rising. "This is unheard of insolence."

"Alas, madam!" replied Jocelyne trembling, "I did but seek a last assurance that you would save him."

"Away with you, mistress," continued the princess, her eyes flashing with anger. "La Mole is but a traitor, as are men all. Let him meet his deserts. But I wonder at myself that I should bandy words with you. Go to your lover, girl, and comfort him as best you may."

"My lover! he!" murmured Jocelyne; "alas! he never loved me!"

Overwhelmed with the rude reception she had so unexpectedly received from the princess, who, but a short time before, had listened to her with so much eager interest, the poor girl moved with unsteady step towards the door.

"He loved you not, say you?" burst forth Margaret as to recall her. "Speak! He loved you not—this—young Count?"

"Madam," said Jocelyne, turning her head, but with downcast eyes, "in this dreadful moment, when he lies a prisoner, his life in danger, I can avow, what I could scarcely dare avow even to myself, that I loved him with a passionate and unrequited love. I loved him with an eager and devoted affection, although his heart was not mine—poor simple uncourtly girl as I am—although it was another's. He too loved, I know—but it was a great and noble lady, more worthy of him than was I. Pardon me, madam, if I dared to think she loved him too."

"Come hither, maiden, once again," said the princess in agitation. "He loved another, you say—this Count de la Mole—and who was she?"

"Madam," replied Jocelyne in embarrassment, "I have already craved your pardon that I should have ventured even to surmise it!"

"Ah!" sighed forth Margaret with a gleam of satisfaction in her face. "Come back, my girl, come back!" she resumed. "I have treated you harshly. I knew not what I did. Hear me—this Count has proved a traitor to his king; perhaps, I may fancy, a traitor to others also; he has conspired to turn away the rightful succession of the crown. But I believe him not guilty of all the black arts of which he is accused. I would save him from the unhappy consequences of his error, if I could. But what can I do? My mother is fearfully incensed against him!"

"Oh, madam, you have access to the king!" cried Jocelyne imploringly. "He is your brother—and the power to save or to destroy is his. He will not refuse you, if you entreat his pardon and mercy for the Count."

Margaret shook her head doubtfully.

"Alas!" she said, with a look of distress, "other influences are at work which mine cannot resist. I knew not all—but now I tremble."

Jocelyne still entreated, in all the agony of despair; and the young Princess, again calling to her ladies, and learning that the Queen-mother had returned to her own apartment, at last departed from her chamber, bidding her fair suppliant await her return.

Long, eternally long, appeared those minutes, as the unhappy girl still waited for that return which she imagined was to bring her the news of life or death. To calm the agitation of her mind, she prayed. But her thoughts were far too disturbed for prayer; and the prayer brought her no comfort.

At length the Queen of Navarre came back to her apartment—as Jocelyne looked in her face, she could scarcely repress a scream; that face was one of sorrow, and disappointment—the poor girl trembled in every limb, and did not dare to speak.

"I have done all I could," said Margaret—"His door was obstinately closed to me—I could not see him—it was she—it was my mother, who has done this. I know it well."

"What is to be done? whether turn for help?" cried Jocelyne in despair. "Oh! would that I could lay down my life to save his."

"Noble girl!" exclaimed the princess. "Thus devoted, whilst he loves another! How far more generous than was I; ay, I believe thee—couldst thou lay down thy life for him, thou wouldst do it."

"And is there no hope of seeking pardon at his hands?" resumed the afflicted girl.

"In time, perhaps—at another opportunity," replied Margaret; "but now my mother's influence triumphs."

"Another opportunity!" sobbed Jocelyne. "In time! Alas! such words are words of mockery—the king is dying—at his death the Queen-mother will command; and what have we then to hope?"

"Dying? the king—my brother!" exclaimed the Queen of Navarre—you rave, girl! he is ill—I know, but"——

"Know you not, madam," interrupted Jocelyne, "what all the city of Paris knows—that the king cannot live long—not many hours, perhaps—that he lies upon his death-bed?"

"Charles—dying! And my mother has concealed it from me!" cried Margaret. "I see through all her designs! she would keep us from his presence, that he bestow not upon my husband, whom he loves, the reins of power at his death. Charles—dying! Then there lies our only hope. If he die, let Henry of Navarre be Regent—he will listen to my prayer—and La Mole is saved. Yes, there lies the only chance. I will to my husband. We may have still time to effect our purpose, and secure the Regency, in these few *last hours of the reign.*"

CHAPTER V.

"O cousin, thou art come to set mine eye;
The tackle of my heart is crack'd and burn'd;
And all the shrouds, wherewith my life should sail,
Are turned to one thread, one little hair;
My heart hath one poor string to stay it by—

* * *

"All this thou see'st is but a clod,
And module of confounded royalty."

* * *

"But now a king—now thus—
This was now a king, and now is clay."

SHAKSPEARE.

The miserable king lay, indeed, upon his bed of death. He had refused to quit the room which he usually occupied, all encumbered as it was with his favourite hounds, his hunting accoutrements, and these horns, the winding of which had been his favourite amusement, and had contributed so powerfully to affect his lungs, and undermine his constitution. A sort of couch had been prepared for him of mattresses and cushions upon the floor; and upon that rude bed was the emaciated form of the dying monarch extended. To his customary attacks of blood-spitting, had succeeded a strange, and, until then, unknown symptom of malady, from which the very physicians recoiled with horror. Drops of red moisture, which bore all the appearance of blood, had burst, like perspiration, from the pores of the body; and there were moments when the wretched man writhed on his couch in the double anguish of body and mind, that, in spite of the efforts of the physicians to remove this extraordinary appearance, he might have been thought to be bathed in gore.

It was indeed an agony, and a bloody sweat!

The physicians had long since declared that there was no hope. In one of those fitful bursts of anger, in which Charles from time to time indulged, even in his state of exhaustion and in his dying moments, he had desired to be left by his doctors and attendants, and he slumbered his last slumber in this world, before closing his eyes for ever in the great sleep of death, to wake upon another. One person alone sat by the side of his couch; and that person was one, whom the incessant intriguing efforts of his mother would have taught him was his bitterest enemy.

That ivory paleness which had been so characteristic a trait of Charles, and had added at once to the melancholy and majesty of his face, was now of a yellow waxen colour, which might be said to increase from minute to minute in lividness of hue. His large nose stood frightfully prominent from those hollow sunken cheeks; his lips, in life, red almost to bleeding, were now ashy pale. Beneath his thin lids, the eyeballs, sunken into the deep cavities of his eyes, might be seen to roll and palpitate; whilst from his open

and distorted mouth burst forth, even in his troubled sleep, moans, and then words of anguish.

The man who sat by his side, listened with varying feelings. Sometimes he started back with a movement of horror; sometimes he again bent forward in compassion, and with a kerchief lightly wiped away that fearful perspiration which burst from the hollow temples of the young man. The aspect of this personage was noble; his forehead was bold; his nose formed with that eagle curve which seems fashioned for command. The expression of his grey eyes denoted both resolution and wariness; whilst a general look of good temper and openness, which amounted almost to *insouciance*, pervaded the whole face. He was clothed in black. It was Henry of Navarre, the ill-used and betrayed victim of Catherine's policy.

During the whole reign of Charles IX., the Queen-mother had used every effort to instil into his mind suspicions of the loyalty of the man, who, were the Valois to die childless, would be heir to the throne of France; and whom the decrees of Providence finally led, through the wiles and plots set to snare his liberty and his life, and in the midst of the clashing of contending parties, to rule the destinies of the country, as Henry the Fourth. Henry of Navarre, whom the artifice and calumny of a Medicis had done their best to separate and estrange from his king and brother-in-law during life, was now the only attendant upon his last moments—the only friend to press his dying hand and close his eyes. By a last exercise of his authority, Charles had declared that it was his will that Henry of Navarre, and he alone, should be permitted to approach his couch, and receive his last instructions; and in spite of all the manœuvres of the crafty Catherine, who no longer ventured openly to oppose her son's commands, the two princes were united in this supreme and awful hour.

And now Henry of Navarre sat and watched his dying relation with oppressed and anxious heart, aware that, were the king to die without providing for his safety by a last exercise of his power, his liberty, and even his life, would be in danger from the manœuvres of the revengeful Catherine; that his only chance of escape was in flight before the death of the expiring king; and yet, too noble and generous to leave the man who, at such a time, had called him to his side, he sat and watched.

Presently the king rolled convulsively upon his couch; his parted lips quivered horribly; and with a mutter, which increased at last into a distinct and piercing scream, he let fall the words—

"Away—away—torment me not! Why do you haunt me thus? Fire—fire! Kill—kill! No—spare them—spare them, and spare me a hopeless misery. Ah! they fly—they bleed—they fall. And the poor old Admiral—his grey hairs are dabbled with blood. Away—away—it was not I—not I! Ah!"——

With a sudden start of horror, the king lifted his head from his pillow, and for a time gazed with staring and glassy eyes, as if the hideous vision which had tortured his sleep were still before him. Then with a bitter groan, he again fell back upon his couch. Again he raised his head, and, looking upon Henry, said, with a faint and plaintive voice, that contrasted strangely with these brusque and harsh tones which were natural to him,

"Why do they ever pursue me thus—those Huguenots, who perished with the Admiral? It was not I—it was my mother who was the cause of all. And yet, I myself, arquebuse in hand, I hunted them to the death. Oh! but my remorse has been long and bitter, Henry. What I have suffered none on earth can tell. Since that fatal night, I have never enjoyed a moment's peace of mind. Do kings ever enjoy peace of mind, Henry? Oh, be glad that thou art not a reigning king! Peace of mind is not for them. If there be a purgatory, Henry, in another world, I have already endured all its tortures on this earth. Is not remorse the worst purgatory? ay—the most damning hell. But why, then, do they pursue me thus in hideous visions still?"

The wretched king buried his head in his pillow.

"Strive to be calm," said Henry of Navarre, bending over him to lift up his head, and arrange his cushions. "Those visions will leave you."

"Yes! in the grave—perhaps!" replied Charles, again looking up with a shudder.

"Let us hope better things," continued Henry. "With more tranquillity of mind, you will regain your strength, and"——

"No—all is past," murmured the king. "I feel that I am dying. Know you not that there is one accused of practising sorcery upon me. Folly! madness! An

evil deed *has* been practised upon me. Yes—the thought will not leave me. I would drive it away, but it still rankles in my heart. Evil *has* been done me, but not by sorcery. And yet the sorcerer must die. The world must believe that it was he who worked my death; but it was another. Come here, Henry; bend your ear to me, for I can no longer rise. Wouldst thou know who it was?"

A noise in the further part of the room startled the young King of Navarre at this moment, and he turned his head. The only living creature present was the favourite green ape of the king, that sat and grinned and moaned, as if in mockery of his dying master.

"Come nearer, Henry," pursued the king, "for I would speak that to thee, that not the very walls may hear. Know you what has caused my death—who has been my murderer?"

Henry bent his head over the dying man, more to satisfy a caprice of the sufferer, than in the expectation of any serious revelation; and, as Charles whispered in his ear, he started back in horror.

"Oh, sire, think not so! Drive away so miserable a suspicion!" he said. "It were too horrible. It is impossible!"

"Impossible!" repeated the king, with a faint ironical laugh. "To some hearts all things are possible."

"You had a mother once," continued Charles, after a painful pause. "But she was good and kind; and she is dead. Know you how she died?—Mine still lives—and now it is I who die."

"Speak not thus, I entreat you, sire!" interrupted Henry. "This is horrible!"

"Horrible! is it not?" repeated the wretched king with the same harrowing laugh. "Henry! trust not yourself to the tender mercies of my mother!"

Again the same strange noise struck upon the ear of Henry of Navarre.

"Nor shall my people, my poor suffering people, be trusted to her care," continued the king with more energy. "Henry, thou art the only one, in this my palace of the Louvre, who loves me. In spite of all that has been said and done, thou alone hast left me in repose, hast never troubled my last

days by conspiracies against my crown, and against my life—ay, my life! Brother has been set against Brother in bitter hatred. Thou alone hast not hated me, Henry. Thou alone, in spite of all the wrongs I have done thee—thou hast loved me. To thee I commend my poor patient wife—to thee I commend my people!"

"But, sire, should it please Heaven to take you from us—and may you live long, I pray"—resumed Henry of Navarre, whilst the king shook his head—"it will be your mother who will claim the regency, until the return from Poland of your brother, Henry of Anjou. It will be hers probably to command!"

"When I bid you not trust yourself to her tender mercies," replied Charles, "think not I spoke as a child. My life is ebbing fast, I know, but my mind is clear. Give me that paper!" He pointed to a paper laid upon a table close by his side. "This is my last and binding command, which I shall now sign with my own hand," he continued, as Henry brought him the desired paper, and laid it upon his couch. "This declares, that, by my last will, I appoint you as Regent of this realm until the return of the King of Poland. The name is still in blank; for I would not that those who drew it up should know my purpose, and bring my mother clamouring to my side, to thwart my last wish by her reproaches. Give me a pen, Henry. Now, support me—so—in your arms. Where is now the paper? My sight is troubled; but I shall find strength to see and strength to trace that name."

Raised up in the arms of the King of Navarre, Charles took the pen placed in his hand, and laid it on the paper.

"When you are regent, Henry," he paused to say, "remove my mother from your court. It is I who bid you do it. She would hate you with a mortal hatred; for power is her only aim in this world, and for that she would forfeit her salvation in the next. Not a moment would your life be in safety. She would poison you, as she has poisoned her miserable son."

"Sire! retract those words!" said a voice close by the dying king.

Before the couch of her son stood Catherine de Medicis. Her face was cold and passionless as ever, although her dark eyes gleamed with unusual fire, and her pallid face was still more pale.

"What would you have with me, madam?" said Charles, shuddering, as she approached. "Have I not desired to be alone with my good brother Henry upon affairs of state?"

"Retract those words, sire!" pursued his mother, unheeding him. "You have brought against me the most awful accusation that malice can lay to the charge of a human being. Would you leave this world, if so it please the saints above, with so hideous a lie upon your lips? Sire! retract those words!"

"Leave me, woman! Leave me to die in peace!" said Charles, with an effort of energy, struggling with his weakness and the violence of his emotions. "Be you guilty of this deed, or be you not, may Heaven forgive you your misdeeds, as I pray it may forgive me mine."

"My son! my son!" cried Catherine, kneeling down by his side, whilst the tears, which were ever ready at her command, and might now have been natural tears of rage, rolled down her cheeks, "I cannot leave you thus, a victim to the most horrible suspicion. I may have erred against you, but it has been unconsciously. I have ever sought your honour and your glory, perhaps by means you now condemn; but I have acted, like a weak, fallible mortal, for the best. No—no—you really cannot entertain thoughts so terrible. It cannot be. This is the suggestion of my enemies—and my enemies are yours, my son." And, as she said these words, Catherine darted a cold, sharp look of rage at Henry of Navarre, who had risen, and now remained an unwilling spectator of so terrible a scene—a scene of the most fearful passions of the human heart between mother and son, and upon the bed of death. "No—no—you will retract your words. You will say you did not entertain that frightful thought."

As the Queen-mother spoke, her eyes were fixed upon the paper, which was to consign the regency to Henry of Navarre; and, in spite of the animation with which she addressed her son, it was evident that upon that paper her chief thoughts were directed.

"Madam!" said Charles faintly, raising himself with difficulty on one elbow, and struggling with internal pain—"you have received my last words of pardon. Let my last moments be undisturbed."

"Charles, Charles!" exclaimed his mother, wringing her hands. "Let me remove these horrible ideas from your mind. What shall I say? What shall I do? Can a son think thus of a mother who has ever loved him? Oh, no!—it is impossible. Your mind wandered. You did not think it."

"Enough, madam!—enough!" replied the King. "It was the passing fancy of a wandering brain, if you will have it so. It is gone now. I think of it no more. Now leave me."

"But, my son," persisted Catherine, "I have such secrets to reveal to you, as you alone may hear. They are necessary to the safety of the state—necessary to the salvation of your soul hereafter. I cannot, must not, leave you. It is my bounded duty to remain."

"The time is past, madam," gasped her son, "when I can listen to such matters. My moments are counted—and I have that to do that can brook no delay."

Catherine sprung up with a feeling of despair, and turned away for a moment.

"It is near noon," she muttered to herself. "And it was to be at noon, said the astrologer. Oh! a few minutes—but a few minutes"——

"My son," she continued aloud, again approaching the bed of the king, and having recourse once more to that importunity, which, in the latter days of his reign, was the only weapon with which she could contrive to work upon the mind of Charles, "but I have that to reveal which deeply affects the honour of our family. Would you that other ears should listen to our shame?"

"Aye, ever shame—ever blood—ever remorse!" murmured Charles, turning his head upon his pillow.

"Would you refuse the last request of her who is, after all, your mother?" exclaimed Catherine, with the well acted accent of extreme despair.

The king uttered not a word.

"Leave us, sir," said the Queen-mother, with an imperious sign of her hand to Henry of Navarre, upon seeing these symptoms of the wavering

resolution of her son.

The young prince remained unmoved, to await the will of the dying king.

"Leave us, Henry," said the Monarch; "you will return to me anon. This is her last request—these are her last words. When she is gone, let me see you instantly."

Henry of Navarre shook his head with a look of mournful resignation, and then bowed and left the apartment.

"Now speak, madam," said the king, "and quickly. What would you reveal to me?"

"That Henry of Navarre conspires against your throne," commenced Catherine, rapidly; "that he has been proved to be in connexion with that sorcerer who has aimed at your life; that the chiefs of the accursed Huguenot party are concealed in Paris, awaiting but your death to place the crown upon his brow; that he also looks to this event to abjure once more the true Catholic faith, and return into the bosom of heresy; that by giving power into his hands, you endanger the safety of the state; that by committing the rule of the country to a Heretic and a Seceder, you endanger the safety of your own soul; that, by such a step, the honour of our House will be eternally lost; that in all the countries of Catholic Christendom, we shall be pointed at with the finger of scorn and shame."

"Madam, you have deceived me with words of equivocation to gain my ear," replied the king, mustering all the strength that still remained to him, "and you deceive me now."

"I deceive you not, my son," pursued Catherine, eagerly. "Each word that I pronounce is God's own truth. Could you then confide into the power of a base and lying Heretic, one who seeks your death, but to grasp himself the Crown, the government of a Catholic and a Christian country? Hear you not already the anathema of our holy father, the Pope, that curses even in the tomb that soul lost by a step so rash? See you not already our blessed Virgin, and all the saints of Heaven, turn from you their glorious faces, and refuse to look on one who has despised them, and set them at nought by a deed so unholy? Feel you not already the torture of that punishment to which the Heretic, and the aider and abettor of the Heretic, are eternally

condemned? Have I deceived you when I said that you endanger the welfare of your own immortal soul?"

"But you err, madam," said her miserable son, shuddering at the picture thus placed before him, to work upon his mind in these last moments. "Henry is become a good and fervent Catholic."

"All is ready for his abjuration at the moment of your death," continued the Queen-mother. "To resume a powerful party among the Huguenots, he will renounce our religion. My son—my son—pause, reflect, before you thus sacrifice your own salvation, and throw your unhappy country beneath the Papal ban."

"Heaven aid me!" cried the miserable Charles. "On all sides darkness and despair, in this world and the next."

"Heaven shall aid you, my son," pursued his wily mother, "if you but trust the guidance of your kingdom to such hands as shall maintain it in the true religion. The paper that resigns your country to the hands of a regent, lies, I see, before you. Can you hesitate? Can you a moment doubt? Whose name should fill that space, where but just now you would have written the traitorous name of Henry of Navarre?"

"God guide my unhappy France!" sighed the king, turning his face away and closing his eyes. "In His hands I leave it."

Catherine smiled with a look of scorn, and then picking up the pen, which had fallen by the bedside, calmly fetched some ink from the table, and attempted to place the pen in her son's hand.

Before her purpose could be fulfilled, a noise was heard in the outer room. The voice of a woman clamoured loudly for admittance. Charles heard that voice, opened his eyes, and attempted to raise his head.

"Ah, it is she!" he cried, with choking voice. "At last!—at last! Let her come in."

Catherine de Medicis rose, for the purpose, probably, of opposing the order of her son; but before she could reach the door, an old woman, simply attired, and of a strange appearance and expression, had entered the room.

"What means this intrusion, and at such a moment?" exclaimed the Queen-mother.

"Perrotte!" stammered Charles. "Ah! thou art come at last to console and to forgive me."

Catherine clenched her teeth tightly together with rage; but she no longer attempted to oppose the entrance of the old woman.

The old Huguenot nurse advanced with solemn step into the room, and with a stern and troubled brow; but, on a sudden, a host of recollections seemed to crowd upon her mind at the sight of that emaciated form, and, hurrying to the side of the king, she flung herself down upon the couch and sobbed bitterly.

"Perrotte—my darling old Perrotte!" sobbed forth the dying king. "Art thou come then at last to thy poor nursling? Thou wast a mother to me, and yet thou couldst desert thy poor boy; but he deserved his lot. Perrotte! Perrotte! Thou knowest not what I have suffered since thou hast left me."

"My son," said Catherine, advancing, "is this a moment to bestow your tenderness upon a miserable woman like this? Greet her if you will, but bid her leave us."

"She was a mother to me—she"——continued Charles unheeding her, and, drawing forth his emaciated hand from beneath the coverlid, he held it forth towards the old woman, who lay stretched across his feet.

"Charlot," said the old woman, raising up her head with a haggard look, "they told me that thou wast dying; and I forgot all—all that thou hast done of evil—to see thee once more—to hear the words of repentance from thy own lips—to console and guide. They would have opposed my coming. They had placed guards about my door; but my Jocelyne, my grandchild, found means to lure them from their post, and I escaped them. I had promised her—what had I promised her? Oh, my poor Charlot! my brain wanders strangely at times. No matter. Here, in your palace of the Louvre, too, they would have shut the doors to me; but they knew you loved me, Charlot, and they dared not refuse my supplications. Oh my boy, my boy, that I should see you thus!"

"Perrotte! hast thou forgiven me?" said the king with a violent effort, for his breath was now fast failing him. His mother watched the scene with folded arms and haughty mien. Each ebbing of the breath brought her nearer to her much-desired power.

"Hast thou forgiven me?" sobbed the king.

"May God forgive the injuries thou hast done to others, as I now forgive thee on thy bed of suffering, those thou hast done to mine," said the old woman solemnly; and rising from her recumbent position, she advanced to the head of the couch, and took the dying man in her arms, as it were an infant she clasped to her bosom.

"And how can I repay thee, mother?" said Charles to his nurse; "speak quickly, for my moments are but few!"

"By thy repentance, my poor son," replied the Huguenot woman earnestly. "There is still time to repair thy errors. If thy remorse has reconciled thee to thy God, let thy last act reconcile thee to thy injured fellow-creatures. Ay! it is of that I would have spoken. That was my promise. Let thy last act of government as King, depute thy power into the hands of him who alone can pacify the unhappy religious discords of thy state, and thus thou mayst still save the life of the innocent and unjustly condemned."

"Woman! do you dare even in my presence?" said Catherine advancing.

"Silence, madam. I have heard you," interrupted her son: "let me now hear her who has been my real mother."

"My son, can you listen to the vile insinuations of an accursed heretic? Think on your soul," cried Catherine.

"Yea, think on thy soul, my son," said Perrotte solemnly, "and earn its salvation by thy repentance."

"Let that woman be dragged from our presence, who thus dares to utter treason and blasphemy in our face," exclaimed the Queen-mother, forgetting her forbearance in her wrath.

"My son, my son! Let peace and pardon await thee," urged the old Huguenot nurse, her face growing more wild with the excitement of the

moment.

"Madam," said Charles faintly to the Queen-mother, "would you shorten the few moments still accorded to me of life? Perrotte, give me that pen, guide my hand to that paper. Quickly, as thou lovedst me, woman!"

"Never," exclaimed Catherine, violently grasping the arm of her dying son, as it approached the paper.

Charles raised his head to speak to her; but his emotions were too violent for his feeble frame. His lips quivered; the blood rose to his mouth, and choked his utterance. He fell back on his pillow, whilst a hollow rattling sounded in his throat; the pen remained between his powerless fingers.

"Ah! he is no more! he is dead!" screamed the nurse in despair, and she flung herself upon the bed.

"No—no," said the Queen-mother to herself. "There is still life. My son! Son," she continued aloud, "give me thy hand. If thou wilt sign that paper—be it signed." And grasping his hand, she conducted it to the place of signature on the paper. Mechanically the fingers followed the impulse she bestowed upon them. But four letters only of the name of Charles had been traced, when Catherine uttered a fearful scream. A rough hand had grasped her own, and lacerated its skin. The first thought of her superstitious mind was, that the arch-fiend himself had risen up in bodily form before her. On to the bed had sprung the ape; with a movement of detestation to the Queen-mother, which the animal had always evinced, when she approached its master; it bit the hand that held that of the dying king.

Catherine drew back with another cry, but after a moment she again advanced her hand to grasp that of her son. When she took it within her own it was utterly motionless; but, nothing daunted in her purpose, she again fixed the pen between the dead fingers, and thus guiding them, contrived to trace the three remaining letters, regardless of the stream of blood, which, trickling from her wounded hand, besmeared that fatal signature. Then letting fall the dead man's hand, she wrote her own name firmly into the blank space.

The Huguenot woman, aroused by her scream, had gazed upon the daring deed with horror.

For a moment not a sound was heard.

On one side of the corpse knelt the nurse, who had loved so well that erring man. On the other stood the Queen-mother, trembling in spite of her cold and dauntless nature. At the bed's head sat the hideous ape, grinning a fearful grin, as it were the evil spirit that had arisen to claim the lost soul of him who had thus passed away.

"Charles the King is dead," exclaimed the Queen-mother, "and Catherine de Medicis is Regent of the Realm!"

"It is false! That signature is a forgery," cried Perrotte, starting up, her eyes staring before her with all the expression of the deranged in mind. "I saw it done. To the world I will proclaim that—that Catherine de Medicis is a false Queen, and a usurping Regent."

Catherine smiled a smile of scorn; and advancing to the door of the outer room, she flung it open with the words.

"The King is dead!"

"The King, is dead!" was repeated along the corridors of the Louvre.

A pause ensued.

"The King is dead! Long live the King, Henry the Third of France!" again said Catherine.

"Long live the King!" was once more shouted from mouth to mouth.

"Gentlemen, his Majesty has been pleased, before his death, to sign a warrant appointing his mother Regent of France," announced Catherine once more to those assembled without.

"Long live the Queen Regent," was the cry which announced to many an anxious heart of the various parties in the State, that the reign of the dreaded Queen-mother had commenced.

"Let some of those without advance and seize that woman!" was the first order of the Regent. "Heed not her words! She is mad!"

Catherine of Medicis spoke with greater truth than she herself believed. The shock of that scene of death, and strife, and evil passions, had again turned the old woman's brain.

CONCLUSION.

One of the first acts of the Regency of Catherine de Medicis, was to give directions for the hastening the trial of La Mole, upon the charge of sorcery against the life of the late King. Although, with the Regency in her power, and in daily expectation of the return from Poland of her favourite son, whose weak and pliant mind she was aware she could bend to her own will in every thing, and thus have the whole power of the government within her own grasp, yet she still pursued her vengeance against the man who, in conspiring to place another of her sons upon the throne, had thwarted her designs. The wax figure formed by Ruggieri, who himself was fully screened by the Queen-mother, was made to form a prominent feature in this celebrated trial; and it is well known that the unfortunate La Mole fell a victim to an ambition, which, in the confused and distracted state of affairs at the time, could scarcely have been looked upon as a crime.

Among those who thronged to witness his execution was one, whose thread of life was nearly torn asunder by the blow of that axe which severed the beloved head from the trunk. Poor Jocelyne only recovered from the state of insensibility into which she fell, to linger on a few months of a wretched existence, during which she never spoke. Her heart was broken. The King's nurse was conveyed by the order of the Queen Regent to a place of security; but as soon as it was known that her senses were really lost, she was allowed to be taken back to her own home. Jocelyne's only thought for the living before her own death, was concentrated in her grandmother; when her bright spirit fled, it was Alayn who performed the mournful task of care for the welfare of the miserable old woman.

Henry of Anjou returned from Poland to claim his Crown; and, as Henry the Third of France, he filled the country with the scandals of that folly, licentiousness, and weakness of mind, which were fostered by his mother, Catherine de Medicis, in order to retain the power she coveted, completely within her own grasp.

Upon the assumption of the Regency, Henry of Navarre contrived to fly, in spite of the plans laid to entrap him by the Queen-mother, to his own country; his wife Margaret accompanied him to his solitude; and paid the penalty of her lightness of conduct at the court of France, in sorrow and ennui.

Despised and rejected by all parties, the weak Duke of Alençon, after a vain and abortive attempt to raise himself into a position of greater distinction, as the husband of Elizabeth of England, in whose eyes he found no grace or favour, died early, unlamented, and speedily forgotten.

A CAMPAIGN IN TEXAS.^[G]

"A meeting of citizens"—so ran the announcement that, on the morning of the 11th October 1835, was seen posted, in letters a foot high, at the corner of every street in New Orleans—"a meeting of citizens this evening, at eight o'clock, in the Arcade Coffeehouse. It concerns the freedom and sovereignty of a people in whose veins the blood of the Anglo-Saxon flows. Texas, the prairie-land, has risen in arms against the tyrant Santa Anna, and the greedy despotism of the Romish priesthood, and implores the assistance of the citizens of the Union. We have therefore convoked an assembly of the inhabitants of this city, and trust to see it numerously attended.

"The Committee for Texas."

The extensive and fertile province of Texas had, up to the period of Mexico's separation from Spain, been utterly neglected. Situated at the north-eastern extremity of the vast Mexican empire, and exposed to the incursions of the Comanches, and other warlike tribes, it contained but a scanty population of six thousand souls, who, for safety's sake, collected together in a few towns, and fortified mission-houses, and even there were compelled to purchase security by tribute to the Indians. It was but a very short time before the outbreak of the Mexican revolution, that the Spaniards began to turn their attention to Texas, and to encourage emigration from the United States. The rich soil, the abundance of game, the excellence of the climate, were irresistible inducements; and soon hundreds of hardy backwoodsmen crossed the Sabine, with their families and worldly goods, and commenced the work of colonization. Between the iron-fisted Yankees and the indolent cowardly Mexicans, the Indian marauders speedily discovered the difference; instead of tribute and unlimited submission, they were now received with rifle-bullets and stern resistance; gradually they ceased their aggressions, and Texas became comparatively a secure residence.

The Mexican revolution broke out and triumphed, and at first the policy of the new government was favourable to the Americans in Texas, whose numbers each day increased. But after a time several laws, odious and onerous to the settlers, were passed; and various disputes and partial

combats with the Mexican garrisons occurred. When Santa Anna put himself at the head of the liberal party in Mexico, the Texians gladly raised his banner; but they soon discovered that the change was to prove of little advantage to them. Santa Anna's government showed a greater jealousy of the American settlers than any previous one had done; their prayer, that the province they had colonized might be erected into a state of the Mexican union, was utterly disregarded, and its bearer, Stephen F. Austin, detained in prison at Mexico; various citizens were causelessly arrested, and numerous other acts of injustice committed. At last, in the summer of 1835, Austin procured his release, and returned to Texas, where he was joyfully received by the aggrieved colonists. Presently arrived large bodies of troops, under the Mexican general, Cos, destined to strengthen the Texian garrisons; and at the same time came a number of ordinances, as ridiculous as they were unjust. One of these ordered the Texians to give up their arms, only retaining one gun for every five plantations; another forbade the building of churches. The tyranny of such edicts, and the positive cruelty of the first-named, in a country surrounded by tribes of Indian robbers, are too evident to require comment. The Texians, although they were but twenty-seven thousand against eight millions, at once resolved to resist; and to do so with greater effect, they sent deputies to the United States, to crave assistance in the struggle about to commence.

The summons of the Texian committee of New Orleans to their fellow-citizens was enthusiastically responded to. At the appointed hour, the immense Arcade Coffeehouse was thronged to the roof, speeches in favour of Texian liberty were made and applauded to the echo; and two lists were opened—one for subscriptions, the other for the names of those who were willing to lend the aid of their arms to their oppressed fellow-countrymen. Before the meeting separated, ten thousand dollars were subscribed, and on the following afternoon, the steamer Washita ascended the Mississippi with the first company of volunteers. These had ransacked the tailors' shops for grey clothing, such being the colour best suited to the prairie, and thence they received the name of "The Greys;" their arms were rifles, pistols, and the far-famed bowie-knife. The day after their departure, a second company of Greys set sail, but went round by sea to the Texian coast; and the third instalment of these ready volunteers was the company of Tampico Blues, who took ship for the port of Tampico. The three companies consisted of

Americans, English, French, and several Germans. Six of the latter nation were to be found in the ranks of the Greys; and one of them, a Prussian, of the name of Ehrenberg, who appears to have been for some time an inhabitant of the United States, and to be well acquainted with the country, its people, their language and peculiarities, survived, in one instance by a seeming miracle, the many desperate fights and bloody massacres that occurred during the short but severe conflict for Texian independence, in which nearly the whole of his comrades were slain. He has recently published an account of the campaign; and his narrative, highly characteristic and circumstantial, derives a peculiar interest from his details of the defeats suffered by the Texians, before they could succeed in shaking off the Mexican yoke. Of their victories, and especially of the crowning one at San Jacinto, various accounts have already appeared; but the history of their reverses, although not less interesting, is far less known; for the simple reason, that the Mexicans gave no quarter to those whom they styled rebels, and that the defeat of a body of Texians was almost invariably followed by its extermination.

Great was the enthusiasm, and joyful the welcome, with which the Texian colonists received the first company of volunteers, when, under the command of Captain Breece, they landed from their steamboat upon the southern bank of the river Sabine. No sooner had they set foot on shore, than a flag of blue silk, embroidered with the words, "To the first company of Texian volunteers from New Orleans," was presented to them in the name of the women of Texas; the qualification of Texian citizens was conferred upon them; every house was placed at their disposal for quarters; and banquets innumerable were prepared in their honour. But the moment was critical—time was too precious to be expended in feasts and merry-making, and they pressed onwards. A two days' march brought them to San Augustin, two more to Nacoydoches, and thence, after a short pause, they set out on their journey of five hundred miles to St Antonio, where they expected first to burn powder. Nor were they deceived in their expectations. They found the Texian militia encamped before the town, which, as well as its adjacent fort of the Alamo, was held by the Mexicans, the Texians were besieging it in the best manner their imperfect means and small numbers would permit. An amusing account is given by Mr Ehrenberg of the camp and proceedings of the besieging force:—

We had arrived late in the night, and at sunrise a spectacle offered itself to us, totally different from any thing we had ever before beheld. To our left flowed the river St Antonio, which, although it rises but a few miles from the town of the same name, is already, on reaching the latter, six or eight feet deep, and eighteen or twenty yards broad. It here describes a curve, enclosing a sort of promontory or peninsula, at the commencement of which, upstream, the Texian camp was pitched. At the opposite or lower extremity, but also on the right bank of the river, was the ancient town of St Antonio, hidden from the camp by the thick wood that fringes the banks of all Texian streams. Between us and the town was a maize-field, a mile long, and at that time lying fallow; opposite to the field, on the left bank, and only separated from the town by the river, stood the Alamo, the principal fortress of the province of Texas. The camp itself extended over a space half a mile in length, surrounded by maize-fields and prairie, the latter sprinkled with muskeet thickets, and with groups of gigantic cactuses; in the high grass between which the horses and oxen of our troops were peaceably grazing. On entering the adjacent fields, the air was instantly darkened by millions of blackbirds, which rose like a cloud from the ground, described a few circles, and then again settled, to seek their food upon the earth. In one field, which had been used as a place of slaughter for the cattle, whole troops of vultures, of various kinds, were stalling about amongst the offal, or sitting, with open beaks and wings outspread, upon the dry branches of the neighbouring pecan-trees, warming themselves in the sunbeams, no bad type of the Mexicans; whilst here and there, a solitary wolf or prairie dog prowled amongst the heads, hides, and entrails of the slaughtered beasts, taking his breakfast as deliberately as his human neighbours. The *reveillé* had sounded, and the morning gun been fired from the Alamo, when presently the drum beat to summon the various companies to roll-call; and the men were seen emerging from their tents and huts. It will give some idea of the internal organization of the Texian army, if I record the proceedings of the company that lay opposite to us, the soldiers composing which were disturbed by the tap of the drum in the agreeable occupation of cooking their breakfast. This consisted of pieces of beef, which they roasted at the fire on small wooden spits. Soon a row of these warriors, some only half-dressed, stood before the sergeant, who, with the roll of the company in his hand, was waiting their appearance; they were without their rifles, instead of which, most of them carried a bowie-knife in one hand, and a

skewer, transfixing a lump of smoking meat, in the other. Several did not think proper to obey the summons at all, their roast not being yet in a state that permitted them to leave it. At last the sergeant began to call the names, which were answered to alternately from the ranks or from some neighbouring fire, and once a sleepy "here!" proceeding from under the canvass of a tent, caused a hearty laugh amongst the men, and made the sergeant look sulky, although he passed it over as if it were no unusual occurrence. When all the names had been called, he had no occasion to dismiss his men, for each of them, after answering, had returned to the fire and his breakfast.

We Greys, particularly the Europeans, looked at each other, greatly amused by this specimen of Texian military discipline. We ourselves, it is true, up to this time, had never even had the roll called, but had been accustomed, as soon as the *reveillé* sounded, to get our breakfast, and then set forward in a body, or by twos and threes, trotting, walking, or galloping, as best pleased us. Only in one respect were we very particular; namely, that the quartermaster and two or three men, should start an hour before us, to warn the inhabitants of our approach, and get food and quarters ready for our arrival. If we did not find every thing prepared, and that it was the quartermaster's fault, he was reduced to the ranks, as were also any of the other officers who misbehaved themselves. I must observe, however, that we were never obliged to break either of our captains; for both Breece of ours, and Captain Cook of the other company of Greys, made themselves invariably beloved and respected. Cook has since risen to the rank of major-general, and is, or was the other day, quartermaster-general of the republic of Texas.

Towards nine o'clock, a party crossed the field between our camp and the town, to reinforce a small redoubt erected by Cook's Greys, and provided with two cannon, which were continually thundering against the Alamo, and from time to time knocking down a fragment of wall. The whole affair seemed like a party of pleasure, and every telling shot was hailed with shouts of applause. Meanwhile, the enemy were not idle, but kept up a fire from eight or nine pieces, directed against the redoubt, the balls and canister ploughing up the ground in every direction, and driving clouds of dust towards the camp. It was no joke to get over the six or eight hundred yards that intervened between the latter and the redoubt, for there was scarcely

any cover, and the Mexican artillery was far better served than ours. Nevertheless, the desire to obtain a full view of the Alamo, which, from the redoubt, presented an imposing appearance, induced eight men, including myself, to take a start across the field. It seemed as if the enemy had pointed at us every gun in the fort; the bullets fell around us like hail, and for a moment the blasting tempest compelled us to take refuge behind a pecan-tree. Here we stared at each other, and laughed heartily at the absurd figure we cut, standing, eight men deep, behind a nut-tree, whilst our comrades, both in the camp and the redoubt, shouted with laughter at every discharge that rattled amongst the branches over our heads.

"This is what you call making war," said one of our party, Thomas Camp by name.

"And that," said another, as a whole swarm of iron musquitos buzzed by him, "is what we Americans call variations on Yankee Doodle."

Just then there was a tremendous crash amongst the branches, and we dashed out from our cover, and across to the redoubt, only just in time; for the next moment the ground on which we had been standing was strewn with the heavy boughs of the pecan-tree.

All was life and bustle in the little redoubt; the men were standing round the guns, talking and joking, and taking it by turns to have a shot at the old walls. Before firing, each man was compelled to name his mark, and say what part of the Alamo he meant to demolish, and then bets were made as to his success or failure.

"A hundred rifle-bullets to twenty," cried one man, "that I hit between the third and fourth window of the barracks."

"Done!" cried half a dozen voices. The shot was fired, and the clumsy artilleryman had to cast bullets all next day.

"My pistols—the best in camp, by the by"—exclaimed another aspirant, "against the worst in the redoubt."

"Well, sir, I reckon I may venture," said a hard-featured backwoodsman in a green hunting-shirt, whose pistols, if not quite so good as those wagered, were at any rate the next best. Away flew the ball, and the pistols of the

unlucky marksman were transferred to Green-shirt, who generously drew forth his own, and handed them to the loser.

"Well, comrade, s'pose I must give you yer revenge. If I don't hit, you'll have your pistols back again."

The cannon was reloaded, and the backwoodsman squinted along it, as if it had been his own rifle, his features twisted up into a mathematical calculation, and his right hand describing in the air all manner of geometrical figures. At last he was ready; one more squint along the gun, the match was applied, and the explosion took place. The rattle of the stones warned us that the ball had taken effect. When the smoke cleared away, we looked in vain for the third and fourth windows, and a tremendous hurra burst forth for old Deaf Smith, as he was called, for the bravest Texian who ever hunted across a prairie, and who subsequently, with a small corps of observation, did such good service on the Mexican frontier between Nueces and the Rio Grande.

The restless and impetuous Yankee volunteers were not long in finding opportunities of distinction. Some Mexican sharpshooters having come down to the opposite side of the river, whence they fired into the redoubt, were repelled by a handful of the Greys, who then, carried away by their enthusiasm, drove in the enemy's outposts, and entered the suburbs of the town. They got too far, and were in imminent risk of being overpowered by superior numbers, when Deaf Smith came to their rescue with a party of their comrades. Several days passed away in skirmishing, without any decisive assault being made upon the town or fort. The majority of the men were for attacking; but some of the leaders opposed it, and wished to retire into winter quarters in rear of the Guadalupe river, wait for further reinforcements from the States, and then, in the spring, again advance, and carry St Antonio by a *coup de main*. To an army, in whose ranks subordination and discipline were scarcely known, and where every man thought his opinion as worthy to be listened to as that of the general, a difference of opinion was destruction. The Texian militia, disgusted with their leader, Burleson, retreated in straggling parties across the Guadalupe; about four hundred men, consisting chiefly of the volunteers from New Orleans and the Mississippi, remained behind, besieging St Antonio, of which the garrison was nearly two thousand strong. The four hundred

melted away, little by little, to two hundred and ten; but these held good, and resolved to attack the town. They did so, and took it, house by house, with small loss to themselves, and a heavy one to the Mexicans. On the sixth day, the garrison of the Alamo, which was commanded by General Cos, and which the deadly Texian rifles had reduced to little more than half its original numbers, capitulated. After laying down their arms, they were allowed to retire beyond the Rio Grande. Forty-eight pieces of cannon, four thousand muskets, and a quantity of military stores, fell into the hands of the Texians, whose total loss amounted to six men dead, and twenty-nine wounded.

After two or three weeks' sojourn at St Antonio, it was determined to advance upon Matamoras; and on the 30th December the volunteers set out, leaving a small detachment to garrison the Alamo. The advancing column was commanded by Colonel Johnson; but its real leader, although he declined accepting a definite command, was Colonel Grant, a Scotchman, who had formerly held a commission in a Highland regiment, but had now been for many years resident in Mexico. On reaching the little fort of Goliad, near the town of La Bahia, which had a short time previously been taken by a few Texians under Demmit, they halted, intending to wait for reinforcements. A company of Kentuckians, and some other small parties, joined them, making up their strength to about six hundred men; but they were still obliged to wait for ammunition, and as the troops began to get impatient, their leaders marched them to Refugio, a small town and ruinous fort, about thirty miles further on. Here, in the latter days of January 1836, General Houston, commander-in-chief of the Texian forces, suddenly and unexpectedly appeared amongst them. He assembled the troops, harangued them, and deprecated the proposed expedition to Matamoras as useless, that town being without the proposed limits of the republic. Nevertheless, so great was the impatience of inaction, that two detachments, together about seventy men, marched by different roads towards the Rio Grande, under command of Grant and Johnson. Their example might probably have been followed by others, had not the arrival of some strong reinforcements from the United States caused various changes in the plan of campaign. The fresh troops consisted of Colonel Fanning's free corps, the Georgia battalion under Major Ward, and the Red Rovers, from Alabama, under Doctor Shackelford. Fanning's and Ward's men, and the Greys, retired to Goliad,

and set actively to work to improve and strengthen the fortifications; whilst Colonel Grant, whose chief failing appears to have been over-confidence, continued with a handful of followers his advance to the Rio Grande, promising at least to bring back a supply of horses for the use of the army.

On the 5th of March, the garrison of Goliad received intelligence of the declaration of Texian independence, and of the appointment of a government, with Burnet as president, and Lorenzo de Zavala, a Mexican, as vice-president. At the same time, came orders from General Houston to destroy the forts of Goliad and the Alamo, and retreat immediately behind the Guadalupe. Santa Anna, with twelve thousand men, was advancing, by rapid marches, towards Texas. The order reached the Alamo too late, for the little garrison of a hundred and eighty men was already hemmed in, on all sides, by several thousand Mexicans, and had sent messengers, imploring assistance, to Fanning at Goliad, and to Houston, who was then stationed with five hundred militia at Gonzales, high up on the Guadalupe. A second despatch from General Houston gave Fanning the option of retiring behind the Guadalupe; or, if his men wished it, of marching to the relief of the Alamo, in which latter case he was to join Houston and his troops at Seguin's Rancho, about forty miles from St Antonio. Fanning, however, who, although a man of brilliant and distinguished courage, seems to have been an undecided and wrongheaded officer, did neither, but preferred to wait for the enemy within the walls of Goliad. In vain did a majority of his men, and especially the Greys, urge him to march to the rescue of their comrades; he positively refused to do so, although each day witnessed the arrival of fresh couriers from St Antonio, imploring succour.

One morning three men belonging to the small detachment which, under Colonel Grant, had gone upon the mad expedition to the Rio Grande, arrived at Goliad with news of the destruction of their companions. Only thirty in number, they had collected four hundred fine horses, and were driving them northward to rejoin their friends, when, in a narrow pass between thickets, they were suddenly surrounded by several hundred of the enemy's lancers, whose attack, however, seemed directed rather against the horses than the escort. Grant, whose courage was blind, and who had already witnessed many instances of the almost incredible poltroonery of those half-Indians, drew his sword, and charged the Mexicans, who were at least ten times his strength. A discharge of rifles and pistols stretched scores

of the lancers upon the ground; but that discharge made, there was no time to reload, and the Texians had to defend themselves as best they might, with their bowie-knives and rifle-buts, against the lances of the foe, with the certainty that any of them who fell wounded from their saddles, would instantly be crushed and mangled under the feet of the wild horses, which, terrified by the firing and conflict, tore madly about the narrow field. Each moment the numbers of the Texians diminished, one after the other disappeared, transfixed by the lances, trampled by the hoofs. Colonel Grant and three men—those who brought the news to Goliad—had reached the outskirt of the *mêlée*, and might at once have taken to flight; but Grant perceived some others of his men still fighting heroically amongst the mass of Mexicans, and once more he charged in to rescue them. Every thing gave way before him, his broadsword whistled around him, and man after man fell beneath its stroke. His three followers having reloaded, were rushing forward to his support, when suddenly the fatal lasso flew through the air, its coils surrounded the body of the gallant Scot, and the next instant he lay upon the ground beneath the feet of the foaming and furious horses. In horrorstruck silence, the three survivors turned their horses' heads north-east, and fled from the scene of slaughter.

Besides this disaster, numerous detachments of Texians were cut off by the Mexicans, who now swarmed over the southern part of the province. Colonel Johnson and his party were surprised in the town of San Patricio and cut to pieces, Johnson and four of his followers being all that escaped. Thirty men under Captain King, who had been sent by Fanning to escort some settlers on their way northwards, were attacked by overpowering numbers, and, after a most desperate defence, utterly exterminated. The Georgia battalion under Major Ward, which had marched from Goliad to the assistance of King and his party, fell in with a large body of Mexican cavalry and infantry, and although, during the darkness, they managed to escape, they lost their way in the prairie, were unable to return to Goliad, and subsequently, as will hereafter be seen, fell into the hands of the enemy. The Alamo itself was taken, not a man surviving of the one hundred and eighty who had so valiantly defended it. On the other hand, we have Mr Ehrenberg's assurance that its capture cost Santa Anna two thousand two hundred men. In the ranks of the besieging army were between two and three thousand convicts, who, on all occasions, were put in the post of

danger. At the attack on the Alamo they were promised a free pardon if they took the place. Nevertheless, they advanced reluctantly enough to the attack, and twice, when they saw their ranks mown down by the fire of the Texians, they turned to fly, but each time they were driven back to the charge by the bayonets and artillery of their countrymen. At last, when the greater part of these unfortunates had fallen, Santa Anna caused his fresh troops to advance, and the place was taken. The two last of the garrison fell by the Mexican bullets as they were rushing, torch in hand, to fire the powder magazine. The fall of the Alamo was announced to Colonel Fanning in a letter from Houston.

"The next point of the enemy's operations," said the old general, "will be Goliad, and let the garrison reflect on the immensity of the force that within a very few days will surround its walls. I conjure them to make a speedy retreat, and to join the militia behind the Guadalupe. Only by a concentration of our forces can we hope to achieve any thing; and if Goliad is besieged, it will be impossible for me to succour it, or to stake the fate of the republic upon a battle in the prairie, where the ground is so unfavourable to our troops. Once more, therefore, Colonel Fanning—in rear of the Guadalupe!"

At last, but unfortunately too late, Fanning decided to obey the orders of his general. The affairs of the republic of Texas were indeed in a most critical and unfavourable state. St Antonio taken, the army of volunteers nearly annihilated, eight or ten thousand Mexican troops in the country, for the garrison of Goliad no chance of relief in case of a siege, and, moreover, a scanty store of provisions. These were the weighty grounds which finally induced Fanning to evacuate and destroy Goliad. The history of the retreat will be best given in a condensed translation of the interesting narrative now before us.

On the 18th April 1836, says Mr Ehrenberg, at eight in the morning, we commenced our retreat from the demolished and still burning fort of Goliad. The fortifications, at which we had all worked with so much zeal, a heap of dried beef, to prepare which nearly seven hundred oxen had been slaughtered, and the remainder of our wheat and maize flour, had been set on fire, and were sending up black columns of smoke towards the clouded heavens. Nothing was to be seen of the enemy, although their scouts had for

some days previously been observed in the west, towards St Antonio. All the artillery, with the exception of two long four-pounders and a couple of mortars, were spiked and left behind us. But the number of store and ammunition waggons with which we started was too great, and our means of drawing them inadequate, so that, before we had gone half a mile, our track was marked by objects of various kinds scattered about the road, and several carts had broken down or been left behind. At a mile from Goliad, on the picturesque banks of the St Antonio, the remainder of the baggage was abandoned or hastily thrown into the river, chests full of cartridges, the soldiers' effects, every thing, in short, was committed to the transparent waters; and having harnessed the oxen and draught horses to the artillery and to two ammunition waggons, we slowly continued the march, our foes still remaining invisible.

Our road lay through one of those enchanting landscapes, composed of small prairies, intersected by strips of oak and underwood. On all sides droves of oxen were feeding in the high grass, herds of wild-eyed deer gazed wonderingly at the army that thus intruded upon the solitary prairies of the west, and troops of horses dashed madly away upon our approach, the thunder of their hoofs continuing to be audible long after their disappearance. At eight miles from Goliad begins an extensive and treeless prairie, known as the Nine-mile Prairie; and across this, towards three in the afternoon, we had advanced about four or five miles. Myself and some of my comrades, who acted as rearguard, were about two miles behind, and had received orders to keep a sharp eye upon the forest, which lay at a considerable distance to our left; but as up to this time no signs of an enemy had been visible, we were riding along in full security, when, upon casually turning our heads, we perceived, about four miles off, at the edge of the wood, a something that resembled a man on horseback. But as the thing, whatever it was, did not appear to move, we decided that it must be a tree or some other inanimate object, and we rode on without taking further notice. We proceeded in this way for about a quarter of an hour, and then, the main body being only about a quarter of a mile before us, marching at a snail's pace, we halted to rest a little, and let our horses feed. Now, for the first time, as we gazed out over the seemingly boundless prairie, we perceived in our rear, and close to the wood, a long black line. At first we took it to be a herd of oxen which the settlers were driving eastward, to rescue them from

the Mexicans; but the dark mass drew rapidly nearer, became each moment more plainly discernible, and soon we could no longer doubt that a strong body of Mexican cavalry was following us at full gallop. We sprang upon our horses, and, at the top of their speed, hurried after our friends, to warn them of the approaching danger. Its intimation was received with a loud hurra; all was made ready for the fight, a square was formed, and in this manner we marched on, as fast as possible certainly, but that was slowly enough. Fanning, our commander, was unquestionably a brave and daring soldier, but unfortunately he was by no means fitted for the post he held, or indeed for any undivided command. As a proof of this, instead of endeavouring to reach the nearest wood, hardly a mile off, and sheltered in which our Texian and American riflemen would have been found invincible, he resolved to give battle upon the open and unfavourable ground that we now occupied.

The Mexicans came up at a furious gallop to a distance of five or six hundred paces, and thence gave us a volley from their carbines, of which we took no notice, seeing that the bullets flew at a respectful height above our heads, or else fell whistling upon the earth before us, without even raising the dust. One only of the harmless things passed between me and my right hand man, and tore off part of the cap of my friend, Thomas Camp, who, after myself, was the youngest man in the army. We remained perfectly quiet, and waited for the enemy to come nearer, which he did, firing volley after volley. Our artillery officers, for the most part Poles, tall, handsome men, calmly waited the opportune moment to return the fire. It came; the ranks opened, and the artillery vomited death and destruction amongst the Mexicans, whose ill-broken horses recoiled in dismay and confusion from the flash and thunders of the guns. The effect of our fire was frightful, steeds and riders lay convulsed and dying upon the ground, and for a time the advance of the enemy was checked. We profited by this to continue our retreat, but had marched a very short distance before we were again threatened with a charge, and Fanning commanded a halt. It was pointed out to him that another body of the enemy was advancing upon our left, to cut us off from the wood, and that those who had already attacked us were merely sent to divert our attention whilst the manœuvre was executed. But Fanning either did not see the danger, or he was vexed that another should be more quicksighted than himself, for he would not retract his

order. At last, after much vain discussion, and after representing to him how necessary it was to gain the wood, the Greys declared that they would march thither alone. But it was too late. The enemy had already cut us off from it, and there was nothing left but to fight our way through them, or give battle where we stood. Fanning was for the latter course; and before the captains, who had formed a council of war, could come to a decision, the Mexican trumpets sounded the charge, and with shout and shot the cavalry bore down upon us, their wild cries, intended to frighten us, contrasting oddly with the silence and phlegm of our people, who stood waiting the opportunity to make the best use of their rifles. Again and again our artillery played havoc amongst the enemy, who, finding his cavalry so unsuccessful in its assaults, now brought up the infantry, in order to make a combined attack on all sides at once. Besides the Mexicans three hundred of their Indian allies, Lipans and Caranchuas, approached us on the left, stealing through the long grass, and, contemptible themselves, but formidable by their position, wounded several of our people almost before we perceived their proximity. A few discharges of canister soon rid us of these troublesome assailants.

Meanwhile the hostile infantry, who had now joined the cavalry, slowly advanced, keeping up a constant but irregular fire, which we replied to with our rifles. In a very short time we were surrounded by so dense a smoke that we were often compelled to pause and advance a little towards the enemy, before we could distinguish an object at which to aim. The whole prairie was covered with clouds of smoke, through which were seen the rapid flashes of the musketry, accompanied by the thunder of the artillery, the sharp clear crack of our rifles, and the occasional blare of the Mexican trumpets, encouraging to the fight. At that moment, I believe there was not a coward in the field; in the midst of such a tumult there was no time to think of self. We rushed on to meet the advancing foe, and many of us found ourselves standing firing in the very middle of his ranks. I myself was one of these. In the smoke and confusion I had got too far forward, and was too busy loading and firing, to perceive that I was in the midst of the Mexicans. As soon as I discovered my mistake, I hurried back to our own position, in all the greater haste, because the touchhole of my rifle had got stopped.

But things went badly with us; many of our people were killed, more, severely wounded; all our artillerymen, with the exception of one Pole, had fallen, and formed a wall of dead bodies round the guns; the battlefield was covered with dead and dying men and horses, with rifles and other weapons. Fanning himself had been thrice wounded. The third bullet had gone through two coats and through the pocket of his overalls, in which he had a silk handkerchief, and had entered the flesh, but, strange to say, without cutting through all the folds of the silk; so that when he drew out the handkerchief, the ball fell out of it, and he then for the first time felt the pain of the wound.

It was between five and six o'clock. In vain had the cavalry endeavoured to bring their horses against our ranks; each attempt had been rendered fruitless by the steady fire of our artillery and rifles, and at last they were obliged to retreat. The infantry also retired without waiting for orders, and our guns, which were now served by the Greys, sent a last greeting after them. Seven hundred Mexicans lay dead upon the field; but we also had lost a fifth part of our men, more than had ever fallen on the side of the Texians in any contest since the war began, always excepting the massacre at the Alamo. The enemy still kept near us, apparently disposed to wait till the next day, and then renew their attacks. Night came on, but brought us no repose; a fine rain began to fall, and spoiled the few rifles that were still in serviceable order. Each moment we expected an assault from the Mexicans, who had divided themselves into three detachments, of which one was posted in the direction of Goliad, another upon the road to Victoria, which was our road, and the third upon our left, equidistant from the other two, so as to form a triangle. Their signals showed us their position through the darkness. We saw that it was impossible to retreat unperceived and that our only plan was to spike the guns, abandon the wounded and artillery, put our rifles in as good order as might be, and cut our way through that body of Mexicans which held the road to Victoria. Once in the wood, we were safe, and all Santa Anna's regiments would have been insufficient to dislodge us. The Greys were of opinion that it was better to sacrifice a part than the whole, and to abandon the wounded, rather than place ourselves at the mercy of a foe in whose honour and humanity no trust could be reposed. But Fanning was of a different opinion. Whether his wounds—none of them, it is true, very severe—and the groans and complaints of the dying,

had rendered him irresolute, and shaken his well-tryed courage, or whether it was the hope that our vanguard, which had reached the wood before the Mexicans surrounded us, would return with a reinforcement from Victoria, only ten miles distant, and where, as it was falsely reported, six hundred militiamen were stationed, I cannot say; but he remained obstinate, and we vainly implored him to take advantage of the pitch-dark night, and retreat to the wood. He insisted upon waiting till eight o'clock the next morning, and if no assistance came to us by that time, we could cut our way, he said, in open day, through the ranks of our contemptible foe, and if we did not conquer, we could at least bravely die.

"Give way to my wishes, comrades," said he; "listen to the groans of our wounded brethren, whose lives may yet be saved by medical skill. Will the New Orleans' Greys, the first company who shouldered the rifle for Texian liberty, abandon their unfortunate comrades to a cruel death at the hands of our barbarous foes? Once more, friends, I implore you, wait till daybreak, and if no help is then at hand, it shall be as you please, and I will follow you."

In order to unstiffen my limbs, which were numbed by the wet and cold, I walked to and fro in our little camp, gazing out into the darkness. Not a star was visible, the night was gloomy and dismal, well calculated to crush all hope in our hearts. I stepped out of the encampment, and walked in the direction of the enemy. From time to time dark figures glided swiftly by within a short distance of me. They were the Indians, carrying away the bodies of the dead Mexicans, in order to conceal from us the extent of their loss. For hours I mournfully wandered about, and day was breaking when I returned to the camp. All were already astir. In silent expectation, we strained our eyes in the direction of the neighbouring wood, hoping each moment to see our friends burst out from its shelter; but as the light became stronger, all our hopes fled, and our previous doubts as to whether there really were any troops at Victoria, became confirmed. The Mexican artillery had come up during the night, and now appeared stationed with the detachment which cut us off from the wood.

It was seven o'clock; we had given up all hopes of succour, and had assembled together to deliberate on the best mode of attacking the Mexicans, when their artillery suddenly bellowed forth a morning

salutation, and the balls came roaring over and around us. These messengers hastened our decision, and we resolved at once to attack the troops upon the road with rifle and bowie-knife, and at all hazards and any loss to gain the wood. All were ready; even the wounded, those at least who were able to stand, made ready to accompany us, determined to die fighting, rather than be unresistingly butchered. Suddenly, and at the very moment that we were about to advance, the white flag, the symbol of peace, was raised upon the side of the Mexicans. Mistrusting their intentions, however, we were going to press forward, when Fanning's command checked us. He had conceived hopes of rescuing himself and his comrades, by means of an honourable capitulation, from the perilous position into which he could not but feel that his own obstinacy had brought them.

Three of the enemy's officers now approached our camp, two of them Mexican cavalry-men, the third a German who had got into favour with Santa Anna, and had risen to be colonel of artillery. He was, if I am not mistaken, a native of Mayence, and originally a carpenter, but having some talent for mathematics and architecture, he had entered the service of an English mining company, and been sent to Mexico. There Santa Anna employed him to build his well-known country-house of Mango do Clavo, and conceiving, from the manner in which the work was executed, a high opinion of the talent of the builder, he gave him a commission in the engineers, and in time made him colonel of artillery. This man, whose name was Holzinger, was the only one who spoke English of the three officers who came with the flag of truce; and as he spoke it very badly, a great deal of our conference took place in German, and was then retranslated into Spanish. After a long discussion, Fanning agreed to the following conditions: namely, that we should deliver up our arms, that our private property should be respected, and we ourselves sent to Corpano or Matamora, there to embark for New Orleans. So long as we were prisoners of war, we were to receive the same rations as the Mexican soldiers. On the other hand, we gave our word of honour not again to bear arms against the existing government of Mexico.

Whilst the three officers returned to General Urrea, who commanded the Mexican army, to procure the ratification of these conditions, we, the volunteers from New Orleans and Mobile, surrounded Fanning, highly dissatisfied at the course that had been adopted. "What!" was the cry, "is

this the way that Fanning keeps his promise—this his boasted courage? Has he forgotten the fate of our brothers, massacred at St Antonio? Does he not yet know our treacherous foes? In the Mexican tongue, to capitulate, means to die. Let us die then, but fighting for Texas and for liberty; and let the blood of hundreds of Mexicans mingle with our own. Perhaps, even though they be ten times as numerous, we may succeed in breaking through their ranks. Think of St Antonio, where we were two hundred and ten against two thousand, and yet we conquered. Why not again risk the combat?" But all our expostulations and reproaches were in vain. The majority were for a surrender, and we were compelled to give way and deliver up our weapons. Some of the Greys strode sullenly up and down the camp, casting furious glances at Fanning and those who had voted for the capitulation; others sat motionless, their eyes fixed upon the ground, envying the fate of those who had fallen in the fight. Despair was legibly written on the faces of many who but too well foresaw our fate. One man in particular, an American, of the name of Johnson, exhibited the most ungovernable fury. He sat grinding his teeth, and stamping upon the ground, and puffing forth volumes of smoke from his cigar, whilst he meditated, as presently appeared, a frightful plan of vengeance.

Stimulated by curiosity, a number of Mexicans now strolled over to our camp, and gazed shyly at the gloomy grey marksmen, as if they still feared them, even though unarmed. The beauty of the rifles which our people had given up, was also a subject of great wonder and admiration; and soon the camp became crowded with unwelcome visitors—their joy and astonishment at their triumph, contrasting with the despair and despondency of the prisoners. Suddenly a broad bright flame flashed through the morning fog, a tremendous explosion followed, and then all was again still, and the prairie strewn with wounded men. A cloud of smoke was crushed down by the heavy atmosphere upon the dark green plain; the horses of the Mexican officers reared wildly in the air, or, with bristling mane and streaming tail, galloped furiously away with their half-deafened riders. Numbers of persons had been thrown down by the shock, others had flung themselves upon the ground in consternation, and some moments elapsed before the cause of the explosion was ascertained. The powder magazine had disappeared—all but a small part of the carriage, around which lay a number of wounded, and, at about fifteen paces from it, a black object, in

which the form of a human being was scarcely recognisable, but which was still living, although unable to speak. Coal-black as a negro, and frightfully disfigured, it was impossible to distinguish the features of this unhappy wretch. Inquiry was made, the roll was called, and Johnson was found missing. Nobody had observed his proceedings, and the explosion may have been the result of an accident; but we entertained little doubt that he had formed a deliberate plan to kill himself and as many Mexicans as he could, and had chosen what he considered a favourable moment to set fire to the ammunition-waggon. As it happened, the cover was not fastened down, so that the principal force of the powder went upwards, and his terrible project was rendered in a great measure abortive.

Scarcely had the confusion caused by this incident subsided, and the fury of our foes been appeased, when the alarm was sounded in the opposite camp, and the Mexicans ran to their arms. The cause of this was soon explained. In the wood, which, could we have reached it, would have been our salvation, appeared our faithful vanguard, accompanied by all the militia they had been able to collect in so short a time—the whole commanded by Colonel Horton. False indeed had been the report, that six or eight hundred men were stationed at Victoria; including our vanguard, the gallant fellows who thus came to our assistance were but sixty in number.

"With what horror," said the brave Horton, subsequently, "did we perceive that we had arrived too late! We stood thunderstruck and uncertain what to do, when we were suddenly roused from our bewilderment by the sound of the Mexican trumpets. There was no time to lose, and our minds were speedily made up. Although Fanning had so far forgotten his duty as to surrender, ours was to save ourselves, for the sake of the republic. Now, more than ever, since all the volunteers were either killed or prisoners, had Texas need of our arms and rifles. We turned our horses, and galloped back to Victoria, whence we marched to join Houston at Gonzales."

The Mexicans lost no time in pursuing Horton and his people, but without success. The fugitives reached the thickly-wooded banks of the Guadalupe, and disappeared amongst intricacies through which the foe did not dare to follow them. Had the reinforcement arrived one half hour sooner, the bloody tragedy soon to be enacted would never have taken place.

The unfortunate Texian prisoners were now marched back to Goliad, and shut up in the church, which was thereby so crowded that scarcely a fourth of them were able to sit or crouch upon the ground. Luckily the interior of the building was thirty-five to forty feet high, or they would inevitably have been suffocated. Here they remained all night, parched with thirst; and it was not till eight in the morning that six of their number were permitted to fetch water from the river. In the evening they were again allowed water, but for two nights and days no other refreshment passed their lips. Strong pickets of troops, and guns loaded with grape, were stationed round their prison, ready to massacre them in case of an outbreak which it seemed the intention of the Mexicans to provoke. At last, on the evening of the second day, six ounces of raw beef were distributed to each man. This they had no means of cooking, save at two small fires, which they made of the wood-work of the church; and as the heat caused by these was unendurable to the closely packed multitude, the majority devoured their scanty ration raw. One more night was passed in this wretched state, and then the prisoners were removed to an open court within the walls of the fortress. This was a great improvement of their situation, but all that day no rations were given to them, and they began to buy food of the soldiers, giving for it what money they possessed; and when that was all gone, bartering their clothes, even to their shirts and trousers. So enormous, however, were the prices charged by the Mexicans, Mr Ehrenberg tells us, that one hungry man could easily eat at a meal ten dollars' worth of *tortillas* or maize-cakes. Not satisfied with this mode of extortion, the Mexican soldiers, who are born thieves, were constantly on the look-out to rob the unhappy prisoners of whatever clothing or property they had left.

On the fourth morning, three quarters of a pound of beef were given to each man; and whilst they were engaged in roasting it, there appeared to their great surprise a hundred and twenty fresh prisoners, being Major Ward's detachment, which had lost its way in the prairie, and, after wandering about for eight days, had heard of Fanning's capitulation, and surrendered on the same terms. Twenty-six of them, carpenters by trade, had been detained at Victoria by order of Colonel Holzinger, to assist in building bridges for the transport of the artillery across the river. On the seventh day came a hundred more prisoners, who had just landed at Copano from New York, under command of Colonel Miller, and had been captured by the

Mexican cavalry. The rations were still scanty, and given but at long intervals; and the starving Texians continued their system of barter, urged to it by the pangs of hunger, and by the Mexican soldiers, who told them that they were to be shot in a day or two, and might as well part with whatever they had left, in order to render their last hours more endurable. This cruel assurance, however, the prisoners did not believe. They were sanguine of a speedy return to the States, and impatiently waited the arrival of an order for their shipment from Santa Anna, who was then at St Antonio, and to whom news of the capitulation had been sent. General Urrea had marched from Goliad immediately after their surrender, only leaving sufficient troops to guard them, and had crossed the Guadalupe without opposition. Santa Anna's order at last came, but its purport was far different from the anticipated one. We resume our extracts from Mr Ehrenberg's narrative:—

The eighth morning of our captivity dawned, and so great were our sufferings, that we had resolved, if some change were not made in our condition, to free ourselves by force, or die in the attempt, when a rumour spread that a courier from Santa Anna had arrived during the night. This inspired us with fresh hopes, and we trusted that the hour of our deliverance at last approached. At eight o'clock in the morning an officer entered our place of confinement, carrying Santa Anna's order in his hand, of the contents of which, however, he told us nothing, except that we were immediately to march away from Goliad. Whether we were to go to Copano or Matamoras, we were not informed. We saw several pieces of cannon standing pointed against our enclosure, the artillerymen standing by them with lighted matches, and near them was drawn up a battalion of infantry, in parade uniform, but coarse and ragged enough. The infantry had no knapsacks or baggage of any kind; but at the time I do not believe that one of us remarked the circumstance, as the Mexican soldiers in general carry little or nothing. For our part, we required but a very short time to get ready for the march, and in a few minutes we were all drawn up, two deep, with the exception of Colonel Miller's detachment, which was quartered outside the fort. Fanning and the other wounded men, the doctor, his assistants, and the interpreters, were also absent. They were to be sent later to New Orleans, it was believed, by a nearer road.

After the names had been called over, the order to march was given, and we filed out through the gate of the fortress, the Greys taking the lead. Outside

the gate we were received by two detachments of Mexican infantry, who marched along on either side of us, in the same order as ourselves. We were about four hundred in number, and the enemy about seven hundred, not including the cavalry, of which numerous small groups were scattered about the prairie. We marched on in silence, not however, in the direction we had anticipated, but along the road to Victoria. This surprised us; but upon reflection we concluded that they were conducting us to some eastern port, thence to be shipped to New Orleans, which, upon the whole, was perhaps the best and shortest plan. There was something, however, in the profound silence of the Mexicali soldiers, who are usually unceasing chatterers, that inspired me with a feeling of uneasiness and anxiety. It was like a funeral march, and truly might it so be called. Presently I turned my head to see if Miller's people had joined, and were marching with us. But, to my extreme astonishment, neither they nor Fanning's men, nor the Georgia battalion, were to be seen. They had separated us without our observing it, and the detachment with which I was marching consisted only of the Greys and a few Texian colonists. Glancing at the escort, their full dress uniform and the absence of all baggage, now for the first time struck me. I thought of the bloody scenes that had occurred at Tampico, San Patricio, and the Alamo, of the false and cruel character of those in whose power we were, and I was seized with a presentiment of evil. For a moment I was about to communicate my apprehensions to my comrades; but hope, which never dies, again caused me to take a more cheering view of our situation. Nevertheless, in order to be prepared for the worst, and, in case of need, to be unencumbered in my movements, I watched my opportunity, and threw away amongst the grass of the prairie a bundle containing the few things that the thievish Mexicans had allowed me to retain.

A quarter of an hour had elapsed since our departure from the fort, when suddenly the command was given in Spanish to wheel to the left, leaving the road; and, as we did not understand the order, the officer himself went in front to show us the way, and my companions followed without taking any particular notice of the change of direction. To our left ran a muskeet hedge, five or six feet in height, at right angles with the river St Antonio, which flowed at about a thousand paces from us, between banks thirty or forty feet high, and of which banks the one on the nearer side of the river rose nearly perpendicularly out of the water. We were marched along the

side of the hedge towards the stream, and suddenly the thought flashed across us, "Why are they taking us in this direction?" The appearance of a number of lancers, cantering about in the fields on our right, also startled us; and just then the foot-soldiers, who had been marching between us and the hedge, changed their places, and joined those of their comrades who guarded us on the other hand. Before we could divine the meaning of this manœuvre, the word was given to halt. It came like a sentence of death; for at the same moment that it was uttered, the sound of a volley of musketry echoed across the prairie. We thought of our comrades and of our own probable fate.

"Kneel down!" now burst in harsh accents from the lips of the Mexican commander.

No one stirred. Few of us understood the order, and those who did would not obey. The Mexican soldiers, who stood at about three paces from us, levelled their muskets at our breasts. Even then we could hardly believe that they meant to shoot us; for if we had, we should assuredly have rushed forward in our desperation, and, weaponless though we were, some of our murderers would have met their death at our hands. Only one of our number was well acquainted with Spanish, and even he seemed as if he could not comprehend the order that had been given. He stared at the commanding-officer as if awaiting its repetition, and we stared at him, ready, at the first word he should utter, to spring upon the soldiers. But he seemed to be, as most of us were, impressed with the belief that the demonstration was merely a menace, used to induce us to enter the Mexican service. With threatening gesture and drawn sword, the chief of the assassins again ejaculated the command to kneel down. The sound of a second volley, from a different direction with the first, just then reached our ears, and was followed by a confused cry, as if those at whom it had been aimed, had not all been immediately killed. Our comrade, the one who understood Spanish, started from his momentary lethargy and boldly addressed us.

"Comrades," cried he, "you hear that report, that cry! There is no hope for us—our last hour is come! Therefore, comrades—!"

A terrible explosion interrupted him—and then all was still. A thick cloud of smoke was wreathing and curling towards the St Antonio. The blood of our

lieutenant was on my clothes, and around me lay my friends, convulsed by the last agony. I saw nothing more. Unhurt myself, I sprang up, and, concealed by the thick smoke, fled along the side of the hedge in the direction of the river, the noise of the water for my guide. Suddenly a blow from a heavy sabre fell upon my head, and from out of the smoke emerged the form of a little Mexican lieutenant. He aimed a second blow at me, which I parried with my left arm. I had nothing to risk, but every thing to gain. It was life or death. Behind me a thousand bayonets, before me the almost powerless sword of a coward. I rushed upon him, and with true Mexican valour, he fled from an unarmed man. On I went, the river rolled at my feet, the soldiers were shouting and yelling behind. "Texas for ever!" cried I, and, without a moment's hesitation, plunged into the water. The bullets whistled round me as I swam slowly and wearily to the other side, but none wounded me. Our poor dog, who had been with us all through the campaign, and had jumped into the river with me, fell a last sacrifice to Mexican cruelty. He had reached the middle of the stream, when a ball struck him, and he disappeared.

Whilst these horrible scenes were occurring in the prairie, Colonel Fanning and his wounded companions were shot and bayoneted at Goliad, only Doctor Thackleford and a few hospital aids having their lives spared, in order that they might attend on the wounded Mexicans. Besides Mr Ehrenberg, but three of the prisoners at Goliad ultimately escaped the slaughter.

Having crossed the St Antonio, Mr Ehrenberg struck into the high grass and thickets, which concealed him from the pursuit of the Mexicans, and wandered through the prairie, guiding himself, as best he might, by sun and stars, and striving to reach the river Brazos. He lost his way, and went through a variety of striking adventures, which, with some characteristic sketches of Texian life and habits, of General Sam Houston and Santa Anna, and a spirited account of the battle of St Jacinto, at which, however, he himself was not present, fill up the remainder of his book. Of one scene, between Houston and his army, we will make a final extract:—

It was the latter end of March, and the army of Texian militia, under Houston, which had increased to about thirteen hundred men, was assembled on the banks of the Colorado river. One messenger after another

had arrived, bringing news that had converted them into perfect cannibals, thirsting after Mexican blood. The murder of Grant and his horsemen, that of Johnson and King with their detachments; the unaccountable disappearance of Ward, who was wandering about in the prairie; and finally, Horton's report of the capture of the unfortunate Fanning; all these calamities, in conjunction with the fall of the Alamo, had raised the fury of the backwoodsmen to such a pitch, that they were neither to hold nor bind, and nobody but Sam Houston would have been able to curb them.

The old general sat upon a heap of saddles; and in a circle round a large fire, sat or stood, leaning upon their rifles, the captains of the militia. The whole group was surrounded by a grumbling crowd of backwoodsmen. The dark fiery eyes of the officers, nearly all tall powerful figures, glanced alternately at the flames and at old Sam, who was the only calm person present. Slowly taking a small knife from his waistcoat pocket, he opened it, produced a huge piece of Cavendish, cut off a quid, shoved it between his upper lip and front teeth, and handed the tobacco to his nearest neighbour. This was a gigantic captain, the upper part of whose body was clothed in an Indian hunting-coat, his head covered with what had once been a fine beaver hat, but of which the broad brim now flapped down over his ears, whilst his strong muscular legs were wrapped from knee to ankle in thick crimson flannel, a precaution against the thorns of the muskeet-trees not unfrequently adopted in the west. His bullet-pouch was made out of the head of a leopard, in which eyes of red cloth had been inserted, bringing out, by contrast, the beauty of the skin, and was suspended from a strap of brown untanned deer-hide. With an expression of great bitterness, the backwoodsman handed the tobacco to the man next to him, and it passed on from hand to hand, untasted by any one—a sign of uncommon excitement amongst the persons there assembled. When the despised Cavendish had gone round, the old general stuck it in his pocket again, and continued the conference, at the same time whittling a stick with perfect coolness and unconcern.

"Yes," said he, "I tell you that our affairs look rather ticklish—can't deny it—but that is the only thing that will bring the people to their senses. Santa Anna may destroy the colonies, but it won't be Sam Houston's fault. Instead of at once assembling, the militia stop at home with their wives—quite comfortable in the chimney-corner—think that a handful of volunteers can

whip ten thousand of these half-bloods. Quite mistaken, gentlemen—quite mistaken. You see it now—the brave fellows are gone—a scandal it is for us—and the enemy is at our heels. Instead of seeing four or five thousand of our people here, there are thirteen hundred—the others are minding the shop—making journeys to the Sabine. Can't help it, comrades, must retire to the Brazos, into the forests—must be off, and that at once."

"Stop, general, that ain't sense," cried a man, with a cap made out of a wild-cat's skin; "not a step backwards—the enemy must soon come, and then we'll whip 'em so glorious, that it will be a pleasure to see it; the miserable vampires that they are!"

"A fight! a fight!" shouted the surrounding throng. "For Texas, now or never!"

"Sam Houston is not of that opinion, my fine fellows," answered the general, "and it is not his will to fight. Sam will not risk the fate of the republic in a single foolhardy battle. The broad woods of the Brazos shall do us good service. Though you are brave, and willing to risk your lives, it would be small benefit to the country if you lost them. No, my boys, we'll give it to the vermin, never fear, they shall have it, as sure as Sam Houston stands in his own shoes."

"It's impossible for us to go back, General," cried another speaker; "can't be—must at 'em! What, General, our richest plantations lie between the Colorado and the Brazos, and are we to abandon them to these thieves? Old Austin^[H] would rise out of his grave if he heard the footsteps of the murderers upon the prairie. No, General—must be at them—must conquer or die!"

"Must conquer or die!" was echoed through the crowd; but the old general sat whittling away, as cool as a cucumber, and seemed determined that the next victory he gained should be in his own camp.

"Boys," said he—and he stood up, took another quid, shut his knife, and continued—"Boys, you want to fight—very praiseworthy indeed—your courage is certainly very praiseworthy;—but suppose the enemy brings artillery with him, can you, will you, take the responsibility of giving battle before our tardy fellow-citizens come up to reinforce us? How will you

answer it to your consciences, if the republic falls back under the Mexican yoke, because an undisciplined mob would not wait the favourable moment for a fight? No, no, citizens—we must retire to the Brazos, where our rifles will give us the advantage; whilst here we should have to charge the enemy, who is five times our strength, in the open prairie. Don't doubt your courage, as you call it—though it's only foolhardiness—but I represent the republic, and am answerable to the whole people for what I do. Can't allow you to fight here. Once more I summon you to follow me to San Felipe and all who wish well to Texas will be ready in an hour's time. Every moment we may expect to see the enemy on the other side of the river. Once more then—to the banks of the Brazos!"

The old general walked off to his tent, and the crowd betook themselves to their fires, murmuring and discontented, and put their rifles in order. But in an hour and a half, the Texian army left their camp on the Colorado. Sam Houston had prevailed, and the next evening he and his men reached San Felipe, and, without pausing there, marched up the river. On the 30th March the first squadron of the enemy showed itself near San Felipe. The inhabitants abandoned their well-stored shops and houses, set fire to them with their own hands, and fled across the river. The Mexicans entered the town, and their rage was boundless when, instead of a rich booty, they found heaps of ashes. Houston had now vanished, and his foes could nowhere trace him, till he suddenly, and of his own accord, reappeared upon the scene, and fell on them like a thunderbolt, amply refuting the false and base charge brought against him by his enemies, that he had retreated through cowardice. But to this day, it is a riddle to me how he managed to reduce to obedience the unruly spirits he commanded, and to induce them to retreat across the Brazos to Buffalo Bayou. Of one thing I am certain—only Sam Houston could have done it; no other man in the republic.

Mr Ehrenberg escaped from all his perils in time to share the rejoicings of the Texians at the final evacuation of the country by the Mexican army. And certainly they had cause for exultation, not only at being rid of their cruel and semi-barbarous oppressors, but in the persevering gallantry they had displayed throughout the whole campaign, during which many errors were committed and many lives uselessly sacrificed, but of which the close was nevertheless so glorious to those engaged in it. Unskilled in military tactics, without discipline or resources, the stubborn courage of a handful of

American backwoodsmen proved an overmatch for Santa Anna and his hosts, and the fairest and freshest leaf of the Mexican cactus was rent from the parent stem, never to be reunited.^[1]

FOOTNOTES:

[G] *Fahrten und Schicksale eines Deutschen in Texas*. Von H. EHRENBURG. Leipzig: 1845.

[H] The founder of the American colonies in Texas, and father of Stephen F. Austin.

[I] The arms of Mexico are a cactus, with as many leaves as there are states of the republic.

THE MOTHER AND HER DEAD CHILD.

With ceaseless sorrow, uncontroll'd,
The mother mourn'd her lot;
She wept, and would not be consoled,
Because her child was not.

She gazed upon its nursery floor,
But there it did not play;
The toys it loved, the clothes it wore,
All void and vacant lay.

Her house, her heart, were dark and drear,
Without their wonted light;
The little star had left its sphere,
That there had shone so bright.

Her tears, at each returning thought,
Fell like the frequent rain;
Time on its wings no healing brought,
And wisdom spoke in vain.

Even in the middle hour of night
She sought no soft relief,
But, by her taper's misty light,
Sate nourishing her grief.

'Twas then a sight of solemn awe,
Rose near her like a cloud;
The image of her child she saw,
Wrapp'd in its little shroud.

It sate within its favourite chair,
It sate and seem'd to sigh,
And turn'd upon its mother there

A meek imploring eye.

"O child! what brings that breathless form
Back from its place of rest?
For well I know no life can warm
Again that livid breast.

"The grave is now your bed, my child—
Go slumber there in peace."
"I cannot go," it answer'd mild,
"Until your sorrow cease.

"I've tried to rest in that dark bed,
But rest I cannot get,
For always with the tears you shed,
My winding-sheet is wet.

"The drops, dear mother, trickle still
Into my coffin deep;
It feels so comfortless and chill
I cannot go to sleep."

"O child those words, that touching look,
My fortitude restore;
I feel and own the blest rebuke,
And weep my loss no more."

She spoke, and dried her tears the while;
And as her passion fell,
The vision wore an angel smile,
And look'd a fond farewell.

THE GREEK AND ROMANTIC DRAMA.

The Drama, in its higher branches, is perhaps the greatest effort of human genius. It requires for its successful cultivation, a combination of qualities beyond what is necessary in any other department of composition. A profound and practical acquaintance with human nature in all its phases, and the human heart in all its changes, is the first requisite of the Dramatic Poet. The power of condensed expression—the faculty of giving vent to "thoughts that breathe in words that burn"—the art of painting, by a line, an epithet, an expression, the inmost and most intense feelings of the heart, is equally indispensable. The skill of the novelist in arranging the incidents of the piece so as to keep the attention of the spectators erect, and their interest undiminished, is not less necessary. How requisite a knowledge of the peculiar art called "stage effect," is to the success of dramatic pieces on the theatre, may be judged of by the well-known failures in actual representation of many striking pieces by our greatest tragic writers, especially Miss Baillie and Lord Byron. The eloquence of the orator, the power of wielding at will the emotions and passions of the heart, of rousing alternately the glow of the generous, and the warmth of the tender affections, is not less indispensable. The great dramatic poet must add to this rare assemblage, a thorough acquaintance with the characters and ideas of former times: with the lore of the historian, he must embody in his imaginary characters the incidents of actual event; with the fervour of the poet, portray the transactions and thoughts of past times; with the eye of the painter, arrange his scenery, dresses, and localities, so as to produce the strongest possible impression of reality on the mind of the spectator. Unite, in imagination, all the greatest and most varied efforts of the human mind—the fire of the poet and the learning of the historian, the conceptions of the painter and the persuasion of the orator, the skill of the novelist and the depth of the philosopher, and you will only form a great tragedian. Ordinary observers often express surprise, that dramatic genius, especially in these times, is rare; let the combination of qualities essential for its higher flights be considered, and perhaps the wonder will rather be, that it has been so frequent in the world.

It is a sense of this extraordinary combination of power necessary to the formation of a great dramatic poet, which has rendered the masterpieces of this art so general an object of devout admiration, to men of the greatest genius who have ever appeared upon earth. Euripides wept when he heard a tragedy of Sophocles recited at the Isthmian games; he mourned, but his own subsequent greatness proved without reason, the apparent impossibility of rivalling his inimitable predecessor. Milton, blind and poor, found a solace for all the crosses of life in listening, in old age, to the verses of Euripides. Napoleon, at St Helena, forgot the empire of the world, on hearing, in the long evenings, the masterpieces of Corneille read aloud. Stratford-on-Avon does not contain the remains of mere English genius, it is the place of pilgrimage to the entire human race. The names of persons of all nations are to be found, as on the summit of the Pyramids, encircled on the walls of Shakspeare's house; his grave is the common resort of the generous and the enthusiastic of all ages, and countries, ad times. All feel they can

"Rival all but Shakspeare's name below."

If the combination of qualities necessary to form a first-rate dramatic poet is thus rare, hardly less wonderful is the effort of genius to sustain the character of a great actor. The mind of the performer must be sympathetic with that of the author; it must be cast in the same mould with the original conceiver of the piece. To form an adequate and correct conception of the proper representation of the leading characters in the masterpieces of Sophocles, Shakspeare, or Schiller, requires a mind of the same cast as that of those poets themselves. The performer must throw himself, as it were, into the mind of the author; identify himself with the piece to be represented; conceive the character in reality, as the poet had portrayed it in words, and then convey by acting this *second conception* to the spectators. By this double distillation of thought through the soul of genius, a finer and more perfect creation is sometimes formed, than the efforts of any single mind, how great soever, could have originally conceived. It may well be doubted whether Shakspeare's conception of Lady Macbeth or Desdemona was more perfect than Mrs Siddons's personation of them; or whether the grandeur of Cato or Coriolanus, as they existed in the original mind of Addison, or the patriarch of the English stage, equalled Kemble's inimitable

performances of these characters. Beautiful as were the visions of Juliet and Rosalind which floated before the mind of the Bard of Avon, it may be doubted if they excelled Miss Helen Faucit's exquisite representation of those characters. The actor or actress brings to the illustration of the great efforts of dramatic genius, qualities of a different sort, *in addition* to those which at first pervaded the mind of the author, but not less essential to the felicitous realization of his conception. Physical beauty, the magic of voice, look, and manner, the play of countenance, the step of grace, the witchery of love, the accents of despair, combine with the power of language to add a tenfold attraction to the creations of fancy. All the arts seem, in such representations, to combine their efforts to entrance the mind, every avenue to the heart is at once flooded with the highest and most refined enjoyment; the noblest, the most elevated feelings:—

"The youngest of the sister arts,
Where all their beauty blends!
For ill can poetry express
Full many a tone of thought sublime;
And painting, mute and motionless,
Steals but a glance of time.
But by the mighty actor brought,
Illusion's perfect triumphs come—
Verse ceases to be airy thought,
And sculpture to be dumb."

That an art so noble as that of dramatic poetry, ennobled by such genius, associated with such recollections, so lofty in its purpose, so irresistible in its effects, should have fallen into comparative decline in this country in the brightest era of its literary, philosophical, and political achievements, is one of those singular and melancholy circumstances of which it seems impossible at first sight to give any explanation. Since the deep foundations of the English mind were stirred by the Reformation, what an astonishing succession of great men in every branch of human thought have illustrated the annals of England! The divine conceptions of Milton, the luxuriant fervour of Thomson, the vast discoveries of Newton, the deep wisdom of Bacon, the burning thoughts of Gray, the masculine intellect of Johnson, the exquisite polish of Pope, the lyric fire of Campbell, the graphic powers of

Scott, the glowing eloquence of Burke, the admirable conceptions of Reynolds, the profound sagacity of Hume, the pictured page of Gibbon, demonstrate how mighty and varied have been the triumphs of the human mind in these islands, in every branch of poetry, literature, and philosophy. Yet, strange to say, during two centuries thus marvellously illustrated by genius, intellect, and capacity in other departments of human exertion, there has not been a single great dramatic poet. Shakspeare still stands alone in solitary and unapproachable grandeur, to sustain, by his single arm, the tragic reputation of his country. Authors of passing or local celebrity have arisen: Otway has put forth some fine conceptions, and composed one admirable tragedy; Sheridan sketched some brilliant satires; Miss Baillie delineated the passions with epic power; and genius of the highest order in our times, that of Byron and Bulwer, has endeavoured to revive the tragic muse in these islands. But the first declared that he wrote his dramatic pieces with no design whatever to their representation, but merely as a vehicle of noble sentiments in dialogue of verse; and the second is too successful as a novelist to put forth his strength in dramatic poetry, or train his mind in the school necessary for success in that most difficult art. The English drama, in the estimation of the world, and in its just estimation, still stands on Shakspeare, and he flourished nearly three hundred years ago!

It was not thus in other countries, or in former times. Homer was the first, and still is one of the greatest, of dramatic poets; the *Iliad* is a tragedy arranged in the garb of an epic poem. Æschylus borrowed, Prometheus-like, the divine fire, and embodied the energy of Dante and the soul of Milton in his sublime tragedies. Sophocles and Euripides were contemporary with Pericles and Phidias; the same age witnessed the *Clouds* of Aristophanes, the death of Socrates, and the history of Thucydides. The warlike and savage genius of the Romans made them prefer the excitement of the amphitheatre to the entrancement of the theatre; but the comedies of Plautus and Terence remain durable monuments, that the genius of dramatic poetry among them advanced abreast of the epic or lyric muse. The names of Alfieri, Metastasio, and Goldoni, demonstrate that modern Italy has successfully cultivated the dramatic as well as the epic muse; the tragedies of the first are worthy the country of Tasso, the operas of the second rival the charms of Petrarch. In the Spanish peninsula, Lope de Vega and Calderon have astonished the world by the variety and prodigality of their

conceptions;^[J] and fully vindicated the title of the Castilians to place their dramatic writers on a level with their great epic poets.

Need it be told that France stands pre-eminent in dramatic excellence; that Corneille, Racine, and Molière, were contemporaries of Bossuet, Massillon, and Boileau; that the tragedies of Voltaire were the highest effort of his vast and varied genius? Germany, albeit the last-born in the literary family of Europe, has already vindicated its title to a foremost place in this noble branch of composition; for Lessing has few modern rivals in the perception of dramatic excellence, and Schiller none in the magnificent historic mirror which he has placed on the stage of the Fatherland. How, then, has it happened, that when, in all other nations which have risen to greatness in the world, the genius of dramatic poetry has kept pace with its eminence in all other respects, in England alone the case is the reverse; and the nation which has surpassed all others in the highest branches of poetry, eloquence, and history, is still obliged to recur to the patriarch of a comparatively barbarous age for a parallel to the great dramatic writers of other states?

The worshippers of Shakspeare tell us, that this has been owing to his very greatness; that he was so much above other men as to defy competition and extinguish rivalry; and that genius, in despair of ever equalling his vast and varied conceptions, has turned aside into other channels where the avenue to the highest distinction was not blocked up by the giant of former days. But a little reflection must be sufficient to convince every candid inquirer, that this consideration not only does not explain the difficulty but augments it. Genius is never extinguished by genius; on the contrary, it is created by it. The divine flame passes from one mind to another similarly constituted. Thence the clusters of great men who, at intervals, have appeared simultaneously and close to each other in the world, and the long intervening periods of mediocrity or imitation. Did the immortal genius of Dante destroy subsequent poetic excellence in Italy? Let Tasso, Ariosto, Metastasio, and Alfieri, answer. Homer did not extinguish Æschylus—he created him. Greek tragedy is little more than the events following the siege of Troy dramatised. The greatness of Sophocles did not crush the rising genius of Euripides—on the contrary, it called it forth; and these two great masters of the dramatic muse thrice contended with each other for the prize awarded by the Athenians to dramatic excellence.^[K] The great Corneille did not annihilate rivalry in the dramatic genius of France—on the contrary, he

produced it; his immortal tragedies were immediately succeeded by the tenderness of Racine, the wit of Molière, the versatility of Voltaire. Lessing in Germany was soon outstripped by the vast mind of Schiller. Michael Angelo, vast as his genius was, did not distance all competitors in Italy; he was speedily followed and excelled by Raphael; and when the boy Correggio saw Raphael's pictures, he said—"I, too, am a painter." Did the transcendent greatness of Burke close in despair the eloquent lips of Pitt and Fox; or the mighty genius of Scott quench the rising star of Byron? We repeat it—genius is never extinguished by genius; it is created by it.

But if the state of dramatic poetry in Great Britain since the time of Shakspeare affords matter of surprise, the late history and present state of the drama, as it appears on the stage, afford subject of wonder and regret. We are continually speaking of the lights of the age, of the vast spread of popular information, of the march of intellect, and the superiority of this generation in intelligence and refinement over all that have gone before it. Go into any of the theatres of London at this moment, and consider what evidence they afford of this boasted advance and superiority. Time was when the versatile powers of Garrick enchanted the audience; and exhibited alternately the perfection of the comic and the dignity of the tragic muse. Mrs Siddons, supreme in greatness, has trod those boards; Kemble, the "last of all the Romans," has, in comparatively recent times, bade them farewell. Miss O'Neil, with inferior soul, but equal physical powers; Kean, with the energy, but unhappily the weaknesses of genius, kept up the elevation of the stage. Talent, and that too of a very high class, genius of the most exalted kind, are not awanting to support the long line of British theatric greatness; the names of Charles Kean, Fanny Kemble, and Helen Faucit are sufficient to prove, that if the stage is in a state of decrepitude, the fault lies much more with the authors or the public, than with the performers.^[L] But all is unavailing. Despite the most persevering and laudable efforts to restore the dignity of the theatre, and revive the sway of the legitimate drama, in which Mr Macready has so long borne so conspicuous a part, Tragedy in the metropolis is almost banished from the stage. It has been supplanted by the melodrama, dancing, and singing. It has been driven off the field by *Timour the Tartar*. Drury-Lane, sanctified by so many noble recollections, has become an English opera-house. Covent-Garden is devoted to concerts, and hears the tragic muse no more. Even in the minor theatres, where tragedy is

sometimes attempted, it can only be relied on for transient popularity. Its restoration was attempted at the Princess's Theatre in Oxford Street, but apparently with no remarkable success; and the tragedies of *Othello* and *Hamlet*, supported by the talent of Macready, required to be eked out by Mrs Candle's *Curtain Lectures*. We are no strangers to the talent displayed at many of the minor theatres both by the authors and performers; and we are well aware that the varied population of every great metropolis requires several such places of amusement. What we complain of is, that they engross every thing; that tragedy and the legitimate drama are nearly banished from the stage in all but the provincial cities, where, of course, it never can rise to the highest eminence.

All the world are conscious of the reality of this change, and many different explanations have been attempted of it. It is said that modern manners are inconsistent with frequenting the theatre: that the late hours of dinners preclude the higher classes from going to it; that the ladies' dresses are soiled by the seats in the boxes, before going to balls. The austerity of principle, in the strictly religious portion of the community, is justly considered as a great bar to dramatic success; as it keeps from the theatre a large part of society, which, from the integrity and purity of its principles, would, if it frequented such places of amusement, be more likely than any other to counteract its downward tendency. The hideous mass of profligacy which in London, in the absence of the better classes of society, has seized upon the principal theatres as its natural prey, is loudly complained of by the heads of families; and the audience is, in consequence, too often turned into little more than strangers, or young men in quest of dissipation, and ladies of easy virtue in quest of gain. The spread of reading, and vast addition to the amount of talent devoted to the composition of novels and romances, is another cause generally considered as mainly instrumental in producing the neglect of the theatre. Sir Walter Scott, it is said, has brought the drama to our fireside: we draw in our easy-chairs when the winds of winter are howling around us, and cease to long for *Hamlet* in reading the *Bride of Lammermoor*. There is some reality in all these causes assigned for the decline of the legitimate drama in this country; they are the truth, but they are not the whole truth. A very little consideration will at once show, that it is not to any or all of these causes, that the decline of the higher branches of this noble art in Great Britain is to be ascribed.

Modern manners, late dinners, ball-dresses, and the Houses of Parliament, are doubtless serious obstacles to the higher classes of the nobility and gentry frequently attending the theatre; but the example of the Opera-house, which is crowded night after night with the élite of that very class, is sufficient to demonstrate, that all these difficulties can be got over, when people of fashion make up their minds to go to a place of amusement, even where not one in ten understand the language in which the piece is composed. The strictness of principle—mistaken, as we deem it, and hurtful in its effects—which keeps away a large and important portion of the middle and most respectable portion of the community, at all times, and in all places, from the theatre, is without doubt a very serious impediment to dramatic success, and in nothing so much so, as in throwing the patronage and direction of its performance into the hands of a less scrupulous part of society. But these strict principles, ever since the Great Rebellion, have pervaded a considerable portion of British society; and yet how nobly was the stage supported during the eighteenth and the commencement of the nineteenth century, in the days of Garrick, Siddons, and Kemble! The great number of theatres which are nightly open in the metropolis, and rapidly increasing in all the principal cities of the kingdom, demonstrates, that the play-going portion of the community is sufficiently numerous to support the stage, generally in respectability, at times in splendour. Without doubt, the licentiousness of the saloons of the great theatres in London is a most serious evil, and it well deserves the consideration of Government, whether some means should not be taken for its correction; but is the Opera-house so very pure in its purlieus? and are the habitual admirers of the ballet likely to be corrupted by occasionally seeing Othello and Juliet? The prevailing, and in fact universal, passion for reading novels at home, unquestionably affords an inexhaustible fund of domestic amusement; but does experience prove that the imagination once kindled, the heart once touched, are willing to stop short in the quest of excitement—to be satisfied with imperfect gratification? Novel-reading is as common on the Continent as in this country; but still the legitimate drama exhibits no such appearances of decrepitude in its Capitals. The masterpieces of Corneille and Racine are still constantly performed to crowded houses at Paris; the theatres of Italy resound with the melody of Metastasio, the dignity of Alfieri; and singing and the melodrama have nowhere banished Schiller's tragedies from the boards of Vienna and Berlin.

We have said, that while we appreciate the motives, and respect the principles, which prevent so large a portion of the middle class of society from frequenting the theatre, we lament their determination, and regard it as an evil even greater to the morality than it is to the genius of the nation. In truth, it is founded on a mistaken view of the principles which influence human nature; and it would be well if moralists, and the friends of mankind, would reconsider the subject, before, in this country at least, it is too late. The love of the drama is founded on the deepest, the most universal, the noblest principles of our nature. It exists, and ever will exist. For good or for evil, its influence is immovable. We cannot extirpate, or even tangibly abridge its sway; the art of Æschylus and Shakspeare, of Sophocles and Racine, of Euripides and Schiller, is not to be extinguished by the reputable but contracted ideas of a limited portion of society. God has not made it sweeter to weep with those who weep, than to rejoice with those who rejoice, for no purpose. Look at the Arabs, as they cluster round the storyteller who charms the groups of Yemen, or the knots of delighted faces which surround the Polchinello of Naples, and you will see how universal is the passions in mankind for theatrical representations. But though we cannot eradicate the desire for this gratification, we may degrade its tendency, and corrupt its effects. We may substitute stimulants to the senses for elevation to the principle, or softening of the heart. By abandoning its direction to the most volatile and licentious of the community, we may render it an instrument of evil instead of good, and pervert the powers of genius, the magic of art, the fascinations of beauty, to the destruction instead of the elevation of the human soul.

It is for this reason that we lament, as a serious social and national evil, the long interregnum in dramatic excellence in our writers, and the woful degradation in the direction of dramatic representations at our metropolitan theatres. Immense is the influence of lofty and ennobling dramatic pieces when supported by able and impassioned actors. As deleterious is the sway of questionable or immoral pieces when decked out in the meretricious garb of fancy, or aided by the transient attractions of beauty. Who can tell how much the heart-stirring appeals of Shakspeare have done to string to lofty purposes the British heart; how powerfully the dignified sentiments of Corneille have contributed to sustain the heroic portions of the French character? "C'est l'imagination," said Napoleon, "qui domine le monde."

The drama has one immense advantage over the pulpit or the professor's chair: it fascinates while it instructs—it allures while it elevates. It thus extends its influence over a wide and important circle, upon whom didactic precepts will never have any influence. Without doubt, the strong and deep foundations of public morality must be laid in religious and moral instruction; if they are wanting, the social edifice, how fair soever to appearance, is built on a bed of sand. But fully admitting this—devoutly looking to our national Establishment for the formation of public principle—to our schools and colleges for the training of the national intellect—the experienced observer, aware of the sway of active principles over the human soul, will not neglect the subordinate but still powerful aid to be derived, in the great work of elevating and ennobling society, from the emotions which may be awakened at the theatre—the enthusiasm so often excited by tragic excellence. The thing to be dreaded with the great bulk of the spectators—that is, by far the largest portion of mankind—is not their avowed infidelity and their open wickedness; it is the sway of the degrading or selfish passions which is chiefly dangerous. The thing to be feared is, not that they will say there is no God, but that they will live altogether without God in the world. How important, then, that genius should be called in here to the aid of virtue, and the fascinations of the highest species of excellence employed to elevate, where so many causes exist to degrade the soul!

"Cosi all egro fanciul' porgiamo aspersi,
Di soave licor gli orli del Vaso;
Socchi amari, ingannato intanto ei beve,
Et dall' inganno suo vita riceve."

The elevating influence of the noble sentiments with which the higher dramatic works abound, is more loudly called for in this than it has been in any former period of British history. We are no longer in the age of enthusiasm. The days of chivalry have gone by—and gone by, it is feared, never to return. We are in the age of commerce and the mechanical arts. Material appliances, creature comforts,—stimulants to the senses—now form the great moving power of society. Gain is every where sought after with the utmost avidity; but it is sought not for any lofty object, but on account of the substantial physical comforts with which the possession of riches is attended. Sensuality, disguised under the veil of elegance,

refinement, and accomplishment, is making rapid strides amongst us. It does so in all old, wealthy, and long-established communities; it is the well-known and oft-described premonitory symptom of national decline. We can scarce venture to hope, we should find in the British empire at this period the enthusiasm which manned the ramparts of Sarragossa, the patriotism which fired the torches of Moscow. We should find united, too generally it is to be feared, at least in a considerable portion, the timidity and selfishness which signed the capitulation of Venice. How important, then, to gain possession of so mighty a lever for moving the general mind, and counteracting the selfishness which is degrading society, as the enthusiasm of the theatre affords; and instead of permitting it to fall into the hands of vice, to become the handmaid of licentiousness, to turn its vast powers to the rousing of elevated sentiments, the strengthening of virtuous resolutions, the nourishing of generous emotions! Whoever succeeds in this, whether author, actor, or actress, is a friend to the best interests of humanity, and is to be ranked with the benefactors of the human race.

Nor be it said that the theatre has been now irrevocably turned, in this country, to frivolous or contemptible representations, or that dancing and singing have for ever banished the tragic muse from the stage. Facts—well known and universally acknowledged facts, prove the reverse. How strong soever the desire for excitement or physical enjoyment may be, the passion for heart-stirring incident, the *besoin* of strong emotions, the thirst for tragic event, is still stronger. Look at the Parisian stage—what a concatenation of murders, suicides, conflagrations, massacres, and horrors of every description, have there grown up with the spread of the romantic drama in the lesser theatres! That shows how strong is the passion for tragic excitement in highly civilized and long corrupt society. Enter any of our courts of law, when any trial for murder or any other serious crime is going forward—observe how unwearied is the attention of all classes, and *especially the lowest*; with what patience they will sit for days and nights together, to watch the proceedings; mark the deathlike silence which pervades the hall, when any important part of the evidence is delivered, or the verdict of the jury is returned. Observe the mighty throng which attends a public execution. The writer once was present, when an hundred and fifty thousand persons assembled in one spot to witness the expiation of their guilt by two murderers on the scaffold.^[M] When the mournful procession

set out for the place of punishment, four miles distant, not a sound was to be heard from the innumerable spectators who lined the streets; the clang of the horses' hoofs on the pavement was audible among two hundred thousand persons. When it returned with the dead bodies, the clang of voices, the pent-up emotion, burst forth in so mighty a shout, that the discharge of artillery would hardly have been heard in the throng. The anxiety, sometimes amounting almost to frenzy, to get a sight of the convicted murderer, to be present at the condemned sermon, to see his last agonies on the scaffold, to examine the scenes of his crime, even to obtain a lock of his hair or a piece of his garments, is another proof of the disordered and often extravagant desires which the longing for strong and tragic excitement will produce in a large portion of society. Rely upon it, deep emotion, if rightly managed and properly directed, is more attractive than either amusement or licentiousness. Suffering exacts a far deeper sympathy than joy; the generous, for the time at least, overpower the selfish feelings. Let but the tragic muse be restored to her appropriate position on the stage, and supported by the requisite ability in the author and performers, and she will extinguish rivalry, and bear down opposition.

We have said that the tragic muse will do this, "if supported by the requisite ability in the *authors* and performers." We have said this advisedly; for we belong to the former class, and we have no complaint to make of want of ability on the stage. On the contrary, talent and genius, of the most elevated kind, are to be found upon it. The fault lies with our own profession, or rather with that portion of it who cultivate dramatic composition. The origin of the evil is to be found, the remote cause of the present degraded condition of the stage, is to be found in—strike but hear—IN SHAKSPEARE!

The most devoted worshipper of the genius of the Bard of Avon, the most enthusiastic admirer of the profound knowledge of the human heart, and unequalled force of expression which he possessed, cannot exceed ourselves in the deep admiration which we entertain for his transcendent excellences. On the contrary, it is those very excellences which have done the mischief; it is they which have misled subsequent dramatic writers in this country, and occasioned the constant failures by which his imitators have been distinguished. It is not surprising that it is so. Shakspeare was supremely great; but he was so, not in consequence of his dramatic principles, but in spite of them. He fired his arrow further than mortal man

has yet done; but he fired it not altogether in the right direction, and no one since has been able to draw the bow of Ulysses.

There is no one who has not heard of the famous dramatic unities, and the long-continued controversy which has been maintained between the admirers of the Greek drama, founded on their strict observance, and the followers of Shakspeare, who set them at defiance. In this, as in other disputes, probably neither party will ever convince the other; and the only effect of the contention is to fix each more immovably in its own opinion. But, waiving at present the abstract question, which of the two systems is in itself preferable, or essential to dramatic success, there is a practical consideration of deep interest to society, with which we are all concerned and the result of which throws no small light on the theoretical principle. It is this. Placing the creators of the two systems—Æschylus and Shakspeare—on a par; conceding to the author of *Hamlet* an equal place with that of the composer of the *Prometheus Vincetus*; which of the two systems has had most success in the world; has longest preserved its sway over the human mind; has best withstood the causes of corruption inherent in all earthly change?

What a noble set of followers have, in all ages, graced the banners of the Athenian bard! Sophocles, Aristophanes, Menander, and Euripides, in Greece; Terence and Plautus in Rome; Metastasio, Goldoni, and Alfieri in Italy; Corneille, Racine, Molière, and Voltaire in France; Schiller,^[N] in himself a host, in Germany—contribute the brightest stars in the immortal band. Their merits may be unequal, their talent various, their pieces sometimes uninteresting; but, taken as a whole, their works exhibit the greatest efforts of human genius. What has the Romantic school to exhibit, after its inimitable founder, as a set-off to this long line of greatness? The ephemeral and now forgotten lights of the British stage—the blasting indecencies of Beaumont and Fletcher; the vigorous ribaldry of Dryden; the shocking extravagances of the recent French and Spanish stage; the *Tour de Nesle*, and other elevating pieces, which adorn the modern Parisian theatre, and train to virtuous and generous feeling the present youth of France. Shakspeare himself, with all his transcendent excellences, is unable to keep his ground on the British stage. Like all great men, whom accident or error has embarked in a wrong course, he has been passed by a host of followers, who, unable to imitate his beauties, have copied only his defects, till they

have fairly banished the legitimate tragic drama from the London stage. If the precept of Scripture be true—"By their fruits shall ye know them"—the palm must be unquestionably awarded to the old Grecian school.

If the different principles on which the two great schools of the drama proceed are considered, it will not appear surprising that this result has taken place.

The Greek drama embraced a very limited number of stories and events, and they were all thoroughly known to every audience in the country. The incidents and tragic occurrences so wonderfully illustrated by the genius of their tragic poets, are almost all to be found sketched out in the *Odyssey* of Homer, or in the successive disasters of the fated race of *Ædipus*. The sacrifice of Iphigenia to procure fair gales when setting out for Troy, the foundation of the exquisite tragedy by Euripides of *Iphigenia in Aulis*; the subsequent meeting of her with her brothers, the basis of *Iphigenia in Tauris*, by the same poet; the murder of Agamemnon by Clytemnestra and her adulterous lover; the revenge of Electra and Orestes, who put their mother and her lover to death; the subsequent remorse and woful fate of the avenging brother and sister—form so many tragedies, which for centuries entranced the Athenian audience. The sorrows of Andromache, when torn from her home after the death of Hector and sack of Troy, and subjected to the jealousy of the daughter of Menelaus; the deep woes of Hecuba, who saw in one day her daughter sacrificed on the tomb of Achilles, and the corpse of her son washed ashore, after having been perfidiously murdered by his Thracian host, as they appeared in the thrilling verses of Euripides—were all previously well known to the Grecian audience. If to these we add the multiplied disasters of the line of *Ædipus*; the despair of that unhappy man at his incestuous marriage with Jocasta; his subsequent sorrow when an exile, poor and bowed down by misfortune; the dreadful fate which befell his sons when they fell by each others' hands before the walls of Thebes; and the heroic self-sacrifice of Antigone to procure the rites of sepulture for her beloved and innocent brother—we shall find we have embraced nearly the whole dramas which exercised the genius of *Æschylus*, *Sophocles*, and *Euripides*.

It resulted from this limited number of incidents in the Greek drama, and the thorough acquaintance of the audience, in every instance, with the

characters, the incidents, and the *dénouement* of the piece, that the grand object of the poet was to work up a particular part of the story to the highest perfection, rather than, to an audience unacquainted with any part of it, to unfold the whole. It was that which created the difference between it and the Romantic drama of modern times. There was no use in attempting to tell the story, for that was already known to all the audience. It would have been like telling the story of Wallace, or Queen Mary, or Robert Bruce, to a Scottish assembly. Genius was to be displayed; effect was to be produced, not by unfolding new and unknown incidents, but working up to the highest degree those already known. Hence the peculiar character of the Greek drama; hence the astonishing and unequalled perfection to which it was brought. The world has never seen, perhaps it will never again see, any thing so exquisite as the masterpieces of Sophocles and Euripides—any thing so sublime as some of Æschylus. All subsequent ages have concurred in this opinion. All nations have united in it. The moderns and the ancients, differing in so many other points, are at one in this particular. There is as little diversity of opinion on the subject, as in the admiration of the sculpture of Phidias, the verses of Virgil, or the paintings of Raphael.

It was by the strict observance of the unities, and the necessity to which it exposed the poet of supplying, by his own genius and taste, all adventitious aids derived from change of scene, splendour of decoration, and novelty of story, that this astonishing perfection was attained. Force of language, grandeur of thought, pathos of feeling, were all in all. The dramatist was compelled to rest on these, and these alone. If he did not succeed in them, he was lost. The audience, composed of the most refined and enlightened citizens that then existed in the world, went to the theatre, expecting not to be interested or surprised by the unravelling of a new and intricate story, but to be fascinated by the force of expression and pathos of feeling, with which a mournful catastrophe already known was told. To attain this object, the dramatic writers of antiquity selected that period in an interesting and tragic story, when its incidents were approaching their crisis, when the *dénouement* for good or for evil took place; and they represented that at full length, and in all its detail to the spectators. The previous incidents which had brought matters up to this point, were narrated in the course of the dialogue in the earlier scenes; the closing catastrophe, often too terrible to be represented on the stage, was described by some of the characters who

had witnessed it. But the intervening period, the events and thoughts which succeeded the past, and preceded the future, were painted in their fullest detail, and with all the force and finishing of which the artist was capable. Nothing resembles the structure of a tragedy of antiquity so much as a modern trial for murder; and in the undying interest which such a proceeding invariably excites in all countries and all ages, we may see the deep foundation laid in human nature for the influence of that species of dramatic composition. As in the Greek drama, the witnesses tell the preceding story, and explain the previous crimes or events by which matters have been brought to the present stage, when life or death depends upon the issue of the proceedings. The trial itself takes up these proceedings at the decisive point, and, with strict regard to unity of time and place, exhibits their aims and issue to the mind of the spectators. If the execution of the criminal were immediately to follow the verdict of the jury, and some persons were, when the spectators were still sitting in the hall thrilling with the interest they had felt, to come in, and relate the demeanour and last words of the unhappy being on the scaffold, that would be a Greek drama complete.

As the field of dramatic representation was thus limited on the stage of antiquity, the whole genius and powers of the poet were bent to concentrating on that narrow space all the powers and beauties of which his art was susceptible. Nothing was omitted which could either elevate, interest, entrance, or melt the heart of the audience. It is a common opinion in modern times with persons not acquainted in the originals with the Greek tragedy, that it was couched in a stately measured tone, wholly different from nature, and more akin to the pompous and sonorous verses of the French theatre. There never was a greater mistake. If it is characterized by any peculiarity more than another, it is the brevity and condensation of the language, the energy of the expressions, and the force with which the most vehement passions, and strongest emotions of the heart are conveyed in the simplest words. So brief is the expression, so frequent the breaks and interjections, that the rhythm and verse are frequently, and for a long period, forgotten. Euripides alone, who had great rhetorical powers, sometimes indulges in the lengthened disquisitions, the *arguments in verse*, which exhibit so admirable a view of all that can be urged on a particular subject, and which have been so frequently imitated by Corneille and Racine. But

even he, when he comes to the impassioned or pathetic scenes, as in the *Medea*, the *Iphigenia in Aulis*, and *Hecuba*, is as brief and energetic in his expression as Shakspeare himself. Simplicity of language, energy of thought, and force of passion, are the grand characteristics of the Greek drama, as they were of the Greek oratory, and their combination constituted the excellence of both. The fire of the poet, the reach of imagination, was reserved for the chorus, which frequently exhibited the most sublime specimens of lyric poetry, rivalling the loftiest strains of the Pindaric muse. Thus the audience, in a short piece, in which the plot was rapidly urged forward, and the interest was never allowed for a moment to flag, were presented alternately with the force of Demosthenes' declamation, the pathos of Sophocles' expressions, and the fire of Pindar's poetry. It was as if the finest scenes of Shakspeare's tragedies were thrown together with no other interjections but the eloquence of Burke in the dialogue, and lyric poetry on a level with Dryden's "Alexander's Feast," Gray's "Bard," or Campbell's "Last Man," in the chorus. Is it surprising that tragedies, exhibiting such a combination, worked out by the most perfect masters of the human heart, should have entranced every subsequent age?

Though one scene only was presented in each tragedy on the Greek stage, so that unity of place was effectually observed, yet unity of *time* was by no means so strictly attended to; so that the poet was far from being so fettered in this respect as is commonly imagined. Every scholar knows that a very considerable time, sometimes some hours, or half a day, were supposed to be consumed in the few minutes that the strophe and antistrophe of the chorus were in course of being chanted. For instance, in the *Antigone* of Sophocles, during the time that one of the chorus is reciting a few verses, the heroic sister has found out the body of her beloved brother, and, in violation of the command of Creon, bestowed on it the rites of sepulture. In the *Hecuba* of Euripides, in the brief space occupied by a chorus, her daughter Polyxine is led to the tomb of Achilles by Ulysses, and sacrificed there, in presence of the whole Greek army, to procure favourable gales for the return of the troops from Troy. In the *Electra* of the same author, during the strophes of one chorus, Orestes and Electra effect the death of the husband of Clytemnestra; during another, murder their unhappy mother herself. In the *Phænisæ* of Euripides, the duel between the two sons of Jocasta, their mutual slaughter, and the self-immolation of that fated mother

on the body of her beloved son Polynices, take place while the chorus were reciting a few verses, and are described when the actors return on the stage. In truth, it is often in the tragic events which thus take place behind the scenes during the chorus, but in close connexion with what had just before been exhibited on the boards, that a material part of the interest of the piece consists, and the art of the poet is shown. The interest is never allowed for a moment to flag; it is wrought up first by the anticipation of the catastrophe, then by its description; and the intervening period, when it was actually going forward, is filled up by the recital of sublime lyric poetry, at once causing the stop of time to be forgotten, affording a brief respite to the overwrought feelings, and yet keeping up the enthusiastic and elevated state of mind in the audience.

It is impossible to conceive a more perfect drama than the *Antigone* of Sophocles. The subject, the characters, the moral tone of the piece, are as perfect as its execution is masterly and felicitous. It possesses, what is not frequent in Greek tragedy, the interest arising from elevated moral feeling and heroic courage devoted to noble purposes. The steady perseverance of Antigone in her noble resolution to perform the last rites to her dead brother, in defiance of the cruel threats of Creon; the courage with which she does discharge those mournful duties; the rage of the tyrant at the violation of his commands; the momentary reappearance of the woman in Antigone, when she thinks of her betrothed, and contemplates her dreadful fate, to be shut up in a living tomb in the rock; the despair of Hæmon, who kills himself on the body of his beloved; the silent despair of his mother, which, unable to find words for its expression, leads to her self-immolation—the last victim of the curses bestowed on the race of Ædipus; are all portrayed with inimitable force and pathos. Simplicity of expression, depth of feeling, resolution of mind, are its great characteristics, as they are of all the works of Sophocles. It has been revived with signal success in recent times. If a translation could be made, which should render into English the force and beauty of the original language, the mingled energy and delicacy of Sophocles's conception, we should, indeed, have a perfect idea of the magic of the Greek drama. Such a translation is not beyond the bounds of possibility; the English language is capable of it, and could, in the hands of a master, render back a faithful image of the brevity and power of the

Greek. But that master must be a Sophocles, or a Shakspeare; and ages will probably elapse before the world produce either the one or the other.

The *Prometheus Vincit* of Æschylus is not properly a drama; at least, it has so little of the peculiar interest belonging to that species of poetry, that it can hardly be called such. Nevertheless, it is perhaps the most sublime composition that ever came from the thoughts of uninspired man. It is meant to portray the heroic devotion, the undaunted courage of Prometheus—the friend of man, the assuager of his sufferings, the aider of his enterprises—who was chained to a rock, exposed to the burning heats of summer, the shivering frosts of winter, by Jupiter, for having stolen fire—the parent of art, the spring of enterprise, the source of improvement—from heaven, to give it to the human race. From the expressions he uses on the ultimate results of that inestimable gift, one would almost suppose he had a prophetic anticipation of the marvels of Steam. The opening scene, where Prometheus is chained to a rock in Scythia, by Vulcan, in presence of "Force and Strength," the agents of Jupiter's commands; and the closing one, where he remains firm and unshaken amidst the wrath of the elements, the upheaving of the ocean, and the lightnings of heaven hurled at his devoted head, are of unrivalled sublimity. They literally realize the idea of the poet—

"Si fractus illabatur orbis,
Impavidum ferient ruinæ."

The *Prometheus Vincit* is the *Inferno* of Dante dramatised; but it is fraught with a nobler moral. It does not portray the sufferings of sin for past guilt; it exhibits the heroism of virtue under present injustice. It paints the triumph of devoted benevolence, sustained by unconquerable will, over the oppression of physical force, the tyranny of resistless power. It exhibits the charity of the Saviour in the *Paradise Regained*, united to the indomitable spirit of Satan, who is chained on the burning lake, in *Paradise Lost*. It is the prophetic wail of humanity, so often doomed to suffer in the best of causes from external injustice.

The *Iphigenia in Aulis* is the most perfect of all the tragedies of Euripides, and the best adapted for modern representation. The well-known story of the daughter of the King of Men being devoted to sacrifice, to appease the

angry deities, and procure favourable gales for the fleet on the way to Troy, and of the agony of her parents under the infliction, is developed with all the pathos and eloquence of which that great master of the tragic art was capable. Nothing can exceed the progressive interest which the character of Iphigenia excites. At first, horrorstruck, and shrinking with the timidity of her sex from the axe of the priest, she gradually rises when her fate appears inevitable, and at length devotes herself for her country with a woman's devotion, and more than a man's fortitude. In the French plays on the same subject, a love episode is introduced between her and Achilles; but the simplicity of the Greek original appears preferable, in which she had no previous acquaintance with the son of Peleus, and he is interested in her fate, and strives to avert it, only from finding that his name, as her betrothed, had, without his knowledge, been used by Agamemnon to induce Clytemnestra to bring her to the Grecian camp. Doubtless, the tenderness of Racine in the love-scenes between her and Achilles, is inimitable; but the simplicity of the Greek original, where grief on her parents' part for her loss, and her own heroic self-sacrifice on the altar of patriotic duty, are undisturbed by any other emotion, is yet more touching, and far more agreeable to ancient manners, where love on the woman's part, previous to marriage, was, as now in the East, almost unknown.

In these great masterpieces of ancient art, the unity of emotions is strictly preserved; and it is that, joined to the lofty moral tone preserved through the drama, which constitutes their unequalled charm. This, however, is not always the case in the Greek tragedies. They are not insensible to the effect of a high moral tone, or the development of poetical justice; but they did not regard either as the principal object, or even a material part, of dramatic composition. To delineate the play of the passions was their great object: Aristotle says expressly that was the end of tragedy. To that object they devoted all their powers; they succeeded in laying bare the human heart in its most agonized moments, and in its inmost recesses, with terrible fidelity. In this way, they frequently represented it as torn by a double distress, each prompting to atrocious actions; as in the *Medea* of Euripides, where the unhappy wife of Jason distracted by jealousy at the desertion and second marriage of her husband, destroys her own children in the fury of her vengeance against him; or the *Hecuba* of the same author, where the discrowned and captive widow of Priam, doomed in one day to see her

daughter sacrificed on the tomb of Achilles, and the dead body of her son washed ashore by the waves, takes a terrible vengeance on his murderer, by putting his children to death, and turning him, after his eyes have been put out, to beg his way through the world. The Greeks seem to have been deeply impressed with the evils, vicissitudes, and sufferings of life. No word occurs so frequently in their dramas as *evils*, (κακά.) In witnessing the delineation of its miseries on the stage, they seem to have held somewhat of the same stern pleasure which the North American Indians have in beholding the prolonged torture inflicted on a condemned captive at the stake. Every one felt a thrill of interest at beholding how another could bear a series of reverses and sufferings, which might any day be his own.

Notwithstanding all our admiration for the Greek tragedies, and firmly believing that they are framed on the true principle of dramatic composition—the neglect of which has occasioned its long-continued decline in this country—we are yet far from thinking them perfect. The age of the world, the peculiarities of ancient manners, rendered it impossible it should be so. We could conceive dramas more perfect and varied than any even of the masterpieces of Sophocles or Euripides. We are persuaded the world will yet see them outdone; though they will be outdone only by those who follow out their principles. But there are three particulars, in which, in modern times, themes of surpassing interest and importance are opened to the dramatic poet, which were of necessity unknown to the writers of antiquity; and it is by blending the skilful use of these with the simplicity and pathos of the Greek originals, that the highest perfection of this noble art is to be attained.

In the first place, the Greeks had no idea whatever of a system of divine superintendence, or moral retribution, in this world. On the contrary their ideas were just the reverse. FATE, superior to the decrees of Jove himself, was the supreme power which they discerned in all the changes of time; and it was the crushing of a human soul beneath its chariot-wheels that they principally delighted to portray. The omnipotence of Fate, in their opinion, was more shown in the destruction than the rewards of the good. Success in life they were willing enough to ascribe to the able conduct of the persons concerned; they only began, like the French, to speak about destiny when they were unfortunate. Their ignorance of the fundamental principles of religion, familiar to every peasant in Europe, shines forth in every page of

Sophocles and Euripides. The noblest tragedy of Æschylus, the *Prometheus Vincetus*, is intended to portray the highest divine benevolence overpowered by supreme power, and eternally suffering under eternal injustice. The frequent overthrow of virtue by wickedness, of innocence by fraud, of gentleness by violence, in this world, seems to have produced an indelible impression on their minds. They not only had no confidence in the divine justice, or the ultimate triumph of virtue over vice, but they had the reverse. They had a mournful conviction that innocence in this vale of tears was everlastingly doomed to suffering; that vice would eternally prove triumphant; and that it was in inward strength and resolution that the only refuge for oppressed virtue was to be found. Their greatest philosophers thought the same. Their tragedies were dramatised Stoicism. Grandeur of character, force of mind, the indomitable will, might be portrayed to perfection under such a belief; but the mild graces, the confidence in God, the resignation to his will, breathed into the human heart by the Gospel, were unknown. What a volume of thoughts and sentiments, of virtues and graces, were wanting in a world to which faith, hope, and charity were unknown! A dramatic Raphael was impossible in antiquity; it was the spirit of the Redeemer which inspired his *Holy Families*. Their morality, accordingly, is of a sterner cast than any thing with which we are acquainted in modern times. They were full of admiration of the qualities which formed the patriot and the hero, and have portrayed them to perfection in their dramas; but they were ignorant of that more heavenly disposition of mind, which

"sits a blooming bride,
By valour's arm'd and awful side."

They perceived the tendency of firm and unbending virtue to elevate the soul above all that is earthly; but they knew not, in the sublime language of Milton,

"That if virtue feeble were,
Heaven itself would stoop to her."

As a necessary consequence of this, the dramas of antiquity were destitute of those feelings of PIETY, which form so important a part in the most elevated characters of modern Europe. The ancients carried mere human

virtue to the very highest point; in their poetry, their tragedies, their philosophy, they represented man resting on himself alone in the noblest aspect. But they were ignorant of God; they had no correct ideas of Heaven. The devotion to the divine will, the forgetfulness of self, the reliance on Supreme protection to innocence, the appeal to the Almighty, and the judgment of another world against the injustice of this, which runs through the most exalted conceptions of modern times, were to them unknown. Their ideas of the celestial beings were entirely drawn from human models: Olympus was peopled by gods and goddesses animated by passions, divided by jealousies, stimulated by desires entirely akin to those which are felt in this world. The shades below were a dark and gloomy region, the entrance to which was placed in the jaws of Vesuvius, or the dreary expanse of the Cimmerian Bosphorus, through which the cries of the damned in Tartarus incessantly resounded; and where even the blessed spirits in Elysium were continually regretting the joys and excitement of the upper world. Dante, in his *Inferno*, has painted to the life their prevailing ideas of futurity; the next world to them contained nothing but successive circles of Malebolge. Homer has expressed their feeling in a line, when he makes Achilles, in Elysium, say to Ulysses, on his descent to the infernal regions, that he would rather command the Grecian army one day, than dwell where he was through an infinity of ages. Compare this with the ideas of the Crusaders in modern Europe; with the death of the chivalric Bayard, when, mortally wounded, seated on the ground, with his eyes fixed on the cross of his sword, he said to the victorious Constable de Bourbon, "Pity not me—pity those who fight against their king, their country, and their oath!"

Lastly, the passion of love, as it is understood and felt in modern times, was unknown in antiquity; and to those who reflect how important a part it bears in the romances and plays of Europe, this will probably appear like performing Hamlet with the character of the Prince of Denmark omitted on the occasion. It was impossible they could have it, because their manners were much more Oriental than European; and young persons of opposites sexes rarely, if ever, met before marriage. They had a perfect idea of the mutual affection which arises after marriage; the tenderness of Hector and Andromache never has been surpassed in any tongue. With the passions of the harem they were perfectly familiar, and the dreadful pangs of jealousy never have been painted with more consummate ability, or more thorough

knowledge of human nature. Euripides, in particular, has delineated the terrible effects of that passion with a master's hand; witness the raving of Medea at the desertion of Jason; the fury of Hermione at the captive Andromache. Love also, as it arises now in an Eastern seraglio, was not unknown to them; the passion of Phædra for Hippolytus, as painted by Euripides, is a proof of it. But the love they thus conceived, had scarce any resemblance to the passion of the same name, which has risen up with the general intercourse of the sexes, and chivalrous manners of modern Europe. It is represented rather as a fever, as a fit of insanity, than any thing else; and is usually held forth as the withering blast inflicted by an offended deity, or the mania bequeathed as an inheritance on an accursed race. The refined and ennobling passion, so well-known and exquisitely described by the great masters of the human heart in modern times, that of Othello for Desdemona, of Tancrede for Clorinda, of Corinne for Oswald, was unknown in antiquity. Even the passions described by Ovid, which arose amidst the freer manners of the Roman patricians, had little resemblance to the refined sentiments, the bequest of the age of chivalry; the one was founded on the subjugation of mind by the senses, the other on the oblivion of the senses in the mind. What a vast addition to the range and interest of the drama has the refining and spiritualizing of this master-passion of the human breast, by the influence of Christianity, and the institutions of chivalry, made; and how inexcusable does it render modern genius, if, with such an additional chord to touch in the human heart, it has never yet rivalled the great models of antiquity!

And has modern genius not yet equalled the masterpieces of the drama in ancient Greece? We answer, decidedly not—either on the Continent or this country—any more than modern sculpture has rivalled the perfections of Grecian statuary. Neither in the old French and Italian school, which followed the ancient models, nor in the Romantic school in which old England and young France proposed to rival it, has any thing approaching to the interest and pathos of the Athenian dramatists been produced. It is not difficult to see what have been the causes of this inferiority, and they seem to have been these.

The regular drama of France was addressed, entirely and exclusively, to the court, the noble, and the highly educated classes. It was nothing more than an extension of the theatres of Versailles. The opinion of Louis XIV., his

ministers or mistresses, of the Duke of Orleans, and a few leading nobles of Louvois, and one or two statesmen, were all in all. The approbation of the king stamped a tragedy in public opinion, as his dancing with her stamped the estimation of a new court beauty. The voice and feelings of the middle or lower ranks of society had no more to say on the subject than they had in the formation of court dresses, or the etiquette of the *Œil de Bœuf*. They took their opinions from that of the magnates of the land, as milliners and tailors now do from the dresses of London and Paris. Rank and fashion were paramount in literature, as they are still in manner, dancing, and etiquette. It was impossible that the drama, addressed to, and having its success dependent on, the approbation of such an audience, could faithfully paint the human heart. The stately dances and haughty seigneurs of Versailles, would have been shocked with the vehement bursts of passion, the pathetic traits of nature, the undisguised expression of feeling, which appeared in Euripides and Sophocles, and entranced the mixed and more natural audience of Athens. It would have appeared vulgar and painful; it revealed what it was the great object of art and education to conceal. The stately Alexandrine verses, the sonorous periods, the dignified and truly noble thoughts, which so strongly characterize the French tragedies, arose naturally, and perhaps unavoidably, from the habits and tastes of the exclusive aristocratic circle to which they were addressed. In addition to this, the audience were all highly educated; at least according to the ideas and habits of the times. Classical images were those which recalled the most pleasing associations in every mind; classical events awakened the emotions most likely to prove generally attractive. The ancient models were before every mind, from the effect of early and universal education. Classical allusions and subjects were as unavoidable, as they now are in the prize poems of Oxford or Cambridge. Thus, the drama of Athens naturally was assumed as the model of modern imitation; but on it was ingrafted, not the vehemence and nature of the Greek originals, addressed to all mankind, but the measured march of heroic versification, intended for a narrow and dignified feudal circle.

Making allowance for this peculiarity, and considering the drama as, from this cause, diverted from its real object and highest flight, it is impossible to conceive any thing more perfect than the masterpieces of the French stage. Corneille was their greatest composer; he had most original genius, and was

least fettered by artificial rules. He was the Æschylus of the French theatre. Voltaire said, that the king's ministers should be compelled to attend the performance of his finest pieces, to acquire the knowledge of human nature, and statesmanlike views requisite for the government of man. Napoleon said, if Corneille had lived in his time, he would have made him a counsellor of state; for he alone, of all writers, felt the overpowering importance of state necessity. The great Condé wept at the generosity of sentiment portrayed in his *Britannicus*. It is impossible to conceive any thing more dignified and elevated, more calculated to rouse the generous and lofty feelings, to nourish that forgetfulness of self and devotion to others, which is the foundation of every thing great and good in this world, than his finest tragedies. They are, however, very unequal. *Cinna*, *Les Horaces*, the *Cid*, and *Rodogune*, are his masterpieces; it is they which have won for him, by the consent of all nations, the surname of "le Grand Corneille." But still it is not nature which is generally represented in his tragedies. It is an ideal nature, seven foot high, clad in impenetrable panoply, steeled against the weaknesses, as above the littlenesses of humanity. Persons of a romantic, lofty tone of mind, will to the end of the world be fascinated by his pages; heroic resolutions, great deeds, will ever be prompted by his sentiments. But they are above the standard of common life. They evince a deep knowledge of human nature, but of human nature in noble and heroic bosoms only—and that is widely different from what it obtains with ordinary men. Hence his pieces are little adapted for general representation; and certainly, even the best translations of them never could succeed in this country.

Racine is a more general favourite than Corneille, because he paints feelings more commonly experienced; but he wants his great and heroic sentiments. No one ever thought of calling him the Great. Less deeply imbued with the lofty spirit of chivalry, less romantic in his structure, less commanding in his ideas, he is more polished, more equal, and has a greater command of the pathetic. He is to Corneille what Virgil was to Homer, what Raphael to Michael Angelo. The anguish of the human heart was what he chiefly loved to represent, because he felt that there he excelled; and hence his tragedies are chiefly formed on the Greek model, and on the subjects already treated by Sophocles and Euripides. Agamemnon, Achilles, Alcestes, Orestes, Clytemnestra, Iphigenia, Œdipus, Hermione, Jocasta,

Antigone, reappear on his pages, as in those of the masters of the Greek drama. But they reappear in a modern dress. They are very different from the inimitable simplicity of the originals. The refinements, conceits, extravagant flattery, politeness, and stately manners of the Grand Monarque, shine through every line. Achilles makes love to Iphigenia as if she were in the marbled gardens of Versailles; the passion of Phèdre for Hippolyte, is the refined effusion of modern delicacy, not the burning fever and maniac delirium of Phædra in Euripides. His Greek heroes and heroines address each other as if they were in the *Œil de Bœuf*; it is "monsieur" and "madame" at every step. Under classical names, and with the scene laid in distant lands, it is still the ancient *régime* of France which is portrayed in all his pieces—it is the passions and distresses of an old and highly civilized society which are depicted. Even *Athalie*, his masterpiece, has none of the ancient Jewish spirit in it; it is the modern priesthood which is represented as resisting oppression in the temple of Jerusalem. But the beauty of language, the melody of versification, the delicacy of sentiments, the frequent touches of the pathetic which his writings exhibit, will for ever secure him a high place in the opinion of men; and justify the saying of Voltaire, that whoever would acquire a pure and elegant French style, must have the *Petit Carême* of Massillon, and *Athalie* of Racine, constantly lying on his writing table.

Voltaire, though he adhered, in part at least, to the old subjects in his tragedies, is far more various and discursive in his mode of treating them. The prodigious fecundity of the author of a hundred volumes, the varied acquisitions of the philosopher, the historian, the satirist, the moralist, give diversity to his subjects, and an endless variety to his ideas. He possessed, as it were, a polyglot mind; he threw himself into the feelings and passions of every country and every age, and brought out in his dramas part at least of the inexhaustible store of human thoughts and events which have from the beginning of time agitated the human race. The East, with its sultans, its harems, its sultanas, and its jealousies, strongly arrested his imagination, and furnished the subjects of some of his finest pieces; witness *Mahomet*, *Bajazet*, *Tamerlane*, and *Zaïre*. For this reason his tragedies are more general favourites now than either those of Corneille or Racine; you will see the audience in the parterre of the Théâtre Français repeating whole speeches from *Brutus*, *Alzire*, or *Le Fanatisme*, after the performer on the

stage. They have sunk deeper into the general mind than any of their predecessors; more of their lines have become household expressions, as is the case with Shakspeare, Gray, and Campbell in England, than those of any other author in the French language. Voltaire, too, was strongly impressed with the necessity of keeping up the interest of his piece from first to last; he drives on the story with an untiring hand, and even before the final catastrophe, contrives to produce a passing excitement at every step, by subordinate and yet important events. What he constantly complains of in his admirable commentaries on Corneille is, that, in his inferior pieces at least, that great master lets the story flag, the interest die away, and that, trusting to the fascination of his language, the power of his thoughts, he neglects the important matters of dramatic power and stage effect. His perfect knowledge of both these important auxiliaries of his art, is not the least of Voltaire's many excellences; and has secured for him, to all appearance permanently, if not the first, unquestionably the most popular place in the French theatre. But still his dramas do not represent nature. They are noble pieces of rhetoric put into rhyme. They are the ablest possible debate arrayed in the pomp of Alexandrine verse. But they do not touch the heart like a few words in Sophocles, Euripides, or Shakspeare.

Metastasio was fettered by a double set of rules; for he was compelled to attend at once to the dramatic unities of Aristotle, and the musical restraints of the opera. It was no common genius which, amidst such difficulties, could produce a series of dramas which should not merely charm the world, when arrayed in the enchanted garb of the opera, with all the attractions of music and scenery, but form a perpetual subject of pleasing study to the recluse, far from the pomp and magnificence of theatric representation. It is impossible to imagine any thing more attractive than his dramas, considered as visionary pieces. Formed on the events of the ancient world, he depicts, under the name of Alexander, Titus, Dido, Regulus, Cæsar, and Cleopatra, ideal beings having about as much resemblance to real mortals as the nymphs of the ballet have to ordinary women, or the recitative of Mozart to the natural human voice. But still they are very charming. If they are not a feature of this world, they are a vision of something above it; of a scene in which the littlenesses and selfishness of mortality are forgotten; in which virtue is generally in the end triumphant; in which honour in women proves victorious over love, and fortitude in men obtains the mastery of fortune.

Generosity and magnanimity beyond what could have been even conceived, often furnishes the *dénouement* of the piece, and extricates the characters from apparently insurmountable difficulties. There can be no doubt this is not human life: Alexander the Great, Dido, Regulus, are not of every day's occurrence. But the total departure of such representations from the standard of reality, appears less reprehensible in the opera than the ordinary theatre, because the singing and recitative at any rate remove it from off the pale of mortality. We take up one of his dramas as we go to the opera, not to see any picture of actual existence, or any thing which shall recall the experienced feelings of the human heart, but to be charmed by a fairy tale, which, if it does not paint the stern realities of life, at least charms by its imagination.

The more impassioned mind and vehement passions of Alfieri disdained those trammels by which the French and Italian stages had so long been fettered. Gifted by nature with an ardent imagination, impetuous feelings, deep and lasting emotions, he early saw that the modern drama, founded on, and fettered by, the strict observance of the Greek unities, and yet discarding its broken and rapid diction, its profound knowledge of the human heart, its vehement expression of passion, had departed far from the real object of the art, and could not be brought back to it but by a total change of system. He has himself told us, in his most interesting life, that when he read the tragedies of Racine and Corneille, the book fell from his hands. They conveyed no idea whatever of reality; they had no resemblance to the ardent feelings which he felt burning in his own breast. Anxiously seeking vent for passions too fierce to be controlled, he found it in the study of the Greek drama. The wrath of Medea, the heroism of Antigone, the woes of Andromache, the love of Phædra, found a responsive echo in his bosom; they combined every thing he could desire, they represented every thing that he felt. He saw what Tragedy had been—what it ought to be. His taste was immediately formed on the true model. When he came to write tragedies himself, he composed them on the plan of Sophocles. He did more. He made the language as brief, the voice of passion as powerful, the plot as simple; but he brought even fewer characters on the stage. He trusted entirely to the force of passion the wail of suffering, the accents of despair. Immense was the effect of this recurrence to unsophisticated feeling, in a luxurious and effeminate society. It was like the burst of

admiration with which the picture of the human heart was at the same time hailed in France, drawn by the magic hand of Rousseau; or, in the next age, the fierce passions of the melodramatic corsairs of Byron were received in the artificial circles of London society. Nature was something new; they had never heard her voice before.

Had Alfieri, with this ardent mind and clear perception of the true end of the drama, been endowed with that *general* knowledge of the human heart, and of human character in all its bearings, which the Greek dramatists possessed he would have formed the greatest tragedian of modern continental Europe. But in these vital particulars he was very deficient. His position in society, character, and habits, precluded him from acquiring it. The dissipated, heartless nobleman, who flew from one devoted passion to another, without the slightest compunction as to their effects on the objects of his adoration; who fought Lord Ligonier in the Park, in pursuance of an intrigue with his lady; and stole from the Pretender his queen, when age and dissipation had wellnigh brought him to the grave; who traversed, post-haste, France and Italy with fourteen blood-horses, which he wore out in his impetuous course, was not likely either to feel the full force of the generous, or paint the *real* features of the selfish passion. He did not mingle with the ordinary world on a footing of *equality*. This it is which ever makes aristocratic and high-bred authors ignorant of the one thing needful in history or the drama—a knowledge of human nature. No man ever learned that, who had not been practically brought into collision with men in all ranks, from the highest to the lowest. Hence his characters are almost all overdrawn. Vice and virtue are exhibited in too undisguised colours; the malignity of the wicked is laid too bare to the reader. He makes the depraved *admit they are bad, but yet persevere in their crimes*; a certain proof that he did not know the human heart. He knew it better who said, "The heart is *deceitful above all things*, and desperately wicked." Napoleon knew it better when he said to Talma, after seeing his representation of Nero in *Britannicus*—"You are quite wrong in your idea of Nero; you should *conceal the tyrant*. No man admits he was guilty either to himself or others." Alfieri himself is a proof of it: he recounts, in his life, many criminal acts he committed, but never with the slightest allusion to their having been wrong. He admitted, later in life, that he had been ignorant of human nature in the great body of mankind; for he said, on recounting the horrors of the 10th August, which

he had witnessed at Paris—"Je connais bien les grands, *mais je ne connais pas les petits.*"

It is hard to say whether Schiller belongs to the Greek or Romantic school in the drama. His subjects are in great part chosen from the latter class: he changes the scene, and did not hold himself bound by the rules of Aristotle. But in his mode of treating these subjects, he approaches more nearly to the tragedians of antiquity. He utterly discarded the limited range of subjects, and measured pomp of the French drama; he felt that the world had grown old since the days of Euripides, and that it was time for tragedy to embrace a wider range of subjects than the family disasters which followed the return of the Greeks from the siege of Troy. He knew that it was not in stately rhyme or measured cadences, that passion finds vent from the human breast. He was essentially historical in his ideas. The past with its vast changes and endless variety of events, lay open before him. And he availed himself of all its riches. He is unequalled in the ability with which he threw himself into his subject, identified himself, not merely with the characters, but the periods in which they arose, and brought before the mind of the spectators the ideas, interests, passions, and incidents, the collision of which produced the catastrophe which formed the immediate subject of his piece. The best informed English or Scottish historians will have something to learn on the history of Queen Mary, from the incomparable summary of arguments for and against her detention in captivity by Queen Elizabeth, in the two first acts of his noble tragedy of *Mary Stuart*. The learned Spaniard will find himself transported to the palace of the Escorial, and the frightful tragedies of its bigoted court, in his terrible tragedy of *Don Carlos*. Schiller rivals Shakspeare himself in the energy with which, by a word or an epithet, he paints the fiercest or tenderest passions of the heart: witness the devoted love of Thekla for Max in *Wallenstein*; or the furious jealousy of the Queen in *Don Carlos*. He has not the grotesque of Shakspeare; we do not see in his tragedies that mixture of the burlesque and the sublime which is so common in the Bard of Avon, and is not infrequent with the greatest minds, who play, as it were, with the thunderbolts, and love to show how they can master them. Hence, in reading at least, his dramas produce a more uniform and unbroken impression than those of the great Englishman, and will, with foreign nations, command a more general admiration. But the great charm in Schiller is the romantic turn of mind, the noble elevation of sentiment,

the truly heroic spirit, with which his tragedies abound. In reading them, we feel that a new intellectual soil has been turned up in the Fatherland; the human soul, in its pristine purity and beauty, comes forth from beneath his hand; it reappears like the exquisite remains of Grecian statuary, which, buried for ages in superincumbent ruins, emerge pure and unstained in virgin snow, when a renewal of cultivation has again exposed them to the light. If he were equally great at all times, he would have been the most perfect dramatist of modern times. But he is far from being so. At times he is tedious; often dull; it is his great scenes, such as the last sacrament of Queen Mary, which have gained for him his colossal reputation, and produce an indelible impression on the mind of his reader.

We have exhausted, perhaps exceeded, our limits and we have only got through half our subject. A noble theme remains: Shakspeare, with the Romantic drama, will be treated in the Number which is to follow; and the causes considered which have brought the school, created by such a master, into the state of comparative mediocrity in which, with some brilliant exceptions, it is now placed.

FOOTNOTES:

[J] The first wrote *eighteen hundred* plays, the variety in the plots of which is so prodigious, that they are the great quarry from which almost all subsequent dramatic writers have borrowed the elements of their theatrical pieces.

[K] Euripides was fifteen years younger than Sophocles—the latter being born in the year 495 B.C., the former in 480; and they thrice contended for the prize at the public games of Greece.

[L] Miss Cushman's *Lady Macbeth* is a performance of the very highest merit, and proves that the genius of the stage is capable of being matured in transatlantic climes.

[M] At the execution of Doolan and another, for a combination murder near Glasgow, on May 13th, 1842.

[N] Schiller's dramas are of the modern kind, and the unities are not strictly observed; but his finer pieces belong more nearly to the Grecian than the Romantic school.

MY COLLEGE FRIENDS.

No. III.

MR W. WELLINGTON HURST.

It would probably puzzle Mr William Wellington Hurst, as much as any man, to find out on what grounds I placed him on the list of my College friends; for certainly our intimacy was hardly sufficient to warrant such a liberty; and he was one of those happy individuals who would never have suspected that it could be out of gratitude for much amusement afforded me by sundry of his sayings and doings. But so it is; and it happens, that while the images of many others of my companions—very worthy good sort of fellows, whom I saw more or less of nearly every day—have vanished from my memory, or only flit across occasionally, like shadows, the full-length figure of Mr W. Wellington Hurst, exactly as he turned out, after a satisfactory toilet, in the patent boots and scarf of many colours, stands fixed there like a daguerreotype—more faithful than flattering.

My first introduction to him was by running him down in a skiff, when I was steering the College eight—not less to his astonishment than our own gratification. It is perfectly allowable, by the laws of the river, if, after due notice, these small craft fail to get out of your way; but it is not very easy to effect. However, in this instance, we went clean over him, very neatly indeed. The men helped him into our boat, just as his own sunk from under him; and he accepted a seat by my side in the stern-sheets, with many apologies for being so wet, appearing considerably impressed with a sense of my importance, and still more of my politeness. When we reached Sandford, I prescribed a stiff tumbler of hot brandy and water, and advised him to run all the way home, to warm himself, and avoid catching cold; and, from that time, I believe he always looked upon me as a benefactor. The claim, on my part, certainly rested on a very small foundation originally; it was strengthened afterwards by a less questionable act of patronage. Like many other under-graduates of every man's acquaintance,

Hurst laboured under the delusion, that holding two sets of reins in a very confused manner, and flourishing a long whip, was driving; and that to get twenty miles out of Oxford in a "team," without an upset, or an imposition from the proctor, was an *opus operatum* of the highest possible merit. To do him justice, he laboured diligently in the only exercise which he seemed to consider strictly academical—he spent an hour every morning, standing upon a chair, "catching flies," as he called it, and occasionally flicking his scout with a tandem whip, and practised incessantly upon tin horns of all lengths, with more zeal than melody, until he got the erysipelas in his lower lip, and a hint of rustication from the tutors. Yet he was more ambitious than successful. His reputation on the road grew worse and worse every day. He had a knack of shaving turnpike gates, and cutting round corners on one wheel, and getting his horses into every possible figure but a straight line, which made every mile got over without an accident almost a miracle. At last, after taking a four-in-hand over a narrow bridge, at the bottom of a hill, pretty much in the Olympic fashion—all four abreast—men got rather shy of any expeditions of the kind in his company. There was little credit in it, and a good deal of danger. First, he was reduced to soliciting the company of freshmen, who were flattered by any proposal that sounded *fast*. But they, too, grew shy, after one or two ventures; and poor Hurst soon found a difficulty in getting a companion at all. He was a liberal fellow enough, and not pushed for a guinea when his darling science was concerned: so he used to offer to "sport the train" himself; but even when he condescended to the additional self-devotion of standing a dinner and champagne, he found that the closest calculators among his sporting acquaintance had as much regard for their necks as their pockets.

To this inglorious position was his fame as a charioteer reduced, when Horace Leicester and myself, early in his third term, had determined somewhat suddenly to go to see a steeple-chase about twelve miles off, where Leicester had some attraction beside the horses, in the shape of a pretty cousin; (*two*, he told me, and bribed me with the promise of an introduction to "the other," but she did not answer to sample at all.) We had engaged a very nice mare and stanhope, which we knew we could depend upon, when, the day before the race, the chestnut was declared lame, and not a presentable four-legged animal was to be hired in Oxford. Hurst had engaged his favourite pair of greys (which would really go very well with

any other driver) a week beforehand, but had been canvassing the last batch of freshmen in vain for an occupant of the vacant seat. A huge red-headed north-country man, who had never seen a tandem in his life, but who, as far as pluck went, would have ridden postilion to Medea's dragons, was listening with some apparent indecision to Hurst's eloquence upon the delights of driving, just as we came up after a last unsuccessful search through the livery stables; and the pair were proceeding out of college arm in arm, probably to look at the greys, when Leicester, to my amusement, stepped up with—"Hurst, who's going with you to B——?"

"I—why, I hardly know yet; I think Sands here will, if"——

"I'll go with you then, if you like; and if you've got a cart, Hawthorne can come too, and it will be very jolly."

If the university had announced their intention of creating him a B.A. by diploma, without examination, Hurst could hardly have looked more surprised and delighted. Leicester, it should be borne in mind, was one of the most popular men in the college—a sort of *arbiter elegantiarum* in the best set. Hurst knew very little of him, but was no doubt highly flattered by his proposal. From coaxing freshmen to come out by the bribe of paying all expenses, to driving to B—— steeple-chase side by side with Horace, (my modesty forbids me to include myself,) was a step at once from the ridiculous to the sublime of tandemizing. For this advancement in life, he always, I fancy, considered himself indebted to me, as I had originally introduced him to Leicester's acquaintance; and when we both accepted an invitation, which he delivered himself of with some hesitation, to breakfast in his rooms on the morning of the expedition, his joy and gratitude appeared to know no bounds. It is not usual, be it remembered, for a junior man in college to ask a senior to a party from whom he has never received an invitation himself; but hunting and tandem-driving are apt occasionally to set ordinary etiquette at defiance. "Don't ask a lot of men, that's all—there's a good fellow," said Horace, whose good-natured smile, and off-hand and really winning manner, enabled him to carry off, occasionally, a degree of impudence which would not have been tolerated from others—"I hate a large formal breakfast party of all things; it disgusts me to see a score of men jostling each other over tough beefsteaks."

"I asked Sands yesterday," apologised Hurst. "I thought perhaps he would come out with me; but I dare say I can put him off, if"——

"Oh! on no account whatever; you mean the carrotty freshman I saw you with just now? Have him by all means; it will be quite refreshing to meet any man so regularly green. So there will be just four of us; eight o'clock, I suppose? it won't do to be much later."

And Horace walked off, having thus arranged matters to his own satisfaction and his host's. I was an interested party in the business, however, and had my own terms to make. "You've disposed of me rather coolly," said I; "you don't surely imagine, that at my time of life I'm going to trust my neck to that fellow's furious driving?"

"Make your mind easy, Frank; William Wellington sha'n't finger a riband."

"Nonsense, Leicester; you can't treat a man in that kind of way—not to let him drive his own team. Hurst *is* a bit of an ass, certainly; but you can't with any decency first ask a man for a seat, and then refuse to give him up the reins."

"Am I in the habit, sir, of doing things in the very rude and ungentlemanly style you insinuate?" And Horace looked at me with mock dignity for a second or two, and then burst into a laugh. "Leave it to me, Hawthorne, and I'll manage it to the satisfaction of all parties: I'll manage that Hurst shall have a capital day's fun, and your valuable neck shall be as safe as if you were tried by a Welsh jury."

With this indefinite assurance I was obliged to be content; and accordingly, at half-past eight the next morning, after a very correct breakfast, we mounted the tandem-cart at the college back-gates, got the leader hitched on, as usual, a mile out of the city, for fear of proctors, and were bowling merrily along, in the slight frost of an autumn morning, towards B——. Leicester took the driving first, by Hurst's special request, after one or two polite but faint refusals, the latter sitting by his side; while I occupied, for the present, the queer little box which in those days was stuck on behind, (the more modern carts, which hold four, are an improvement introduced into the University since my driving days.) With wonderful gravity and importance did Leicester commence his lectures on the whip to his

admiring companion: I almost think he began in the approved style, with a slight allusion to the Roman *biga*, and deduced the progress of the noble science from Erichonius down to "Peyton and Ward." I have a lively recollection of a comparison between Automedon of the Homeric times, and "Black Will" of Oxford celebrity—the latter being decided as only likely to be less immortal, because there was no Homer among the contemporary under-graduates. A good deal was lost to me, no doubt, from my position behind; but Hurst seemed to suck it all in with every disposition to be edified. From the history of his subject, Horace proceeded, in due course, to the theory, from theory to facts, from facts to illustrations. In the practical department, Horace, I suspect, like many other lecturers, was on his weakest ground; for his own driving partook of the undergraduate character.

"You throw the lash out so—you see—and bring it back sharp, so—no, not so exactly—so—hang the thing, I can't do it now; but that's the principle, you understand—and then you take up your double thong, so—pshaw, I did it very well just now—to put it into the wheeler, so—ah, I missed it then, but that's the way to do it."

He put me considerably in mind of a certain professor of chemistry, whose lectures on light and heat I once was rash enough to attend, who, after a long dry disquisition which had nearly put us all to sleep, used to arouse our attention to the "beautiful effects" produced by certain combinations, which he would proceed to illustrate, as he said, by a "little experiment." But, somehow or other, these little experiments always, or nearly always, failed: and after the room had been darkened, perhaps, for five minutes or so, in order to give the exhibition full effect, the result would be, a *fizz* or two, a faint blue light, and a stink, varying according to circumstances, but always abominable. "It's very odd, John," the discomfited operator used to exclaim to his assistant; "very odd; and we succeeded so well this morning, too: it's most unaccountable: I'm really very sorry, gentlemen, but I can assure you, this very same experiment we tried to-day with the most beautiful result; didn't we, John?" "We did, sir," was John's invariably dutiful reply: and so the audience took John's word for it, and the experiment was considered to have been, virtually, successful.

So we rattled on to the ground: Leicester occasionally putting the reins into his companion's hand, teaching him to perform some impossible movement with his third finger, and directing his attention to non-existent flies, which he professed to remove from the leader, out of sheer compassion, with the point of the whip.

"You are sure you wouldn't like to take the reins now? Well, you'll drive home then, of course? Hawthorne, will you try your hand now? Hurst's going to take up the tooling when we come back."

"No, thank you," said I; "I won't interfere with either of your performances."—"And if Hurst does drive home," was my mental determination, expressed to Leicester as far as a nod can do it, "I'll walk."

There was no difficulty in finding out the localities: the field in which the winning-flag was fixed was not far from the turnpike road, and conspicuous enough by the crowd already collected. Of course, pretty nearly all the sporting characters among the gowmsmen were there, the distance from the University being so trifling. Mounted on that seedy description of animal peculiar to Oxford livery-stables, which can never by any possibility be mistaken for any thing but a hired affair, but will generally go all day, and scramble through almost any thing; with showily mounted jockey-whips in their hands, bad cigars (at two guineas a-pound) in their mouths, bright blue scarfs, or something equivalent, round their necks—their neat white cords and tops (things which they *do* turn out well in Oxford) being the only really sportsmanlike article about them; flattering themselves they looked exceedingly knowing, and, in nine cases out of ten, being deceived therein most lamentably; clustered together in groups of four or five, discussing the merits of the horses, or listening, as to an oracle, to the opinion of some Oxford horse-dealer, delivered with insolent familiarity—here were the men who drunk out of a fox's head, and recounted imaginary runs with the Heythrop. Happy was he amongst them, and a positive hero for the day, who could boast a speaking acquaintance with any of those anomalous individuals, at present enshrouded in great-coats, but soon to appear in all the varieties of jockey costume, known by the style and title of "gentlemen riders;" who could point out, confidentially, to his admiring companions, "Jack B——," and "Little M——," and announce, from authority, how many ounces under weight one was this morning, and how many blankets

were put upon the other the night before, to enable him to come to the scales at all. Here and there, more plainly dressed, moving about quickly on their own thorough-breds, or talking to some neighbouring squire who knew the ground, were the few really sporting-men belonging to the university; who kept hunters in Oxford, simply because they were used to keep them at home, and had been brought up to look upon fox-hunting as their future vocation. Lolling on their saddles, probably voting it all a bore, were two or three tufts, and their "tail;" and stuck into all sorts of vehicles, lawful and unlawful, buggies, drags, and tandems, were that ignoble herd, who, like myself, had come to the steeple-chase, just because it was the most convenient idleness at hand, and because other men were going. There were all sorts of people there besides, of course: carriages of all grades of pretension, containing pretty bonnets and ugly faces, in the usual proportion; "all the beauty and fashion of the neighbourhood," nevertheless, as the county paper assured us; and as I may venture to add, from personal observation, a very fair share of its disrespectability and blackguardism besides.

After wandering for a short time among these various groups, Leicester halted us at last in front of one of those old-fashioned respectable-looking barouches, which one now so seldom sees, in which were seated a party, who turned out to consist of an uncle and aunt, and the pair of cousins before alluded to. Hurst and I were duly introduced; a ceremony which, for my own part, I could have very readily excused, when I discovered that the only pair of eyes in the party worth mentioning bestowed their glances almost exclusively on Horace, and any attempt at cutting into the conversation in that quarter was as hopeless, apparently, as ungracious. Our friend's taste in the article of cousins was undeniably correct; Flora Leicester was a most desirable person to have for a cousin; very pretty, very good-humoured, and (I am sure she was, though I pretend to no experience of the fact) very affectionate. If one could have put in any claim of kindred, even in the third or fourth degree, it would have been a case in which to stickle hard for the full privileges of relationship. As matters stood, it was trying to the sensibilities of us unfortunate bystanders, whose cousins were either ugly or at a distance; for the rest of our new acquaintances were not interesting. The younger sister was shy and insipid; the squire like ninety-nine squires in every hundred; and the lady-mother in a perpetual state of

real or affected nervous agitation, to which her own family were happily insensible, but which taxed a stranger's polite sympathies pretty heavily. Though constantly in the habit, as she assured me, of accompanying her husband to run courses, and enjoying the sport, she was always on the lookout for an accident, and was always having, as she said, narrow escapes; some indeed so very narrow, that, according to her own account, they ought *to have had, by every rule of probability, fatal terminations*. In fact, her tone might have led one to believe that she looked upon herself as an ill-used woman, in getting off so easily—at least she was exceedingly angry when the younger daughter ventured to remark, *en pendant* to one of her most thrilling adventures, that "there was no great danger of an upset when the wheel stuck fast." Not content with putting her head out of the carriage every five minutes, to see if her own well-trained bays were standing quiet, as they always did, there was not a restive horse or awkward rider on the ground but attracted the good lady's ever watchful sense of danger. "He'll be thrown! I'm sure he will! foolish man, why don't he get off!" "Oh, oh! there they go! they're off, those horrid horses! they'll never stop 'em!" Such were the interjections, accompanied with extraordinary shudderings and drawings of the breath, with which Mrs John Leicester, her eyes fixed on some distant point, occasionally broke in upon the general conversation, sometimes with a vehemence that startled even her nephew and eldest daughter, though, to do them justice, they paid very little attention to any of us.

Just as I was meditating something desperate, in order to relieve myself from the office of soother-general of Mrs Leicester's imaginary terrors, and to bring Flora's sunny face once more within my line of vision, (she had been turning the back of her bonnet upon me perseveringly for the last ten minutes,) a general commotion gave us notice that the horses were started, and the race begun. The hill on which we were stationed was close to the winning-post, and commanded a view of pretty nearly the whole ground from the start. The race, as, I suppose, pretty nearly like other steeple-chases, and there is the less need for me to describe it, because a very full and particular account appeared in the *Bell's Life* next ensuing. The principal impressions which remain on my mind, are of a very smart gentleman in black and crimson, mounted on a very powerful bay, who seemed as if he had been taking it easy, who came in first, and after having

been sufficiently admired by an innocent public, myself among the number, as the winner, turned out to have gone on the right hand instead of the left, of some flag or other, and to have lost the race accordingly; and of a very dirty-looking person, who arrived some minute or two afterwards without a cap, whose jacket was green and his horse grey, so far as the mud left any colour visible, and who, to the great disappointment, of the ladies especially, turned out to be the real hero after all.

We had made arrangements to have an independent beefsteak together after the race, in preference to joining the sporting ordinary announced as usual on such occasions; but the squire insisted on Leicester bringing us both to dine with his party at five. After a few modest and conscientious scruples on my part, at intruding on the hospitality of comparative strangers, and a strong private remonstrance from Hurst, on the impropriety of sitting down to dinner with ladies in a surtout and white cords, we accepted the invitation, and betook ourselves to kill the intervening hour or so as we best could.

"Well, Horace," said I, as Hurst went off to make his apology for a toilet—"how are you going to settle about the driving home?"

"Oh! never fear; I'll manage it: I have just seen Miller and Fane; they've got a drag over here, and there's lots of room inside; so they've promised to take Hurst home with them, if we can only manage to leave him behind: they are going to dine here, and are sure not to go home till late; and we must be off early, you know, because I have some men coming to supper; so we'll leave our friend behind, somehow or other. A painful necessity, I admit; but it must be done, even if I have to lock him up in the stable."

Leicester seemed to have more confidence in his own resources than I had; but he was in too great a state of excitement to listen to any demurrers of mine on the point, and hurried us off to join his friends. Ushered into the drawing-room A. 1. of the Saracen's Head, we found *la bella* Flora awaiting us alone, the rest of the family being not as yet visible. There was not the slightest necessity for enquiring whether she felt fatigued, for she was looking even more lovely than in the morning; or whether she had been amused or not, for if the steeple-chase had not delighted her, something else had, for there was a radiant smile on her face which could not be mistaken.

Hurst was cut short rather abruptly in a speech which appeared tending towards a compliment, by Leicester's enquiring—"My good fellow, have you seen the horses fed?"

"No, upon my word," said Hurst, "I"—

"Well, I have then; but I wish you would just step across the yard, and see if that stupid ostler has rubbed them dry, as I told him. You understand those things, I know, Hurst—the fellows won't humbug you very easily; as to Hawthorne, I wouldn't trust him to see to any thing of the sort. Flora here knows more about a horse than he does."

Any compliment to Hurst's acuteness in the matter of horse-flesh was sure to have its effect, and he walked off with an air of some importance to discharge his commission.

"Now then," said Horace eagerly, "we have got rid of him for ten minutes, which was all I wanted; if you please, Flora dear, we must have your cleverness to help us in a little difficulty."

"Indeed!" said Miss Leicester, colouring a little, as her cousin, in his eagerness, seized her hand in both of his—"what scrape have you got into now, Horace, and how can I possibly help you?"

"Oh, I want you to hit upon some plan for keeping that fellow Hurst here after we are gone."

"Upon my word!"

"Stay; you don't know what I mean. I'll tell you why—if he drives home to Oxford, he'll infallibly upset us; and drive he must if he goes home with us, because, in fact, the team is his, and I drove them all the way here."

"Then why, in the multitude of absurdities (which you Oxonians perpetrate)—I beg your pardon, Mr Hawthorne—but why need you have come out in a tandem at all, with a man who can't drive?"

"Simply, Flora, because I had no other way of coming at all."

"It was very absurd in us, Miss Leicester, I allow," said I, "but you know what an attraction a steeple chase is, to your cousin especially; and after

having made up his mind to come—together, you see, it would have been a disappointment"—(to all parties, I had a mind to add, but I thought the balance was on my side without it.)

"After all," said Horace, "I shouldn't care a straw to run the chance, as far as I am concerned. I dare say the horses will go home straight enough, if he'll only let them: or if he wouldn't, I shouldn't mind knocking him off the box at once—by accident; but Frank here is rather particular, and I promised him I would not let Hurst drive. I thought once, if we had dined by ourselves, of persuading him he was drunk, and sending him home in a fly; but I am afraid, as matters stand, that plea is hardly practicable."

"Could I persuade him to let you or Mr Hawthorne drive, do you think?"

Horace looked at her as if he thought, as I dare say he did, that his cousin Flora could, if she were so minded, persuade a man to do any thing; so I was compelled, somewhat at the expense of my reputation for gallantry, to assure them both, that if Ulysses of old, among his various arts and accomplishments, had piqued himself upon his tandem-driving, his vanity would have stopped his ears effectually, and the Syren might have sung herself hoarse before he would have given up the reins.

"I'll give the boots half-a-crown to steal his hat," said Horace, "and start while he is looking for it."

"Stay," said his cousin; "I dare say it may be managed." But I thought she looked disappointed. "Did you know we were all going to the B——theatre to-night?"

"No! really! what fun?"

"No fun for you; for you must start early, as you said just now. The owners of the horses here patronise a play, and they have made papa promise to go, and so we must, I suppose, and"——

"Oh! we'll all go, of course," said Horace, decidedly.—"You'll stay and go, won't you, Hawthorne?"

"You forget your supper party," said I.

"Oh! hang it, they'll take care of themselves, so long as the supper's there; they won't miss me much."

"Didn't I hear something of your being confined to college after nine?"

"Ah, yes; I believe I am—but it won't matter much for once; I'll call on the dean to-morrow, and explain."

"No, no, Horace, that won't do; you and Mr Hawthorne must go home like good boys," said Flora, with a smile only half as merry as usual, "and Mary and I will persuade Mr Hurst to stay and go to the theatre with us."

"Oh! confound it!"—Horace began.

"Hush! here comes papa; remember this is my arrangement; you ought to be very much obliged, instead of beginning to swear in that way; I'm sure Mr Hawthorne is very grateful to me for taking so much interest in the question of his breaking his neck, if you are not. Oh! papa," she continued, "do you know that we shall lose all our beaux to-night; they have some horrid supper party to go back to, and we shall have to go to the play ourselves!"

Most of the Squire's sympathies were at this moment absorbed in the fact that dinner was already four minutes late, so that he had less to spare for his daughter's disappointment than Mrs Leicester, who on her arrival took up the lamentation with all her heart. She attacked her nephew at once upon the subject, whose replies were at first wavering and evasive, till he caught Flora's eye, and then he answered with a dogged sort of resolution, exceedingly amusing to me who understood his position, and at last got quite cross with his aunt for persisting in her entreaties. I declared, for my part, that I was dependent on Horace's movements; that, if I could possibly have anticipated the delightful evening which had been arranged for us, every other arrangement should have given way, &c. &c.; when Hurst's reappearance turned the whole force of Mrs Leicester's persuasions upon him, backed, too, as she was by both her daughters. "Won't *you* stay, Mr Hurst? Must you go too? Will you be so shabby as to leave us?" How could any man stand it? William Wellington Hurst could not, it was very plain. At first he looked astonished; wondered why on earth we couldn't all stay; then protested he couldn't think of letting us go home by ourselves; a piece of self-devotion which we at once desired might not be thought of; then

hesitated—he was meditating, no doubt, on the delight of driving—how was he to get home? the inglorious occupant of the inside of a drag; or the solitary tenant of a fly, (though I suggested he might drive that if he pleased;) Couldn't Leicester go home, and I and he follow together? I put in a decided negative; he looked from Mrs Leicester's anxious face to Flora's, and surrendered at discretion. We were to start at eight precisely in the tandem, and Miller and his party, who were sure to wait for the fly, were to pick up Mr Wellington Hurst as a supernumerary passenger at some hour unknown. And so we went to dinner. Mrs Leicester marched off in triumph with her new capture, as if fearful he might give her the slip after all, and committed Flora to my custody. I was charitable enough, however, in consideration of all circumstances, to give up my right of sitting next to her to Horace, and established myself on the other side of the table, between Mrs Leicester and her younger daughter; and a hard post I had of it. Mary would not talk at all, and her mamma would do nothing else; and she was one of those pertinacious talkers, too, who, not content with running on themselves, and leaving you to put in an occasional interjection, inflict upon you a cross-examination in its severest form, and insist upon a definite and rational answer to every question. However, availing myself of those legitimate qualifications of a witness, an unlimited amount of impudence, and a determination not to criminate myself, I got on pretty tolerably. Who did I think her daughter Flora like? I took the opportunity of diligently examining that young lady's features for about four minutes—not in the least to her confusion, for she scarcely honoured me with a glance the whole time—and then declared the resemblance to mamma quite startling. Mary? Oh, her father's eyes decidedly; upon which the squire, whose pet she appeared to be—I suppose it was the contrast between her quietness and Mrs Leicester's incessant fidgeting that was so delightful—laughed, and took wine with me. Then she took up the subject of my private tastes and habits. Was I fond of riding? Yes. Driving? Pretty well. Reading? Very. Then she considerably hoped that I did not read much by candle-light—above all by an oil-lamp—it was very injurious. I assured her that I would be cautious for the future. Then she offered me a receipt for eye-water, in case I suffered from weakness arising from over-exertion of those organs—declined, with thanks. Hoped I did not read above twelve hours a-day: some young men, she had heard, read sixteen, which she considered as really inconsistent with a due regard to health. I assured her that our sentiments on

that point perfectly coincided, and that I had no tendency to excesses of that kind. At last she began to institute inquiries about certain under-graduates with whose families she was acquainted; and the two or three names which I recognised being hunting men, I referred her to Hurst as quite *au fait* in the sporting circles of Oxford, and succeeded in hooking them into a conversation which effectually relieved me.

Leicester, as I could overhear, had been still rather rebellious against going home before the play was over, and was insisting that his being in college by nine was not really material; nor did he appear over-pleased, when, in answer to an appeal from Flora, I said plainly, that the consequences of his "knocking in" late, when under sentence of strict confinement to the regular hour, might not be pleasant—a fact, however, which he himself, though with a very bad grace, was compelled to admit.

At last the time arrived for our party to separate: Horace and I to return to Oxford, and the others to adjourn to see *Richard the Third* performed at the B—— theatre, under the distinguished patronage of the members of the H—— Hunt. It was a beautiful moonlight night, and as Hurst accompanied us to the stable-yard to "start us," as he complacently phrased it, it was clear that he was suffering, like a great many unfortunate individuals in public and private life, under an overweening sense of his own importance. "You'll have an uncommon pleasant drive of it; upon my word you will," he remarked; "it wouldn't do for me to say I would not stay, you know, as Miss Leicester—Mrs Leicester, that is—seemed to make such a point of it; but really"——

"Oh, come, Hurst," said I, "don't pretend to say you've made any sacrifice in the matter, I know you are quite delighted; I'm sure I should have liked to stay of all things, only it would have been uncivil to our friend here to send him home by himself from his own party."

"Oh! hang it, I don't mean to call it a sacrifice; I have no doubt I shall have a very pleasant evening; only I wish we could all have stayed, and driven home together afterwards."

"You may keep Hawthorne with you now, if you like," said Horace, who was not in the best of tempers; "I can take the horses home myself."

"No, no, that would be hardly fair," said I.

"Oh! no—off with you both," said Hurst; "stay, Leicester, you'll find the grey go more pleasantly if you drive him from the cheek; I'll alter it in a second."

"Have the goodness just to let them alone, my good fellow; as I'm to drive, I prefer putting them my own way, if you have no objection."

"Well, as you please; good-night."

"Miller's coming to my rooms when he gets home; if you like to look in with him, you'll find some supper, I dare say."

Horace continued rather sulky for the first few miles, and only opened to anathematize, briefly but comprehensively, steeple-chases, tandems, deans and tutors, and "fellows like Hurst." I thought it best to let him cool down a little; so, after this ebullition, we rattled on in silence as long as his first cigar lasted.

"Come," said I, as I gave him a light, "we got rid of our friend's company pretty cleverly, thanks to your cousin."

"Ay, I told you I'd take care of that; ha! ha! poor Hurst! he little bargained, when he ordered his team, how precious little driving he was to get out of it; a strong instance of the vanity of human expectations. I wish him joy of it, stuck up in an old barn, as I suppose he is by this time, gaping at a set of strolling players; how Flora will laugh at him! I really shouldn't wonder if she were to tell him, before the evening is over, how nicely he has been humbugged, just for the fun of it!"

"At all events," said I, "I think we must have a laugh at him to-night when he comes home; though he's such a good-tempered fellow, it's rather a shame, too."

It was very plain, however, that it was not quite such a good joke to Master Horace himself as he was trying to make out; and that, in point of fact, he would have considerably preferred being seated, as Hurst probably was at that moment, by his pretty cousin's side in the B—— theatre, wherever and whatever that might chance to be, (even with the full expectation of being

laughed at afterwards,) to holding the reins of the best team that ever was turned out of Oxford.

We reached Oxford just in time to hear the first stroke of "Old Tom." By the time I joined Leicester in his rooms, supper was ready, and most of the party assembled. The sport of the day was duly discussed; those who knew least about such matters being proportionately the most noisy and positive in giving their opinions. One young hero of eighteen, fresh from Winchester, in all the importance of a probationary Fellow, explained for our benefit, by the help of the forks and salt-cellars, the line which the horses undoubtedly ought to have taken, and which they did not take; until one of his old schoolfellows, who was present, was provoked to treat us to an anecdote of the young gentleman's first appearance in the hunting-field—no longer ago than the last term—when he mistook the little rough Scotch terrier that always accompanied ----'s pack for the fox, and tally-ho'd him so lustily as to draw upon himself sundry very energetic, but not very complimentary, remarks from the well-known master of the hounds. By degrees Leicester recovered his usual good-humour; and supper passed over, and several songs had been sung with the usual amount of applause, (except one very sentimental one which had no chorus,) and we had got pretty deep into punch and politics, without Hurst's name having once been mentioned by either of us. A knock at the oak, and in walked Fane.

"So you're come back at last?" said Horace. "Sit down, if you can find room. Allow me to introduce your left-hand neighbour—Powell of Merton, Fane, one of our brightest ornaments; quite the *spes gregis* we consider him; passed his little-go, and started a pink only last week; give him a glass of punch. Perhaps you are not aware we've been drinking your health. But, by the way, Fane, where's our friend Wellington?"

"Who?" said Fane; "what on earth are you talking about?"

"Wellington Hurst; didn't you bring him home with you?"

"Certainly not; didn't *you* bring him home?"

"No; Miller promised me he should have a seat inside your drag, because we could not wait for him; did you stay to the play?"

"Yes, and capital fun it was; by the way, the last time I saw your friend Hurst was mounted up in a red baize place that was railed off for the patrons and patronesses, as they called them; there he was in the front row, doing the civil to a very odd-looking old dowager in bright blue velvet, with a neck like an ostrich."

"Thank you," said Leicester, "that's my aunt."

"Well, on that ground, we'll drink her health," said Fane, whose coolness was proverbial. "There was Hurst, however, sitting between her and an uncommonly pretty girl, with dark hair and eyes, dressed in—let me see"—

"Never mind; it was one of my cousins, I suppose," interposed Horace, who was engaged in lighting a cigar at the candle, apparently with more zeal than success.

"Well, we'll drink *her* health for her own sake, if you have no particular objection. I've no doubt the rest of the company will take my word for her being the prettiest girl on the ground to-day; Hurst would second me if he were here, for I never saw a man making love more decidedly in my life."

"Stuff!" said Horace, pitching his cigar into the fire; "pass that punch."

"What jealous, Leicester?" said two or three of the party—"preserved ground, eh?"

"Not at all, not at all," said Horace, trying with a very bad grace to laugh off his evident annoyance; "at all events, I don't consider Hurst a very formidable poacher; but what I want to know is, how he didn't come home with Miller and your party?"

"Miller said he was coming up directly, so you can ask him; I really heard nothing of it. Hark, there are steps coming up the staircase now."

It proved to be Miller himself, followed by the under-porter, a good-tempered fellow, who was the factotum of the under-graduates at late hours, when the ordinary staff of servants had left college for the night.

"How are you, Leicester?" said he, as he walked straight to the little pantry, or "scouts' room," immediately opposite the door, which forms part of the usual suite of college apartments; "come here, Bob."

"Where's Hurst?" was Horace's impatient query.

"Wait a bit," replied Miller from inside, where he was rattling the plates in the course of investigating the remains of the supper—he was not the man to go to bed supperless after a twelve miles' drive. "Here, Bob," he continued, as he emerged at last with a cold fowl—"take this fellow down with you, and grill him in no time; here's a lump of butter—and Harvey's sauce—and—where do you keep the pickled mushrooms, Leicester? here they are—make a little gravy; and here, Bob—it's a cold night—here's a glass of wine; now you'll drink Mr Leicester's health, and vanish."

Bob drank the toast audibly, floored his tumbler of port at two gulps, and departed.

"Now," said Horace, "do just tell me—what *is* become of Hurst? how didn't you bring him home?"

"Confound it!" said Miller, as he looked into all the jugs—"no whiskey punch?"

"Oh, really I forgot it; here's bishop, and that brandy punch is very good. But how didn't he come home with you?"

"Forgot it!" soliloquized Miller pathetically.

"Forgot it? how the deuce came you to forget it? and how will he come now?" rejoined Horace.

"How came *you* to forget it? I was talking about the whiskey punch," said Miller, as we all roared with laughter. "I couldn't bring Hurst, you know, if he wouldn't come. He left the playhouse even before we did, with some ladies—and we came away before it was over—so I sent up to tell him we were going to start in ten minutes, and had a place for him; and the Boots came down and said they had just had supper in, and the gentleman could not possibly come just yet. Well, I sent up again, just as we were ready harnessed, and then he threatened to kick Boots down stairs."

"What a puppy!" said Horace.

"I don't quite agree with you there: I don't pretend to much sentiment myself, as you are all aware; but with a lady *and* a supper in the case, I

should feel perfectly justified in kicking down stairs any Boots that ever wore shoes, if he hinted at my moving prematurely."

Miller's unusual enthusiasm amused us all except Horace. "Gad," said he, at last, "I hope he won't be able to get home to-night at all!" In this friendly wish he was doomed to be disappointed. It was now verging towards twelve o'clock; the out-college members of the party had all taken their leave; Miller and Fane, having finished their grilled chicken at a little table in the corner, had now drawn round the fire with the three or four of us who remained, and there was a debate as to the expediency of brewing more punch, when we heard a running step in the Quadrangle, which presently began to ascend the staircase in company with a not very melodious voice, warbling in a style which bespoke the owner's high state of satisfaction.

"Hush! That's Hurst to a certainty!"

"Queen of my soul, whose starlike eyes
Are all the light I seek"—

(Here came an audible stumble, as if our friend were beginning his way down again involuntarily by half-a-dozen steps at a time.) "Hallo! Leicester! just lend us a candle, will you? The lamp is gone out, and it's as dark as pitch; I've dropped my hat."

"Open the door, somebody," said Horace; and Hurst was admitted. He looked rather confused at first, certainly; for the sudden transition from outer darkness into a small room lighted by a dozen wax-candles made him blink, and our first greeting consisting of "ha-ha's" in different keys, was perhaps somewhat embarrassing; but he recovered himself in a second.

"Well," said he, "how are you all? glad you got home safe, Hawthorne; hope I didn't keep you waiting, Miller; you got the start of me, all of you, coming home; but really I spent an uncommon jolly evening."

"Glad to hear it," said Leicester, with a wink to us.

"Yes;—'pon my life; I don't know when I ever spent so pleasant a one;" and, with a sort of chuckle to himself, Hurst filled a glass of punch.

"What did you think of *Richard the Third*?" said I.

"Oh! hang the play! there might have been six Richards in the field for all I can say: I was better engaged."

"Ay," said Fane, "I rather fancy you were."

"We had a very pleasant drive home," said I, willing to effect a diversion in favour of Leicester, who was puffing desperately at his cigar in a savage kind of silence;—"and a capital supper afterwards; I wish you had been with us."

"And I had a very jolly drive too: I got a gig, and galloped nearly all the way; and a very good supper, too, before I started; but I won't return your compliment; we were a very snug party without you. Upon my word, Leicester, your eldest cousin is one of the very nicest girls I ever met: the sort of person you get acquainted with at once, and so very lively and good-humoured—no nonsense about her."

"I'll make a point of letting her know your good opinion," replied Horace, in a tone conveying pretty plainly a rebuke of such presumption. But it was lost upon Hurst.

"Probably you need not trouble yourself," said Fane; "I dare say he has let her know it himself already."

"No—really no"—said Hurst, as if deprecating any thing so decided; "but Miss Leicester *is* a *very* nice girl; clever, I should say, decidedly; there's a shade of one can hardly call it rusticity—about her manner; but I like it, myself—I like it."

"Do you?"—said Horace, very drily.

"Oh! a season in London would take all that off." And Hurst began to quaver again—

"Queen of my soul, whose"—

"I'll tell you what," said Horace, rising, and standing with his back to the fire, with his hands under his coat-tails—"You may not be aware of it, but you're rather drunk, Hurst."

"Drunk!" said Hurst; "no, that's quite a mistake; three glasses, I think it was, of champagne at supper; and you men have sat here drinking punch all the evening; if any body's drunk, it's not me."

Hurst's usually modest demeanour was certainly so very much altered as to justify, in some measure, Leicester's supposition; but I really believe Flora Leicester's bright eyes had more to answer for in that matter than the champagne, whether she said three glasses were more or less.

However, as Horace's temper was evidently not improving, Miller, Fane, and myself wished him good-night, and Hurst came with us. We got him into Fane's rooms and then extracted from him a full history of the adventures of that delightful evening, to our infinite amusement, and apparently to his own immense satisfaction. It was evident that Miss Flora Leicester had made an impression, of which I do not give that young lady credit for being in the least unconscious.

The impression, however, like many others of its kind, soon wore off, I fancy; for the next time I saw Mr Wellington Hurst, he had returned to his usual frame of mind, and appeared quite modest and deferential; but it will not perhaps surprise my readers any more than it did myself, that Horace was never fond of referring to our drive to the steeple-chase at B——, and did not appear to appreciate, as keenly as before, the trick we had played Hurst in leaving him behind; while all the after-remembrances of the latter bore reference, whenever it was possible, to his favourite date—"That day when you and I and Leicester had that team to B—— together."

THE STUDENT OF SALAMANCA.

PART III.

"Como un pobre condenado
Agui vivo entre cadenas,
A mi xabega amarrado,
Tendido en esta carena."

Cancion Andatuza.

In one of the wildest and most secluded of the valleys formed by the sierra of Urbasa and its contiguous ranges, stands a small cluster of houses, differing in few respects from the nine or ten hundred villages and hamlets scattered over the fertile vales and rugged hills of Navarre, but of which, nevertheless, a brief description may not be without interest. The village in question is composed of some five-score houses, for the most part the habitations of peasants, who earn their living by labour in the fields of the neighbouring proprietors, or, many of them, by the cultivation of small portions of land belonging to themselves. Nothing can be more uniform than the arrangement and construction of Navarrese houses of this class, which are well adapted to the wants and tastes of the race of men who inhabit them, and to the extremes of heat and cold for which the climate of that part of Spain is remarkable. The walls are generally of stone, of which the neighbouring mountains yield an abundant supply; glass windows are rare, and replaced by wooden shutters; the door, usually of oak, and of great solidity, is hung in a low archway of granite blocks. The entrance is into a small clay-floored room or vestibule, answering a variety of purposes. Here are seen implements of agriculture—sometimes a plough, or the heavy iron prongs with which the Basques and Navarrese are accustomed laboriously to turn up the ground in places too steep for the use of oxen; mules or ponies stand tethered here, waiting their turn of duty in the fields, or on the road; and here sacks of vegetables and piles of straw or maize-ears are temporarily deposited, till they can be placed in the granary, usually in the

upper part of the house. At the further end, or on one side of this vestibule, a door opens into the stable or cowshed, and on the other side is the kitchen, which the family habitually occupy. An immense arched chimney projects far into the last-named apartment, and under it is a stone hearth, slightly raised above the tiled floor. Around, and upon this tiled hearth, during the long winter evenings, the peasant and his family establish themselves; the room is lighted by a glimmering oil-lamp, and, more effectually, by the bright wood-fire, which crackles and sparkles as the rain-drops or snow-flakes occasionally fall through the aperture of the chimney. The men smoke and talk, and repose themselves after the fatigues of the day; the women spin and attend to the pots of coarse red earth, in which various preparations of pork, eggs, or salt-fish, with beans and *garbanzos*, (a sort of large pea of excellent flavour,) the whole plentifully seasoned with oil and red pepper, stew and simmer upon the embers. Above stairs are the sleeping and store rooms, the divisions between which often consist of slight walls of reeds, plastered over and whitewashed.

Besides the humble dwellings above described, many of these mountain villages contain two or three houses of larger size and greater pretension, belonging to hidalgos or country gentlemen, who own estates in the neighbourhood. Independently of their superior dimensions, glass in the windows, painted doors and shutters, and the arms of the family carved in stone above the entrance, perhaps a few valuable pictures by the old Spanish masters, decorating the walls of the apartments, distinguish these more aristocratic mansions, which, although spacious, and of dignified aspect, frequently afford little more real comfort than the cottages above which they tower.

It was early on an August morning, about a fortnight subsequently to the rescue of Count Villabuena, that a man in an officer's uniform, and who, to judge from the stripe of gold-lace on his coat cuff, held the rank of major, knocked at the door of a house of the description last referred to. The applicant for admission was about forty years of age, of middle stature, broad-shouldered and powerful, and his countenance, the features of which were regular, might have been called handsome but for a peculiarly lowering and sullen expression. Apparently he had just come off a journey; his boots and dress were covered with dust, his face was unshaven, and he

had the heated, jaded look of a man who has passed in the saddle the hours usually allotted to repose.

"Is Count Villabuena quartered here?" said he to the servant who opened the door.

"He is, Señor Comandante," replied the man.

The stranger entered the house, and was ushered into a large apartment on the first floor. He had waited there but a few minutes, when the door of an adjoining chamber opened, and Count Villabuena, wrapped in a morning-gown, and seemingly just out of bed, made his appearance.

"Don Baltasar!" exclaimed the Count, in a tone of some surprise, on beholding his early visitor.

"As you see, cousin," replied the new-comer; "and glad enough, I assure you, to be at the end of his ride, although the bearer of no very welcome news."

"Whence come you?" said the Count, "and what are the news you bring?"

"From Pampeluna, or at least from as near to it as I could venture. The news I bring are bad enough. Yesterday morning, at this hour, Juan Orrio, and the four other officers who were taken in the skirmish near Echauri, were shot to death on the glaxis of Pampeluna."

"Bad news indeed!" said the Count, starting, in visible perturbation, from the chair on which he had seated himself. "Most unfortunate, just at this time."

"At this or at any other time it would hardly be welcome intelligence to the general," observed Don Baltasar. "Orrio was one of the first who joined him after he took command of the king's army, and he greatly valued him both as a friend and an officer."

"True," replied Villabuena; "but at this moment I have especial reasons for regretting his death. Have you communicated it to Zumalacarregui?"

"Not yet. I have been to his quarters; he rode out at daybreak, and has not returned. My horse is dead beat, and as the direction the general took is not

exactly known, I think it better to wait his coming than to follow him. Meanwhile, cousin, a cup of chocolate will be no unwelcome refreshment after the night's march."

Villabuena rang a hand-bell that lay upon the table, and gave his orders to the servant who answered the summons. Some smoking chocolate and other refreshments, and a small brazen cup containing embers for lighting cigars, were brought in, and the Major applied himself vigorously to the discussion of his breakfast.

Major Baltasar de Villabuena, that distant relative of the Count to whom reference has been already made as the intended husband of his daughter, was a soldier of fortune who had entered the army at an early age, and at the outbreak of the Carlist insurrection was captain in a regiment of the line. He might have risen higher during his twenty years' service, but for his dogged and unpleasant temper, which ever stood in the way of his advancement. The death of the Count's sons, although it constituted him heir to the Villabuena property, made but little real difference in his prospects. The Count was only twelve or fifteen years older than himself, and likely to live nearly as long. The cousins had not met for many years, and had never been on intimate or even friendly terms; and it was therefore with joyful surprise, that, a few days after the commencement of the war, Don Baltasar received a letter from the Count, expressing a wish to see and know more of the man who was to inherit his title and estates. The letter informed him of what he already knew, that the Count had espoused the cause of Charles V.; and it further urged him to throw up his commission in the army of the usurping government, and to hasten to join his kinsman, who would receive him with open arms. Some vague hints concerning a nearer alliance between them, were more than was wanting to raise Don Baltasar's hopes to the highest pitch, and to induce him instantly to accept the Count's propositions. He at once resigned his commission and joined the Carlists, by whom he was made heartily welcome; for men of military experience were then scarce amongst them. Don Baltasar was a bold and efficient officer, and the opportunity was favourable for exhibiting his qualities. The Count was at first much pleased with him; and soon afterwards, when the Carlists were temporarily dispersed, and the insurrection was seemingly at an end, Major Villabuena accompanied his cousin to France, and was presented to Rita as her intended husband. But his unpolished manners and brutal abruptness

made a most unfavourable impression upon the lady, who did not attempt to conceal her repugnance to her new suitor. The Count himself, who, amidst the bustle and activity of the life he had recently led, had overlooked or not discovered many of his kinsman's bad qualities, was now not slow in finding them out; and although the proposed marriage was of his own planning, he began almost to congratulate himself on his prudence in having made the promise of his daughter's hand contingent on her encouragement of her cousin's addresses. That encouragement there appeared little probability of Baltasar's obtaining. The gallant major, however, who entertained an abundantly good opinion of his own merits, instead of attributing the young lady's dislike to any faults or deficiencies of his own, laid it at the door of her attachment to Herrera, of which he had heard something from the Count; and he vowed to himself, that if ever he had the opportunity, he would remove that obstacle from his path, and make short work of it with the beardless boy who stood between him and the accomplishment of his wishes.

Whilst the Major satisfied the keen appetite which his night-ride had given him, Count Villabuena restlessly paced the room, his features wearing an expression of anxiety and annoyance.

"You take this news much to heart, Count," said Baltasar. "I knew not that Orrio or any other of the sufferers was your friend."

"None of them were particularly my friends," replied the Count; "nor does my regret for their fate exceed that which I should feel for any other brave and unfortunate men who might lose their lives in the service of his majesty. But their death at this precise conjuncture is most unfortunate. You have heard me speak of Luis Herrera?"

"Herrera!" repeated Baltasar, with affected unconcern; "is not that the name of your former protégé, the love-stricken swain who ventured to aspire to the hand of your fair daughter?"

"The same," replied the Count, gravely.

"He is with the enemy," said Baltasar; "holds a commission in a cavalry regiment now in our front. I trust to fall in with him some day, and to exchange a sabre-cut in honour of the bright eyes of my charming cousin."

"He would find you employment if you did," replied the Count. "He is a brave lad and a skilful soldier. But at present there is small chance of your meeting him, at least with a sword in his hand. He was taken prisoner a few days ago, and is now in this village."

"Ha!" exclaimed Baltasar, his dark deep-set eyes emitting a gleam of satisfaction. "And what does Zumalacarregui propose to do with him?"

"Up to yesterday, I trusted to procure his release. The general seemed half inclined to grant it, as well as that of the other captive officers, if they would take an oath not to bear arms against the king. A few of them had agreed to give the required pledge; and although the others, including Herrera, obstinately refused, I was not without hopes of overcoming their repugnance. But last evening news came of the excesses that Rodil's division has been committing in Biscay, burning houses, ill-treating the peasantry, and refusing quarter to prisoners. This greatly exasperated the general, and he talked of recommencing the system of reprisals, which, since the removal of Quesada from the command of the Christino forces, has been in some degree abandoned."

"You are particularly interested, then, in the fate of this Herrera?" said Baltasar, with a searching glance at the Count.

"I am so for various reasons. His father and myself, although of different political creeds, were old friends; the son was long an inmate of my house, and I at one time thought of him as my future son-in-law. If he has taken up arms against his rightful sovereign, it is from a mistaken sense of duty, and not, as many have done, with a view to personal gain and advantage. Moreover, during my recent short captivity, of which you have probably heard, he twice saved my life; once at great risk and with positive detriment to himself."

"Numerous and sufficing motives," said Baltasar, with a slight sneer.

"Undoubtedly they are," replied the Count; "and you now see why I regret your arrival and the intelligence you bring. The general's indignation at the slaughter of Orrio and his companions will place the lives of Herrera and the other prisoners in great jeopardy."

"I am sorry," said Baltasar, in a tone which belied his professed concern, "that my arrival should interfere with your plans, and endanger the life of your friend."

"I can scarcely believe in your regrets, cousin," replied the Count, "or that you will grieve for the death of one whom you regard as rival. But again I tell you that Herrera can never be the husband of my daughter; and although you have the impression that he is now one of the chief obstacles to your success with Rita, time cannot fail to obliterate her childish attachment. Be sure that you will do more towards winning her favour by acting generously in the present circumstances, than if you were to take this opportunity of compassing Herrera's death."

"I do not understand you, Count," said Baltasar. "You talk as if the young man's life or death were in my hands. I bring intelligence which it is my duty to convey to the general as speedily as possible, and I am no way responsible for the consequences. I cannot believe that you would have me forget my duty, and suppress news of this importance."

"Certainly not," answered the Count; "but much depends on the way in which such things are told. Moreover, the general talked yesterday of calling a council of war, to deliberate and decide on the fate of these prisoners. Should he do so, you will be a member of it; and if you wish to serve me, you will give your vote on the side of mercy."

What reply Don Baltasar would have made to this request, must remain unknown; for, before he had time to speak, the conversation was interrupted by a knock at the door of the apartment, and one of Zumalacarregui's aides-de-camp entered the room.

"The general has returned from his ride, Major Villabuena," said the officer; "he has heard of your arrival, and is impatient to see you."

"I am ready to accompany you to him," said Baltasar, by no means sorry to break off his dialogue with the Count.

"General Zumalacarregui also requests your presence, Señor Conde," said the aide-de-camp.

"I will shortly wait upon him," replied Villabuena.

The two officers left the house, and the Count re-entered his sleeping apartment to complete his toilet.

On reaching Zumalacarregui's quarters, Major Villabuena found the Carlist chief seated at a table, upon which were writing-materials, two or three maps, and some open letters. Several aides-de-camp, superior officers, and influential partisans of Don Carlos, stood near him, walked up and down the room, or lounged at the windows that looked out upon the winding, irregular street of the village. In the court-yard of the house, a picket of lancers sat or stood near their horses, which were saddled and bridled, and ready to turn out at a moment's notice; a sentry paced up and down in front of the door, and on the highest points of some hills which rose behind the village, videttes were seen stationed. Although there were more than a dozen persons assembled in the apartment, scarcely a word was uttered; or if a remark was interchanged, it was in a low whisper. Zumalacarregui himself sat silent and thoughtful, his brow knit, his eyes fixed upon the papers before him. The substance of the intelligence brought by Don Baltasar had already reached him through some officers, to whom the Major had communicated it on his first arrival at the general's quarters; and Zumalacarregui waited in a state of painful anxiety to hear its confirmation and further details. He foresaw that extreme measures would be necessary to put an end to the system adopted by the Christinos, of treating the prisoners they made as rebels and malefactors, instead of granting them the quarter and fair usage commonly enjoyed by prisoners of war; but although Zumalacarregui had been compelled, by the necessities of his position, to many acts of severity and apparent cruelty, his nature was in reality humane, and the shedding of human blood abhorrent to him. It was, therefore, with some difficulty that he resolved upon a course, the adoption of which he felt to be indispensable to the advancement of the cause he defended.

Don Baltasar made his report. Two days previously, he said, whilst reconnoitring with a handful of men in the neighbourhood of Pampeluna, and observing the movements of the garrison, he was informed that an execution of Carlist prisoners was to take place in that city on the following morning. He sent a peasant to ascertain the truth of this rumour. By some accident the man was detained all night in the fortress, and in the morning he had the opportunity of witnessing the death of Captain Orrio and four

other officers, who were shot upon the glacis, in presence of the assembled garrison. This was the substance of the Major's report, to which Zumalacarregui listened with the fixed and profound attention that he was accustomed to give to all who addressed him. But not contented with relating the bare facts of the case, Don Baltasar, either unmindful of his cousin's wishes, or desirous, for reasons of his own, to produce an effect as unfavourable as possible to the Christino prisoners, did all he could to place the cruelties exercised on the unfortunate Carlists in the strongest possible light.

"Your Excellency will doubtless grieve for the loss of these brave and devoted officers," said he, as he concluded his report; "but to them their death was a boon and a release. The information brought by our spies concerning the cruelty with which they were treated, exceeds belief. Crowded into loathsome dungeons, deprived of the commonest necessities of life, fed on mouldy bread and putrid water, and overwhelmed with blows if they ventured to expostulate—such were the tender mercies shown by the agents of Christina to the unhappy Orrio and his gallant companions. Although their imprisonment was but of three weeks' duration, I am informed that they were so weakened and emaciated as scarcely to be able to walk to the place of execution, which they reached amidst the jeers and insults of their escort."

There was a movement of horror and indignation amongst the listeners.

"The savages!" muttered Zumalacarregui. "And how did they meet their death?"

"Like heroes. Their last look was a defiance to their enemies, their last words a *viva* for the king. It is said that the Christinos offered them their lives if they would renounce Charles V. and take up arms for Isabel, but to a man they refused the offer."

"Truly," said Zumalacarregui, "the cause must be good and righteous that finds such noble defenders. Have you heard aught of the prisoners at Tafalla, Major Villabuena?"

"They are still detained there," said the Major, "but it is said that orders for their execution are daily expected."

"By whom is it said, or is it merely a supposition of your own?" said a voice behind Don Baltasar.

The Major turned, and met the stern gaze of the Count, who had entered the room unobserved by him. Baltasar looked confused, and faltered in his reply. He had heard it—it was generally believed, he said.

"Such reports are easily circulated, or invented by those who find an interest in their fabrication," said the Count. "I trust that General Zumalacarregui will not place implicit faith in them, or allow them to influence his decision with regard to the unfortunate Christino officers."

"Certainly not," returned Zumalacarregui; "but the undoubted facts that have yesterday and to-day come to my knowledge, render any additional atrocity on the part of our enemies unnecessary. The volley that they fired yesterday on the glacis of Pampeluna, was the death-knell of their own friends. Count Villabuena, the prisoners must die."

A hum of approbation ran through the assembly.

"With such opponents as ours," said Zumalacarregui, "humanity becomes weakness. Captain Solano, let the prisoners be placed in capilla, and order a firing-party for to-morrow noon."

The officer addressed left the room to fulfil the commands he had received; and Zumalacarregui, as if desirous to get rid of a painful subject, called Count Villabuena and some of his officers around him, and began discussing with them a proposed plan of operations against the division of one of the generals whom Rodil had left to follow up the Carlist chief during his own absence in Biscay.

In the apartment in which the interview between the Conde de Villabuena and his cousin had taken place, and within a few hours after the scene in Zumalacarregui's quarters, the Count was seated alone, revolving in his mind various schemes for the rescue of Luis Herrera from his imminent peril. To rescue him, even at risk or sacrifice to himself, the Count was fully resolved; but the difficulty was, to devise a plan offering a reasonable chance of success. An appeal to Zumalacarregui would, he well knew, be worse than useless. The general had decided on the death of the prisoners from a conviction of its justice and utility; and, had his own brother been

amongst them, no exception would have been made in his favour. The Count, therefore, found reason to rejoice at having said nothing to Zumalacarregui of the interest he felt in Herrera personally, and at having based his intercession in behalf of the prisoners on the general ground of humanity. A contrary course would greatly have increased the danger of the plans he was now forming. Since there was no hope of obtaining Herrera's pardon, he was determined to accomplish his escape. How to do this was a difficulty, out of which he did not yet clearly see his way. The village was small, and crowded with Carlist soldiers; the prisoners were strictly guarded; and even should he succeed in setting Herrera at liberty, it would be no easy matter to get him conveyed in safety to any post or garrison of the Christinos, the nearest of which was several leagues distant, whilst the road to it lay through a wild and difficult country, entirely unknown to Luis, and containing a population devoted to Don Carlos.

It was three in the afternoon. Count Villabuena leaned over the balcony of his apartment, and gazed musingly into the street of the little village. The scene that offered itself to him was one that at any other moment might have fixed his attention, although he was now too much pre-occupied to notice its picturesque details. The rays of the August sun fell in a broad flood of light upon the scattered houses of the hamlet, making the flint and granite of their walls to glitter again; the glare being only here and there relieved by a scanty patch of shadow, thrown by some projecting wall, or by the thick foliage of a tree. The presence of the Carlist troops caused an unusual degree of bustle and animation in the village. Many of the houses had for the time been converted into shops and taverns; in the former, tobacco, fruit, sardines, and other soldier's luxuries, were exposed for sale on a board in front of the window; whilst in the latter, huge pig-skins, of black and greasy exterior, poured forth a dark stream of wine, having at least as much flavour of the tar with which the interior of its leathern receptacle was besmeared, as of the grape from which the generous liquid had been originally pressed. Through the open windows of various houses, glimpses were to be caught of the blue caps, strongly marked countenances, and fierce mustaches of the Carlist soldiers; their strangely-sounding Basque oaths and ejaculations mingling with the clack of the castanets and monotonous thrum of the tambourine, as they followed the sunburnt peasant girls through the mazes of the Zorcico, and other national dances. Hanging

over the window-sills, or suspended from nails in the wall, were the belts, which the soldiers had profited by the day's halt—no very frequent occurrence with them—to clean and pipeclay, and then had hung to dry in the sun. Here, just within the open door of a stable, were men polishing their musket-barrels, or repairing their accoutrements; in another place a group, more idly disposed, had collected in some shady nook, and were playing at cards or morra; whilst others, wrapped in their grey capotes, their heads resting upon a knapsack or doorstep, indulged in the sound and unbroken slumber which their usually restless and dangerous existence allowed them but scanty opportunity of enjoying.

The house occupied by Count Villabuena was nearly in the centre of one of the irregular lines of detached buildings that formed the village. About eighty yards further off, on the opposite side of the road, from which they receded, and were partially screened by some barns and a plantation of fruit-trees, there stood two houses united under one roof. They were of the description usually inhabited by peasants of the richer sort, and consisted of a ground floor, an upper story, and above that a sort of garret under the tiles, which might serve as the abode of pigeons, or perhaps, in case of need, afford sleeping quarters for a farm-servant. In one of these houses, in which a number of soldiers were billeted, a guard-room had been established, and in the other, before the door and beneath the side-windows of which sentries were stationed, the prisoners were confined. They had been brought to this village immediately after their capture, as to a place of security, and one little likely to be visited by any Christino column. Zumalacarregui had accompanied them thither, but had marched away on the following day, leaving only a few wounded men and a company behind him. He had now again returned, to give his troops a day or two's repose, after some harassing marches and rapid movements. Count Villabuena had accompanied the general upon this last expedition, but not without previously ascertaining that Herrera was well cared for, and that the wound in his arm, which was by no means a severe one, was attended to by a competent surgeon. The prisoners were lodged in a room upon the upper floor, with the exception of Herrera, to whom, in consideration of his suffering state, was allotted a small chamber near the apartment of his comrades, the side window of which overlooked the open country. This casement, which was about fifteen

feet from the ground, was guarded by a sentry, who had orders to fire upon the prisoners at the first indication of an attempt to escape.

Whilst the Conde de Villabuena gazed on the temporary prison, of which he commanded a view from his balcony, and meditated how he should overcome the almost insuperable difficulties that opposed themselves to Herrera's rescue, there emerged from the door of the guard-room a man, whose gait and figure the Count thought he knew, although he was too far distant to discern his features. This man was in a sort of half-uniform; a blue jacket decorated with three rows of metal buttons, coarse linen trousers, and on his head the customary woollen boina. From underneath the latter appeared a white linen bandage, none of the cleanest, and considerably stained with blood. His face was pale and thin, and the Count conjectured him to be a wounded man, recently out of hospital. The person who had thus attracted Villabuena's notice, turned into the street, and keeping on the shady side, either from disliking the heat, or out of regard to his recently bleached complexion, walked slowly along till he arrived near the Count's window; then looking up, he brought his hand to his cap, and saluted. As he did so, the Count recognised the well-known features of Paco the muleteer.

The surprise felt by the Count at the reappearance of this man, whom he fully believed to have been killed when he himself was rescued from the Christinos by Zumalacarregui, was succeeded by a joyful foreboding. By the aid of Paco, with whose sagacity and courage he was well acquainted, who had been at a former period in his service, and whom he knew to be entirely devoted to him, he felt at once that he should be able to accomplish the escape of Herrera. Giving but one glance around to see that he was not observed, he made a sign to the muleteer to come up to him. Paco obeyed, and in another moment entered the apartment.

"I thought you were in your grave, Paco," said Villabuena, "and so did we all. I myself saw you lying in the dust of the road, with a sabre-cut on your head that would have killed an ox."

"It was not so bad as it looked," replied the Navarrese. "Nothing like a close-woven boina for turning a sabre edge. Pepe Velasquez is a hard hitter, and if I had worn one of their pasteboard shakos, my head would have been

split in two like a ripe tomato. But as it was, the blow glanced sideways, and only shaved off a bit of the scalp, though it left me senseless, and as like dead as night be. After the troops and your señoría had marched away, and just as life was returning, some peasants found me. They took me home and doctored me, and three days ago I was well enough to crawl hither. I am getting strong and hearty, and shall soon be in the saddle again."

"So much the better," replied the Count. "We want all the men we can muster, and especially brave fellows like yourself. Meanwhile, what are you doing, and where are you quartered?"

"In the house of José Urriola, here the guard-room is. My duty is to take the prisoners their rations, and clean out their room. Poor Don Luis, as your señoría doubtlessly knows, is amongst them."

"I do know it, and it is concerning him that I wish to speak to you. Paco, I know I can depend on you."

"You can, your señoría," replied the muleteer. "Do you think I have forgotten all your honour's kindness, how you got me out of the scrape about the smuggling?"

"Or the one about thrashing the alguazils," returned the Count, with a smile.

"Ah, your señoría was always very good to me," said Paco; "and I am not the man to forget it."

"You have an opportunity of showing your gratitude," said the Count. "Have you heard that the prisoners are to be shot to-morrow?"

Paco started.

"And Don Luis with them?"

The Count nodded affirmatively.

"It will be the death of Doña Rita," exclaimed Paco with blunt passion. "Speak to the general—you can do it. He will not refuse Señor Herrera's life, if you ask it."

"You are mistaken," said Villabuena; "in that quarter there is no hope. The only chance for Don Luis is his escape, before to-morrow morning."

Paco shook his head, and remained for a moment silent. The Count observed him attentively.

"It is difficult," said the muleteer, "and dangerous."

"Difficulties may be overcome; for the danger, you shall be amply recompensed," said the Count, anxiously.

"I want no recompense, señor," cried the Navarrese, with one of those bursts of free and manly independence that characterise his countrymen. "I will do it for you if it cost me my life."

"But how is the escape to be accomplished?" said the Count. "Does any plan occur to you?"

"I could do it," said Paco, "had I been ten days longer off the doctor's list. But I am still weak; and even if I got Don Luis out of his prison, I should be unable to accompany him till he is out of danger. I take it he will want a guide. I must have some one to help me, Señor Conde."

"That increases the danger to all of us," said the Count. "Whom can we trust?"

"I can find some one," said Paco, after a moment's reflection, "who will be safe and silent, if well paid."

The Count opened a writing-desk, and produced several gold ounces.

"A dozen of those will be sufficient," said Paco; "perhaps fewer. I will do it as cheap as it can be done; for I suppose the *pesetas* are not more plentiful with your señoría than with most of Charles V.'s followers. But it will not do to bargain too closely for a man's life."

"Nor do I mean to do so," said the Count. "Here is the sum you name, and something over. Who is your man?"

"Your señoría has heard of Romany Jaime, the gipsy *esquilador*?"

The Count made a movement of surprise.

"He is one of our spies; devoted to the general. You cannot think of trusting him?"

"He is devoted to any body who pays him," returned Paco. "I knew him well in former days, when I went to buy mules in the mountains of Arragon. An arch rogue is Master Jaime, who will do any thing for gold. I daresay he serves the general honestly, being well paid; but he will look upon our job as a godsend, and jump at the chance."

"I doubt the plan," said the Count. "I am bent upon saving Herrera, and have made up my mind to some risk; but this appears too great."

"And what need your señoría know about the matter at all?" said the ready-witted Paco. "No one has seen me here; or, if any one has, nothing will be thought of it. The money was given me by the prisoner—I arrange the matter with Jaime, and to-morrow morning, when the escape is discovered, who is to tax you with a share in it?"

"'Tis well," said the Count—"I leave all to you; and the more willingly, as my further interference might rather excite suspicion than prove of service. If you want money or advice, come to me. I shall remain here the whole evening."

Upon leaving the Count's quarters, Paco lounged carelessly down the street, with that listless think-of-nothing sort of air, which is one of the characteristics of the Spanish soldier, till he arrived opposite to a narrow passage between two houses, at the extremity of which was a stile, and beyond it a green field, and the foliage of trees. Turning down this lane, he entered the field, and crossed it in a diagonal direction, till he reached its further corner. Here, on the skirt of a coppice, and under the shade of some large chestnut-trees, a group was assembled, and a scene presented itself, that might be sought for in vain in any country but Spain. Above a wood-fire, which burned black and smouldering in the strong daylight, a large iron kettle was suspended, emitting an odour that would infallibly have turned the stomachs of more squeamish or less hungry persons than those for whom its contents were destined. It would have required an expert chemist to analyse the ingredients of this caldron, of which the attendant Hecate was a barefooted, grimy-visaged drummer-boy, who, having been temporarily promoted to the office of cook, hung with watering lips, and eyes blinking

from the effect of the wood smoke, over the precious stew entrusted to his care. This he occasionally stirred with a drumstick, the end of which he immediately afterwards transferred to his mouth, provoking a catalogue of grimaces that the heat of the boiling mess and its savoury flavour had probably an equal share in producing. Another juvenile performer on the sheepskin was squatted upon his haunches on the opposite side of the fire, acting as a check upon any excess of voracity on the part of his comrade, whilst he diligently employed his dirty digits and a rusty knife in peeling and slicing a large pumpkin, of which the fragments, so soon as they were in a fitting state, were plunged into the pot. A quantity of onion skins and tomata stalks, some rusty bacon rind, the skin of a lean rabbit, and some feathers that might have belonged either to a crow or a chicken, bestrewed the ground, affording intelligible hints as to a few of the heterogeneous materials already committed to the huge bowels of the kettle.

At a short distance from the fire, and so placed as to be out of the current of smoke, a score of soldiers sprawled upon the grass, intent upon the proceedings of a person who sat in the centre of the circle they formed. This was a man whose complexion, dark as that of a Moor, caused even the sunburnt countenance of his neighbours to appear fair by the comparison. His eyes were deep-set and of a dead coal-black; and around them, as well as at the corners of his large mouth, which, at times, displayed a double row of sharp teeth of ivory whiteness, were certain lines and wrinkles that gave to his physiognomy an expression in the highest degree repulsive. Deceit, low cunning, and greed of gain, were legibly written upon this unprepossessing countenance; whose wild character was completed by a profusion of coarse dark hair, that hung or rather stuck out in black elf-locks around the receding forehead and tawny sunken cheeks. The dress of this man was in unison with his aspect. He wore a greasy velveteen jacket, loose trousers of the same stuff, and his feet were shod with *abarcas*—a kind of sandal in common use in some parts of Navarre and Biscay, composed of a flat piece of tanned pig's hide, secured across the instep by thongs. A leathern wallet lay upon the ground beside him, and near it were scattered sundry pairs of shears and scissors, used to clip mules and other animals. The *esquilador*, or shearer—for such was the profession of the individual just described—had found a subject for the exercise of his art in a large white dog of the poodle species, who, with a most exemplary patience, the

result probably of a frequent repetition of the same process, lay upon his back between the operator's knees, all four legs in the air, exposing his ribs and belly to the scissors that were rapidly divesting them of their thick fleece. The operation seemed to excite intense interest amongst the surrounding soldiers, who followed with their eyes each clip of the shears and movement of the esquilador's agile fingers, and occasionally encouraged the patient, their constant companion and playmate both in quarters and the field, by expressions of sympathy and affection. The arrival of Paco, who established himself behind the esquilador, in a gap of the circle, was insufficient to distract their attention from the important and all-absorbing interest of the dog-shearing.

"*Pobre Granuka!*" cried one of the lookers-on, patting the dog's head, which lay back over the esquilador's knee; "how quiet he is! what a sensible animal! How fares it, Granuka?—how is it with you?"

The dog replied by a blinking of his eyes, and by passing his tongue over his black snout, to this kind inquiry concerning his state of personal comfort.

"*Mira! que entendido!*" cried the gratified soldier; "he understands every word. Come, gitano—have you nearly done? The poor dog's weary of lying on his back."

The last trimming was given to the patient, and the liberated animal jumped up and raced round the circle, as if anxious to show his friends how greatly he was improved by the process he had undergone. His face and the hinder half of his body were closely clipped, his shoulders and forelegs remaining covered with a fell of woolly hair; whilst at the end of his tail, the cunning artist had left, by express desire of the soldiers, a large tuft, not unlike a miniature mop, which Granuka brandished in triumph above his clean-shaven flanks.

"*Que hermoso!*" screamed one of the delighted soldiers, catching Granuka in his arms, kissing his muzzle, and then pitching him down with a violence that would have broken the bones of any but a regimental dog.

"Attention, Granuka!" cried another of the quadruped's numerous masters, dropping on his knees before the dog, and uplifting his finger to give force

to the command. At the word, Granuka bounced down upon his hinder end, and assumed an aspect of profound gravity.

"A *viva* for the *niña* Isabel," said his instructor.

Granuka stretched out his paws before him, laid his nose upon them, and winked with his eyes as if he were composing himself to sleep.

"Won't you?" said the soldier. "Well, then, a *viva* for the *puta* Christina."

This time the eyes were closed entirely, and the animal gave a dissatisfied growl.

"A *viva* for the king!" was the next command.

The dog jumped briskly up, gave a little spring into the air, and uttered three short, quick barks, which were echoed by shouts of laughter from the soldiers. Having done this, he again sat down, grave and composed.

"Once more," said his instructor, "and a good one, Granuka. *Viva el Tio Zumalacarregui!*"

This time the dog seemed to have lost his senses, or to have been bitten by a tarantula. He jumped off the ground half-a-dozen times to thrice his own height, giving a succession of little joyous yelps that resembled a human cachinnation far more than any sounds of canine origin or utterance. Then, as if delighted at his own performances, he dashed out of the circle, and began tearing about the field, his tail in the air, yelling like mad. The soldiers doubled themselves up, and rolled upon the grass in convulsions of merriment. As ill-luck would have it, however, Granuka, in one of his frolicsome gyrations, in the performance of which the curve described was larger than in the preceding ones, came within sight and scent of the *al fresco* kitchen, and that at the precise moment when the cook, either conceiving his olla to be sufficiently stewed, or desirous to ascertain its progress by actual inspection, had fished out by the claw one of the anomalous-looking bipeds whose feathers bestrewed the ground, and had placed it upon the reversed lid of the camp-kettle. Granuka, either unusually hungry, or imagining that the savoury morsel had been prepared expressly as a reward for his patience and docility under his recent trials, made a dart

at the bird, caught it up in his mouth, and with lowered tail, but redoubled speed, scampered towards the houses.

"*Maldito perro! Ladron!*" roared the cook, hurling his drumstick after the thief, abandoning his kitchen, and starting off in pursuit, followed by the soldiers, who had witnessed the nefarious transaction, and whose shouts of laughter were suddenly changed into cries of indignation. The stolen bird was of itself hot enough to have made any common dog glad to drop it; but Granuka was an uncommon dog, an old campaigner, whose gums were fire-proof; and the idea of relinquishing his prize never entered his head. Presently he reached the stile at the end of the field, darted under it and disappeared, followed by cooks and soldiers, swearing and laughing, abusing the dog, and tripping up one another. In less than a half minute from the commission of the theft, Paco and the esquilador were the only persons remaining in the field.

So soon as this was the case, Paco abandoned his position in rear of the gipsy, and came round to his front. The dog-shearer had slung his wallet over his shoulder, and was replacing in it his scissors and the other implements of his craft.

"Good-day, Jaime," said Paco.

The gipsy glanced at the muleteer from under his projecting eyebrows, and nodded a surly recognition.

"Will you come with me to clip a mule?" said Paco.

"I have no time," replied the esquilador. "The heat of the day is past, and I must be moving. I have ten leagues to do between this and morning."

"A quartillo of wine will be no bad preparation for the journey," said the muleteer; "and I will readily bestow one in memory of the spavined mule which you tried to palm upon me, but could not, now some three years past."

The gipsy gave another of his furtive and peculiar glances, accompanied by a slight grin.

"Thanks for your offer," said he, "but I tell you again I have no time either to drink or shear. I must be gone before those mad fellows return, and detain me by some new prank."

The noisy chatter and laughter of the soldiers was heard as he spoke. The dog had got clear off, and they were returning to the kettle to devour what was left there. The gipsy turned to go, when Paco put his hand into his pocket, and on again drawing it forth, a comely golden ounce, with the coarse features of Ferdinand VII. stamped in strong relief on its bright yellow surface, lay upon the palm. The eyes of the esquilador sparkled at the sight, and he extended his hand as if to clutch the coin. Paco closed his fingers.

"Gently, friend Jaime," said he; "nothing for nothing is a good motto to grow rich upon. This shining *onça*, and more of the same sort, may be yours when you have done service for them."

"And what do you require of me?" said the gipsy, with a quick eagerness that contrasted strongly with his previous apathetic indifference.

"I will tell you," said Paco, "but in some more private place than this."

"Let us be gone," said the gipsy.

And as the first of the soldiers re-entered the field, the two men passed through a gap in the hedge that bounded it, and were lost to view in the adjacent thicket.

It was about an hour after sunset, and contrary to what is usual at that season and in that country, the night was dark and cloudy. A slight mist rose from the fields surrounding the village, and a fine rain began to fall. In the guard-room adjoining the house in which Luis Herrera was prisoner, the soldiers on duty were assembled round a rickety table, on which a large coarse tallow candle, stuck in a bottle, flared and guttered, and emitted an odour even more powerful than that of the tobacco smoke with which the room was filled. The air was heavy, the heat oppressive, and both the house-door and that of the guard-room, which was at right angles to it, just within the passage, were left open. Whilst some few of the men, their arms crossed upon the table, and their heads laid upon them, dozed away the time till their turn for going on sentry should arrive, the sergeant and the remainder

of the guard, including a young recruit who had only two days before deserted from the Christinos and been incorporated in a Carlist battalion, consumed successive measures of wine, to be paid for by those who were least successful in a trial of skill that was going on amongst them. This consisted in drinking *de alto*, as it is called—literally, from a height, and was accomplished by holding a small narrow-necked bottle at arm's length above the head, and allowing the wine to flow in a thin stream into the mouth. In this feat of address the new recruit, whose name was Perrico, was so successful as to excite the envy of his less dexterous rivals.

"Pshaw!" said the sergeant, who, in a clumsily executed attempt, had inundated his chin and mustache with the purple liquid—"Pshaw!" said he, on seeing the deserter raise his bottle in the air and allow its contents to trickle steadily and noiselessly down his expanded gullet; "Perrico beats us all."

"No wonder," said a soldier, "he is from the country where Grenache and Tinto are more plentiful than water, and where nobody drinks in any other way, or ever puts a glass to his lips. He is a Catalan."

"An Arragonese," hastily interrupted Perrico, eager to vindicate himself from belonging to a province which the rough manners and harsh dialect of its inhabitants cause generally to be held in small estimation throughout the rest of Spain. "An Arragonese, from the *siempre heroica* Sarragossa."

"It's all one," said the sergeant, with a horse-laugh, "all of the *corona de Aragon*, as the Catalans say when they are ashamed of their country. But what induced you, Don Perrico, being from Sarragossa, where they are all as revolutionary as Riego, to leave the service of the Neapolitan woman and come over to Charles V.?"

"Many things," answered the deserter. "In the first place, I am of a thirsty family. My father kept a wine-shop and my mother was a cantiniera, and both drank as much as they sold. I inherited an unfortunate addiction to the wine-skin, which upon several occasions has brought me into trouble and the black-hole. The latter did not please me, and I resolved to try whether I should not find better treatment in the service of King Charles."

"Not if you have brought your thirst with you," answered the sergeant. "Zumalacarregui does not joke in matters of discipline; so, if your thirst troubles you here, I advise you to quench it at the pump. But that will be the easier, as neither wine nor money are likely to be over-abundant with us."

At this moment, and before Perrico could reply to the sergeant's warning, the sentry in front of the house suspended his walk and uttered a sharp "Quien vive?"

"Carlos Quinto," was the reply.

Another password was exchanged, and then a step was audible in the passage, and the bandaged head and pale face of Paco appeared at the door of the guard-room. The muleteer was received with a cry of welcome from the soldiers.

"Hurra!" cried the sergeant, "here is your match, Perrico. No Catalan or Arragonese, but jolly Navarro. A week's pay to a wet cartridge, he empties this bottle *de alto* without spilling a drop."

And he held out one of the small bottles before mentioned, which contained something like an English pint. Paco took it, raised it as high as he could in the air, and gradually depressing the neck, the wine poured out in a slender and continuous stream, which the muleteer, his head thrown back, caught in his mouth. The bottle was emptied without a single drop being spilt, or a stain appearing on the face of the drinker.

"Bravo, Paco!" cried the soldiers.

"Could not be better," said Perrico.

"You are making a jolly guard of it," said Paco. "Wine seems as common as ditch-water amongst you. Who pays the shot?"

"I!" cried the sergeant, clapping his hand on his pocket, which gave forth a sound most harmoniously metallic. "I have inherited, friend Paco; and, if you like to sit down with us, you shall drink yourself blind without its costing on an *ochavo*."

"'Twould hardly suit my broken head," returned the muleteer. "But from whom have you inherited? From the dead or the living?"

"The living to be sure," replied the sergeant, laughing. "From a fat Christino alcalde, with whom I fell in the other morning upon the Salvatierra road. His saddle-bags were worth the rummaging."

"I can't drink myself," said Paco; "but let me take out a glass to poor Blas, who is walking up and down, listening to the jingle of the bottles, as tantalized as a mule at the door of a corn-store."

"Against the regulations," said the sergeant. "Wait till he comes off sentry, and he shall have a skin-full."

"Pooh!" said Paco, "cup of wine will break no bones, on sentry or off."

And taking advantage of the excellent humour in which his potations had put the non-commissioned officer, he filled a large earthen mug with wine, and left the room.

The sentinel was leaning against the house-wall, his coat-skirt wrapped round the lock of his musket to protect it from the drizzling rain, and looking as if he would gladly have exchanged his solitary guard for a share in the revels of his comrades, when Paco came out, the cup of wine in his hand, and whistling in a loud key a popular Basque melody. The soldier took the welcome beverage from the muleteer, unsuspecting of any other than a friendly motive on the part of Paco, raised it to his lips, and drank it slowly off, as if to make the pleasure of the draught as long as possible. Thus engaged, he did not observe a man lurking in the shadow of an opposite barn, and who, taking advantage of the sentinel's momentary inattention, and of the position of Paco, who stood so as to mask his movements from the soldier, glided across the street, darted into the house, and, passing unseen and unheard before the open door of the guard-room, nimbly and noiselessly ascended the stairs.

The sentinel drained the cup to the last drop, returned it to Paco, gave a deep sigh of satisfaction, and began marching briskly up and down. Paco re-entered the guard room, and placed the cup upon the table.

The wine was beginning to make visible inroads on the sobriety of some of the soldiers, and the propriety of putting an end to the debauch occurred to the non-commissioned officer.

"Come, boys," cried he, "knock off from drinking, or you'll hardly go through your facings, if required."

"Only one glass more, sergeant," cried Perrico. "There is still a pleasant tinkle in the *borracha*."

And he shook the large leathern bottle which held the supply of wine.

"Only one more, then," said the sergeant, unable to resist the temptation, and holding out his glass. Perrico filled it to the brim, and afterwards did the same for three soldiers who still kept their places at the table, the others having composed themselves to sleep upon the benches round the room. For himself, however, as Paco, who stood behind him, had opportunity of observing, the deserter poured out little or nothing, though he kept the cup at his lips as long as if he were drinking an equal share with his comrades.

"Now," said the sergeant, thumping his glass upon the table, "not another drop. And you, Master Perrico, though your father did keep a wine-shop, and your mother carry the brandy-keg, let me advise you to put your head under the fountain, and then lie down and sleep till your turn for sentry. It will come in an hour or two."

"And where shall I be posted?" hiccuped Perrico, who, to all appearance, began to feel the effects of the strong Navarrese wine.

"Under the prisoners' window," was the reply, "where you will need to keep a bright look-out. I would not be in your jacket for a colonel's commission if they were to escape during your guard. To-morrow's firing-party would make a target of you."

"No fear," replied the young man. "I could drink another *azumbre* and be none the worse for it."

"*Fanfarron!*" said the sergeant; "you talk big enough for an Andalusian, instead of an Arragonese."

And so saying, the worthy sergeant walked to the door of the house to cool his own temples, which he felt were somewhat of the hottest, in the night air. Paco wished him good-night; and lighting a long thin taper, composed

of tow dipped in rosin, at the guard-room candle, ascended the stairs to his own dormitory.

The room, or rather kennel, appropriated to the lodging of the muleteer, was a triangular garret already described, formed by the ceiling of the upper story and the roof of the house, which rose in an obtuse angle above it. Its greatest elevation was about six feet, and that only in the centre, whence the tiles slanted downwards on either side to the beams by which the floor was supported. The entrance was by a step-ladder, and through a trap-door, against which, when he reached it, Paco gave two very slight but peculiar taps. Thereupon a bolt was cautiously withdrawn, and the trap raised; the muleteer completed the ascent of the steps, entered the loft, and found himself face to face with Jaime the gipsy.

"Did no one see you?" said Paco, in a cautious whisper.

"No one," replied the esquilador, reseating himself upon Paco's bed, from which he had risen to give admittance to the muleteer. The bed consisted of a wooden *catre*, or frame, supporting a large square bag of the coarsest sackcloth, half full of dried maize-leaves, and having a rent in the centre, through which to introduce the arm, and shake up the contents. The only other furniture of the room was a chair with a broken back. On the floor lay the gipsy's wallet, and his abarcas, which he had taken off to avoid noise during his clandestine entrance into the house. The gipsy himself was busy tying slip-knot at the end of a stout rope about seven or eight yards long. Another piece of cord, of similar length and thickness, lay beside him, having much the appearance of a halter, owing to the noose already made at one of its extremities. The tiles and rafters covering the room were green with damp, and, through various small apertures, allowed the wind and even the rain to enter with a facility which would have rendered the abode untenable for a human inhabitant during any but the summer season. In one of the slopes of the roof was an opening in the tiles, at about four feet from the floor, closed by a wooden door, and large enough to give egress to a man. To this opening Paco now pointed.

"Through there," said he.

The gipsy nodded.

"The roof is strong," continued Paco, "and will bear us well. We creep along the top till we get to the chimney at the further end, just above the window of the prisoner's room. I have explained to you what is then to be done."

"It is hazardous," said the gipsy. "If a tile slips under our feet, or the sentries catch sight of us, we shall be picked off the house-top like sparrows."

"Perfectly true," said Paco; "but the tiles will not slip, and the night is too dark for the sentries to see us. Besides, friend Jaime, ten ounces are not to be earned by saying paternosters, or without risk."

"Risk enough already," grumbled the gipsy. "At this hour I ought to be five leagues away, and if he, on whose service I was bound, finds out that I have tarried, no tree in the sierra will be too high to hang me on."

"You must hope that he will not find it out," said Paco, coolly.

"Did you give the prisoner a hint of our plan?" enquired the gitano.

"I was unable. I visit him but once a-day, to take him his rations, and that at noon. Since I arranged this plan, I endeavoured to get admittance to him, but was repulsed by the sentry. To have insisted would have excited suspicion. He knows, however, that he is to be shot to-morrow, and is not likely to be asleep."

Just then the deep sonorous bell of the neighbouring church-clock struck the hour. The two men listened, and counted ten strokes.

"Is it time?" said the gipsy, who had completed the noose upon the second rope.

"Not yet," replied Paco; "let another hour strike. Till then, not another word."

The muleteer extinguished the light and seated himself down upon the broken chair; the gipsy stretched himself upon the bed, and all was silent and dark in the garret. Gradually, the slight murmuring sounds which still issued from various houses of the little village became hushed, as the inmates betook themselves to rest; and Paco, who waited with anxious impatience till the moment for action should arrive, heard nothing but the heavy breathing of the esquilador, who had sunk into a restless slumber.

Half-past ten was tolled; the challenging of the sentries was heard as they were visited by the rounds; and then soon afterwards came the long-drawn admonition of "*Sentinela alerta!*" from the main guard, replied to in sharp quick tones by the "*Aleria esta*" of the sentries. At length eleven struck, and when the reverberation of the last stroke had died away, Paco rose from his chair, and shook his companion from his sleep.

"It is time," said he.

The gipsy started up.

"The money?" was his first question.

Paco placed a small bag in the esquilador's hand, which closed eagerly upon it.

"I promised you ten ounces," said the muleteer, "and you have them there. When you bring me a line in the handwriting of the prisoner, dated from a Christino town, you shall receive a like sum. But beware of playing false, gitano. Others, more powerful than myself, are concerned in this affair, and will know how to punish treachery."

The gipsy made no reply, but feeling for his wallet, put his sandals and one of the ropes into it, and fastened it on his shoulders. Paco slipped off his shoes, twisted the other rope round his body, and opening the door in the tiles, in an instant was on the top of the house. The esquilador followed. Upon their hands and feet the two men ascended the gradual slope of the roof till they reached the ridge in its centre, upon which they got astride, and worked themselves slowly and silently along towards that end of the building in which Herrera was confined. Owing to the profound darkness, and to the extreme caution with which Paco, who led the way, proceeded, their progress was very gradual, and at last an actual stop was put to it by a small but solidly-built stone chimney which rose out of the summit, and within a foot of the extremity of the house. Paco untwisted the rope from round his body and handed it to the gipsy, retaining one end in his hand. The esquilador fixed the noose about his middle, and altering his position, passed Paco, scrambled round the chimney, and seated himself on the verge of the roof, his legs dangling over. Paco gave a turn of the rope round the chimney, and then leaning forward from behind it, put his mouth to the

gipsy's ear, and spoke in one of those suppressed whispers which seem scarcely to pass the lips of the speaker.

"Remember," said he, "ten ounces, or"——

A significant motion of his hand round his throat, completed the sentence in a manner doubtless comprehensible enough to the esquilador. The latter now turned himself about, and supported himself with his breast and arms upon the roof, his legs and the lower part of his body hanging against the side wall of the house. Paco kept his seat behind the chimney, astride as before, and gathering up the rope, held it firmly. Gradually the gipsy slid down; his breast was off the roof, then his arms, and he merely hung on by his hands. His hold was then transferred to the rope above his head, of which one end was round his waist and the other in the hands of Paco. All this was effected with a caution and absence of noise truly extraordinary, and proving wonderful coolness and habit of danger on the part of the two actors in the strange scene. As the gipsy hung suspended in the air, Paco began gradually paying out the rope, inch by inch. This process, owing to the light weight of the gipsy, and to the check given to the running of the cord by the chimney round which it was turned, he was enabled without difficulty to accomplish and regulate. In a brief space of time a sensible diminution of the strain warned him that the gitano had found some additional means of support. For the space of about three minutes Paco sat still, holding the rope firmly, but giving out no more of it; then pulling towards him, he found it come to his hand without opposition. He drew it all in, again twisted it about his body, and lying down upon his belly, put his head over the edge of the tiles to see what was passing beneath. All was quiet; no light was visible from the window of Herrera's room, which was at about a dozen feet below him. The mist and thick darkness prevented any view of the sentry; but he could hear the sound of his footsteps, and the burden of the royalist ditty which he was churming between his teeth.

Whilst all this took place, Luis Herrera, unsuspecting of the efforts that were making for his rescue, sat alone in his room, which was dimly lighted by an ill-trimmed lamp. Twelve hours had elapsed since he had been informed of the fate that awaited him; in twelve more his race would be run, and he should bid adieu to life, with its hopes and cares, its many deceptions and scanty joys. A priest, who had come to give him spiritual

consolation in his last hours, had left him at sundown, promising to return the next morning; and since his departure Herrera had remained sitting in one place, nearly in one posture, thoughtful and pre-occupied, but neither grieving at nor flinching from the death which was to snatch him from a world whereof he had short but sad experience. Alone, and almost friendless, his affections blighted and hopes ruined, and his country in a state of civil war—all concurred to make Herrera regard his approaching death with indifference. Life, which, by a strange contradiction, seems prized the more as its value diminishes, and clung to with far greater eagerness by the old than the young had for him few attractions remaining. Once, and only once, a shade of sadness crept over his features, and he gave utterance to a deep sigh, almost a sob, of regret, as he drew from his breast a small locket containing a tress of golden hair. It was a gift of Rita's in their happy days, before they knew sorrow or foresaw the possibility of a separation; and from this token, even when Herrera voluntarily renounced his claim to her hand, and bade her farewell for ever, he had not had courage to part. By a strong effort, he now repressed the emotion which its sight, and the recollections it called up, had occasioned him, and he became calm and collected as before. Drawing a table towards him, he made use of writing-materials, which he had asked for and obtained, to commence a long letter to Mariano Torres. This his confessor had promised should be conveyed to his friend.

He had written but a few lines, when a slight sound at the room window roused his attention. The noise was too trifling to be much heeded; it might have been a passing owl or bat flapping its wing against the wooden shutter. Herrera resumed his writing. A few moments elapsed, and the noise was again heard. This time it was a distinct tapping upon the shutter, very low and cautious, but repeated with a degree of regularity that argued, on the part of the person making it, a desire of attracting his attention. Herrera rose from his seat, and obeying a sort of instinct or impulse, for which he would himself have had trouble to account, masked the lamp behind a piece of furniture, and hastening to the window, which opened inwards, cautiously unlatched it. A man, whose features were unknown to him, was supporting himself on the ledge outside, his legs gathered under him, and nearly the whole of his thin flexible body coiled up within the deep embrasure of the window. Putting his finger to his lips, to enjoin silence, he severed, by one

blow of a keen knife, a cord that encircled his waist, and then springing lightly and actively into the room, closed the shutter, since the opening of which, so rapid had been his movements, not ten seconds had elapsed.

Although the motive of this strange intrusion was entirely unknown to him, Herrera at once inferred that it boded good rather than evil. He was not long left in doubt. The esquilador pointed to Herrera's wounded arm, the sleeve of which was still cut open, although the wound was healed, and the limb had regained its strength.

"Have you full use of that?" said he.

"I have," replied Herrera. "But what is your errand here?"

"To save you," answered the gipsy. "There is no time for words. We must be doing."

And making a sign to Herrera to assist him, he caught hold of one end of the heavy old-fashioned bedstead, which had been allotted to the use of the wounded prisoner, and with the utmost caution to avoid noise, lifted it from the ground and brought it close to the window. Then, taking a rope from his wallet, he fastened it to one of the bed-posts. Herrera began to understand.

"And my companions," said he. "They also must be saved. My room door is locked, but the next window is that of their apartment."

"It is impossible," said the gipsy. "*You* may be saved, perhaps; but to attempt the rescue of more would be destruction. Look here."

The gipsy extinguished the lamp and, stepping upon the bed, reopened the shutter, and drew Herrera towards him.

"Listen," said he, in a low whisper.

The tread of the sentry was heard, and at that moment, the glare of a lantern fell upon the trees, bordering a field opposite the window. Beyond that field the ground was broken and uneven, covered with tall bushes, fern, and masses of rock, and sloping upwards towards the neighbouring hills. The light drew nearer; the sentry challenged. It was the relief. Their heads in the embrasure of the window, Herrera and the gipsy could hear every word that passed. The man going off sentry gave over his instructions to his successor.

They were few and short. The principal was, to fire upon any one of the prisoners who should so much as show himself at a window.

By the light of the lantern which the corporal carried, Paco, who was still peering over the edge of the roof, distinguished the features of the new sentry. They were those of Perrico the Christino deserter. The relief marched away, the sentinel shouldered his musket, and walked slowly up to the further end of his post.

"Now then," said the gipsy to Herrera, "fix the rope round your waist. We will let him pass once more, and when he again turns his back, I will lower you. I shall be on the ground nearly as quickly as yourself, and then keep close to me. Take this, it may be useful."

And he handed him a formidable clasp-knife, of which the curved and sharp-pointed blade was fitted into a strong horn handle. With some repugnance, but aware of the possible necessity he might find for it, Herrera took the weapon. The rope was round his waist, and, with his hands upon the embrasure of the window, he only waited to spring out for a signal from the gipsy, who was watching, as well as the obscurity would permit, the movements of the soldier. The night was growing lighter, the wind had risen and swept away the mist from the fields, overhead the clouds had broken, and stars were visible, sparkling in their setting of dark blue enamel.

"Now!" said the gipsy, who held the slack of the rope gathered up in his hands. "No, stop!" cried he, in a sharp whisper, checking Herrera, who was about to jump out, and drawing hastily back. "Hell and the devil! What is he about?"

The window of the room was nearly at the extremity of the sentinel's post, so that, during one period of his walk, the soldier's back, owing to the slow pace at which he marched up and down, was turned for a full minute. It was upon this brief space of time that the gipsy had calculated for accomplishing his own descent and that of his companion. He had allowed the soldier to proceed twice along the whole length of his post, meaning to avail himself of the third turn he should take. But to his surprise and perplexity, when the man passed for the third time, he left his usual track, moved some twenty paces backwards from the house, and gazed up at Herrera's window. Apparently he could distinguish nothing; for, after

remaining a few moments stationary, he again approached the wall of the house, looked cautiously around him, and, giving three low distinct coughs, continued his walk. Without pausing to consider the meaning of this strange proceeding, the esquilador caught Herrera's arm.

"Out with you," said he, "and quickly!"

Herrera darted through the window, hung on for one instant by the edge, and let himself go—the gipsy, with a degree of strength that could hardly have been anticipated in one so slightly built, holding the rope firmly, and lowering him steadily and rapidly. The moment that his feet touched the ground, the gipsy sprang out of the window, and, grasping the rope, began descending by the aid of his hands and feet, with the agility of a monkey or a sailor boy. Before he was half-way down, however, the sentinel, who had reached the end of his walk, began retracing his steps. Herrera's heart beat quick. Hastily cutting the noose from round his waist, he pressed himself against the wall and stood motionless, scarcely venturing to breathe. The sentinel approached. Dark though it was, it seemed impossible that he did not already perceive what was passing. Gliding along close to the wall, Herrera prepared to spring upon him at the first sound uttered, or dangerous movement made by him. The soldier drew nearer, paused, let the butt of his musket fall gently to the ground, and clasped his hands over the muzzle. Herrera made a bound forward, and clutching his throat, placed the point of his knife against his breast.

"One word," said he, "and I strike!"

"At the heart of your best friend," replied the soldier, in a voice of which the well-known accents thrilled Herrera's blood.

"Mariano!" he exclaimed.

"Himself," replied Mariano Torres.

Just then the gipsy, who had reached the ground, sprang upon the disguised Christino, and made a furious blow at him with his knife. Torres raised his arm, and the blade passed through the loose sleeve of his capote. Herrera hastened to interfere.

"'Tis a friend," said he.

The gipsy made a step backwards, in distrust and uncertainty.

"I tell you it is a friend," repeated Herrera—"a comrade of my own, who has come to aid my escape. And now that you have rescued me, act as our guide to the nearest Christino post, and your reward shall be ample."

The mention of reward seemed at once to remove the doubts and suspicions of the esquilador. Returning to the rope which dangled from the window, he cut it as high up as he could reach.

"They may perhaps miss the sentry and not the prisoner," said he.

At that moment a dark form turned the corner of the house.

"Who goes there?" exclaimed a voice.

"This way," cried the gipsy, and springing across the road, he dashed down a bank, and with long and rapid strides hurried across the fields.

"Who goes there?" repeated the deep hoarse tones of Major Villabuena "Sentry, where are you? Guard, turn out!"

The flash and report of Mariano's musket, which he had left leaning against the wall, and which Don Baltasar found and fired, followed the words of alarm. The bullet whistled over the heads of the fugitives. In another instant all was noise and confusion in the village. The rattle of the drum was heard, lights appeared at the windows, and the clatter of arms and tramp of man and horse reached the ears of Herrera and his companions. Soon they heard a small party of cavalry gallop down a road which ran parallel to the course they were taking. But in the darkness, and in that wild and mountainous region, pursuit was vain, especially when one so well skilled as the gipsy in the various paths and passes directed the flight. In less than half an hour, the three fugitives were out of sight and sound of the village and their pursuers.

After six hours' march, kept up without a moment's halt, over hill and dale, through forest and ravine, the intricacies of which were threaded by their experienced guide with as much facility as if it had been noonday instead of dark night, Herrera and Torres paused at sunrise upon the crest of a small eminence, whence they commanded a view of an extensive plain. On their right front, and at the distance of a mile, lay a town, composed of dark

buildings of quaint and ancient architecture, surrounded by walls and a moat, and on the battlements of which sentries were stationed; whilst from the church tower the Spanish colours, the gaudy red and gold, flaunted their folds in the morning breeze.

"What place is that?" said Torres to the guide.

"It is the Christino town of Salvatierra," replied the gipsy, turning into a path that led directly to the gate of the fortress.

SICILIAN SKETCHES.

SYRACUSIANA.

FOUNTAIN OF ARETHUSA.

After three hours' steaming from Catania, we were in the harbour of Syracuse; but it was at two in the morning, and we could not go ashore. A little scuttling takes place overhead while the Mongibello litters her two hundred and forty horses for the night; and, when this is accomplished, all is silent, and we sleep in the moonlit mirror. In two hours more the last star had dropped out of its place; and in another, rosy morn found us all in activity, and on deck, examining a most unprepossessing *paysage*, and contemplating, for many a league, the wretched coast road which must have been our doom if we had *not* come by sea—so, for once, we had chosen well! Our alternative would have consisted in two days' swinging in a *lettiga*, in facing malaria in the fields, with nothing but famine and fever-stricken hamlets to halt at, and even these at long intervals. There were, to be sure, places enough of ancient *name*, in D'Anville's Geography, along the coast, but nothing *beyond* the name itself. This is so exactly the case, that even with the beautiful and authentic money of *Leontium* before us, we did not land at *Lentini*! There is nothing so utterly confounding as the contemplation of *money*, every piece of which is a *gem*, on spots where no imagination can conceive the city that coined it. We are not long before we begin to cater for new disappointment, in the desire to be conducted without delay to the fountain of *Arethusa*. Accordingly, a quarter of a mile's distance from our locanda, under the rampart of the old *Ortygia*, and in the most uncleanly suburb of modern Syracuse, the far-famed spring is pointed out to our incredulity; and we are at once booked with the many who, having got up a suitable provision of enthusiasm to be exploded on the spot, are obliged to carry it away with them. A vile, *soapy washing-tank* is *Arethusa*, occupied by half-naked, noisy laundresses, thumping away with wooden bats at brown-looking linen, or depositing the wet load that had been belaboured and rinsed on the bank, gabbling, as they work, like the very

Adonizousæ of Theocritus, (himself, as he informs us, a native of Syracuse.) A man lay sleeping with his dog beside him; a number of mahogany-coloured children, quite naked, were sprawling on the parapet-wall, covered with flies, but fast asleep! A poor bird, a descendant of the Ἀδονεὺς Σικελικαί, a nightingale of the soil, *with his eyes put out, that he might not know day from night, and so sing unconsciously, sang to us as we passed!* But the affair was destined, in a single moment, to become ludicrous as well as disappointing. Our guide, Jack Robertson, (so named by an English man-of-war's crew that had, as he said, kidnapped him during the war,) quite mistaking the *nature* of our disappointment, said, consolingly, "You come *dis* way, sir; down here I show you *more gals' feet, wash more clothes;*" on which intimation we certainly followed him down a few steps, when, pushing back a wooden door, we entered at once into a large roofed washing-house, along the floor of which still ran the sadly humiliated Arethusa! We praised the beauty of the young washerwomen, and departed—Jack Robertson having considerably more to say on the subject than would interest the reader to know; and which, in fact, we could not tell, without violating what was evidently imparted in confidence.

JACK ROBERTSON AND THE PROFESSOR OF ELOQUENCE.

Under the guidance of the aforesaid Jack Robertson, we had visited two rival collections of coins, the property of two priests, and certainly the finest we had seen in Sicily. Those of *Syracuse* in silver, of the *first* or largest module, (*medaglioni* as they are technically called,) are for size and finish deservedly reputed the most beautiful of ancient coins; and of these we saw a full score in each collection. We might indeed have purchased, as well as admired, but were deterred by the price asked, which, for one perfect specimen, was from 45 to 50 crowns, (£7 or £8 sterling.) These coins are among the largest extant. On one side, the head of Arethusa is a perfect gem in silver, (the *hair* especially, treated in a way that we have never seen elsewhere;) on the other, is a *quadriga*. One of these ecclesiastics dealt like any other dealer. The other consulted the dignity of the church, and employed a lay brother to impose upon strangers who buy in haste to repent at leisure; for even among the picked, select, and *winnowed* coins of the man who knows what he is about, there are always false ones. Having shown that we are *au fait* both as to the *thing* and the

market-price—that we had read Myounet, and were acquainted with the sharp eyes of *de Dominicis* at Rome, we pass immediately for an English *dealer*; and suspicion becomes conviction, when, taking up a gold Philip, we remark that "all trades must live," and that our price must depend upon his "*quanto per il Filippo?*" "You will not scruple, I suppose, to pay forty-seven dollars!" "Thirty-seven is plenty."—"Pocket Philip." "Sir," said we to our employé as we went home, "you are a *rogue* to have brought us to that cheating priest." "Not so, sir," said the Siculo-Inglese Jack Robertson, "they tell here priest *not* cheat, always deal *square*—have that character indeed, sir;" and he proceeded to conduct us to another priest-collector, who, in this instance, had gone out to dine with a friend. Jack, however, said he would soon bring him back, dined or undined; and in ten minutes he returned in high spirits at his success. "Always trust *me*, sir! Me no fool, sir! As soon as I see him, sir, I say, you got *coins*? He say 'yes.' Den you show what you got *directly* to English gentlemen. 'No, I won't,' he tell me—I take my dinner here wid my friends, and after dat I come see English gentlemen." Rather a cool thing we thought for a *dealer* to keep his customers waiting; but, whenever one wants any thing, one can always afford to wait a little, and Jack informed us that he had learned from the *padré's* servant that his master always dines in a quarter of an hour. The quarter of an hour up, we send again, but our messenger comes back empty-handed. "Well, where is your friend?" "He no friend of mine, sir! He very angry! Not my fault, sir," "Angry? what is he angry about?" "Because I say to him only this, sir—'Other priest ask gentleman *too much*—hope you not *very dear too*, sir;' to which he say, '*You damn fool*, I don't sell coins!' Den I beg his pardon, and he ask me sharply, '*Who* say I sell coins?' 'Sir,' I say, 'all the whole world say so.' Den he say, '*D—n all the whole world*'; and when any body tell you this again, say Abate Rizzi call him a d——d fool, and say he may go to h-ll!!!" "Abate Rizzi!! why, that is the *Professor of Eloquence* to whom we were to be introduced yesterday." "Yes, sir," says Jack, "and here he comes," glancing up the street. We now see a personage, whose staid deportment and gait declare him to be much beyond the age when it may be thought allowable to swear. "You rascal, you have been telling us a lie; that gentleman could never have said, damn the whole world." "He did not speak it in *English*, sir." "Not speak it in English? why, what did he say?" "Sir, he say, '*Cazzo! questa é una minchioneria!*' that means 'damn fool,' sir, —'*dettia tutti d' andare al diavolo*,' that be the same as tell every body go to

h-ll!!" (the translation in this case we thought not so bad;) we had not, however, time to discuss the matter, for the Professor of Eloquence, who had indulged our servant *pro re nata* with so very unusual a specimen of his art, was at our elbow. We saluted him courteously, but offended dignity was apparent in a grave face of considerable *church* power; we therefore subjoined to the ordinary salutation much regret at the awkwardness of our guide, and apologised for intruding on his repose; which apologies, and further explanations, immediately changed the current in our favour. Jack, too, regretted he had been so indiscreet as to be misled by *current reports*; but *this* was to rouse the calmed resentment into a new explosion. "Who," he demanded, in very Demosthenic accents—"who had dared to affirm that he had ever sold a coin?" We went in, saw his very beautiful collection, the Professor himself doing the honours with so much obligingness, that we left him convinced that he neither sold coin nor dispensed anathemas.

EAR OF DIONYSIUS.

"Lautumias Syracusanas omnes audistis; plerique nostis. Opus est ingens magnificum regumac tyrannorum. Totum est ex saxo in mirandam altitudinem depresso, et multorum operis penitus exciso. Nihil tam clausum ad exitus, nihil tam septum undique, nihil tam tutum ad custodias, nec fieri nec cogitari potest."

Half an hour's shaking in a *lettiga* brings us without a stumble, by the old forum of Syracuse, to the Ear of Dionysius, and those other stone quarries so well described in the above passage from Cicero *in Verrem*. We alight at the embouchure of these most striking excavations, and, descending a very steep short hill, wind through a small garden of exquisite vegetation, and are in the first *lautumia* of the series. Here, deeply embayed in a colossal cave, we behold the marks of the ancient pick-axe, and the niches, as it were, in which the labourers sat while they chiselled out the extraordinary work, fresh as if they had been done yesterday! Shapeless and half-fashioned masses, *ebauches* of columns for temples which never came into the possession of capitals, or the support of entablatures—unborn Dorics of the Greek portfolios are here. The sun striking obliquely from the mouth into the interior of the cavern, made the green vegetation all hoary in the slanting light. Fires in dark caverns are favourite subjects with some

painters. We admire them not, but we would have liked to take a sketch of one here for the sake of poor Nicias and his fellow captives. A party of men is collected round a caldron with a fire blazing beneath it; another group is seated at a long table eating; some feed the immense boiler with new supplies from a heap of dirty-looking earth-stained *salt*. Others test the quality from time to time of that which has been purged and crystallized. It was the native nitre of the country on which they were occupied, and the test was its deflagration. In passing out of the *first* of the line of quarried caverns to go to the *Ear*, which is the last, we are struck with the beauty of the garden into which it opens, which is found in possession of many unfrequent flowers and plants, such as had not prospered even here, but for the singularly sheltered disposition of the spot. Against the wall there grew a magnificent *Smilax sarsaparilla* in full maturity. A decoction of the twigs of that tree cured the gardener, as he assured us, of an obstinate pain in both shoulders that no other medicine would touch; which testimony in its favour made us look with an added interest on the cordate leaf, and small white verbenal-looking flower, of certainly the first, and in all probability the last, *Smilax sarsa* we should ever see *growing*. We cut off from the main stem an arm about the thickness of an ordinary-sized bamboo, and, like it, knotted, for a souvenir of the place and the plant. In this same garden the tea-plant thrived; the proprietor, Count S——, makes an annual *racolte* of its leaves, which he keeps for his own teapot. Another curiosity is the *Celtis australis* or *favaragio*, a tree that bears fruit of the size of a pea, with a stone kernel; a trumpet-flower of spotless white, belonging to the *Datura arborea*, measured a whole foot and a half from lip to stalk! But it were vain to dwell on the novelties of a garden which is *all* novelty to an English eye, and full of variety to the Italian himself; a garden equally unique in its position and productions. The *Ear* is probably the most wonderful acoustic contrivance in existence; and that it was the work of studious design, is proved by a *second* one *commenced* in a neighbouring quarry—commenced, but not further prosecuted, evidently because it would not answer, from the soft, chalky material of the wall on one side. Its *external* shape of the conch is that of the ass's ear. The aperture, through which the light now enters from its further end, and from a height of one hundred and twenty feet, was till lately not known to exist; it not being supposed that the *Ear* had any *meatus internus* corresponding with the *external* one. The accidental removal of a quantity of loose stones from above, revealed a narrow passage of from

twenty to thirty feet in length, and opening directly into the cave. This internal opening is situated almost immediately over the amphitheatre, one hundred and twenty feet above the *floor* of the cavern, and (measuring in a plane) is one hundred and eighty feet from the external opening.

Having rent paper, which made an incredible noise, and let off a Waterloo cracker, which reverberated along the walls like thunder, and done other deeds of the same kind below, we ascended, and walking over the *back* of the cavern, presently came upon the passage which leads to its *inner* opening; and there, leaning over a parapet wall, (in doing which we almost exclude the feeble light that penetrates into the cavern from behind,) we are startled by a very audible but faint whisper, which comes from our friend below, asking us to declare our present sensations. We reply in the same faint whisper; and are immediately apprised of its safe arrival by *another*. One hundred and eighty feet separate the parties. In the stillness of that half-lit cavern, not only were our faintest whisperings conveyed, but we could hear each other breathe! This was a place to come and see!

SANTA LUCIA AND THE CAPUCIN CONVENT, &c.

Some Franciscans told us that Saint Lucia was stabbed close to a granite column, in a subterranean chapel in their church, in the *fourth century*, and *under Nero*!—so ignorant are these men even about what it concerns them to know. They show a silver image, which a dozen men can, they assure us, scarcely lift. The body of the saint is not, however, here, but at Venice. "No; we have but one rib and a thumb," said the *padré*! "but we have two very handsome *dresses* which she wore—one red, the other blue." Cast-off clothes, then, will do for relics! In returning to the church, they tell us of a blind old general who came hither on purpose to obtain the intercession of: Santa Lucia, (who had her own eyes put out,) to remove this calamity; with success of course, for they never record failures in church *clinique*. "Do you believe the cure?" we ventured to ask. "Why not? *il miracolo e autentico*." "No!" said his companion, "*autorizzato*!" The distinction is, that the church *authorizes* the declaration of some lies as miraculous, but declines to make herself responsible for the reality of others!" Round the Capucian church certain stanzas are written, under what are called the fourteen *stazioni* or stations of the cross, (places where our Saviour is supposed to have halted,

or fainted under his load, on his way to Calvary.) Stanzas we were at first profane enough to attribute to Metastasio, but afterwards found that it was only the *metastasis* of his metre adapted to the use of the church. They are much better than most of our sacred poetry, as it is strangely miscalled, which is frequently neither poetry nor common sense:—

"Il sol si oscura,
E in fin la terra
Il sen disserra
Per grand dolor;
Morto è il Signore!
O Peccatore,
Se tu non piangi,
Sei senza cuor!

"Deh, madre mia,
Con quant' afflitto,
Piangendo, al Petto,
Stringi Gesù!
Io, l'ho fer ito,
Ma son pentito—
Non più peccati,
Non più, non più!

"Dal tuo sepolcro,
Non vo partire,
Senza morire,
Ma qui starò;
Finchè 'l dolore
M'uccida il core,
L'alma piangendo
Qui spirerò!" &c. &c.

The Capucins live on a hill in the only good air in the vicinity of Syracuse; in their precincts we found ourselves fairly attacked on *Luther's* quarrel, and expected to take up cudgels ecclesiastic on that worn-out controversy—one of our Capucins vaunting himself ready and able to bleed for the *truth*. Liberal ideas are not common in the cloister. "You aver," said he, "that Roman Catholics may be in a way of salvation; we by no means return the compliment—but as both Lutherans and Calvinists agree in believing thus charitably of *us*, and not of one another, it seems a pretty strong argument in our favour." With such high subjects did our apparently very much in earnest friends entertain us, in a garden planted amidst those quarried

prisons of the captive Athenians. A man attempted to-day to put off some bad coins upon us, which we recollected to have had offered to us by another hand—still we only hinted that they were forgeries, and declined purchasing. While this was in progress, another person came up properly introduced, with an *enlarged spleen*, which was *certainly* authentic. We tell him that such indurations of viscera require a *very long time* indeed for removal: and that malaria is their origin. This convent possesses one of those revolting vaults, which dry up and preserve the corpse in the form of mummy; a huge trap-door flapped its wooden wings, and gave us admission into a large subterranean apartment, wherein we presently stood in the midst of defunct brethren arranged along the walls, as if they stood in chapel at their devotions! On the floor thirty or forty light boxes looked like orange chests, with custom-house hieroglyphics on their lids; but they were marked with proper and even high-sounding names, and were in fact the coffins of barons, counts, and prelates, transported here to have the *benefit of the air*, and there accordingly they lay unburied, to profit by the antiseptic qualities of the soil. We looked at a baron or two, and saw something like a huge caterpillar beginning to change into a chrysalis; a grub mummy dressed out in old Catanian silk, and so enveloped in cobwebs, that you could with difficulty make out the central nucleus of shrivelled humanity. "*Questo*," said our cowed conductor, "*è il Barone Avellina, morto di cholera, anno ætatis fifty-six; he loved our order! here is another equally good-looking personage*," said he, exposing a corrugated face and dark hair, frightfully at variance with a blue silk handkerchief, and all the funeral gear of twenty years ago. This was another victim to that awful visitation; his feet and hands were covered with faded herbs, rosemary, and lavender; first placed in the coffin at the time of his decease, and renewed every year by friends, when the cobwebs of the year preceding are brushed away. One elder, the pride of the collection, had lain in his court-suit for nearly a hundred years, the aforesaid aromatics having kept off the moths all this time. The room felt dry, and, except for the *company*, what one calls *comfortable*. Knee-buckles and shoe-buckles, and steel-hilted swords, do not rust here, and white cravats and embroidered waistcoats might almost return to the world! The Capucins themselves are disposed in niches, and each has a text from Scripture over his cowl. "*Do you prepare these mummies?*" we enquire "*Nienti preparati, signor!* We only lay them to dry in yonder room over a sink, and when they have lain four months, we take them out and complete

the process in another room, where the sun comes; after which we dress them and place them here." These Capucins, they tell us, are the strictest of all sects of Franciscans. From the sights of the mummy chamber, we see at least that they are not idle, and must always have a job on hand. Females, if *not* Catholic, are here admitted to see the grounds, and they offer wine and bread for our refreshment, which we, thinking of their *wallets*, decline on the plea of *anorexia*. Near the Capucins is the Church of *San Giovanni*, a singularly wild spot, in the midst of bad air, and within reach of the Ear of Dionysius. We descend with a fellow filthier than the filthiest Capucin, calling himself a hermit, to guide us in the vast catacombs over which the hermitage stands. It was a trial to follow him—the rank woollen dress, uncleansed till it falls to pieces, diffuses an odour which, in such confined passages, is particularly unpleasant. Cleanliness, says an English proverb, is next to godliness; but, in cowed society, it assuredly forms no part of it. Catacombs, in general, are called interesting—we never saw one in which we did not pay heavy penalty for gratifying curiosity. Those of Syracuse are vast indeed; spacious arcaded streets intersect each other in all directions, and your walk throughout lies between lengthening files of niches, cut into the walls for coffins, tier above tier, like berths in a steamboat, conducting here and there into a circular apartment, with a cupola and a central aperture, looking out upon the wild moor above.

SHARKS, FIREFLIES, &c.

We form to-day the acquaintance of an intelligent medical practitioner and collector in natural history, from whom we learn that there are eight different species of dog-fish (*Squalus*) along the Syracusan coast. This animal, to the popular fame of whose injurious exploits we had hitherto yielded unabated confidence, appears fully to justify his West Indian character. An "ancient mariner" told us, that full forty miles from Syracuse, a shark, which had been following him for a long time, thrust his head suddenly out of the water, and made a snap at him; and if the boat had not been a *thunny* boat, high in the sides, there is no saying how much of him might have been extant! A pair of trousers drying in the sun over the side of the boat should have small attraction for a shark, but he *took* them on *speculation*. At one of the principal thunny fisheries near Catania, the fishermen have fixed upon poles, like English kites on a barn-door, *pour*

encourager les autres, two immense sharks' heads as trophies—the jaws at full gape, exhibiting four sets of teeth as sharp as harrows, and as white and polished as ivory. They always wish to decline any dealings with this formidable foe, though his flesh is in repute in the market, and he weighs from two thousand five hundred to four thousand pounds. But Syracuse has no reason to complain of scarcity, or to eat shark's flesh from necessity; most of the *Scomber* family,—the *alatoria*, the *palamida*, and a fine gray-coloured fellow which the fishermen call *serra*, frequent her coast; then there is the *Cefalo*—the ancient *mugilis*, our gray mullet—and the sea-pike, *Lucedimare*, whose teeth and size might well constitute him lieutenant to the dog-fish,—all these came to table during our stay; but we did not meet with one very superior fish known to the ancients as the *Lupus*, (*labrax* of the Greeks,) which abounds when in season, and is known in every comfortable *ménage* along the Sicilian coast; his Linnæan name is *sparus*. On the shore are to be picked up occasionally two small kinds of shells *peculiar* to Sicily, of which our intelligent acquaintance is so obliging as to give us specimens. We never saw or heard of a firefly in Sicily. Professor Costa of Naples, though he doubted the fact of there being none, had never seen any in his frequent entomological trips to that island. This beautiful insect, so common about Florence and Rome, and in central Italy, is extremely rare about Naples; nor does this seem to be from their disliking the sea, for we never saw so *many* as at *Pesaro*, on the Adriatic;—no insect, then, is more *volage*, or uncertain as to place, than the firefly. The only poisonous *reptile* of Sicily is the *viper*, of which there seem to be several varieties. A beautiful blue thrush (*Turdus cyaneus*), a great *talker*, much prized, and *high-priced* too, when he has been taught to speak, is found in the rocky clefts about Syracuse. The heat and brilliancy of the sunshine render it extremely difficult, we are told, to preserve collections in natural history. All the water drunk here is *rain water*. The butter, fruit, and vegetables of Syracuse are, in the month of May at least, bad, very bad; but its *Muscat* wine, its *Hybla* honey, and its fish, are all of superior quality.

The honey of that hill needs not our praise,

———"quæ nectareis vocat ad certamen
Hymetton,
Audax Hybla, favis."

For ourselves, after tasting the confection of the Attic as well as of the Sicilian bee, we know not which is the greater artist, or which operates on the finer material; but the *best* honey in Europe, in our opinion, comes from the apiaries of Narbonne.

A CONSULTATION.

We had given advice, and were preparing to go, when another candidate comes forward, and, with suitable gesticulation, so placed his hands that we could not help saying, "Liver, eh?" "*Eccellenza*, si!" "Dopo una febbre?" "*Illustrissimo*, si!"—Folk now beginning to wink approvingly at our sagacity, we were looking exceedingly grave, when a pair of Sicilian eyes set in a female head put us quite out by evidently taking us for a conjurer, and so setting at once our ethics, our pathology, and our Italian dictionary at fault. Still the surgeon congratulates the room on the "*lumi*" brought to it by the strange doctor, approves of the prescription, and corroborates our opinion that the "*Signore Don Giacomo*" *Somebody* was the incontestable possessor of a "*flogosè chronica del fegato!*" We now said we must go; and *two* children ran for our hat, the man with the liver kisses our hand, others seize our coat-skirts, and the guide, Jack Robertson, carries the mace and leads the way, and puts himself at the head of the procession homewards; and glad were we to escape the embarrassment of curtsies and courtesies, to which we are unused, and far too extravagant ones to admit of reply. Come! the best of fees is a poor man's gratitude; but from poor or rich, at home or abroad, it is seldom that medical men walk off so magnificently.

EXCURSION TO EPIPOLÆ.

The country about Syracuse is neither grand nor beautiful; but the ground is *classic ground*, and Sicily has not been brought within the reach of an intercourse which, while it polishes and confers substantial benefits, removes the sacred rust of antiquity. The Hybla hills, as hills, are not equal to the Surrey hills as one sees them from one's window at Kensington; but Hybla is Hybla, and here we eat the honey and sip the wine of the soil. Yonder plain before our breakfast-table is plain enough, and promises little; but that small insignificant stream is the *Anapus*, those columns belonged to

a temple of Jupiter, that white tower, five miles off, marks *Epipolæ*, the snow-capped Etna is the background of the picture, and the bay at our feet once bore that Athenian navy which left the Piræus to make as great a mistake as we did in our American war. We rowed across that bay to the mouth of the Anapus, and penetrated up the stream to the paper manufactory, from real papyrus, on its banks. The vestiges of a temple of Diana, converted into a monastery, and the nearly perfect remains of that amphitheatre which Cicero pronounced the largest in the world, are not to be seen in every morning's walk! Of Archimedes, without being able to fix his proper tomb among so many, the *name* here is enough. One ought to be able to conjure with it; the genius that concentrated the sun of Syracuse on the hostile anchorage, was of no common measure. We spent our day on a visit of the deepest interest, up at *Epipolæ* (*i.e.*, the position *on or over the city*, as Thucydides expresses it,) the acropolis, in fact, of Syracuse, and at about the same distance from the town itself as Athens is from Piræus. In order to do this commodiously, we allowed ourselves to be suspended between two mules in a very narrow watchman's box, *lettiga*, (the ancient *lectiga*, you will say—no: here there is nothing for it but an erect spine.) The see-saw motion is unpleasant as well as unusual; the mules, though docile, have not the *savoir faire* of a couple of Dublin or Edinburgh chairmen. You must sit *quite* in the middle, or run the perpetual chance of capsizing. A little alarming, also, is it to look out on the stone-strewn furrow, over which the mules carry you safely enough; and when you have become reconciled to the oscillation, and have learned to trim the boat in which you have embarked, it is long before your ear becomes accustomed to the stunning sound of a hundred little bells fastened to the mules' heads. "Do take them off," said we, after half an hour's impatience; "do, pray, remove these infernal bells!" "And does the signor imagine that *any* mule would go without falling asleep, or lying down, were it not for the bells?" We arrived safe and stunned, in about an hour and a half, at the foot of a tower of no Roman or Sicilian growth, but a bastard construction upon the ancient foundations of *Epipolæ*. We saw, however, some fine remains of a wall, which might have been called Cyclopian, but that the blocks which composed it were of *one* size. Our guide, a mason, and, of course, an amateur of walls, insists upon our calling this a *capo d'opera*, as, no doubt, it is. On the spot itself there is nothing antique to see; but the drive or ride is one of the most remarkable in all the world! It takes you over from four to

five miles of a rocky table-land, by a very gradual ascent, abounding with indelible traces of human frequentation, else long forgotten. The deep channelling of those wheels is still extant that had transported million tons of stone out of those interminable lines of quarries, to raise buildings of such grandeur as to give occasion to Cicero to say, that he had "seen nothing so imposing as the ancient port and walls of Syracuse!" The scene is altogether wild and peculiar; you pass for miles amidst excavated rock, and on the flagstones of ancient pavement, between the *commissures* of which wild-flowers, principally of the *thistle* kind, spring up into vigorous life, and look as if they grew out of the very stone itself. The small conduit-pipe of an underground aqueduct still serves to carry from the same sources the same water; but the people who used it are gone. In the wildest parts of the way, the large flat stones, that formed a continuous road, serve for *barn-floors*—or rather *threshing*-floors that require *no barns*—on which long-horned cattle tread out, without any chance of bad weather to injure, the golden grain of the Sicilian harvest. Here lives the blue-breasted *hermit bird* in unmolested solitude; and, careless of solitude, the *Passer solitarius* utters her small twitter in the hollows—a few goats browse amongst the scanty thistles, and one or two dogs protect them. Snakes, hatched in vast number under the warm stones, show you their progress, by the motion they impart to the thin light grass; and an endless variety of new lizards present themselves in a soil not untenanted, though barren. From a plain, justly called Bel Veduta, we see *Catania* and *Lentini*, (Leontium,) famous once for its coinage, infamous now for its malaria. A little bay bears the great name of *Thapsus*; and, opposite, a small mass of nearly undistinguishable houses, the ambitious distinction of *Port Augusta*.

We have seen our sights, and are returned, and waiting to go on shore. Our paddle-wheels are once more at rest in the harbour of Messina! They have let down the windows of the long room on deck, in which we had taken shelter from the vermin below, and wake we must, though it is not five o'clock. The sun breaks cover to-day, magnificently, behind Messina; but the Health-office having no inducement to open its eyes prematurely, will not, for some time, send its delegates on board, to announce our liberty to land. We have nothing for it but to look over the boat, or study haggard faces reflected in the unflattering mirror of a beautiful sea. The hauling about of things on deck is always pleasant, as a signal of voyage over! The

sun still shines full upon the long row of houses on the quay—fishing boats are entering with abundance of fresh fish for our dinner, and shoals of silvery sardines, untaken, are leaping out of the water near our prow, to escape from a large body of mackerel which is pursuing them. The authorities are coming! We don't want any cards to hotels, but cram a dozen into our pockets, and ask if there are any more here? We are sorry to take a new guide. Jack Robertson has spoiled us for some time. When he pocketed our supplementary piece, as we were coming off, he told us, "haud sine lacrymis," it should buy a linen shirt for his youngest child. "I good Christian, sir, I no tell you lie, sir! I love my children, upon my word! When they go to bed, my wife not able to attend them, sir! They cry, father. I say, yes! *Bread*, says little Bill—I get up; give him some bread. Mary say, *water*, and I get up for water six times every night!—no story, sir!" "How many hours do you work?" "When sun get up, sir, till it be mid-day; I go see childer till three, den work hard at BUILD WALL till sun go down; den I go home. I wish I could speak English better; but you understand me, sir." We rowed off with many *vivas*, and this poor mason's "hopes" that we "*might find all square at home*." At home! Oh, that we had a home!!—an unassuming wife—*placens et tacens uxor*; an unpretending house, with a comfortable guest-chamber; and no noiseless nursery, *unfendered* and uncared for! But the bells of Messina, all let loose together, interrupt our pleasing reverie, and our friends, who have been hovering round us in a boat, are now permitted to approach, and to land with us at our hotel. 'Tis our last day!—in the evening, we go to hear Sicilian vespers for the last time; and the next day we are off for Naples!

ADDIO! SICILIA!

On deck!—off!—Stromboli is already veiling himself in the rapidly encroaching shades of darkness, and it is time to say good-night to this fair night, and to go to our cabin. Beautiful Sicily! may this *not* be our final leave-taking! We found no poetry below, and in a short time are driven back from the cabin by its complicated nuisances, to moonlight contemplation, and catching cold. An hour elapses—a town not to be forgotten by the Neapolitans is just ahead. The moon shines brightly on its high-perched castle, and we have scarce stopped the paddles, when our deck is invaded by a new freighting of passengers, already far too many. Twenty boats full

of noise and animation, with all the exaggeration that attends both in these latitudes; every pair of oars fighting for a fare, and knocking one another over board in contention for passenger or parcel destined to land at Pizzo. They ship about with the wildness and alacrity of South-Sea islanders; some are all but naked, and every quarrel is conducted in such a Calabrian brogue, that the very men of Messina profess not to understand them, and to treat them as savages rather than as countrymen. The small fort in front was disgraced by the nocturnal trial and prompt execution of the unfortunate Murat. It is long ago; but of these noisy disputants for the things to be landed, some probably had been eyewitnesses of the last bloody act of a blood-stained throne. A poor sick horse, confined in his narrow crib on deck, blinks at the moonlight, and can neither sleep nor eat his corn; he drops his lower lip, and presents an appearance of more physical suffering than we should have thought could have been recognized in face of quadruped; but pain traces stronger lines, and understands the anatomy of expression better than pleasure. We wished to land for half an hour, but this being impossible, *addio Pizzo!* Our vessel is quickly off, and our Cyclopean stokers are already mopping off their black sweat in the dreadful glare of the engine-room. Some cages, full of canaries and parrots, just become our fellow-passengers, are all in a fluster at the screaming and bustle to which they are unused, and a large cargo of turkeys, with fettered legs, and fowls that can only flap their wings, do so in despair at the treatment threatened them by the dogs on deck—second and third class passengers are fighting for prerogatives in misery, amidst the clatter of unclean plates, and the remains of the supper of the fore-cabin. The space for walking, is encumbered with coils of cordage, and the empty water-barrels are all taken possession of for seats. Bad tobacco, even among the *élite*, and garlic every where, drive us to the fore-deck, or to the neutral ground between it and ours. A passage, which promised fair when we started, begins, now that we are half over, to look suspicious; and a preliminary lurch or two, as the breeze freshens, converts many from an opinion they had begun to *promulgate*, that the steamer on the Mediterranean afforded, *on the whole*, the most eligible mode of traversing space. We looked at each other piteously enough, on seeing that we were fast going to face a magnificent specimen of a wave, of which our piston was determined to try the valour, and if possible abate the confidence. When Greek meets Greek, said we, as we dashed through it, and gave a warning to old Neptune to take care of his

interests below! Other huge parcels of water hit us obliquely, or come down upon us with a swoop like a falchion; steam hisses, and chimney gets red-hot; but though the vessel yields not, there be those on board who *do*: an Anglo-Sicilian pleasure party is quenched in twenty blanched faces at once; conversation is over, women retire, and the deck is deserted. Against such *ups and downs as these*, the very philosophy of the Stoics were powerless!—even thou, O moon! seemest a *little* disconcerted, and hast withdrawn thy *pale* face from thy whilom plate-glass, *the Mediterranean*, so often, for weeks together, like the inland lake of the north,

"Thy *mirror*! to inform
Thee, if the dark and arrowy storm
The forest boughs that brake,
Require thy slender silvery hand, to still
Thy ruffled wreath of *lily* and jonquil!"

Pindemonte.

Whew!—wind gets up, and takes part with wave, and all against us—never mind!—

"Hurrah! for the marvels of steam,
As thus through the waters we roam;
For pistons that smite, oh! for funnels that gleam,
And to carry us safe through the *foam*."

Whew, whew!—but greater divinities than Neptune are abroad to-night!—What! expect our *black* chimney to show the *white* feather! Pooh! pooh! old *Eunosigæus*, what are thy *white horses* to the invisible hoofs of two hundred and forty coal-black steeds stamping in the hold? We had, however, a sharp seven-hours' tussle for it; at the end of which, the buffeted Mongibello came bounding into the harbour, and swirled round in the face of Vesuvius, who was smoking his cigar as quietly as ever!

We have tried several Mediterranean steamers, and our report of all is much the same—bad is the best! A sea passage any where, to be comfortable, depends *solely* on the smoothness of the water; if this be rough, what care you for mahogany, rosewood, and plate-glass? Whether the cabin where

you are to be sick, and to hear others groan, has its Scotts, its Byrons, and its Moores, under a convex mirror; its rows of curtained births, and horse-hair sofas, and its long line of polished, well articulated tables? Whether the smell of empyreumatised grease be wafted to the nostrils by a *Maudsley* or a *Bell*? Whether the captain have his *ears bored*, or be an Englishman? Your brass nails and varnished *buffets* are very well *in dock*, when the vessel has *stank* off her last voyage, and lies clean washed, like that other syren of the opposite coast, who coaxed Ulysses and his men, some years ago—not, indeed, to *come on board*, but the contrary. But when her deck is all soot and nastiness, when she has quartered her vermin on her passengers, and goes gurgling along, as if *she had an Empyema under her pleura costalis*; when she *itches* into the waves, as if to *punish* them, and tramples on their crests, as if to crush them under her keel, why all the brass you want is "*ÆS TRIPLEX*;" and there is no *varnish* in the world that will enable *you* to put a *good face on it*. A few heaves more, such as those of our present imagining, and brandy and water, bottled porter, and *bottled philosophy*, are uncorked in vain!

As to particular steamers, the *Castor* since he lost his twin-brother, who was run down off *Capo D'Anzo* (he forgot, we suppose, to invoke Fortune "*gratum quæ regit Antium*"), has become quite negligent of toilette, and incredulous about the powers of soap and sand. The bugs in only *one* of her beds would defy *Bonnycastle*! Fast enough, however, goes the *Castor*! Orestes, pursued by the furies, never rushed more impetuously on than does this child of Leda, with all his vermin in the locker. Of Virgil in the water, we have no experience, but they say his *prosody* is perfect, and his *quantity* (of accommodation) blameless. The *Dante* under paddles is unknown to us; but the poem which his customers read oftenest on board is doubtless the *Purgatory*. The captain of the *Palermo*, an obliging man, *with ear-rings*, and speaking Siculo-English, does his job in nineteen hours; and giving you one execrable meal, gives you more than enough. This vessel (blessed privilege!) carries some of the *Teffin* family (Mr *Teffin*, our readers know, was *bug-destroyer to the king*), and *is said* to have no bugs. As to the two floating volcanoes, *Vesuvius* and *Mongibello*, we had heard much against the *Neapolitan crater* (*cabin they call it*), and, after due preparation, we precipitated ourselves into the latter, which placards her two hundred and fifty horse-power. The engineer, however, if you acquire his confidence,

reduces the team considerably, taking off at least one-fifth. Horse-power is, after all, we fear, an appeal to the imagination! How do you measure horse-power? and what horses? Calabrian nags? Arab stallions? Dutch mares? or English drays? or perhaps you mean *sea-horses*? That every vessel has a great *rocking-horse power* we know by sad experience, and are come to read one hundred and fifty, two hundred, &c., with great tranquillity, being convinced that when the translation from horse-power into paddle-power is effected, you obtain no corresponding result.

ÆSTHETICS OF DRESS.

MILITARY COSTUME.

Military dress is almost as difficult and dangerous a thing to deal with as ladies' attire; as various in its hues and forms, as fanciful in its conceits, as changeable in its fashions, and as touchy in the temper of its wearers. To pull a guardsman by his coat-tail would be as unpardonable an offence as to tread on a lady's skirt; and to offer an opinion upon a lancer's cap might be considered as impertinent as to criticise a lady's bonnet. Having, however, been bold enough to commit offences of the latter description, we will now venture to brave the wrath of the whole of Her Majesty's forces, horse, foot, and artillery, while we read those gallant gentlemen a lecture on their costume; and we will even add into the bargain that other most honourable and equally useful branch of the public force "the mariners of England;"—as for "the force," the police, truly we eschew them and their deeds. They are a perverse, stiff-necked race, who wear two abominations, round hats and short coats, and they have a villanous propensity of following you home from your club of an evening, and inveigling you every now and then to Bow Street, thrusting a broken knocker or two into your pocket as you go along, and then pestering your bewildered memory with all sorts of nocturnal misdemeanors; truly they are a race of noxious vermin; pretty well, perhaps, for the protection of the swinish multitude; but for us gentlemen, why, they "come betwixt the wind and our nobility," and their remembrance stinks in our nostrils! One thing only we know in their favour,—they dress all in one colour; their blueness alone makes them sufferable in this nineteenth century of ours, and whenever they depart from this great principle of æsthetic unity, we will bring in a bill for their suppression.

Now, if there be any thing more self-evident than the ante-Noachian problem that "two and two make four," it is this axiom, the verity of which was demonstrated long before Achilles behaved in so ungentlemanlike a manner to Hector, when he took him that dirty drive round Troy, viz., that utility for purposes of service is the very essence and spirit of military costume. The finest dressed army in the world had better be in plain clothes,

if the excellence of their clothing depends only upon its ornament; while, on the contrary, the plainest and most rudely equipped corps will come out of campaign with excellent military effect and appearance, provided only that their clothing has been suited to their service. "My dear fellow," said an old moustache to us one day on the Place du Carrousel, "give me 20,000 men who have served in nothing but blouses and blue caps, and I'll make you ten times as fine a line as all that mob of national guards there in their new uniforms." And he was right; in military matters it is the man that produces the real effect, as to appearance, upon the long run; and the practised eye of the old campaigner would prefer a Waterloo man in a smock-frock to any flunkey you could pick out, even though he were dressed up as fine as Lady L——'s favourite chasseur. We assert, then, that a scrupulous attention to the nature of the service should form the basis and the starting point of all discussions as to military costume; but we will not go so far as to say that ornament is inadmissible or unnecessary for military men. On the contrary, we know that the adornment of the person has been attended to by the bravest men in all ages and in all armies; and we know further, that it does produce a powerful effect on the *morale* of a corps. We intend to advocate the use of frequent but consistent ornament for our soldiers, but we do not wish to turn them into mere paraders. Use first and before every thing, in this case at least—ornament next and entirely subsidiary to it; keep to this rule, and you shall see an army turned out into the field better than most that pass muster now-a-days.

It is of no use going into that diffuse subject—that *vexatissima quæstio*—of how far the military dress of ancient days accorded with the wants and uses of the service; the reader may go and look into that dusty little volume of *Vegetius de Re Militari*, if he is fond of dabbling in military antiquities; or he may consult our learned old friend, Captain Grose of facetious memory; or still better, let him be off to Goderich Court, and ask the porter to admit him to a sight of the finest collection of armour in the world. We are not going to dive into these matters; we will rather say roundly, that ever since armour came to be disused, we think military men have gone clean daft in equipping themselves. Only look at the uniforms of the campaigns of the Grand Monarque or William of Orange; see what inconvenient coats those glorious fellows that won Blenheim and Ramilies wore; recollect the absurd turn-out of Charles XII., and even of Frederick the Great. Convenience and

comfort seem to have been totally out of the question in those days—not that they made the men worse soldiers—they all fought admirably—but we question whether their fatigues would not have been less, and their health sounder, had they been clad and equipped in a sensible manner. Oh, the powder, and the pigtails, and the broad cuffs, and the Ramilies cock, and the sword tucked through the coat-tail! Glories of glorious times, ye are gone for ever! But so, too, are the tactics of your wearers; all is changed; another Cæsar has swept you all off the field; and even the famous uniforms of the French empire, so brilliant,—but at times so absurd,—even they have been altered. They have had their day, and most of them are fit now only for fancy-balls and old-clothes' shops. Nothing is so short-lived as a good uniform; it varies with the taste of a commander-in-chief, or a commander-in-chief's toady; or the fancy of some royal favourite. It's like the wind in the Mediterranean; you never know what is coming upon you till you are in the midst of it; and so it is with your uniform. Get a new one, and the probability is that you will not show it on parade half-a-dozen times before a new regulation is out, and then more work for the tailors. Be it so, then; military costume, like all other kinds, is doomed to change; let us aim only at keeping its vagaries within something like the limits of common sense.

The infantry of our own army—the successors of those noble fellows that walked across Spain—have no better covering for their backs than the scanty and useless coatee; in this they parade, and in this they are supposed to fight. Behind, two little timid-looking skirts descend any thing but gracefully; they are too small to have any grace in them; and a pair of sham cotton epaulettes, or large unmeaning wings, are supposed, by a pleasing fiction of the military tailors, to adorn their shoulders. Now, this garment, we contend, is neither ornamental nor graceful: were it cut down into the common jacket, it would be better; were the excrescences at the shoulders removed, it would be more seemly; it has no warmth in it, and offers little or no protection against the rain. No soldier, who has been reduced to his coatee in a campaign, but must have sighed after his original smock-frock, or any other outer covering that had at least some pretensions to being useful. Since, however, the idea of defending the body of the foot-soldier by steel or leather is given up, the two things requisite in a serviceable coat are warmth and convenience. No coatee nor jacket can be warm enough for the British service, exposed as the men are to all varieties of climate; and

infinitely more to cold and wet than to sunshine. In India, and in some of the colonies, a lighter kind of clothing may be indeed necessary; but for the common use of the army, a coat is wanted that shall be a protection against wet and cold, and yet not inconvenient to the wearer—making him comfortable, in fact, while it allows him free use of all his limbs and muscles. For the heavy infantry, therefore, we would propose such a coat as we have before recommended for all civilians; nothing more nor less than a frock-coat, coming down half way along the thighs, and close buttoned above to the chin. Every body knows that this is the most comfortable thing he can put on for all kinds of wear; and the evolutions of a good infantry soldier can be perfectly well gone through by whoever wears it. The shoulders, if they require external ornament, should have something that is really useful at the same time; not merely tinsel or cotton lace; and, therefore, it should be the adaptation of a thick woollen pad, ornamented with metal or coloured lace, calculated to take off the pressure of the musket and of the knapsack-straps from the bones of the neck and arm. Whoever has carried a musket twelve or fourteen hours continuously, and has had his pack on at the same time, well knows how comfortable and how really useful such an addition to his dress would have been. The coat should be furnished with two small pockets in front, just to hold a knife, some money, and things of that kind; and they should be close to the circle of pressure at the waist.

The appearance of a close-buttoned coat of this kind, not caricatured about the shoulders, is manly and dignified; it proclaims its usefulness at the first glance; and, whatever be its colour, will form a handsome uniform. The cross-belts should be done away with—being at once ugly, expensive, and inconvenient—a plain broad strap, white or black, as you please, should gird the waist up well; and the cartouche-box, which could be made to slide upon it, might be worn, while out of battle, behind; but, in actual engagement, in front. The bayonet (which might advantageously be lengthened, and made to approximate rather more to the nature of a sword, or a long knife, than it does now) should always have its sheath fixed to the belt, at the left side.

The soldier would in this way have his habiliments warmer, his equipments tighter and more simple, and his appearance in line or on guard, highly improved. Only think of how you would dress yourself if you were going

out deer-stalking, and you will come to something of this kind—barring the pockets of your shooting-coat, which are certainly inadmissible, from motives of military neatness and discipline; and barring, too, the buttoning up to the chin, which, on the mountain's side, you had perhaps rather dispense with; but which the soldier must adhere to, if he would keep up the essential degree of stiffness and smartness of dress. Coats of this kind, and equipments of this nature, are worn by the Prussian and French infantry—two good authorities in military matters; they have been tried on our police force; something of the sort has been used for clothing the pensioners; and we venture to predict, that, in a few years, a dress upon these principles will become universal in the British service.

Should a man have a cloak or a great-coat?—It should be a compound of both—a small cloak with sleeves; and it might be worn either rolled up, as at present, on the top of the kit; or else, as some of the French troops wear it—both conveniently and gracefully—made up into a long thin roll, going over the left shoulder, and with the ends strapped together upon the right hip. The Scotch regiments would wear their plaids most effectively in this fashion; and it is a good guise to adopt, whether you are on the rough lands of Spain, or in the thick woods of America. A warm coat and a blanket are two of the soldier's dearest friends in winter and have kept many a man out of hospital.

The light-infantry man—and there ought to be more distinction made in the uniforms than there is—might wear a long jacket, descending below the hips, instead of a frock-coat: his cloak, too, should be lighter: and, in fact, his whole equipments constructed for quick and active service. So should be the rifleman's clothing and arms; everything should be designed to serve the one end had in view—the real use and intent of that particular arm, whatever it might be; and, if so, then let the officers of the rifles leave off their long trailing sabres—fitter for a light dragoon than for one who is supposed to be hopping about, like a Will o' the Wisp, in swampy brakes; or creeping, like a serpent, through rushes and long grass. Their present swords are good for nothing but to trip them up in their movements, or to give them the pleasure of holding the sheath in one hand, and the blade in the other.

For the leg-clothing of our men, give us the trouser, and let us keep to it; we do not indeed seem likely to change it; yet, who can tell? Just as the civilian seems to have decided upon this happy invention, as the most useful and comfortable thing he ever donned, so will all military men agree in its praises. It is not so good for parade purposes, as the light pantaloons and gaiter, in as much as it conceals defects of limbs; but, on the long run, it is far to be preferred; it lasts better, keeps cleaner, and does more comfortable service to its wearer, than any thing else. One point not sufficiently attended to by our military authorities, and yet which affects the health of the men, is, that their trousers, whether in parade or for service, whether for winter or for summer use, should be made of such a woollen fabric as will allow of frequent washing. It is impossible for the cleanliness of the soldier to be sufficiently kept up without this; and the material now used for plaids of various kinds, or the common blanketing for sailors' clothes, might be easily modified, so as to be suitable for this purpose. Linen trousers are indispensable for foreign service of some kinds; but for summer clothing at home, a light white blanketing, which has the curious faults of being cool in warm weather, and warm in cold, is the proper substitute; our men often get sudden chills in summer evenings, which send them to the fever ward, and the cause is mainly attributable to undue exposure in insufficient clothing. To complete the lower portions of the soldier's dress, let him wear either the shoe and gaiter, or the low boot; either is good, there is hardly a choice—comfort preponderates in favour of the gaiters—ornament in that of the boot.

And now for the head-gear of the British Achilles: a touching and a troublesome subject, which has bothered all heads, from those of the humble wearer up to the field-marshal, who is content under the shadow—not of his laurels—but his plumes—to design any kind of uncomfortable and ugly thing that strikes his imagination, and to clap it on the cranium of steady veteran and raw recruit. Truly we have been most unfortunate, æsthetically speaking, in our military caps; and, to go no further back than Peninsular recollections,—from the conico-cylindrical cap of Vimiera to the funny little thing with a flap up in front of Vittoria and Waterloo, down through the inverted cone-shaped shako of recent days—until we have come to the very bathos of all chapellerie that now disgraces the heads of too many among our infantry regiments—all has been bad. Never, since the

day when men first armed their heads for the fight, has there been seen such a paltry, ugly, useless, bastard kind of a thing as the last cap turned out for the British army. With its poke before and behind, its conical top and low elevation, it is a degraded cross between a Germano-Tyrolese cap and a policeman's hat—a bad mixture of both. May it be sent back to Germany, where the idea came from, and may it be stuffed into a barrel of sour-cROUT, not to come out till it is thoroughly rotted.

There is only this choice for the useful and graceful covering of the foot-soldier's head; either the small slouched hat of the old Spanish infantry—a hat very liable to be turned into something slovenly and dirty—or the foraging cap of our undress—a covering most comfortable, but not quite strong enough for campaigning use, as well as for parade; or the helmet of antique form, shaped, that is to say, in some conformity with the make of the head, and more or less ornamented with crest and plume. We incline on the whole to the latter, and for two reasons: it is not so liable to get altered in shape by service as the others; it will wear well for a longer time; it is more useful in *mêlées* and against cavalry; and it is the most becoming of any. In Prussia it has lately been adopted with great success; and the appearance of the infantry there is now warlike and graceful in the highest degree. The helmet need not be made of metal; boiled leather is the proper material—ventilation and lightness can be easily provided for in it, and any degree of ornament may be superadded—crest or feathers, each is becoming.

For Eastern service something lighter than this is of course necessary—a cap or a broad hat might easily be adopted there; and for American service another description of covering is also most essential to the health and comfort of the soldier. We mean the close-fitting and well-formed fur cap, which can protect the head, neck, and cheeks of the wearer from the extraordinary rigour of a Canadian winter. The cap worn by our guards when last on service in these regions, was at once comfortable, useful, and handsome.

For the cavalry, where ornament seems to be required much more than amongst the infantry—for they fancy themselves, if indeed they are not, the top sawyers in all matters of service—the head-dress must be not only useful, but can hardly be made too ornamental, within the limits of good

taste. And here allow us to say that the infantry shako and the great grenadier's cap are perfectly absurd and misplaced; the one will never give a man any chance against a sabre-cut, and the other is fit only to tumble off within the first two minutes of a charge. In heavy cavalry nothing but the helmet, richly plumed and crested, should be allowed; constructed either of leather or metal, yellow brass or silvery steel, and adorned sometimes with skins, sometimes with graven plates. The handsomest helmet worn by any regiment in Europe, is that of the old *gardes du corps* of Charles X., the same as that now worn by the *gardes municipaux à cheval* in Paris; a metal helm with leopard-skin visir; a lofty crest, with a horse-tail streaming down the back, and a high red and white feather rising from the left side. Beauty of natural form, the sharp contrast of flowing lines between the feather and the tailed crest, and the general brilliancy of colour, render this by far the most effective head-dress for cavalry which we have ever seen. Our helmets in England, for the dragoon guards, are too heavy, too theatrical; there is no life and spirit in them.

In light cavalry of all kinds, except lancers, the fur cap, lately re-introduced into the British army, is the most useful and most suitable covering; it is at once comfortable and becoming; its form is warlike and harmonious; its colour rich; and it admits of as much or as little ornament as you please to put upon it. Without a feather it is good, with one it is better; guard-bands add to its appearance without troubling the wearer; and it has the merit of lasting to look well longer than any other kind of cap whatever. In the lancers they should always preserve that national cap which tells us of the origin of this arm, and which is an ingenious and elegant adaptation of the strength of the helmet to the lightness of the shako; it is beautiful and graceful as the lance itself; we have nothing to say of it but what is in its favour.

Heavy cavalry, in our opinion, ought to wear the cuirass; this is the only relic of ancient defence which we are advocates for keeping up, and we do so upon the score of utility. It is rather heavy for the men, but only so because they are not accustomed to wear it in a judicious manner; it is of real service to the arm in question, and is the greatest ornament that a soldier can put on. It is true that our heavy cavalry did all their gallant deeds without it, and may do so over again; still it can do no harm, and may be of much use to a brigade of decidedly heavy cavalry; the helmet and the

cuirass should always go together, neither without the other, as we see it often now, forming an absurd anomaly. The coat of the cavalry should be long, like the frock-coat for the heavy regiments; short, like the lengthened jacket of the light infantry, for the corresponding branch of the mounted soldiers; and the lancers should all wear the Andalusian or Hungarian jacket. While these may be ornamented with all the fancies of lace, embroidery, and buttons, the dress of the cuirassiers should be severely plain and simple. Epaulettes here, if worn, should be mere enrichments of the top of the sleeve; no weight has to be carried on the horseman's shoulder, and therefore our metal plates now stuck upon them are useless. The belt of the cartouche-box, if needed, can be confined on the shoulder by other means; and this, as well as the waist-belt for the sabre, should be broad and serviceable, fit for the roughest use.

To complete the clothing of our brave cavaliers, we would urge that wherever the helmet and cuirass are used, there the long boot should be adopted, were it only for harmony of purpose, to say nothing of means of defence. They need not be stiff, unwieldy, and so-called sword-proof boots, like those of the Life-guards, but equally high and much more flexible; they would cost a good deal of money at the first mounting of a regiment, but they would last for a long time by merely renewing their feet, and they would be both serviceable and comfortable to the men. Let all other regiments adhere as at present to their trousers—they can hardly do better; though, if any smart hussar corps wanted to show off their well-turned limbs to the ladies on a review day, they might sport tight pantaloons and Hessian boots as of old, *pace nostrâ*.

One important subject, as connected with military dress, is that of national distinctions of costume; for whatever tends to remind men of their common country, whatever tends to mark them out as a band of brothers in arms, coming from the same homes, and bound to stand by each other in their noble calling—this is worthy of the attention of the skilful leader. In our own country, we have admirable opportunities of turning the strong love of local distinction and ancient glory to good account; for while we consider the brilliant scarlet of our uniforms to be distinctive of English arms, we have the glorious old plaids of Scotland, any one of which is enough to stir up the heart of the hardiest mountaineer, when he meets his brethren in the field. We are of opinion, then, that as a point of military discipline, as well

as of æsthetical correctness, all English regiments—properly so called—should adhere to their red uniforms, varied with subsidiary ornaments, or other distinctions, to mark separate regiments and corps. Those from Scotland should all wear the plaids, so as to let them predominate in their habiliments—of course, we would send those stupid plumed caps to the right-about, and adopt the Scotch bonnet; but the plaid of each clan should find its place in the British army; and those noble distinctions of old feudal manners should never be done away with. The Irish regiments ought also to have their distinguishing colours; and as green seems to be the poetical tint of the Emerald Isle, there is no sound objection to the adoption of that hue for the base of the Irish uniform. Irish soldiers will fight like devils in any uniform, or in no uniform at all, as has been seen on many a gory field; but if the use of green can awaken one thought of national glory—one kindly recollection of "dear Erin" in their hearts—then let the gallant spirits from the western isle lead their headlong charges in the tint that haunts their imagination. Do we want them to have some red about their coats?—they are always willing to dye them with their best blood. And even the Taffies—the quiet, sedate Taffies—for "she is good soldier, Got tam, when her blood is up"—why should not they have some national uniform, to remind them of the blue tints of their native mountains and deep vales? Children of the mist and the wild heath, the natural rock, and the lonely lake—the glare of our Saxon red is too brilliant for them; let them wrap their sinewy limbs and fiery hearts in pale blue, and grey, and white—and so let them enter the bloody lists, where they will hold their ground by the side of the three other nations, and bear away their share of military glory.

A few words on the navy, and we have done—and only a few words; for we have nothing to say, but to give unqualified praise. In the habiliments of our jolly tras—God bless 'em!—utility is every thing, ornament nothing. They are clad just as they should be; and yet, on gala days, they know how to make themselves as coquettish as any girl on Portsmouth Downs. There is no greater dandy in the world, in his peculiar way, than your regular man-of-war's man. The short jacket, and the loose trousers, and the neat pumps, and the trim little hat, and the checked shirt, and the black riband round his neck—he is quite irresistible among the fairer portion of the creation. Or in a stormy night, with his pilot coat on, at the lonely helm, and his northwester pulled close over his ears, and his steady, unflinching eye, and

his warm, lion-like heart within—the true sailor is one of the noblest specimens of man. He that is fierce as a bull, and yet tender-hearted like a young child—the greatest blasphemer on earth, and yet the most religious, or even the most superstitious, of men—he is not to be tied down by the rules of æsthetics, like a land-crab. His home is on the sea, as somebody has said or sung; he has nobody there to see him but himself, (if we may be excused the bull.) What does he care for dress? Only look at him standing by his gun, when broadside after broadside is pouring into the timbers of some sanguinary Yankee or blustering Frenchman. What is his uniform then? Let them declare who have seen that most awful of human sights, a great battle at sea; but let them not whisper it in ears feminine or polite.

To the officers, we will only add a word—let them eschew all hats and short coats, and keep to their caps and frocks. This is their proper dress. Let them keep themselves warm, comfortable, and ever ready for service. Never let them face their coats with red again. The old blue and white against all the world, say we! And let the soldiers take a leaf out of the sailors' books, and remember that utility, though accompanied by plainness, is far more consonant to the laws of æsthetics than unmeaning ornament or erroneous form.

GOETHE TO HIS ROMAN LOVE.

ATTEMPTED IN THE ORIGINAL METRE.

Lass dich, Geliebte, nicht reu'n dass du mich so schnell dich
ergeben!

Glaub'es, ich denke nicht frech, denke nicht niedrig von
dir.

Vielfach wirkten die Pfeile des Amor; einige ritzen,
Und vom schleichenden Gift kranket auf Jahre des Herz,
Aber mächtig befiedert, mit frisch geschliffener Scharfe,
Dringen die andern ins Mark, zunden behende das Blut.
In der Heroischen Zeit, da Gotten und Gottinnen liebten,
Folgte Begierde dem Blick, folgte Genuss der Begier.
Glau'bst du er habe sich lange die Gottiun der Liebe
besonnen,

Als in Idäischen Hain einst ihr Anchises befiel?
Hatte Luna gesäumt den schonen Schläfer zu küssen,—
O, so hatt' ihm geschwind, neidend, Aurora geweckt!
Hero erblickte Leander am lauten Fest, und behende
Stürzte der Liebende sich heiss in die nächtliche Fluth.
Rhea Sylvia wandelt, die fürstliche Jungfrau, der Tiber
Wasser zu schopfen, hinab—und sie ergreift der Gott.
So erzeugte die Sohne sich Mars! Die zwillinge tranket
Eine Wólfen, und Rom nennt sich die Fürstin der Welt.

Rue it not, dear, that so swiftly thy tenderness yielded thee to
me—

Dream not again that I think lightly or lowly of thee.
Divers the arrows of Love: from some that but graze on the
surface,
Softly the poison is shed, slowly to sicken the heart;
Others, triumphantly feather'd, and pointed with exquisite
mischief,

Rush to the mark, and the glow quivers at once in the
 blood.
 In the heroical time when to Love the Deities yielded,
 Follow'd desire on a glance, follow'd enjoyment desire.
 Deem'st thou the parley was long when Anchises had
 pleased Aphroditë,
 Catching her eye as she roved deep in the woodlands of
 Ide?
 Or that if Luna had paused about wooing her beautiful
 Sleeper,
 Jealous Aurora's approach would not have startled the
 boy?
 Hero had glanced on Leander but once at the Festival—
 instant
 Plunges the passionate youth into the night-mantled wave.
 Rhea in maidenly glee caroll'd down with her urn to the
 Tiber—
 But in a moment she sank mute on the breast of the God:
 Hence the illustrious Twins that were nursed in the den of
 the She-wolf;
 Worthy of Mars were the boys:—Rome was the Queen of
 the World.

P.M.

EPIGRAMS.

ANACREON'S GRAVE.

Wo die Rose hier blüht, wo Reben um Lorbeer sich
 schlingen
 Wo das Turtelchen lockt, wo sich das Grillchen ergetzt,
 Welch ein grab est hier, das alle Götter mit Leben
 Schön bepflanzt und geziert? Es ist Anacreons Ruh.
 Frühling, Sommer und Herbst genoss der glückliche Dichter,
 Vor dem Winter hat ihn endlich der hügel geschützt.

Here where the Rose is in bloom, the Vine and the Laurel
 entwining—
 Here where the Turtle invites—here where the
 Grasshopper springs,
Whose is this grave in the midst, which the Gods with life
 and with beauty
 Thus have circled and decked?—This is Anacreon's
 Tomb.
Spring, and Summer, and Autumn, the joyous spirit had
 tasted,
And from the Winter he hides under this hillock of green.

THE WARNING.

Wecke den Amor nicht auf! Noch schläft der liebliche Knabe
 Geh! vollbring dein Geschäft, wie es der Tag dir gebeut!
So der Zeit bedienet sich klug die sorgliche Mutter,
 Wenn ihr Knäbchen entschläft, denn es erwacht nur zu
 bald.

Waken not Love from his sleep! The boy lies buried in
 slumber;
 Go, and, while leisure is left, finish the task of to-day;
Even as a diligent mother, who, seizing the hour as it passes,
 Works while her child is asleep—knowing he'll waken too
 soon.

THE SWISS ALP.

War doch gestern dein haupt noch so braun wie die Locke
 der Lieben,
 Deren holdes Gebild still aus der Ferne mir winkt;
Silbergrau bezeichzet dir fruh der Schnee nun die Gipfel,
 Der sich im sturmender nacht, dir um den Scheitel ergoss.
Jugend, ach, ist dem Alter so nah, durch's Leben verbunden
 Wie ein beweglicher Traum Gestern und Heute verband.

Yesterday's eve were thy peaks still dark as the locks of my
loved one,
When from a distance she looks fair and serene upon me;
But, with a mantle of snow, at morn those summits were
silver'd,
Which the chill fingers of night sudden had spread on thy
brow.
Ah! how swiftly in life may youth and old age be united—
Even as the flight of a dream yesterday link'd with to-day.

NORTH AND SOUTH.

Glanzen sah ich das Meer, und blinken dië liebliche Welle
Frisch mit gunstigem Wind zogen die Segel dahin.
Keine sehnsucht fühlte mein Herz; es wendete rückwärts
Nach dem Schnee des Gebirgs, bald sich der
schmachtende Blick.
Südwärts liegen der Schätze wie viel! Doch einer im Norden
Zieht, ein grosser Magnet, unwiderstehlich zurück.

Glitter'd the ocean around, in light the billows were
breaking,
Freshly, with favouring winds, glided our sails o'er the
sea.
Yet for the land of beauty I felt no longing; in sadness
Backward my glances still turn'd towards the region of
snow.
Southward how many a treasure invites! but *one*, like the
Magnet,
Stronger than all, to the North draws me resistlessly
back.

CHRISTMAS CAROL, 1845.

TUNE.—"*Packington's Pound.*"

I.

"The intrigues of this month shall we e'er comprehend?
Will the Dons, when the Parliament meets, give a clue?
Will one Tory among them speak out like a friend,
On the WHY and BECAUSE of this famous to-do?
Is it really the case
That the Whigs are in place,
Because Peel, when his colleagues assembled, appall'd them
By a cool proposition,
To toss to perdition,
Both the faith and the force that in office install'd them."

II.

Thus groan'd out a grumbler, all sulky and sour,
But for Christopher's temper such trash was too much;
And it soon made the malecontent quiver and cower,
When he saw preparations for handling the Crutch.
"Lay your croaking aside,"
The old gentleman cried,
"Or I'll make you eat up each ungenerous word:
Not our deadliest foe,
Such injustice should know,
And far less shall a friend be convicted unheard."

III.

"Come read here their Mottoes extracted from Burke
For the Commoners,—here for the Peerage from Lodge;
Say, can these be consistent with pitiful work,

On a par with some Whiggish O'Connellite dodge?
Though at present a cloud
May the mystery shroud,
Till secrecy's seal from their lips be removed;
When the truth shall appear,
It will all become clear,
And the words here inscribed shall again be approved.

IV.

"Ne'er believe that Peel's noble INDUSTRIA Plann'd
Aught design'd of its honours his fame to despoil,
Aught but JUSTICE to INDUSTRY, JUSTICE to Land,
To the loom and the ploughshare, the sea and the soil.
His hand will still hold
Straight, steady, and bold,
The scales where our wealth and our welfare are weigh'd:
Still though tempests may blow,
And cross currents may flow,
He will steer our good ship till at anchor she's laid."

V.

"But surely that terrible leader of Walter's
Was not utterly void of foundation in fact.
Was the Cabinet really not full of defaulters,
And resolved for a time on that ruinous act?"
"Cease, blockhead, to babble
Your ganderlike gable:
Could Repeal e'er be REASON CONTENTS ME with Graham,
Could the NE NIMIUM
Of good Gordon succumb,
Or the Stanley's SANS CHANGER be changed into shame?"

VI.

"With AVITO HONORE would Wortley turn tail,
To his PRÆSTO ET PERSTO is Binning untrue?"

Could the SPERNO TIMERE of Somerset quail,
Or a Ripon with treachery blot FOY EST TOUT?
Could the princely Buccleuch
Stoop the star-spangled blue
Of his Bellenden banner when Leaguers came on?
Proved the Lion a jest
On great Wellington's crest?
Did his VIRTUS exude at the shriek of Lord John?

VII.

"Arthur falter'd?—I'll swallow such inpudent flams
When the ears of the sow yield us purses of silk;
When there's no Devil's Dust in the Cotton Lord's shams,
And the truck-master's pail holds unmystified milk.
Not a Tory, I swear,
Will be forced to declare
In the face of the Nation's assembled Senatus.
That from duty he shrunk,
Or once felt in a funck
About Cobden, and Bright, and some rotten potatoes!

VIII.

"We shall see them again, even now or erelong,
Upon Wisdom and Equity taking their stand,
Calm, able, and upright, harmonious, and strong,
In peace and prosperity ruling the land.
Firm, faithful, and free?
What they say they will do—
No Right unprotected, no Wrong unredress'd;
While writers of Letters
And all their abettors
Stand in swaggering impotence caught and confess'd."

THE CRISIS.

The announcement that the Peel Ministry had resigned was received by us, as we believe it was by the nation at large, with feelings of sincere and solemn regret. We do not know that any Cabinet has existed within our memory whose retirement was wished for by so few, and deprecated by so many among all classes of men. We have doubted the policy of some of its measures, and more than doubted the propriety of others. But we have never ceased to respect the energy, the ability, and the honesty of the great men composing it; and have always felt that in those points on which we could not agree with them, they were entitled to a generous forbearance, due to their responsible and arduous position, as the ministers who have most strenuously and most successfully endeavoured to solve the problem, how the government is to be carried on under the Reform Bill. The disappointment of some expectations among a powerful and prominent part of their supporters had diminished the enthusiasm, and divided the feelings, of the party who mainly contributed to bring them into power. But, on the other hand, it should not be forgotten, that they equally disappointed the adverse expectations, and ultimately gained the confidence of a large, and not unimportant, portion of the country, who for years had been taught to believe, that the accession of Conservatives to power would commence a new era of warfare, oppression, profusion, and corruption. Let us look fairly at some of the practical and palpable facts of the case—at some of the most conspicuous features of public affairs, during their administration. AGRICULTURE has flourished, and agricultural improvement has advanced in an unprecedented degree. COMMERCE has plumed her wings anew, and added other regions to her domain. PUBLIC CREDIT has been supported and advanced, and the revenue raised from an alarming and increasing depression. PEACE has been universally maintained abroad, and agitation rendered powerless and contemptible at home. The POOR have been contented and employed, and not a murmur has been heard against the authority of the Crown, or the principles of the Constitution. These unmistakable results have been felt by all men, and all have confessed, in their hearts, that however they may have been offended with minor

blemishes—whether by the short-coming, or by the excess of ministerial liberality,—the great purposes of government have been achieved by the ministry now dissolved, and they will frankly acknowledge with ourselves, that we shall not soon look upon its like again.

We know nothing of the causes that have led to this memorable and momentous event, except that apparently differences of opinion prevailed among the members of the Ministry in reference to the corn-laws. We shall not believe, until we hear it from their own lips, that any portion of the Cabinet have advocated any scheme fraught with danger and injustice to the best interests of the country: nor shall we indulge in any conjecture as to the real nature of the policy that may have been under discussion, where conjecture must be so vague, and where it must so soon give place to authentic information. We shall merely say, that any measure calculated to place agriculture and industry generally, in a disadvantageous and defenceless position, must have met with our unfactious, but firm, opposition. If ever the day should come, when protection, by common consent, were to be withdrawn, truth compels us to declare, that there is no one by whose hand we should desire to see that painful and dangerous operation performed so much as Sir Robert Peel;—not because we should be insensible to all the awkward and painful embarrassments of such a change of course; but simply, because we are bound to say, that there is no other man of whose knowledge, skill, and sagacity we have the same opinion. By none we think could the fall be so much broken, or the transition made so smooth, or so little injurious. Certain it is, that a measure of total and immediate abolition *from the Whigs, incompetent and incapable as they have been proved*, would be a calamity of which the magnitude can scarcely be estimated by the most gloomy imagination. We are far, however, from contemplating the necessity or possibility of such a policy from any Ministry whatever.

We take our stand upon the principle of protection to national agriculture and industry, in the existing and peculiar circumstances of the country. We do not love restrictions for their own sake, or desire any protection by which nothing is to be protected. But we think that protection is demanded by the exigencies of the whole community, and to that extent and on that ground we advocate its preservation for the general good. We shall not enquire at present how far the amount or the form of that protection may be

modified. That may no doubt be a varying question, of which the discussion is to be controlled only by the grave consideration that its too frequent agitation is a great evil, as inevitably unsettling important rights and arrangements. But if it be thought that the rapid progress of events in this railway age admits or requires a relaxation or re-construction of existing restrictions, we are prepared candidly to consider any specific plan that may be tabled, and to weigh deliberately the amount and kind of protection that may now be necessary to preserve our *status quo*, having regard to the facilities of transit, the discoveries of science, the progress of improvement, the increase of population, the abundance of money, and any other elements which may be alleged as to a certain extent emerging since the last adjustment of the scale, and having special regard also to *any alteration in the distribution of taxation* which may accompany the proposal for such change. We do not see our way to such a change. We do not recognise its necessity; but we think it unbecoming the position occupied by those who concur in our principles to offer a blind or bigoted resistance to any discussion of a practical matter, which must always depend greatly on surrounding circumstances and complex calculations. Far less shall we here enquire whether the time is soon or is ever to arrive when all protection is to cease. In politics, as in other things, the absolute words of "always" or "never" are rarely to be spoken. It is sufficient for us to say, that the period when such a revolution ought to take place has not as yet been presented to our minds as an object of present and practical contemplation.

Let us unite, then, in support of these national principles with a calm, candid, and temperate firmness, demanding a just and fair protection, *so far* and *so long* as it is needed to keep our soil in cultivation, and to foster those improvements, which cannot be carried on without the prospect of a due return, and by means of which alone, *if ever*, the necessity of protection may be superseded, or its amount diminished. Let us oppose any rash or undue alteration, from whatever quarter it may come; but, above all, let us resist to the uttermost the attempts of selfish Leaguers and the more reckless portion of the Whigs, whose interested or unprincipled policy would overlook all those large and deep-seated considerations, which in every view require so much management, and such nice computation, before any thing can be done in so momentous a matter as the *providing permanently for a nation's food*, and the development of a nation's

resources with a due regard to those various interests which seem often to be conflicting, but which, in a just point of perspective, are ultimately identical.

Our pain in contemplating the loss of one ministry, is not alleviated by our anticipation of the ministry that is expected to succeed. The rash and presumptuous man who has been called to take office, does not possess, and his character, so far as hitherto known, is not calculated to command, the confidence of the British nation. We could not look back upon the crude projects and unscrupulous practices by which the last Whig ministry disgraced their office and endangered their country, without a feeling of the deepest alarm—if we believed it possible that a repetition of them would now be tolerated. What is to be the character and course of our new rulers? Independently of the corn-laws, what is to be their policy as to Ireland, as to foreign affairs, as to domestic finance? Is the Popish Church to be endowed in the sister kingdom? or is the Protestant Establishment to be overthrown? Is repeal to be openly patronized, or only covertly connived at? Is Lord Palmerston to be let loose on our relations with other powers, and to embroil us, before six months are over, in a quarrel with France and a war with America? Is our revenue to be supported to the level of our expenditure, or is a growing deficiency to be permitted to accumulate, till our credit is crippled, and our character branded with almost Penseylvanian notoriety? Is the country prepared for such enormities as these, or for the risk of their being attempted? We hope not: we think not. We feel assured that the very contemplation of their possibility, would make the nation rise in a mass, and eject the imbecile impostors who have already been so patiently tried, and so miserably found wanting.

Then, as to the corn-laws, is the new minister to adhere to his last manifesto, or has he used it merely as a lever for opposition purposes, to be laid aside, like some implement of housebreaking, when an entry into the premises has been effected? That attempt will scarcely be tolerated by his own supporters. Then how is he to carry his measure? With the present House of Commons, he cannot hope to do so, nor can he entertain that anticipation from any dissolution, except one carried on under such circumstances of unprincipled agitation, *as would convulse the country, and prove fatal to commercial credit and prosperity.*

But suppose he had the power, how would he use it? Would his measure be such as would immediately throw any considerable portion of land out of cultivation? That seems to be the hinging point of this corn-law question; and it is one on which the "total and immediate" men are more evasive, *in public discussion*, than on any other, though privately such of them as understand the subject, are fully aware of its bearings. If the proposed scheme would *not* attain or involve the result of throwing inferior soils out of culture, what good would it do to the League and their friends? For, strange to say, when the matter is probed to the bottom, the battle for which the League are truly fighting is directed to *the great national end of laying waste inferior land*. It is only by lowering rents and prices that they expect benefit, yet it is as clear as day that rents are dependent on the comparative value of the highest and lowest grades of the land in tillage; and if prices fall, those lands that barely pay at the present rates must cease to be cultivated. Read any of the more open and outspoken repealers. Take up the little tales of Miss Martineau, one of the most able and honest of her sect, and see how completely the object is to get rid of the expense attending the cultivation of inferior land. If that object is not attained by total and immediate repeal the whole discussion is a delusion. But if Lord John's proposed measures *will* throw lands out of cultivation, to a large extent, what provision is to be made to avert the inevitable evils that must ensue? How is the surplus population to be supported that will thus be thrown loose on the market of labour? How are the burdens to be provided for that the land thus disabled has hitherto borne? Are the imposts on agriculture to increase while its returns are to diminish? or is the old Whig expedient to be resorted to, of raising that very tax which they have resisted and denounced? Are all customs-duties to be abolished, and is the deficiency to be supplied by having the property-tax aggravated to whatever multiple the account may require? What safeguards or palliatives are to be devised to prevent the PANIC likely to ensue from so vast and so sudden a revolution; in which, under the instant diminution of rents and precariousness of prices, every mortgagee will be driven in desperation to recur upon his debtor, and every landlord upon his tenant; while the whole landed interest, high and low, though chiefly, no doubt, the middle and smaller proprietors and tenants, will be compelled to curtail their expenses to the lowest sum, and those who have already but a narrow margin of surplus, be reduced to beggary and ruin.

But would this confusion and distress affect the landed interest alone? No; the same alarm which involved that interest in ruin, would soon extend to manufactures, by striking at their foundation, CREDIT. Already, from a singular and unhappy combination of causes, a period of restricted circulation and of high interest for money, has begun to follow on one of unlimited accommodation: distrust seems ready to take the place of confidence: gigantic schemes in progress are paralysed or threatened with abandonment: the country appears to be trembling on the brink of one of those commercial crises which from time to time, and unavoidably, arise out of the spirit of speculation. Let but this additional element of confusion—the distress of the agricultural classes, *and all that depend upon them*—be thrown into the already wavering scale, and who can pretend to estimate the amount of ruin which a week may produce? The paradise of free-trade in corn may indeed be obtained, but it will be reached through the purgatory of a general bankruptcy.

But is free-trade to be confined to corn? Are the agriculturists alone to be deprived of protection, the manufacturing interests retaining the advantage of those protecting duties which exclude the competition of foreign markets? That is plainly impracticable. The silk, the wool, the iron, the manufactures of the Continent—the "main articles of *food and clothing*," according to Lord John Russell's letter—are also to be admitted into our markets at rates with which native industry cannot contend. Is this likely to raise wages, or to keep them as they are? Will it better the condition of the working classes? Or is the condition even of the higher classes in the mercantile circles to be made more comfortable by that immediate increase of the income-tax, which must be imposed, to balance the loss of revenue arising from the deficiency of our customs, if national faith is to be preserved, or the government of the country conducted. In every view of the case, and to every interest in the state, we believe that absolute free-trade, such as appears to be contemplated by the late leader of the Whigs, would be fraught with ruin. The letting loose of such a storm upon the State, *with the hand of Lord John Russell to hold the helm*, is a contingency from which we believe the very boldest will draw back.

But we feel no apprehension of such a result. There is now no democracy to be fooled into a new excitement in favour of a Whig ministry, or to be cheated by a cry of cheap bread, counteracted as it must be by the

contemplation of lower wages, and an increased competition in the labour-market. The middle classes, again, and all who have any thing to lose, are too wise to hazard the prosperity of the last four years, by supporting the men to whose ejection from office that prosperity is attributable.

We should, at the same time, act with a want of candour and frankness towards our agricultural friends, if we did not direct their attention to another aspect of the case. If it be true, contrary to our own hopes and convictions, that repeal is inevitable, *every thing depends* on the TIME and MANNER of effecting it. There is a inestimable value attending every year of continued protection that can yet be gained. Even a comparatively short period might be of infinite importance in completing those great improvements now in progress, which will raise the available fertility of so large a portion of our soil, but which must instantly stop, if protection be suddenly withdrawn. It is not in our power to see far into futurity, but every delay is precious, as enabling us better to meet the demands of public necessity, and to stand a competition with foreign soils, if that competition must ultimately be entered upon without legislative aid. How infinite, too, the difference of any change produced WITH A PANIC, and WITHOUT ONE! There may be various arrangements, moreover, which, if boldly and equitably made, might possibly go to place our protection on a footing nearly as firm, and not so likely to be assailed. On all this, however, we suspend our judgment for the present, remarking merely that we are not prepared to quit our present amount and plan of protection without DEMONSTRATION that we cannot fairly or prudently retain it.

In the meantime let us hope and struggle for the best, for the maintenance either of the present law, or of a scale substantially equivalent. If that fails us, let us aim at the *next best* arrangement; and by a firm and temperate course, we need not at least despair of averting that overwhelming confusion and wide destruction of property that would inevitably follow from the nostrums of desperate and designing men, devised and conducted with an equal absence of wisdom and of honesty.

A single word of earnest admonition in conclusion. The next few months or weeks must decide one important practical question, which we think has been unfolding itself silently before the minds of considerate men for the last few years, and which, whether they will or no, men of all opinions must

weigh well, with the deliberation due to their own safety and self-interest, and with that freedom from personal pique or party spirit which the emergency demands. We are far from pinning our faith to individual characters, or thinking that the welfare of the state can be wrapped up in the fortunes or progress of a single mind. But still the question will recur, whether, in the existing state of the country, and when all circumstances are balanced together, Sir Robert Peel is not the statesman of the day, as being at once the *most Conservative* and the *most Liberal* minister whom the opposite and conflicting forces in operation in this great country are likely to suffer or submit to. He may not be so tenacious of certain points as some would wish, or so lavish of concession as may be wished by others. But we speak of him on the one hand as witnesses to the fact, that his past measures, though calculated to excite apprehension, have been found, *by experience*, to carry with them no detriment to agriculture, or to any other great interest in the country; and, on the other hand, in the confident anticipation that nothing has recently occurred in his proposed course, that will not, in due time, be fully and satisfactorily explained. With these views of Sir Robert Peel's conduct, we cannot avoid asking, whether when we take him all in all, and appeal to the standard of practical good sense and prudence which wisdom will alone employ in such a momentous discussion, there is any other man now in the field, or likely to appear, to whom all parties can look so confidently, as an equitable and safe arbitrator of our national differences? If there is such a man, let him be pointed out. Sure we are that it is *not* Lord John Russell.

We had written thus far, in the belief that the Whigs, though after some coy, reluctant, amorous delay, would succeed in forming a sort of government—a task which we were sure Lord John Russell would attempt. That result seems now more than doubtful, and we close this article in the anticipation that a Conservative cabinet may possibly be again in power, before these pages meet the eyes of our readers. We rejoice at the prospect, and the country will rejoice. *Good measures from good men* is the best consummation of political well-doing, as it is certain that *dangerous measures from dangerous and desperate men*, is the most fearful political evil. In any view our friends have a plain course. It is, to adhere to their principles with a firm, yet prudent, determination of purpose—to hope and believe the best of their leaders and party—and to await patiently, and

receive candidly, the elucidation of those things that have hitherto been a mystery; and, as to which, as it was impossible to make any explanations, so it was unjust to pronounce a decision. We earnestly pray that, whether in power or in opposition, the meeting of Parliament will see among our great Conservative statesmen, and their followers throughout the country, including the new adherents whom the rashness and recklessness of our opponents have necessarily gained for us, that solid union of opinion and vigorous co-operation of action, on safe and sound principles of legislation, which can alone terminate the CRISIS and avert its recurrence.

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